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Constitutional Rights of Religious Minorities in Pakistan

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Abstract *The constitution of Pakistan defines our country as an "Islamic State". Pakistan is predominantly a State established for Muslims but many non-Muslims have been living here since its establishment. The constitution of Pakistan stands for equality and justice for all people regardless of caste, gender, religion, region and language. Qualitative methodology has been used. The available data will be taken from the various governmental institutions. In this research the researchers draw an Islamic Republic of Pakistan Constitutional scenario. It will not only shed light on the exact image of Pakistan's religious minorities, but it will also explain their freedom to follow their religion's teachings and pursue their customs and traditions.*

Key Words: Freedom of Religion, Constitution of the Pakistan, Religious Minorities, Islam, Fundamental Rights.

Introduction

The world's turned into a global village. Nearly all the world's countries became multi-racist, multi-religious, multi-linguistic societies. While diversity represents God's bounty, minority presence creates sensitive situations, and often requires delicate tackling. Minority rights have today become an integral part of civil rights embodied in the fundamental rights granted to the country's citizens. The way a state can tackle the problems of its minorities is a touchstone, by which its statesmen expertise can be judged. Within the territories of each state there are one or more minority groups are living, which have their own religious, linguistic, cultural and ethnic identities which are distinctly different from majority. Intra-minorities and majorities are essential for a stable and peaceful social set-up. Pakistan is a modern Islamic state that has different minorities and has lived in religious harmony since its inception. According to the studies of Youth Parliament Pakistan 2015, the statement presented by subcommittee made on Human Rights by United Nations could define the term appropriately in some way: A community of people of a society, composed of number of minorities which are not in a ascendant position in that state, in terms of linguistic, religious and racial characteristics that vary from that of majority of that state, but they have a sense of unity with each other, motivation, if not wholeheartedly, but through a common desire to survive, and the purpose of which in reality and in the statute of gaining parity with the majority(Rahman and Akram 2020).

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It is mentioned in Article 25 of Pakistan Constitution 1973, that all the citizens are equal in front of law and they are supposed to protect the law equally(The Constitution of Pakistan n.d.).

According to Article 26 of the constitution, there must be no discrimination shown against any citizen solely on the grounds of religion, gender, caste, race, residence etc.

A protection is provided to the minorities by Article 36 of the Constitution, according to it the legitimate rights and interests of minorities shall be protected by the state, including their proper representations in the provincial and federal services.

Islam has recognized every individual's fundamental right to life and honor regardless of beliefs, creed and religion. According to Islam "He who takes away an individual's life without legitimate authority is considered the one who has killed the humanity in general". The fundamental rights of non-Muslims were provided by Islam as being an equal with Muslims. No Muslim can harm the lives, property or religious places of non-Muslims.

A non-Muslim cannot be tortured in any way. According to the Holy Prophet (PBUH), "He who tortures a dhimmi is like the one who has counteracted him (the prophet). I shall counteract against him (he who tortures a dhimmi) on the Day of Judgment who has counteracted him (Al-Ayni n.d.)."

It is also believed by the jurists of various schools of thought that the protection of social and political rights of non-Muslims is binding upon Muslims. In addition to this, Islam also recognized the rights of minorities in property and education according to convictions of their own. It is also recognized regarding the right to family and secrecy that they have liberty to manage their institutions according to the laws of their religion. These rights have also been protected by Islam granted to minorities by the Constitution of Pakistan(Hassan Shahjehan 2014).

The Holy Quran Say

"Who so ever kills a human being (without any reason like) manslaughter or corruption on earth, it is though he had killed all the mankind".

Moreover, The Holy Quran explains the dignity of man in the following words: -

"We have conferred dignity on the children of Adam, and borne them over land and sea, and provided for them far above most of our creations"

The Prophet (PBUH) established first Islamic State in Madina which gave all the minorities' utter freedom of religion. He gave assurance to all the minorities that they would receive equivalent opportunities to spend a prosperous life. He even allowed non-Muslims to merge with Muslims of Madina according to their will. The political rights were given to them and they had equal voting rights with respect to the Head of State election. Equal rights to vote were also given to them. Even on death of Prophet (PBUH), He assured complete security of the non-Muslims by giving the directions to his followers.

According to the Holy Prophet (PBUH) ---- "Muslim is one from whose tongue and hand the Muslims are at peace".

He also said at another moment, ----"Slanderers do not enter paradise(Williams 1971)"

In Islamic states great tolerance must be shown with minorities and they should be provided with highest administrative positions in order to play their role in the state's development. They have the right to follow their religion and fulfill the obligations of their religion, build their educational institutions and places of their worship so that they can give the education of their faith and creed to their children(Parveen Shaukat Ali. 2007).

Objectives

The Minorities of Pakistan are living with religious harmony, but some where they are facing multiple

challenges such as job discrimination, socio-economical political and religious prejudices that must be attend with sincerity and meaningful measures to eliminate them. Being a responsible citizen, I intend suggesting measures to tackle these obstacles. By the need of circumstances, I have decided to precise a research article to obtain these objectives. The main objectives of the research are, provide an overview of the true implementation of the constitutional rights given to the minorities. Suggest constitutional improvement about minority.

For that purpose, I would initiate by drawing out a pictorial analysis that have shaped the Constitutional rights of religious minorities of Pakistan. Based on this analysis I would tend to examine the constitutional pillar and amendments, which minorities are enjoying by making of constitution of the Islamic Republic of Pakistan.

Research Questions

1. How are the minorities described in the constitution of Pakistan?
2. The constitutional rights of Religious Minorities have been implementing in the contemporary Era of Pakistan?

Literature Review

Religious minorities are an integral part of the society. They are small in numbers but they play an imperative role to maintain peace and religious harmony in the society. But in most of the society's minorities are in a susceptible circumstance as compare to majority. Minorities of any society require special measures to ensure that they benefit from the same rights as the rest of the population and need equal respect from members of different communities. These rights serve to reconcile the vulnerable groups and bring all the members of the society to the level of equality and give them their human and fundamental rights. This study can be fruitful in the socio, cultural and political development of the country.

Hamid Khan discuss in his book, Constitutional and political history of Pakistan In Pakistan, there are multiple minority groups, Muslim and non-Muslim. The distribution of rights whether constitution or provisional. Religious communities (Hindu, Muslim, Christian, Sikh, Buddhist and Jews) besides "Other religions and provided equal fundamental rights. He described the objective resolution and the committee report which was approved in 1954. He highlight the major issues before and after partition and what was the constitutional history of Pakistan and he defined the political development in the country(Khan 2009).

Farooq Yousaf wrote in his work the plight of religious minorities in Pakistan, he shed light on the violence and blasphemy that the main issue for the minorities he further mentions regarding the different schools of thought in Pakistan and the extremist's attacks which is the major problem of the country. He little bit high light the constitution of the Pakistan and restrictions which minorities are facing in our country by constitutional changes(Yousaf 2016).

Scholar Hina Sheikh conducted a survey report in which she had analyzed the status of religious minorities of Pakistan in 2010. She described the different incidents and violence in the contemporary era of Pakistan. Because of the miss-use of the blasphemy laws many innocent people suffered in the Pakistan such as the persecution, hatred and the religious discrimination happening in every stages of the society. (Sheikh 2010).

Dr. EshratHussainBasri writes in his research paper religious minorities in Pakistan. He discusses the different aspects of the minorities with different rulers of the country including the constitutional laws provided to the minorities by constitution of the Pakistan. He also defined the objective resolution Indian act and the Zia period of Islamization contemporary era*(Basri 2016).*

Conceptual Framework

Minority Uniqueness is a group phenomenon. In the modern context, in the world, there is no state that

is unrestricted by minority problems. Although minority survival is natural, the background for the minority problems is not necessarily the same. At different times it takes forms of focus and has taxed the minds of statesmen, philosophers and social scientist in various parts of the world. Global and international conventions and arrangements were signed at various ages in the history to protect the minorities.

The subject of the minority has become a significant political issue and has played a major role in the National and foreign relations, since the escalating egalitarianism in the 18th century. In the Democratic Nations, the first criterion to overcome such complications in the recognition, regardless of the religion, ethnicity, caste or language, of equal rights and duties for all. It is only Democracy that respects and provide fair representations to various populations. It is often unanimously claimed that Democracy defamations successfully handle minorities equally in the other hand, minorities should not live in an authoritarian society, where the state has everything. The minorities thus cannot maintain their distinct identities. They have fallen into the society itself.

Definition

Minority can be defined as a multifarious group of people who are small in number of two aggregates, which together make up a whole. (Laponce 1960).

However, the social understanding of minorities is nuanced. Limits must be set to express a minority. It is defined as a group of people who have distinct religion, ethnicity, culture background and language. They are part of half of the population in the world.

Furthermore the minority is a group of different ethnicity, language or faith than the majority. (Macartney 1934).

The United Nations sub-committee defines the term minority as the non-dominant gatherings of the people within a community that maintains and wishes to uphold constant racial, religious or linguistics customs and features or characteristics, which are substantially changed from those of the majority of the population. (Benton 1968)'.

(Laponce 1950). The word minority is not free from opprobrium and it is always targeted all over the world.

Methodology

The qualitative method was used to understand the prevailing situation of the religious minorities in Pakistan since Partition to up till now and it also shed light on the constitutional rights of the religious minorities in Pakistan. In order to conduct and to prevent the fruitful impact on society different extensive data sources have been consulted. According to the needs of research, both primary and secondary data have been collected. I have utilized only qualitative research including, library, web information, official documents, statistics, previous research, different reports, journal articles, and news-papers were obliged in this regard. To accomplish the data, it has been analytically arranged.

Discussion and Analysis

Religious Minorities in Pakistan

Pakistan has a predominantly Muslim majority. As an Islamic Republic, a very small proportion of Pakistan's total population is made up by minorities. Approximately 97 percent of the total population of 212.2 million (2018) practice Islam, while about 3 percent practice other faiths, in which Hinduism and Christianity are the main minority religions. The fact that in social and state affairs minorities would naturally have limited contributions is reflected in these figures themselves. In addition, Pakistan's constitution also prohibits any minority member from holding presidential and prime minister highest state positions. Under Article 41(2) no person other than a Muslim should be eligible to be elect as a President of Pakistan and he should be of

age not less than 45 years and qualified enough to be elected as a National Assembly's member(Tribune 2019).

It is clearly mentioned in Article 91(3) that after the elections of Deputy Speaker and Speaker, the National Assembly shall proceed to elect one of its Muslim members as The Prime Minister without debate, to the exclusion of any other business.

In Pakistan there are people with two mental approaches; the traditional and the moderate. The people with moderate approach debates that the building block of Pakistan was fair citizenship for all based on agonistic national values, while the claims of conservative narrative states that Pakistan was only founded for Islamic defense and practices. Various international treaties were signed by Pakistan on human rights including The International Civil and Political Rights Covenant (ICCPR), and the Universal Declaration of Human Rights (UDHR). Pakistan reserved most of them and made Islamic injunctions as their observance subject, as a result of which the scope of treaties became enormously limited.

The Article 18 of the UDHR provides freedom for the rights of every human being, religion, conscience and thought. The customary law and treaty have bound Pakistan to enforce the rights of its people especially minorities who are supposed to be equal citizen of Pakistan, to the freedom of belief and religion and to give them equal rights of defense and religion.

After the addition of these rights in the constitution as essential and suitable for all the citizens, the constitutional reservations of rights of minorities are examined in sub-section in detail, "The Constitution and the freedom of religion and belief(United Nations. and Office of the High Commissioner for Human Rights.)."

The Quaid-e-Azam Muhammad Ali Jinnah dreamed that the constitution of Pakistan also tried to guarantee for everyone the freedom of religion. The Article 20 of the Constitution of Pakistan ensured the freedom of practice of religion and establishment of religious institutions.

Lahore Resolution of March 1940 was called for Muslims, for the establishment of a new homeland, which clearly safeguarded the rights of religious minorities and provides all the citizens of the country their fundamental rights. It also pointed out the importance of freedom, tolerance, democracy equality and social justice. It served as the foundation stone for the constitution of Pakistan in future.

Minorities received permission to understand and practice their religious obligations freely and promote their culture.

The points presented by Quaid-e-Azam Muhammad Ali Jinnah between the years 1940-47 echoed in the pledge of Pakistan about freedom to worship and security of existence. Quaid-e-Azam Muhammad Ali Jinnah made an unconditional promise in his first address, about the equality of all citizens in front of law and religious freedom(Khalid and Anwar 2018). On August 11th 1947 Quaid-e-Azam said in his address of first constitute assembly of Pakistan that "In Pakistan Hindus would cease to be Hindu and Muslims would cease to be Muslim not in the sense of religion because that is the personal faith of each individual, but in political sense as citizen of state… you are free to go to your mosque or to any place of worship in this state of Pakistan. You may belong to any religion or caste or creed… that has nothing to do with the business of the state."

Objective Resolution

The Objectives Resolution also accepted the freedom of religious minorities, which is adopted in March 1949 by the constitutional assembly of Pakistan. It is said clearly that: All the persons have equal rights in front of law and supposed to be equally protected without prejudice to the law.

In this regard, any discrimination and guarantee fair should be prohibited by the law and all the persons should be equally protected without any discrimination of gender, colour, birth or other position, ethnicity, national or social origin, political or other opinion.

Minorities were free to enjoy their customs and traditions and government has the duty of protection of their interests. The government of Pakistan also allowed them to give their services for government. Non-Muslims and even some Muslim leaders of Constitute Assembly wanted Pakistan to become a secular state, but Islamic values were the main focus of constitutional structure of the country(Assembly 1949).

With the Objective Resolution the constitution-making phase began. Following the adoption of this resolution in 1949, the Constituent Assembly established numerous commissions for drafting a constitution based on the principles set out in the resolution. Among the committees Universal Concepts Commission was the most significant. It was made up of twenty-four leaders and led by the Prime minister. Nits inauguration on 12th August 1947 the assembly established a Committee on minorities' matters and on Pakistan citizen's fundamental rights. The subcommittee was chiefly divided in two major parts. The first part dealt with the development of basic human rights and the other part looked at rights of minorities and protection in Pakistan.

The Constituent Assembly approved the findings drafted in 1950 by that commission, published in 1954. Under this report, presented by the Human Rights Committee, minorities were granted fundamental rights as Pakistani citizens after it was accepted by the Constituent Assembly in 1950. It guaranteed the legal rights, to all state citizens, i.e., Muslims and non-Muslims.

Following Provisions were included in this report:

1. Equality before law for all citizens.
2. Freedom of occupation, association, speech, expression, conscience, trade or enterprise.
3. There must be no discrimination on the basis of gender, caste, race, religion or birthplace.
4. Every person should have an equal right to serve the state.
5. Every community has the authority to give religious teaching to the people of their community and personal laws of every community were guaranteed.
6. For the propagation of any religion no one would be required to pay special taxes other than his own.
7. In the matters of concession of taxes or exemption on religious institutions, no discrimination would be given to any religion.
8. No prejudice on admission to an institution of education.

The report was widely praised both inside and outside the Constituent Assembly. The Constituent Assembly, in its final report added the following clauses to the constitutional rights concerning minorities in Pakistan(Mahmood 1990).

Religious Minorities Fundamental Rights in Pakistan:

1. Any minority, living in Pakistan's territory or in any region of Pakistan having its own culture, distinct language or script, should not be prevented from retaining the same.
2. In providing assistance to educational institutions, the state shall not show any discrimination for any educational institution on the basis of the fact that it is primarily operated by a religious minority.
3. At the centre as well as in the provinces, there will be a Minister for Minority Affairs to take care of the minorities interests and to look after that the protections provided for minorities in the constitution are properly implemented(Khan 2009).

The Constitution of 1973 and the Rights of the Minorities

Constitution in every part of the world, guarantee the rights of all modern democratic states. But minorities are often neglected; their rights are not separately mentioned. Minorities therefore live wherever they live, claiming discrimination and particularly in developed parts of the world. Several minorities in Pakistan reside in various parts of the country. According to Islam, those minorities are guaranteed their rights. Every person has equal rights, according to the 1973 constitution. They are free to worship their spiritual patrimony and

practice it. The constitution of 1973 grants the religious minorities fundamental rights, as follows(Pakistan and Pakistan. National Assembly 1973):

1. The minorities have the freedom to commence, business or occupation.
2. They have rights for freedom of speech.
3. Rights to the information given by the constitution.
4. The person has a liberty of professing religion and managing religious institutions.
5. Protection from taxation for the purpose of giving it to all religions.
6. Protect educational institutions with respect to religion.
7. They have given provision regarding the property.
8. Protecting ownership rights.
9. Equal protection for all citizens.
10. Educational rights.
11. There should be no discrimination of religion in public places.
12. No discrimination should be shown regarding services.
13. The culture, scrip and language of minorities should be protected.

The constitution provides reservations of ten additional seats for non-Muslims including Hindus, Christians and persons who belongs to Scheduled Castes like Sikhs, Buddhists, Parsi'sand members of Qadiani (Ahmadi) group.

The rights are valued highly, and minorities are free to pursue their culture and enjoy equal rights. For example, the Christian community celebrates Christmas, Easter and other festivals without any hesitation. And on the other hand, Hindus celebrates Holli and Dewalli, also Sikh community according to their customs and traditions celebrates Besakhi and other cultural festivals. Religious minorities have the right to receive education according to their needs and wishes and because of their political interest they can cast votes and take part in elections.

Discrimination and Violence

Minorities are the country's key pillar. They are playing their white role in building peace and improving Pakistan. Some of the best hospitals and educational centers ran under the supervision of minorities. They all work as ministers in government sectors, along with businessmen and teachers, as they play an important part in the success and improvement of society.

Since we know, minorities are a corner-stone of any state. After partitioning Pakistan, a tremendous contribution was made by them in national development. The Quaid-e-Azam was keenly concerned with the nation's educational future. In the meeting of Quaid-e-Azam with Parsi leaders, he asked them to make their community agreed about the matter. Then the admission will be opened in two big ParsiSchools for all, namely BVS and Mama Parsi. There are many welfare projects accomplished by JamshedNusserwanji as president of the Municipality of Karachi, including Maternity homes, Primary education, Water supply, drainage schemes, he also constructed a housing project with the name of Jamshed Quarters and many more. He did all the public services without any distinction of creed, color or caste. The Parsis have done a great deal for refugees. Jimmy Lawyer in 1947 stated that, Parsis were able to do more for Muslims than they were doing. What held them was the fear of being noticed and then robbed of their wealth.

The other community that tried earnestly in 1947 and thereafter to heal Muslim refugee's wounds was the Christians. At the time of creation of Pakistan, they began human revivification task at all levels. Not only that, another positive contribution was that they work through shoulder to shoulder in the Pakistan movement to tilt the population's balance in favors of Muslim league. In Punjab Assembly in 1947 three Christian members voted for Pakistan. In Archbishop J. Saldanha's words, "it may not be claimed that these votes were decisive but it was certainly a small but sincere contribution from us."

And then C.E. and Frank Anthony Gibbon and other Christians were able to secure certain concessions for Anglo-Indians. Later as Deputy Speaker of Punjab Assembly, Gibbon was also elected. One of the prominent and notable Christian personalities of that time was DewanBahadur S.P. Singh, and Mr. Rallea Ram also contributed in field of education as he was the head of the Rang Mahal High School of Mission. All these gentlemen had a meeting with Muhammad Ali Jinnah and their hopes and fears were known to him. The Quaid-e-Azam assured them that they will equal citizen of Pakistan as Muslims are. (Mahmood 1992).

But unfortunately, Quaid-e-Azam's vision is not fulfilling properly, but somewhere it can be observed that minorities are facing different challenges, and Many times minorities are facing constitutional negligence. Such issues of concern are:

1. Lack of Religious Minorities Committee: In our country, there is no administrative committee regarding religious minorities.
2. Difficulty in reformation of laws on blasphemy and abusing existing laws: The religious minorities in Pakistan facing multiple challenges, violence and religious prejudice such as false accusation of blasphemy laws.
3. Non-implementation of five percent Minority job quota: Constitution of Pakistan provided 5 percent job quota for the minorities but it is not implemented in many governmental departments it is limited in the books or documents not in the reality.
4. Discrimination in admissions in Schools and lack of advanced education coverage and learning.
5. Underrepresentation of minorities within politics: Religious minorities have less representation in politics. However, they are the citizens of the country in this context their representation must be increased in politics according to their expectations.
6. Forced marriages and forced conversions: Minorities are forced to convert in the other religion by some persons especially Hindu community is facing these issues.

Despite of all these measures, the majority live on the impression that minorities enjoy privileges, while the reality is quite different in that they face restrictions and discriminations. The official narrative, overlooking the disturbing manifestations of increasing religious intolerance, persistently affirmed that there were sufficient constitutional guarantees regarding religious freedom. Failure of successive governments seen in observing the existing disparity in statutory rights and they continue to argue that the minorities have all the religious freedom. It follows from the claims that relics of the past as vibrant religious diversity is misunderstood by the authorities, such as places of worship certain rituals etc.

Second, Pakistan is an official narrative country where all the guidelines are mentioned in constitution but lack strong tradition of openness, the rule of law and Democracy. Thus, the officers try to deny, deflect or dilute the ground-reality at serious cost, as a result government has to shift the recognizing issues related to forced conversions, proper presentation of religious minorities in politics etc. As a result, some affirmative actions were initiated while official narrative co-opted the notion of interfaith dialogue/ relationships. Because there is no proper system in the country to genuinely implement the constitution. (Report March 2015).

But now we have observed a turning point in our society that the government is taking a lot of initiatives for the minorities so that they can get their rights and lot of implementations have been done lately.

Conclusion

The incorporation of religious minorities as decent people into national politics and government sectors would involve socio-political changes and progressive legislation that would grant them the right to equal citizenship of the country. The bigotry and the rise of racial intolerance must shed light on discrimination and populism's wave. Minorities in particular Christians, played an integral role especially during the independence movement until 1947 in the creation of Pakistan. Educational institutions of Christians in

Karachi and Lahore participated in the independence movement and helped in building Pakistan. While Hindus which were residing in the frontier regions of Pakistan decided to stay there and play their role in its progress. Pakistan is now at a significant juncture in which minorities of the country have predefined fate and future. In the fields of culture, business and arts, religious minorities have made their existence memorable. The Government of Pakistan reassures minorities as to their safety, whether it's about their lives or about their economic, cultural, social, and political interests. This is the freedom of minorities and their rights in Pakistan, which are enshrined in our constitution, must be covered as well. Islam commands that the protection of lives, properties and reputations of non-Muslims is adherent. The rights of the poor and all minorities in Pakistan create a free and pluralistic democracy in which allows all individuals to participate freely in politics of Pakistan and in the economic and social development of Pakistan. Whatever the setting, ambition and color, both minorities shall be treated as residents of an equal State.

Since the inception of Pakistan, Christian, Hindu and other cultures have existed in the country with fraternity and religious unity. The government must ensure that the Article 20 of Constitution implemented at all levels in its true spirit and provides for the rights of minorities to practice their religion, as well as for security. In addition, strict legislation should be formulated by legislature for the punishment of those who found guilty of forced conversions and weddings. Moreover, the state should arrange the security of all places of worship to minority communities appropriately. Under state machinery, officials too should be subject to conviction and punishment for failing to provide victim family justice. Subsequently during the partition of Sub-continent in 1947, non-Muslims like Sikhs, Hindus and Christians along with Muslims sacrificed their lives in the creation of Pakistan, this makes them equal citizens of the country.

Recommendations

- Set up an official National Commission on Minorities.
- Guaranteeing the National Commission on Human Rights full freedom. (The NCHR).
- Ensure complete enforcement of the 5 percent minority job quota.
- Choose alternate ways of voting to guarantee true religious representation of minorities in both federal and provincial assemblies.
- Take immediate action to prevent forced conversions and marriages.
- Introduce legislation incorporating substantial penalties for false accusations.
- About blasphemy.
- 5 percent minority education quota should be introduced in higher education institutes such as universities and colleges which give vocational, technical or professional teachings, to ensure that the religious minority students are receiving necessary education and training so they can avail the opportunities for jobs under 5 percent quota schemes.

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PROVINCIAL ASSEMBLY OF SINDH
NOTIFICATION
KARACHI, THE 12TH APRIL, 2016

NO.PAS/Legis-B-05/2016-The Sindh Hindus Marriage Bill, 2016 having been passed by the Provincial Assembly of Sindh on 15th February, 2016 and assented to by the Governor of Sindh on 07th April, 2016 is hereby published as an Act of the Legislature of Sindh.

THE SINDH HINDUS MARRIAGE ACT, 2016

SINDH ACT No. IX OF 2016

AN
ACT

to provide for law relating to marriage amongst Hindus.

Whereas the right to family is a fundamental right guaranteed by the Constitution of Pakistan;

And Whereas there is a need to create a uniform mechanism for registration of Hindu marriages and for matters which are incidental or ancillary thereto.

It is hereby enacted as follows:

1. SHORT TITLE EXTENT AND COMMENCEMENT:

(1)This **Act** may be called the Sindh Hindus Marriage **Act**, 2016.
(2) This **Act** extends to all Hindus in the Province of Sindh.
(3)It shall come into force at once.

2. DEFINITIONS:

In this **Act**:

(a) "**Certificate of marriage**" means the document provided in Schedule A.

(b) "**Concerned Officer**" means the officer duly authorized in the Union Council, Ward or any other Municipal Authority where the marriage ceremony takes place.

(c) "**Consent**" means informed and voluntary consent that is given freely without any coercion, undue influence, fraud or misrepresentation by an adult with full capacity to give any such consent and full knowledge of the implications of the consent and any alternatives.

(d) "**Degrees of prohibited relationship**" means a relationship prohibited under personal law of the religion and customs of Hindus that forbids certain relations to join in marital life;

(e) "**Government"** means the Government of Sindh;

(f) "**Hindu**" any person who practices the Hindu, Jain or Sikh religions in any of the forms or developments;

(g) "**Marriage Register**" means the register of marriages maintained by the Concerned Officer as prescribed by the Government;

(h) "**Solemnization**" means the marriage ceremony.

3. OBJECTIVE:

The objective of this **Act** is to provide a formal process of registration of marriages for Hindus.

4. CONDITIONS FOR A HINDU MARRIAGE:

(1) A marriage may be solemnized under this **Act**, if the following conditions are fulfilled, namely:

a) parties to the marriage are of 18 years of age or above;

b) parties to the marriage are able to give consent;

c) parties to the marriage give free consent;

d) parties are not within the prohibited degree of relationship;

e) neither of the parties to the marriage has a spouse living at the time of marriage; and

f) At least two witnesses are present at the time of the solemnization and registration of marriage.

5. CEREMONIES FOR MARRIAGE:

Notwithstanding anything contained in this **Act**, a marriage may be solemnized in accordance with the customary rites and ceremonies of either party to the marriage.

6. REGISTRATION OF MARRIAGES:

Every marriage solemnized under this **Act** shall be registered with the Union Council/Ward or any other Municipal Authority, where the marriage ceremony took place, within 45 days of the solemnization.

7. MANNER OF REGISTRATION:

(1) There shall be 4 copies of the certificate of marriage, as provided in Schedule A, all of which after being filled out shall be provided to the Concerned Officer.

(2) The Concerned Officer after satisfying himself that all conditions of marriage set out in Section 4 have been met shall certify/endorse the certificate of marriage and keep one copy of the certificate for its record and return the remaining copies to the parties.

(3) The Concerned Officer shall maintain a Marriage Register for the purposes of this **Act** as per Rules and directions issued by the Government.

(4) All the entries in the Marriage Register shall bear the official stamp of the Concerned Officer and shall be signed by:

i. the person solemnizing the marriage;
ii. both parties to the marriage;
iii. two credible witnesses; and
iv. Concerned Officer.

8. Omitted.

9. GOVERNMENT TO PRESCRIBE FEE:

The Government through a notification published in the official Gazette shall prescribe fee for registering marriages and issuing certified copies of the certificates.

10. POWER TO MAKE RULES:

The Government shall within 3 months of when this **Act** comes into force, shall notify Rules for the purpose of furtherance of achieving the objects of this **Act**.

11. RETROSPECTIVE EFFECT OF THE ACT:

(1) The **Act** shall have retrospective effect for the purposes of validation and registration of the marriages solemnized prior to the commencement of this **Act**.

(2) Marriages solemnized before this **Act** came into force may be registered with the Concerned Officer with the same procedure, as prescribed under this **Act**.

12. POWER TO REMOVE DIFFICULTIES:

If any difficulty arises in giving effect to the provisions of this **Act**, the Government may, by order in the official Gazette, make such provisions not inconsistent with the provisions of this **Act** as appear to it to be necessary or expedient for removing the difficulty.

13. INTERPRETATION:

This **Act** and the Rules framed hereunder shall be interpreted so as to advance the purposes of this **Act** and to facilitate and encourage people belonging to Hindu religion to get their marriages registered.

14. ACT TO TAKE PRECEDENCE OVER OTHER LAWS:

The provisions of this **Act** shall take precedence over the provisions of any other law

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BY ORDER OF THE SPEAKER
PROVINCIAL ASSEMBLY OF SINDH

G.M.UMAR FAROOQ
SECRETARY
PROVINCIAL ASSEMBLY OF SINDH

SCHEDULE A

CERTIFICATE OF MARRIAGE

1. Union Council Name/No _____,Tehsil/Town_____, District _____

2. Date of Marriage _____

3. Particulars of the Groom:

i. Full Name_____, CNIC:_____

ii. Father's Name_____ CNIC_____

iii. Mother's Name_____ CNIC_____

iv. Age _____

v. Permanent Address: _____

vi. Temporary Address:_____

vii. Matrimonial Status: Single Married Divorced Widower

viii. Number, Name and Ages of Dependents:_____

ix: Religion: Hindus Sikh Jain

4. Particulars of the Bride:

i. Full Name: _____ CNIC: _____

ii. Father's Name: _____CNIC: _____

iii. Mother's Name_____CNIC_____

iv. Age _____

v. Permanent Address: _____

vi. Temporary Address:_____

vii. Matrimonial Status: Single Married Divorced Widower

viii. Number, Name and Ages of Dependents:_____

ix: Religion: Hindus Sikh Jain

5. **Signature of Bride:** _____

6. **Signature of Groom:** _____

7. **Name, Signature and CNIC number of Witnesses**

8. **Signature of Pandit, Maharaj or any person solemnizing the marriage**

9. **Stamp & Seal of Concerned Officer.**

INTRODUCED ON 24-08-2020

As

[~~TO BE~~ INTRODUCED IN THE SENATE]

A

BILL

to provide for protection of rights of the religious minorities

WHEREAS it is expedient to provide for the protection of the rights of the religious minorities and eradication of violence against them in Pakistan;

It is hereby enacted as follows:-

1. Short title, extent and commencement.— (1) This Act may be called the Protection of the Rights of Religious Minorities Act, 2020.

(2) It shall extend to whole of the Pakistan.

(3) It shall come into force at once.

2. Definitions.— In this Act, unless the context otherwise requires, the following expressions shall have the meanings hereby respectively assigned to them,-

(a) **"Act"** means the Protection of the Rights of Religious Minorities Act, 2020;

(b) **"Discrimination"** means unfair or unequal treatment of an individual or group in all fields of life, because of his religious belief;

(c) **"Educational Curriculum"** includes the syllabus of the schools, colleges, universities or the other educational institutions being used for the purpose of learning and education;

(d) **"Forced Conversions"** includes coercing, intimidating, forcing or threatening someone to leave one's religion or adopt a different religion;

(e) **"Forced Marriages"** means coercing, intimidating, threatening or forcing someone to act under duress to marry against one's will and includes the marriage of the minors;

(f) **"Freedom"** includes the freedom to profess one's religion and religious rituals, propagate one's religion, visit one's place of worship and all other fundamental freedoms ensured by the Constitution of the Islamic Republic of Pakistan.

(g) **"Government"** means the Federal Government;

(h) **"Guardian"** means the natural or legal guardian of the minors;

(i) **"Hate Speech"** means public speech that expresses hate or encourages violence towards a person or a group;

(j) **"Minor"** means the person defined as minor in the Guardians and Wards Act, 1890;

(k) **"Offender"** means any person who, either by himself or as a member or leader of a group of persons or organization, commits or attempts to commit or abets or instigates or provokes the commission of violence under this Act;

(l) **"Person"** includes both male and female;

(m) **"Place of Worship"** includes the places where the religious minorities worship and associate religious sanctity to such places;

(n) **"Religious Heritage"** includes the valuable objects and qualities such as historical buildings and cultural traditions that have been passed down from the previous generation to the present generation of a specific religious minority or hold a sentimental sanctity to specific religious minority;

(o) **"Religious Minorities"** include Hindu, Christians, Parsis, Baha'is, Bhuddists and followers of any other religion not being the state religion; and

(p) **"Violence"** includes an act which causes or may cause any harm, injury or endangering the life of any person because of his religious association with the meaning of this Act, or causing damage or loss to the property belonging to that person or causing damage to the place of worship.

3. Changes in Educational Curriculum.— Any material demeaning, humiliating or spreading hatred against any religious minority shall not be the part of educational curriculum. Any such material from the educational curriculum shall be abolished after the publication of this Act in the official gazette.

4. Prohibition of Forced Conversions.— The forced conversions of any group or individual of a religious minority shall be prohibited. In case of forced conversion, the victim shall be provided adequate assistance and protection from the government and the offender shall be punished with imprisonment which may extend to seven years or fine upto one hundred thousand rupees, or with both. The victim shall be paid the compensation by the offender as ordered by the court.

5. Prohibition of Inter-faith Forced Marriages and Minority Marriages.—(1) The interfaith forced marriages shall be prohibited under this law.

(2) In case of the inter-faith forced marriage of any minor belonging to a religious minority, the presumption shall be that the marriage is forced.

(3) The inter-faith forced marriage shall stand annulled.

(4) In case of inter-faith forced marriage the offender shall be punished with imprisonment which may extend to ten years or fine which shall not be less than five hundred thousand rupees or with both.

(5) The offender shall be punished with imprisonment which shall not be less than ten years and not more than fourteen years in case of inter-faith forced marriage of a minor and fine which shall extend to five hundred thousand rupees.

6. Freedom to Profess Religion and to manage Religious Institutions.— The religious minorities shall enjoy their right to freedom as provided in the Constitution of the Islamic Republic of Pakistan.

7. Penalties.— The offences under this Act shall be punishable as under:

(i) **Penalty for Hate Speech:** Whoever commits the offense of hate speech shall be punished with an imprisonment which may extend to three years and fine which shall not be more than fifty thousand rupees.

(ii) **Penalty for Violence:** Whoever commits the offense of violence shall be punished with an imprisonment which shall not extend three years or fine which shall not be more than fifty thousand rupees, or with both.

(iii) **Prohibition of discrimination:** whoever commits the offense of discrimination shall be punished with an imprisonment which shall not extend one year or fine which shall not be more than twenty five thousand rupees or with both.

(iv) **Protection of the Religious Heritage:** The religious heritage of the religious minorities shall be maintained and protected by the government. Any offender doing any damage to the religious heritage shall be punished with an imprisonment which shall not be less than seven years and fine which may extend to fifty thousand rupees.

8. Complaint.— Any person aggrieved of any of the offenses mentioned in this Act may file a complaint with the police or directly submit it to the court.

9. Offenses to be cognizable and non-bailable.— All the offenses mentioned under this Act shall be cognizable and non-bailable.

10. Procedure.— The provisions of the Code of Criminal Procedure, 1898 shall mutatis mutandis apply to this Act for the conduct of proceedings in the court of law.

11. Offenses to be tried— All the offenses under this Act shall be tried by the Court of Sessions.

12. Implementation— The Minister-in-charge of the Federal Government shall ensure implementation of this Act.

13. Over-riding effect— In case of any law repugnant to said Act, this Act shall have the over-riding effect.

14. Power to make Rules— The Federal Government may make Rules for the implementation of this Act.

STATEMENT OF OBJECTS AND REASONS

The Constitution of Pakistan safeguards the rights of the religious minorities as reflected by the father of the nation Quaid-e-Azam Muhammad Ali Jinnah in his various speeches. The judgments of honourable Supreme Court of Pakistan in the case of church bombing in Peshawar had laid down the need of a law for the protection of the religious minorities. This Act is needed to implement the Constitution of Pakistan in its true letter and spirit.

SENATOR MUHAMMAD JAVED ABBASI
MEMBER-IN-CHARGE

REGISTERED No. M - 302
L.-7646

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PART I

Acts, Ordinances, President's Orders and Regulations

NATIONAL ASSEMBLY SECRETARIAT

Islamabad, the 25th July, 2024

No. F. 23(9)/2024-Legis.—The following Act of *Majlis-e-Shoora* (Parliament) received the assent of the President on the 23rd July, 2024 is hereby published for general information:—

ACT NO. XIV OF 2024

AN

ACT

further to amend the Christian Marriage Act, 1872

WHEREAS it is expedient further to amend the Christian Marriage Act, 1872 (XV of 1872) for the purposes hereinafter appearing;

It is hereby enacted as follows:—

1. **Short title, extent and commencement.**—(1) This Act shall be called the Christian Marriage (Amendment) Act, 2024.

Price: Rs. 5.00

[8212 (2024)/Ex. Gaz.]

(2) It extends to the Islamabad Capital Territory.

(3) It shall come into force at once.

2. **Amendment of section 60, Act XV of 1872.**—In the Christian Marriage Act, 1872 (XV of 1872), in section 60. in sub-section (1),—

(i) for the word "sixteen" the word, "eighteen", shall be substituted; and

(ii) for the word "thirteen" the word, -"eighteen" shall be substituted.

TAHIR HUSSAIN,
Secretary General.

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THE DIVORCE ACT,1869

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SCHEDULE OF FORMS

THE DIVORCE ACT

[1]ACT No. IV OF 1869

[26th February, 1869]

An Act to amend the law relating to Divorce and Matrimonial Causes [2]* *.

Preamble. WHEREAS it is expedient to amend the law relating to the divorce of persons professing the Christian religion, and to confer upon certain Courts jurisdiction in matters matrimonial; It is hereby enacted as follows :—

I.— PRELIMINARY

1. Short title. Commencement of Act. This Act may be called the [3]* Divorce Act, and shall come into operation on the first day of April, 1869.

2. Extent of Act. [4][This Act extends to the whole of Pakistan.]

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[1]For Statement of Objects and Reasons, see Calcutta Gazette, 1863, p. 173; for Report of Select Committee, see Gazette of India, 1869, p. 192; for Proceedings in Council, see Calcutta Gazette, 1862, Supplement, p. 463, ibid., 1863, Supplement, p. 43, and Gazette of India, 1869, Supplement, p. 291.
The Act extends to Pakistan the principal provisions of the Matrimonial Causes Act, 1857 (20 & 21 Vict., c. 85), as amended by the Matrimonial Causes Act, 1859 (22 & 23 Vict., c. 61), the Matrimonial Causes Act, 1860 (23 & 24 Vict., c. 144), and the Matrimonial Causes Act, 1866 (29 & 30 Vict, c. 32). It also embodies many rulings of Sir Cresswell and Lord Penzance. Provision was made by the Indian Divorces (Validity) Act (11 & 12 Geo., 5, ch. 18) with respect to the validity of certain decrees granted in India for the dissolution of the marriage of persons domiciled in the United Kingdom.
The Limitation Act does not apply to suits under this Act, see the Limitation Act, 1908 (9 of 1908), s. 29 (2).
It has been declared to be in force in Baluchistan by the British Baluchistan Laws Regulation, 1913 (2 of 1913), s. 3.
It has been applied to Phulera in the Excluded Area of Upper Tanawal to the extent the Act is applicable in the N.W.F.P., subject to certain modifications, and extended to the Excluded Area of Upper Tanawal (N.W.F.P.) other than Phulera with effect from such date and subject to such modifications as may be notified, see N.W.F.P. (Upper Tanawal) (Excluded Area) Laws Regulation, 1950.
It has also been extended to the Leased Areas of Baluchistan, see the Leased Areas (Laws) Order, 1950 (G.G.O. 3 of 1950) ; and applied in the Federated Areas of Baluchistan, see Gazette of India, 1937, Pt. I, p. 1499.

[2]The words "in India" omitted by A. O., 1949, Sch.

[3]The word "Indian" omitted, ibid.

[4]The original paragraph has successively been amended by A. O., 1949, and the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), to read as above.

Extent of power to grant relief generally, and to make decrees of dissolution, or of nullity. [1][Nothing hereinafter contained shall authorise any Court to grant any relief under this Act except where the petitioner[2][or respondent] professes the Christian religion,

or to make decrees of dissolution of marriage except where the parties to the marriage are domiciled in [3][Pakistan] at the time when the petition is presented,

[4][or to make decrees of nullity of marriage except where the marriage if solemnized before the 15th day of August, 1947, has been solemnized in India and if solemnized on or after that date has been solemnized in Pakistan and the petitioner is resident in Pakistan at the time of presenting the petition,]

or to grant any relief under this Act, other than a decree of dissolution of marriage or of nullity of marriage, except where the petitioner resides in [3][Pakistan] at the time of presenting the petition.]

3. Interpretation-clause. In this Act, unless there be something repugnant in the subject or context,—

"**High Court**." [5][6]* * * * * * *

(2) **"Court of Civil Judge".** "Court of Civil Judge" means, in the case of any petition under this Act, the Court of the Civil Judge within the local limits of whose ordinary jurisdiction the husband and wife resided or last reside together ;

(3) **"Court".** "Court" means the High Court, the District Court or the Court of Civil Judge, *as* the case may be;]

(5) **"Minor children."** "minor children" means, in the case of sons of [7][Pakistani] fathers, boys who have not completed the age of sixteen years, and, in the case of daughters of [7][Pakistani] fathers, girls who have not completed the age of thirteen years : in other cases it means unmarried children who have not completed the age of eighteen years :

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[1]Subs. by the Divorce (Amendment) Act, 1926 (25 of 1926), for the original paragraph.

[2]Ins. by the Divorce (Second Amendment) Act, 1927 (30 of 1927), s. 2.

[3]Subs. by A.O., 1949, Sch., for "India".

[4]Subs. by the Divorce (Amendment) Act, 1950 (57 of 1950), s. 2, for the original sub-paragraph.

[5]The original clauses (1), (2), (3), and (4), successively amended by Acts 18 of 1919, 32 of 1925, 8 of 1935, A. O. 1937, A. O. 1949, Sch. Act 26 of 1951 Ord. 21 of 1960, and A. O. 1961 have been subs. by the Divorce (Amendment) Act, 1975 (4 of 1976), s. 2, to read as above.

[6]Clause (1) omitted by the Federal Laws (Revision and Declaration) Ordinance, 1981 (27 of 1981), s. 3 and IInd Sch.

[7]Subs. by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 2, for "Native".

(6) **"Incestuous adultery."** "incestuous adultery" means adultery committed by a husband with a woman with whom, if his wife were dead, he could not lawfully contract marriage by reason of her being within the prohibited degrees of consanguinity (whether natural or legal) or affinity :

(7) "**Bigamy with adultery.**" "bigamy with adultery" means adultery with the same woman with whom the bigamy was committed :

(8) "**Marriage with another woman.**" "marriage with another woman" means marriage of any person, being married, to any other person, during the life of the former wife, whether the second marriage shall have taken place within [1][Pakistan] or elsewhere :

(9) "**Desertion.**" "desertion" implies an abandonment against the wish of the person charging it : and

(10) "**Property.**" "property" includes, in the case of a wife, any property to which she is entitled for an estate in remainder or reversion, or as a trustee, executrix or administratrix ; and the date of the death of the testator or intestate shall be deemed to be the time at which any such wife becomes entitled as executrix or administratrix.

II.— JURISDICTION

4. [*Matrimonial Jurisdiction of High Courts to be exercised subject to Act.*] *Omitted by the Divorce (Amdt.) Act,* 1975 *(IV of I976), s.* 3.

5. [*Enforcement of decrees or orders made heretofore by Supreme or High Court.*] *Omitted by the Divorce (Amdt.) Act,* 1975 *(IV of* 1976) *s.* 4.

6. [*Pending suits.*] *Omitted by the Divorce (Amdt.) Act,* 1975 *(IV of* 1976), *s.* 4.

7. [*Court to act on principles of English Divorce Court.*] *Omitted by the Federal Laws (Revision and Declaration) Ordinance,* 1981 *(XXVII of* 1981), *s.* 3 *and IInd Sch.*

8. [*Extraordinary Jurisdiction of High Court.*] *Omitted by the Divorce (Amdt.) Act.* 1975 (*IV of* 1976), *s.* 6.

9. [*Reference to High Court.*] *Omitted by the Divorce* (*Amdt.*) *Act,* 1975 (*IV of* 1976), *s.*7.

---

[1]Subs. by A.O., 1961, Art. 2 and Sch., for "the Dominions of Her Majesty", (w.e.f. 23-3-56).

III.— DISSOLUTION OF MARRIAGE

10. When husband may petition for dissolution. Any husband may present a petition to the [1][Court of Civil Judge] praying that his marriage may be dissolved on the ground that this wife has, since the solemnization thereof, been guilty of adultery.

When wife may petition for dissolution. Any wife may present a petition to the [1][Court of Civil Judge] praying that her marriage may be dissolved on the ground that, since the solemnization thereof, her husband has exchanged his profession of Christianity for the profession of some other religion, and gone through a form of marriage with another woman ;

or has been guilty of incestuous adultery.

or of bigamy with adultery.

or of marriage with another woman with adultery.

or of rape, sodomy or bestiality.

or of adultery coupled with such cruelty as without adultery would have entitled her to a divorce a *mensa et toro*.

or of adultery coupled with desertion, without reasonable excuse, for two years or upwards.

Contents of petition. Every such petition shall state, as distinctly as the nature of the case permits, the facts on which the claim to have such marriage dissolved is founded.

11. Adulterer to be co-respondent. Upon any such petition presented by a husband, the petitioner shall make the alleged adulterer a co-respondent to the said petition, unless he is excused from so doing on one of the following grounds, to be allowed by the Court :—

(1) that the respondent is leading the life of a prostitute, and that the petitioner knows of no person with whom the adultery has been committed ;

(2) that the name of the alleged adulterer is unknown to the petitioner although he has made due efforts to discover it ;

(3) that the alleged adulterer is dead.

12. Court to be satisfied of absence of collusion. Upon any such petition for the dissolution of a marriage, the Court shall satisfy itself, so far as it reasonably can, not only as to the facts alleged, but also whether or not the petitioner has been in any manner accessory to, or conniving at, the going through of the said form of marriage, or the adultery, or has condoned the same, and shall also inquire into any countercharge which may be made against the petitioner.

---

[1]Subs. by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 8.

13. Dismissal of petition. In case the Court, on the evidence in relation to any such petition, is satisfied that the petitioner's case has not been proved, or is not satisfied that the alleged adultery has been committed,

or finds that the petitioner has, during the marriage, been accessory to, or conniving at, the going through of the said form of marriage, or the adultery of the other party to the marriage, or has condoned the adultery complained of,

or that the petition is presented or prosecuted in collusion with either of the respondents.

then and in any of the said cases the Court shall dismiss the petition.

[1]* * * * * * *

14. Power to Court to pronounce decree for dissolving marriage. In case the Court is satisfied on the evidence that the case of the petitioner has been proved,

and does not find that the petitioner has been in any manner accessory to, or conniving at, the going through of the said form of marriage, or the adultery of the other party to the marriage, or has condoned the adultery complained of,

or that the petition is presented or prosecuted in collusion with either of the respondents.

the Court shall pronounce a decree declaring such marriage to be dissolved [2]* * *.

Provided that the Court shall not be bound to pronounce such decree if it finds that the petitioner has, during the marriage, been guilty of adultery,

or if the petitioner has, in the opinion of the Court, been guilty of unreasonable delay in presenting or prosecuting such petition,

or of cruelty towards the other party to the marriage,

or of having deserted or wilfully separated himself or herself from the other party before the adultery complained of, and without reasonable excuse.

or of such wilful neglect or misconduct of or towards the other party as has conduced to the adultery.

---

[1]Omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 9.
[2]Omitted ibid., s.10.

Condonation. No adultery shall be deemed to have been condoned within the meaning of this Act unless where conjugal co-habitation has been resumed or continued.

15. Relief in case of opposition on certain grounds. In any suit instituted for dissolution of marriage, if the respondent opposes the relief sought on the ground, in case of such a suit instituted by a husband, of his adultery, cruelty or desertion without reasonable excuse, or, in case of such a suit instituted by a wife, on the ground of her adultery and cruelty, the Court may in such suit give to the respondent, on his or her application, the same relief to which he or she would have been entitled in case he or she had presented a petition seeking such relief, and the respondent shall be competent to give evidence of or relating to such cruelty or desertion.

16. [*Decrees for dissolution to be nisi.*] *Omitted by the Divorce (Amdt.) Act,* 1975 (*IV of* 1976), *s.* 11.

17. [*Confirmation of decree for dissolution by District Judge.*] *Omitted by the Divorce (Amdt.) Act* 1975 *(IV of* 1976), *s.* 11.

17A. [*Appointment of officer to exercise duties of King's Proctor.*] *Omitted by the Divorce (Amdt.) Act.* 1975 *(IV of* 1976), *s.* 11.

IV.— NULLITY OF MARRIAGE

18. Petition for decree of nullity. Any husband or wife may present a petition to the [1][Court of Civil Judge], praying that his or her marriage may be declared null and void.

19. Grounds of decrees. Such decree may be made on any of the following grounds :—

(1) that the respondent was impotent at the time of the marriage and at the time of the institution of the suit ;

(2) that the parties are within the prohibited degrees of consanguinity (whether natural or legal) or affinity ;

(3) that either party was a lunatic or idoit at the time of the marriage ;

(4) that the former husband or wife of either party was living at the time of the marriage, and the marriage with such former husband or wife was then in force.

Nothing in this section shall affect the jurisdiction of the [2][Court] to make decrees of nullity of marriage on the ground that the consent of either party was obtained by force or fraud.

20. [*Confirmation of District Judge's decree.*] *Omitted by the Divorce (Amdt.) Act,* 1975. *(IV of* 1976), *s.* 14.

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[1]Subs., by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 12, for "District Court or to the High Court.".
[2]Subs. ibid. s. 13, for "High Court".

21. Children of annulled marriage. Where a marriage is annulled on the ground that a former husband or wife was living, and it is adjudged that the subsequent marriage was contracted in good faith and with the full belief of the parties that the former husband or wife was dead, or when a marriage is annulled on the ground of insanity, children begotten before the decree is made shall be specified in the decree, and shall be entitled to succeed, in the same manner as legitimate children, to the estate of the parent who at the time of the marriage was competent to contract.

V.— JUDICIAL SEPARATION

22. Bar to decree for divorce a *mensa et toro* but judicial separation obtainable by husband or wife. No decree shall hereafter be made for a divorce a *mensa et toro,* but the husband or wife may obtain a decree of judicial separation, on the ground of adultery, or cruelty, or desertion without reasonable excuse for two years or upwards, and such decree shall have the effect of a divorce a *mensa et toro* under the existing law, and such other legal effect as hereinafter mentioned.

23. Application for separation made by petition. Application for judicial separation on any one of the grounds aforesaid may be made by either husband or wife by petition to the [1][Court of Civil Judge] and the Court, on being satisfied of the truth of the statements made in such petition, and that there is no legal ground why the application should not be granted, may decree judicial separation accordingly.

24. Separated wife deemed spinster with respect to after-acquired property. In every case of a judicial separation under this Act, the wife shall, from the date of the sentence, and whilst the separation continues, be considered as unmarried with respect to property of every description which she may acquire, or which may come to or devolve upon her.

Such property may be disposed of by her in all respects as an unmarried woman, and on her decease the same shall, in case she dies intestate, go as the same would have gone if her husband had been then dead :

Provided that, if any such wife again cohabits with her husband, all such property as she may be entitled to when such cohabitation takes place shall be held to her separate use, subject, however, to any agreement in writing made between herself and her husband whilst separate.

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[1]Subs. by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 15., for "District Court or the High Court".

25. Separated wife deemed spinster for purposes of contract and suing. In every case of a judicial separation under this Act, the wife shall whilst so separated, be considered as an unmarried woman for the purposes of contract, and wrongs and injuries, and suing and being sued in any civil proceeding ; and her husband shall not be liable in respect of any contract, act or costs entered into, done, omitted or incurred by her during the separation :

Provided that where, upon any such judicial separation, alimony has been decreed or ordered to be paid to the wife, and the same is not duly paid by the husband, he shall be liable for necessaries supplied for her use :

Provided also that nothing shall prevent the wife from joining, at any time during such separation, in the exercise of any joint power given to herself and her husband.

REVERSAL OF DECREE OF SEPARATION

26. Decree of separation obtained during absence of husband or wife may be reversed. Any husband or wife, upon the application of whose wife or husband, as the case may be, a decree of judicial separation bas been pronounced, may, at any time thereafter, present a petition to the Court by which the decree was pronounced, praying for a reversal of such decree, on the ground that it was obtained in his or her absence, and that there was reasonable excuse for the alleged desertion, where desertion was the ground of such decree.

The Court may, on being satisfied of the truth of the allegations of such petition, reverse the decree accordingly ; but such reversal shall not prejudice or affect the rights or remedies which any other person would have had, in case it had not been decreed, in respect of any debts, contracts or acts of the wife incurred, entered into or done between the times of the sentence of separation and of the reversal thereof.

VI.— PROTECTION-ORDERS

27. Deserted wife may apply to Court for protection. Any wife to whom section 4 of the Indian Succession Act, 1865[1](X of 1865), does not apply, may, when deserted by her husband, present a petition to the [2][Court of Civil Judge] at any time after such desertion, for an order to protect any property which she may have acquired or may acquire, and any property of which she may have become possessed or may become possessed after such desertion, against her husband or his creditors, or any person claiming under him.

28. Court may grant protection-order. The Court, if satisfied of the fact of such desertion, and that the same was without reasonable excuse, and that the wife is maintaining herself by her own industry or property, may make and give to the wife an order protecting her earnings and other property from her husband and all creditors and persons claiming under him. Every such order shall state the time at which the desertion commenced, and shall, as regards all persons dealing with the wife in reliance thereon, be conclusive as to such time.

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[1]See now the Succession Act, 1925 (39 of 1925).

[2]Subs. by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 15, for "District Court or the High Court".

29. Discharge or variation of orders. The husband or any creditor of, or person claiming under him, may apply to the Court by which such order was made for the discharge or variation thereof, and the Court, if the desertion has ceased, or if for any other reason it think fit so to do, may discharge or vary the order accordingly.

30. Liability of husband seizing wife's property after notice of order. If the husband, or any creditor of, or person claiming under, the husband, seizes or continues to hold any property of the wife after notice of any such order, he shall be liable, at the suit of the wife (which she is hereby empowered to bring), to return or deliver to her the specific property, and also to pay her a sum equal to double its value.

31. Wife's legal position during continuance of order. So long as any such order of protection remains in force the wife shall be and be deemed to have been, during such desertion of her, in the like position in all respects, with regard to property and contracts and suing and being sued, as she would be under this Act if she obtained a decree of judicial separation.

VII.— RESTITUTION OF CONJUGAL RIGHTS

32. Petition for restitution of conjugal rights. When either the husband or the wife has, without reasonable excuse withdrawn from the society of the other, either wife or husband may apply, by petition to the [1][Court of Civil Judge], for restitution of conjugal rights, and the Court, on being satisfied of the truth of the statements made in such petition, and that there is no legal ground why the application should not be granted, may decree restitution of conjugal rights accordingly.

33. Answer to petition. Nothing shall be pleaded in answer to a petition for restitution of conjugal rights which would not be ground for a suit for judicial separation or for a decree of nullity of marriage.

VIII.— DAMAGES AND COSTS

34. Husband may claim damages from adulterer. Any husband may, either in a petition for dissolution-of marriage or for judicial separation, or in a petition to the [1][Court of Civil Judge] limited to such object only, claim damages from any person on the ground of his having committed adultery with the wife of such petitioner.

Such petition shall be served on the alleged adulterer and the wife unless the Court dispenses with such service, or directs some other service to be substituted.

The damages to be recoverd on any such petition shall be ascertained by the said Court, although the respondents or either of them may not appear.

After the decision has been given, the Court may direct in what manner such damages shall be paid or applied.

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[1]Subs. by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 15 for "District Court or the High Court" .

35. Power to order adulterer to pay costs. Whenever in any petition presented by a husband, the alleged adulterer has been made a co-respondent, and the adultery has been established, the Court may order the co-respondent to pay the whole or any part of the cost of the proceedings :

Provided that the co-respondent shall not be ordered to pay the petitioner's cost—

(1) if the respondent was, at the time of the adultery, living apart from her husband and leading the life of a prostitute, or

(2) if the co-respondent had not, at the time of the adultery, reason to believe the respondent to be a married woman.

[1]* * * * * * *

IX.— ALIMONY

36. Alimony *pen dente lite*. In any suit under this Act, whether it be instituted by a husband or a wife, and whether or not she has obtained an order of protection, the wife may present a petition for alimony pending the suit.

Such petition shall be served on the husband ; and the Court, on being satisfied of the truth of the statements therein contained, may make such order on the husband for payment to the wife of alimony pending the suit as it may deem just :

Provided that alimony pending the suit shall in no case exceed one-fifth of the husband's average net income for the three years next preceding the date of the order, and shall continue, in case of a decree for dissolution of marriage or of nullity of marriage, until the decree is made absolute or is confirmed, as the case may be.

37. Power to order permanent alimony. [2]* * * * * * *

[3][The Court may, if it thinks fit, on any decree declaring a marriage to be dissolved or on any decree of judicial separation obtained by the wife, order] that the husband shall, to the satisfaction of the Court, secure to the wife such gross sum of money, or such annual sum of money for any term not exceeding her own life, as having regard to her fortune (if any), to the ability of the husband, and to the conduct of the parties, it thinks reasonable, and for that purpose may cause a proper instrument to be executed by all necessary parties.

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[1]Omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 16.
[2]Omitted ibid., s. 17(a).
[3]Subs. ibid., s. 17 (b), for "order".

Power to order monthly or weekly payments. In every such case the Court may make an order on the husband for payment to the wife of such monthly or weekly sums for her maintenance and support as the Court may think reasonable :

Provided that if the husband afterwards from any cause becomes unable to make such payments, it shall be lawful for the Court to discharge or modify the order, or temporarily to suspend the same as to the whole or any part of the money so ordered to be paid, and again to revive the same order wholly or in part, as to the Court seems fit.

38. Court may direct payment of alimony to wife or to her trustee. In all cases in which the Court makes any decree or order for alimony it may direct the same to be paid either to the wife herself, or to any trustee on her behalf to be approved by the Court, and may impose any terms or restrictions which to the Court seem expedient, and may from time to time appoint a new trustee, if it appears to the Court expedient so to do.

X.— SETTLEMENTS

39. Power to order settlement of wife's property for benefit of husband and children. Whenever the Court pronounces a decree of dissolution of marriage or judicial separation for adultery of the wife, if it is made to appear to the Court that the wife is entitled to any property, the Court may, if it think fit, order such settlement as it thinks reasonable to be made of such property or any part thereof, for the benefit of the husband, or of the children of the marriage, or of both.

Any instrument executed pursuant to any order of the Court at the time of or after the pronouncing of a decree of dissolution of marriage or judicial separation shall be deemed valid notwithstanding the existence of the disability of coverture at the time of the execution thereof.

Settlement of damages. The Court may direct that the whole or any part of the damages recovered under section 34 shall be settled for the benefit of the children of the marriage, or as a provision for the maintenance of the wife.

40. Inquiry into existence of ante-nuptial or post nuptial settlements.

[1]* * * * * * *

[2][The Court, after making a decree for dissolution of marriage or a decree of nullity of marriage, may] inquire into the existence of ante-nuptial or post-nuptial settlements made on the parties whose marriage is the subject of the decree, and may make such orders, with reference to the application of the whole or a portion of the property settled, whether for the benefit of the husband or the wife, or of the children (if any) of the marriage, or of both children and parents, as to the Court seems fit :

Provided that the Court shall not make any order for the benfit of the parents or either of them at the expense of the children.

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[1]Omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 18 (a).
[2]Subs. ibid., s. 18 (b), for "may".

XI.— CUSTODY OF CHILDREN

41. Power to make orders as to custody of children in suit for seperation. In any suit for obtaining a judicial separation the Court may from time to time, before making its decree, make such interim orders, and may make such provision in the decree, as it deems proper with respect to the custody, maintenance and education of the minor children, the marriage of whose parents is the subject of such suit, and may, if it thinks fit, direct proceedings to be taken far placing such children under the protection of the said Court.

42. Power to make such orders after decree. The Court, after a decree of judicial separation, may upon application (by petition) far this purpose make, from time to time, all such orders and provision, with respect to custody, maintenance and education of the minor children, the marriage of whose parents is the subject of the decree, or for placing such children under the protection of the said Court, as might have been made by such decree or by interim orders in case the proceedings far obtaining such decree were still pending.

[1][**43. Power to make orders as to custody of children in suits for dissolution or nullity.** In any suit far obtaining a dissolution of marriage or a decree of nullity of marriage, the Court may from time to time, before making its decree, make such interim orders, and may make such provision in the decree, as it deems proper with respect to the custody, maintenance and education of the minor children, the marriage of whose parents is the subject of the suit ; and may, if it thinks fit, direct proceedings to be taken far placing such children under the protection of the Court.].

44. Power to make such orders after decree. [1][The Court, after a decree far dissolution of marriage or a decree of nullity of marriage, may, upon application by petition far the purpose, make from time to time all such orders and provision, with respect to the custody, maintenance and education of the miner children, the marriage of whose parents was the subject of the decree, or far placing such children under the protection of the Court, as might have been made by such decree or by such interim orders as aforesaid.].

XII.— PROCEDURE

45. Code of Civil Procedure to apply. Subject to the provisions herein contained, all proceedings under this Act between party and party shall be regulated by the Code of Civil Procedure[2].

46. Forms of petitions and statements. The forms set forth in the Schedule to this Act, with such variation as the circumstances of each case require, may be used for the respective purposes mentioned in such schedule.

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[1]Subs. by the Divorce (Amdt.) Act, 1975 (4 of 1976), ss.19-20.

[2]See now the Code of Civil Procedure, 1908 (5 of 1908).

47. Stamp on petition. Petition to state absence of collusion. Every petition under this Act for a decree of dissolution of marriage or of nullity of marriage, or of judicial separation [1]* * * shall [1]* * * state that there is not any collusion or connivance between the petitioner and the other party to the marriage ;

Statements to be verified. the statements contained in every petition under this Act shall be verified by the petitioner or some other competent person in manner required by law for the verification of plaints, and may at the hearing be referred to as evidence.

48. Suits on behalf of lunatics. When the husband or wife is a lunatic or idiot, any suit under this Act (other than a suit for restitution of conjugal rights) may be brought on his or her behalf by the committee or other person entitled to his or her custody.

49. Suits by minors. Where the petitioner is a minor, he or she shall sue by his or her next friend to be approved by the Court ; and no petition presented by a minor under this Act shall be filed until the next friend has undertaken in writing to be answerable for costs.

Such undertaking [2]* * * shall be filed in Court, and the next friend shall thereupon be liable in the same manner and to the same extent as if he were a plaintiff in an ordinary suit.

50. Service of petition. Every petition under this Act shall be served on the party to be affected thereby, either within or without [3][Pakistan], in such manner as the High Court by general or special order from time to time directs :

Provided that the Court may dispense with such service altogether in case it seems necessary or expedient so to do.

51. Mode of taking evidence. The witnesses in all proceedings before the Court, where their attendance can be had, shall be examined orally, and any party may offer himself or herself as a witness, and shall be examined and may be cross-examined and re-examined, like any other witness :

Provided that the parties shall be at liberty to verify their respective cases in whole or in part by affidavit, but so that the deponent in every such affidavit shall, on the application of the opposite

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[1]The words "or of reversal of judicial separation, or for restitution of conjugal rights, or for damages, shall bear a stamp of five rupees, and," and the words "in the first, second, and third cases mentioned in this section," rep. by the Court-Fee Act, 1870 (7 of 1870). For court-fee, see now Art. 7 of Sch. II to that Act.

[2]The words "shall bear a stamp of eight annas and" rep. ibid.

[3]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s.3 and 2nd Sch. (with effect from the 14th October, 1955), for "the Provinces and the Capital of the Federation" which was subs. for "British India" by A.O., 1949, Arts. 3(2) and 4.

party, or by direction of the Court, be subject to be cross examined by or on behalf of the opposite party orally, and after such cross-examination may be re-examined orally as aforesaid by or on behalf of the party by whom such affidavit was filed.

52. Competence of husband and wife to give evidence as to cruelty or desertion. On any petition presented by a wife, praying that her marriage may be dissolved by reason of her husband having been guilty of adultery coupled with cruelty, or of adultery coupled with desertion without reasonable excuse, the husband and wife respectively shall be competent and compellable to give evidence of or relating to such cruelty or desertion.

53. Power to close doors. The whole or any part of any proceeding under this Act may be heard, if the Court thinks fit, with closed doors.

54. Power to adjourn. The Court may from time to time adjourn the hearing of any petition under this Act, and may require further evidence thereon if it sees fit so to do.

55. Enforcement of and appeal form orders and decrees. All decrees and orders made by the Court in any suit or proceeding under this Act shall be enforced and may be appealed[1] from, in the like manner as the decrees and orders of the Court made in the exercise of its original civil jurisdiction are enforced and may be appealed from under the laws, rules and orders for the time being in force :

[2]* * * * * * *

No appeals as to costs. Provided [2]* that there shall be no appeal on the subject of costs only.

56. [*Appeal to Supreme Court.*] *Omitted by the Divorce (Amdt.) Act,* 1975 *(IV of* 1976)*, s.* 22.

XIII.— RE-MARRIAGE

[3][**57. Liberty to parties to marry again.** After the expiry of six months from the date of a decree for the dissolution of a marriage, or, where an appeal has been presented against any such decree, after the dismissal of such appeal or the declaration of the marriage as dissolved as a result of such appeal, but not sooner, it shall be lawful for the parties to the marriage to marry again as if the prior marriage had been dissolved by death].

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[1]For court-fee of memorandum of appeal, see now Art. 7 of Sch. II to the Court Fees Act, 1870 (7 of 1870).
[2]Proviso and the word "also" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.21.
[3] Subs. ibid., s. 23.

58. English clergyman not compelled to solemnize marriages of persons divorced for adultery. No clergyman in Holy Orders of the [1]* Church of England [2]* * shall be compelled to solemnize the marriage of any person whose former marriage has been dissolved on the ground of his or her adultery, or shall be liable to any suit, penalty or censure for solemnizing or refusing to solemnize the marriage of any such person.

59. English minister refusing to perform ceremony to permit use of his church. When any minister of any church or chapel of the said [1]* Church refuses to perform such marriage service between any persons who, but for such refusal would be entitled to have the same service performed in such church or chapel, such minister shall permit any other minister in Holy Orders of the said Church entitled to officiate within the diocese in which such church or chapel is situate, to perform such marriage service in such church or chapel.

XIV.— MISCELLANEOUS

60. Decree for separation or protection order valid as to persons dealing with wife before reversal. Every decree for judicial separation or order to protect property obtained by a wife under this Act shall, until reversed or discharged, be deemed valid, so far as necessary, for the protection of any person dealing with the wife.

No reversal, discharge or variation of such decree or order shall affect any rights or remedies which any person would otherwise have had in respect of any contracts or acts of the wife entered into or done between the dates of such decree or order and of the reversal, discharge or variation thereof.

Indemnity of persons making payment to wife without notice of reversal of decree or protection order. All persons who in reliance on any such decree or order make any payment to, or permit any transfer or act to be made or done by, the wife who has obtained the same shall, notwithstanding such decree or order may then have been reversed, discharged or varied, or the separation of the wife from her husband may have ceased, or at some time since the making of the decree or order been discontinued, be protected and indemnified as if, at the time of such payment, transfer or other act, such decree or order were valid and still subsisting without variation, and the separation had not ceased or been discontinued,

unless, at the time of the payment, transfer or other act, such persons had notice of the reversal, discharge or variation of the decree or order or of the cessation or discontinuance of the separation.

61. Bar of suit for criminal conversation. After this Act comes into operation, no person competent for criminal to present a petition under sections 2 and 10 shall maintain a suit for criminal conversation with his wife.

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[1]The word "United" rep. by the Repealing Act, 1873 (12 of 1873).
[2]The words "and Ireland" rep., ibid.

62. Power to make rules. The High Court shall make such rules under this Act as it may from time to time consider expedient, and may from time to time alter and add to the same :

Provided that such rules, alterations and additions are consistent with the provisions of this Act and the Code of Civil Procedure[1].

All such rules, alterations and additions shall be published in the [2][official Gazette].

SCHEDULE OF FORMS

No. 1.– PETITION BY HUSBAND FOR A DISSOLUTION OF MARRIAGE WITH DAMAGES AGAINST CO-RESPONDENT, BY REASON OF ADULTERY.

(*See* sections 10 and 34)

In the[3] *Court of

[4]* * * * * * *

The day of 186.

The petition of *A.B.*, of

SHEWETH,

1. That your petitioner was on the day of ,one thousand eight hundred and , lawfully [5]married to *C.B.,* then C. *D.,* spinster, at

2. That from his said marriage, your petitioner lived and cohabited with his said wife at and at , in , and lastly at in ,and that your petitioner and his said wife have had issue of their said marriage, *five* children, of whom *two* sons only survive, aged respectively *twelve* and *fourteen* years.

3. That during the *three* years immediately preceding the day of one thousand eight hundred and , *X. Y.* was constantly, with few exceptions, residing in the house of your petitioner at aforesaid, and that on divers occasions during the said period, the dates of which are unknown to your petitioner, the said *C.B.* in your petitioner's said house committed adultery with the said *X. Y.*

4. That no collusion or connivance exists between me and my said wife for the purpose of obtaining a dissolution of our said marriage or for any other purpose.

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[1]See now the Code of Civil Procedure, 1908 (Act 5 of 1908).

[2]Subs. by A. O., 1937, for "local official Gazette".

[3]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.

[4]The words "To the Hon'ble Mr. Justice [or to the Judge of——]" omitted ibid. .

[5]If the marriage was solemnized out of Pakistan the adultery must be shown to have been committed in Pakistan.

Your petitioner, therefore, prays that this [1]* Court will decree a dissolution of the said marriage, and that the said *X. Y.* do pay the sum of rupees 5,000 as damages by reason of his having committed adultery with your petitioner's said wife, such damages to be paid to your petitioner, or otherwise paid or applied as to this [1]* Court seems fit.

(Signed) *A.B.*[2]

Form of Verification

I, *A.B.,* the petitioner name in the above petition, do declare that what is stated therein is true to the best of my information and belief.

No. 2.—RESPONDENT'S STATEMENT IN ANSWER TO No.1.

In the Court of the day of

Between *A.B.,* petitioner,

C.B., respondent, and

X.Y., co-respondent.

C. *B.,* the respondent, by *D.E.,* her attorney [or vakil], in answer to the petition of *A.B.,* says that she denies that she has on divers or any occasions committed adultery with *X. Y.,* as alleged in the third paragraph of the said petition.

Wherefore the respondent prays that this [1]* Court will reject the said petition.

(Signed) *C.B.*

No. 3.— CO-RESPONDENT'S STATEMENT IN ANSWER TO No.1

In the [3]* Court of

The day of

Between *A.B.,* petitioner,

C.B., respondent, and

X. Y., co-respondent.

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[1]The word "(Hon'ble)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 24.
[2]The petition must be signed by the petitioner.
[3]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 24.

X. Y., the co-respondent, in answer to the petition filed in this cause, said that he denies that he committed adultery with the said C. *B.,* as alleged in the said petition.

Wherefore the said *X. Y.,* prays that this [1]* Court will reject the prayer of the said petitioner and order him to pay the costs of and incident to the said petition.

(Signed) *X.Y.*

No. 4.— PETITION FOR DECREE OF NULLITY OF MARRIAGE
(*See* section 18)

In the [2]* Court of

[3]* * * * * * *

The day of , 186.

The petition of A.B., falsely called A.D.,

SHEWETH,

1. That on the , day of , one thousand eight hundred and , your petitioner, then a spinster, eighteen years of age, was married in fact, though not in law, to *C.D.,* then a bachelor of about thirty years of age, at *[some place in [4][Pakistan]]*.

2. That from the said day of ,one thousand eight hundred and , until the month of , one thousand eight hundred and , your petitioner lived and cohabited with the said *C.D.,* at divers places, and particularly at aforesaid.

3. That the said C. *D.,* has never consummated the said pretended marriage by carnal copulation.

4. That at the time of the celebration of your petitioner's said pretended marriage, the said *C.D.* was, by reason of his impotency or malformation, legally incompetent to enter into the contract of marriage.

5. That there is no collusion or connivance between her and the said *C.D.* with respect to the subject of this suit.

Your petitioner therefore prays that this [1]* Court will declare that the said marriage is null and void.

(Signed) *A.B.*

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[1]The word "(Hon'ble)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s. 24.
[2]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.
[3]The words "To the Hon'ble Mr. Justice [or to the Judge of-]" omitted ibid.
[4]Subs. by the Central Laws (Statute Reform) Ordinance, 1960 (21 of 1960), s. 3 and 2nd Sch. (with effect from the 14th October, 1955), for "India".

No. 5.— PETITION BY WIFE FOR JUDICIAL SEPARATION ON THE GROUND OF HER HUSBAND'S ADULTERY.

(*See* section 22)

In the [1]* Court of

[2]* * * * * * *

The day of 186.

The petition of *C.B.,* of , the wife of *A.B.*

SHEWETH,

That on the day of , one thousand eight hundred and *sixty* , your petitioner, then *C.D.,* was lawfully married to *A.B.,* at the Church of , in the .

2. That after her said marriage your petitioner cohabited with the said *A.B.* at and at , and that your petitioner and her said husband have issue living of their said marriage, *three* children, to wit, *etc., etc.*[3]

3. That on divers occasions in or about the months of *August, September* and *October,* one thousand eight hundred and *sixty* , the said *A. B.,* at aforesaid,committed adultery with *E.F.,* who was then living in the service of the said *A. B.* and your petitioner at their said residence aforesaid.

4. That on divers occasions in the months of *October, November* and *December,* one thousand eight hundred and *sixty* ,the said *A. B.,* at aforesaid, committed adultery with G. *H.,* who was then living in the service of the said *A. B.* and your petitioner at their said residence aforesaid.

5. That no collusion or connivance exists between your petitioner and the said *A. B.* with respect to the subject of the present suit.

Your petitioner therefore prays that this [4]* Court will decree a judicial separation to your petitioner from her said husband by reason of his aforesaid adultery.

(Signed) C. *B.*[5]

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[1]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.

[2]The words "To the Hon'ble Mr. Justice [or to the Judge of-]" omitted ibid.

[3]State the respective ages of the children.

[4]The word "(Hon'ble)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976),s.24.

[5]The petition must be signed by the petitioner.

No. 6.— STATEMENT IN ANSWER TO No.5

In the [1]* Court of

B. against *B.*

The day of .

The respondent, *A.B.,* by *W. Y.,* his attorney [*or* vakil], saith,—

1.That he denies that he committed adultery with *E.F.,* as in the third paragraph of the petition alleged.

2. That the petitioner condoned the said adultery with *E.F.,* if any.

3. That he denies that he committed adultery with G.H., as in the fourth paragraph of the petition alleged.

4.That the petitioner condoned the said adultery with G. *H.,* if any.

Wherefore this respondent prays that this [2]* Court, will reject the prayer of the said petition.

(Signed) *A.B.*

No.7.— STATEMENT IN REPLY TO No.6.

In the [1]* Court of

B. against *B.*

The day of .

The petitioner, C. *B.,* by her attorney [or vakil], says,–

1. That she denies that she condoned the said adultery of the respondent with *E. F.,* as in the second paragraph of the statement in answer alleged.

2. That even if she had condoned the said adultery, the same has been revived by the subsequent adultery, of the respondent with *G. H.,* as set forth in the fourth paragraph of the petition.

(Signed) *C.B.*

---

[1]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.

[2]The word ("Hon'ble") omitted by the Divorce (Amdt.)Act, 1975 (4 of 1976),s.24.

No. 8.— PETTION FOR A JUDICIAL SEPARATION BY REASON OF CRUELTY

(See section 22)

In the [1]* Court of

[2]* * * * * * * *

The day of , 186 .

The petition of *A. B.* (wife of *C. B.)* of

SHEWETH,

1. That on the day of , one thousand eight hundred and , your petitioner, then *A. D.,* spinster, was lawfully married to *C. B.,* at

2. That from her said marriage, your petitioner lived and cohabited with her said husband at until the day of , one thousand eight hundred and , when your petitioner separated from her said husband as hereinafter more particularly mentioned, and that your petitioner and her said husband have had no issue of their said marriage.

3. That from and shortly after your petitioner's said marriage, the said *C. B.,* habitually conducted himself towards your petitioner with great harshness and cruelty, frequently abusing her in the coarsest and most insulting language, and beating her with his fists, with a cane, or with some other weapon.

4. That on an evening in or about the month of one thousand eight hundred and, the said *C. B.,* in the highway and opposite to the house in which your petitioner and the said *C. B.* were then residing at aforesaid, endeavoured to knock your petitioner down, and was only prevented from so doing by the interference of *F. D.,* your petitioner's brother.

5. That subsequently on the same evening, the said C. *B.,* in his said house at aforesaid, struck your petitioner with his clenched fist a violent blow on her face.

6. That on one Friday night in the month of ,one thousand eight hundred and ,the said C. *B.,* in , without provocation, threw a knife at your petitioner, thereby inflicting a severe wound on her right hand.

7. That on the afternoon of the day of , one thousand eight hundred and , your petitioner, by reason of the great and continued cruelty practised towards her by her said husband, with assistance withdrew from the house of her said husband to the house of her father at , that from and after the said day of , one thousand eight hundred and , your petitioner hath lived separate and apart from her said husband, and hath never returned to his house or to cohabitation with him.

8. That there is no collusion or connivance between your petitioner and her said husband with respect to the subject of the present suit.

---

[1]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.

[2]The words "To the Hon'ble Mr. Justice [or to the Judge of-]" omitted ibid.

Your petitioner, therefore, prays that this [1]* Court will decree a judicial separation between your petitioner and the said C. *B.,* and also order that the said *C.B.* do pay the costs of and incident to these proceedings.

(Signed) *A. B.*

Form of verification : see No. 1

No. 9.— STATEMENT IN ANSWER TO No.8

In the [2]* Court of

The day of .
Between *A. B.,* petitioner, and C. *B.,* respondent.

C.B., the respondent, in answer to the petition filed in this cause, by *W. J.,* his attorney *[or* vakil], said that he denies that he has been guilty of cruelty towards the said *A. B.*. as alleged in the said petition.

(Signed) *C.B.*

No. I0.— PETTION FOR REVERSAL OF DECREE OF SEPARATION
(See section 24)

In the [2]* Court of

[3]* * * * * * *

The day of , 186 .

The petition of *A. B.,* of .

SHEWETH,

1. That your petitioner was on the day of lawfully married to .

2. That on the day of , this [1]* Court, at the petition of , pronounced a decree affecting the petitioner to the effect following, to wit,–

[Here set out the decree.]

3. That such decree was obtained in the absence of your petitioner, who was then residing at

[State facts tending to show that the petitioner did not know of the proceedings ; and, further, that had he known he might have offered a sufficient defence].

---

[1]The word ("Hon'ble") omitted by the Divorce (Amdt.)Act, 1975 (4 of 1976),s.24.
[2]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.
[3]The words "To the Hon'ble Mr. Justice [or to the Judge of-]" omitted ibid.

or

That there was reasonable ground for your petitioner leaving his said wife, for that his said wife.

[Here state any legal grounds justifying the petitioner's separation from his wife.]

Your petitioner, therefore, prays that this [1]* Court will reverse the said decree.

(Signed) *A.B.*

Form of Verification : see No. 1

No. 11.— PETTTION FOR PROTECTION-ORDER
(See section 27)

In the [2]* Court of

[3]* * * * * * *

The day of , 186 .

The petition of C. *B.,* of .
the wife of *A. B.*

SHEWETH,

That on the day of she was lawfully married to *A. B.* at .

That she lived and cohabited with the said *A. B.* for years at , and also at , and had had children, issue of her said marriage, of whom are now living with the applicant, and wholly dependent upon her earnings.

That on or about , the said *A. B.,* without any reasonable cause, deserted the applicant, and hath ever since remained separate and apart from her.

That since the desertion of her said husband, the applicant hath maintained herself by her own industry *[or* on her own property, *as the case may be],* and hath thereby and otherwise acquired certain property consisting of *[here state generally the nature of the property]*.

Wherefore she prays an order for the protection of her earnings and property acquired since the said day of , from the said *A. B.,* and from all creditors and persons claiming under him.

(Signed) *C.B.*

---

[1]The word ("Hon'ble") omitted by the Divorce (Amdt.)Act, 1975 (4 of 1976),s.24.
[2]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.
[3]The words "To the Hon'ble Mr. Justice [or to the Judge of-]" omitted ibid.

No. 12.— PETITION FOR ALIMONY PENDING THE SUIT

(See section 36)

In the [1]* Court of

B. against *B.*

[2]* * * * * * *

The day of , 186 .

The petition of C. *B.,* the lawful wife of *A. B.*

SHEWETH,

1. That the said A. *B.* has for some years carried on the business of , at , and from such business derives the net annual income of from Rs. 4,000 to 5,000.

2. That the said *A. B.* is possessed of plate, furniture, linen and other effects at his said house aforesaid, all of which he acquired in right of your petitioner as his wife, or purchased with money he acquired through her, of the value of Rs. 10,000.

3. That the said *A. B.* is entitled, under the will of his father, subject to the life interest of his mother therein, to property of the value of Rs. 5,000 or some other considerable amount.[3]

Your petitioner, therefore, prays that this [4]* Court will decree such sum or sums of money by way of alimony, pending the suit, as to this [4]* Court may seem meet.

(Signed) *C.B.*

———————

[1]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.
[2]The words "To the Hon'ble Mr. Justice [or to the Judge of-]" omitted ibid.
[3]The petitioner should state her husband's income as accurately as possible.
[4]The word ("Hon'ble") omitted by the Divorce (Amdt.)Act, 1975 (4 of 1976),s.24.

Form of Verification : see No. 1

No. 13.— STATEMENT IN ANSWER TO No. 12

In the [1]* Court of

B. against *B.*

A. *B.,* of , the above named respondent, in answer to the petition for alimony, pending the suit of C. *B.,* says—

1. In answer to the first paragraph of the said petition, I say that I have for the last *three* years carried on the business of , at , and that, from such business, I have derived a net annual income of Rs. 900, but less than Rs. 1,000.

2. In answer to the second paragraph of the said petition, I say that I am possessed of plate, furniture, linen and other chattels and effects at my said house aforesaid, of the value of Rs. 7,000, but as I verily believe of no larger value. And I say that a portion of the said plate, furniture and other chattels and effects of the value of Rs. 1,500, belonged to my said wife before our marriage, but the remaining portions thereof I have since purchased with my own moneys. And I say that, save as hereinbefore set forth, I am not possessed of the plate and other effects as alleged in the said paragraph in the said petition, and that l did not acquire the same as in the said petition also mentioned.

3. I admit that I am entitled under the will of my father, subject to the life-interest of my mother therein, to property of the value of Rs.5,000, that is to say, I shall be entitled under my said father's will, upon the death of my mother, to a legacy of Rs.7,000, out of which I shall have to pay to my father's executors the sum of Rs.2,000, the amount of a debt owing by me to his estate, and upon which debt I am now paying interest at the rate of five per cent. per annum.

4. And, in further answer to the said petition, I say that I have no income whatever except that derived from my aforesaid business, that such income, since my said wife left me, which she did on the day of last, has been considerably diminished, and that such diminution is likely to continue. And I say that out of my said income, I have to pay the annual sum of Rs.100 for such interest as aforesaid to my late father's executors' and also to support myself and my two eldest children.

---

[1] The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.

5. And, in further answer to the said petition, I say that, when my wife left my dwelling-house on the day of last, she took with her, and has ever since withheld and still withholds from me, plate, watches and other effects in the second paragraph of this my answer mentioned, of the value of, as I verily believe, Rs.800 at the least ; and I also say that, within five days of her departure from my house as aforesaid, my said wife received bills due to me from certain lodgers of mine, amounting in the aggregate to Rs. , and that she has ever since withheld and still withholds from me the same sum.

(Signed)

A. *B.*

No. 14.— UNDERTAKING BY MINOR'S NEXT FRIEND TO BE ANSWEBRABLE FOR RESPONDENT'S COSTS.

(See section 49)

In the [1]* Court of

I, the undersigned, *A. B.,* of ,being the next friend of C. *D.,* who is a minor, and who is desirous of filing a petition in this Court, under the Indian Divorce Act, against *D. D.* of , hereby undertake to be responsible for the costs of the said *D. D.* in such suit, and that, if the said *C.D.* fail to pay to the said *D. D.* when and in such manner as the Court shall order all such costs of such suit as the Court shall direct him *(or* her) to pay to the said *D. D.,* I will forthwith pay the same to the proper officer of this Court.

Dated this day of , 186 .

(Signed) A. *B.,*

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[1]The word "(High)" omitted by the Divorce (Amdt.) Act, 1975 (4 of 1976), s.24.

THE HINDU MARRIAGE ACT, 2017

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SCHEDULE. SHAADIPARAT

HINDU MARRIAGE ACT, 2017

ACT NO VII OF 2017

[21st March, 2017]

An Act to provide for solemnization of marriages by Hindu families and for matters ancillary and incidental thereto

WHEREAS it is constitutional obligation that the state shall protect the marriage, the family, the mother and the child and also safeguard the legitimate, rights and interests of minorities;

AND WHEREAS it is expedient to have a consolidated law providing for solemnization of marriages by Hindu families and the matters connected therewith and incidental thereto;

AND WHEREAS the Provincial Assemblies of Balochistan, Khyber 'Pakhtunkhwa and Punjab have passed Resolutions under Article 144 of the Constitution of the Islamic Republic of Pakistan to the effect that *Majlis-e-Shoora* (Parliament) may, by law, regulate solemnization of marriages by Hindu families and for matters connected therewith and incidental thereto;

It is hereby enacted as follows:-

1. Short title, extent, application and commencement.—(1) This

Act may be called the Hindu Marriage Act, 2017.

(2) It extends to the Islamabad Capital Territory and the Provinces of Balochistan, Khyber Pakhtunkliwa and Punjab.

(3) Subject to sub-section (2), it shall apply to those citizen of Pakistan who profess Hindu religion in any of its forms.

(4) It shall come into force at once.

2. Definitions.—In this Act, unless the subject or context otherwise requires,—

(a) "Court" means a Family Court as defined under the West Pakistan Family Courts Act, 1964 (W.P. Act, XXV of 1964);

(b) "customs" and "customary rites" mean any tradition which is not unlawful and the same has been continuously and uniformly observed for a long time among Hindus in any local area, tribe, community, group or family;

(c) "degrees of prohibited relationship" means any prohibited relationship as per laws, religion and customs having force of law relating to Hindu persons;

(d) "Government" means the Federal Government or the Provincial Government as the case may be;

(e) "Hindu marriage" means the union of Hindu male and Hindu female solemnized under this Act and includes the marriage solemnized before commencement of this Act in accordance with the law, religion and customs having force of law relating to Hindu persons;

(f) "marriage register" means register of marriages maintained by marriage registrar as may be prescribed;

(g) "marriage registrar" means a person authorized and appointed by the Government to register Hindu marriages under this Act;

(h) "prescribed" means prescribed by rules made under this Act; and

(i) *"shaadiparat"* means certificate of marriage issued by the marriage registrar, which certifies the solemnization of Hindu marriage.

3. Overriding effect of Act.—The provisions of this Act shall have effect not withstanding any other law or custom or usage for the time being in force.

4. Conditions for a Hindu marriage.—A Hindu marriage shall be solemnized, if the following conditions are fulfilled, namely:-

(a) at the time of marriage, the parties are of sound mind and capable of giving a valid consent;

(b) both the parties are not below the age of eighteen years;

(c) the parties to the marriage are not within the degrees of prohibited relationship; and

(d) neither party has a spouse living at the time of marriage:

Provided that condition in clause (d) shall not apply where a living female spouse cannot conceive a child and medically declared to be so.

5. Ceremonies for Hindu marriage.—A 'Hindu marriage may be solemnized in accordance with the customary rites, rituals and ceremonies of either party thereto.

6. Registration of Hindu marriages.—(1) The solemnization of every Hindu marriage shall be registered in accordance with the provisions of this Act. Such registration shall take place within a period of fifteen days of solemnization of - Hindu marriage.

(2) The marriage register shall be open for inspection and shall be admissible as evidence of the contents contained therein or certified extracts there from shall, on application, be given by 'the marriage registrar on payment of such fee, as may be prescribed.

7. **Appointment and functions of marriage registrar**.—(1) The Government shall, by notification in official Gazette, appoint one or such numbers of marriage registrars in the territory of a district or such other areas as would be convenient for Hindu population living in the said district or such other areas.

(2) For the purposes of registration of Hindu marriage, the marriage registrar or person duly authorized by him from amongst the local Hindu community in the manners as may be prescribed, shall be responsible to register the marriage. The parties to Hindu marriage shall give their particular to the respective registrar or his authorized person for the purpose of entry thereof in *shaadiparat.*

(3) The form of *shaadiparat,* the record to be preserved and maintained by the marriage registrar shall be such as may be prescribed. Until the rules are made, the *shaadiparat* annexed as Schedule A of this Act shall be used *as shaadiparat.*

(4) The marriage registrar shall prepare such number of copies as may be prescribed and unless the rules are made, he shall prepare three copies thereof. One copy each shall be given to the respective parties to marriage and one copy shall be kept in the office of marriage registrar as a public record.

8. Restitution of conjugal rights.—When either a husband or a wife has, without reasonable excuse, withdrawn from the society of the other, the aggrieved party may, by a petition to the Court, apply for restitution of conjugal rights and the Court, on being satisfied of truth of statements made in such petition and that there is no legal ground why the application should not be granted, may decree restitution of conjugal rights:

Explanation—Where a question arises whether there has•been reasonable excuse for withdrawal from the society, the burden of proving reasonable excuse shall be on the person who has withdrawn from the society.

9. Judicial separation.—(1) Either party to Hindu marriage, whether solemnized before or after commencement of this Act, may present a petition to the Court praying for a decree of judicial separation on any of the ground specified in sub-section (1) of section 12 and in the case of a wife also on any of the grounds specified in sub-section (2) thereof.

(2) Where a decree of judicial separation has been passed, the Court may, on the application of both the parties and on being satisfied of truth of statements made in such petition, rescind the decree if it considers it just and reasonable to do so.

10. Void marriage.—Any Hindu marriage solemnized after commencement of this Act may, on a petition.tO the Court presented by either party to the marriage or their real parents, be declared null and void on the conditions specified in clauses (c) and (d) of section 4.

11. Voidable marriage.—(1) Any Hindu marriage solemnized, whether before or after commencement of this Act, may be declared voidable and may be subsequently annulled by a decree of nullity passed by the Court if—

(a) the marriage has not been consummated owing to impotence of the respondent; or

(b) the marriage has been solemnized in contravention of the condition specified in clause (b) of section 4; or

(c) consent of the petitioner was obtained by force, coercion or by fraud as to the nature of the ceremony or as to any material fact or circumstance concerning the respondent; or

(d) the respondent was at the time of marriage pregnant by some person other than the petitioner.

(2) Notwithstanding anything contained in sub-section (1), no petition for annulling a marriage,—

(A) on the ground specified in clause (c) of sub-section (1), shall be entertained, if—

(i) the petition is presented more than one year after the force or coercion had ceased to operate or, as the case may be, the fraud had been discovered; or

(ii) the petitioner has, with his or her full consent, confirmed to live with the other party to the marriage as husband or wife after the force had ceased to operate, or, as the case may be, the fraud has been discovered; and

(B) on the ground specified in clause (d) of sub-section (1) shall be entertained unless the Court is satisfied that—

(i) the petitioner was, at the time of marriage, ignorant of the facts alleged; and

(ii) the proceedings have been instituted, In the case of marriage solemnized—

(a) before the commencement of this Act within one year of such commencement; and

(b) after such commencement, within one year from the date of the marriage.

12. **Termination of Hindu marriage.—(1)** Any Hindu marriage solemnized whether before or after commencement of this Act may, on a petition presented to the Court by either a husband or a wife, be terminated by decree of termination of marriage on the ground —

(a) that the other party —

(i) has, after the solemnization of the marriage, treated the petitioner with cruelty; or

(ii) has deserted the petitioner for continuous period of not less than two years immediately proceeding the presentation of the petition:

Explanation.—In this clause, the expression."desertion" means the desertion of the petitioner by the other party to the marriage without reasonable cause and without the consent or against the wish of such party and includes the willful neglect of the petitioner by the other party to the Marriage; or

(iii) has ceased to be Hindu by conversion to another religion; or

(iv) has been incurably of unsound mind or has been suffering continuously or intermittently from mental disorder of such a kind and to such an extent that the petitioner cannot reasonably be expected to live with the respondent; .

Explanation.—In this clause, the expression "mental disorder" means mental other disorder or disability of mind including schizophrenia and the expression "psychopathic disorder" means a persistent disorder or disability of mind (whether illness, arrested or incomplete development of mind, psychopathic disorder or any or not including sub-normality of intelligence) which results in abnormally aggressive or seriously irresponsible conduct on the part of the other party and whether or not it requires or is susceptible to medical treatment; or

(v) has been suffering from a virulent and incurable from of leprosy; or

(vi) has been suffering from venereal disease in a communicable from or HIV Aids; or

(vii) has renounced the world by entering any religious order; or

(b) that there has been no resumption of cohabitation as between the parties to the marriage for a period of more than one year after he passing of decree for judicial separation or order of restitution of conjugal rights passed by the Court.

(2) A wife may also present a petition for termination of her marriage on the grounds,—

(a) in the case of any marriage solemnized before commencement of this Act, that the husband had married again before such commencement or that another wife of the husband married before such commencement was alive at the time of the solemnization of the marriage of the petitioner:

Provided that in either case the other wife is alive at the time of the presentation of the petition; or

(b) that the husband has neglected or has failed to provide for her maintenance for a period of two years;

(c) that the husband has been sentenced to imprisonment for a period of four years or upwards; or

(d) that her marriage, whether consummated or not, was solemnized before she attained the age of eighteen' years and she has repudiated the marriage before attaining that age;

Explanation.—This clause .aplies whether the marriage was solemnized before or after commencement of this Act.

13. **Financial security of wife and children**.—(1) If a wife is respondent in a petition for termination for the marriage by decree of termination, she may oppose the grant of decree on the ground that the termination of the marriage may result in grave financial hardship fo her unless arrangements have been made to the satisfaction of the Court to eliminate such hardship:

Provided that nothing contained in this Act shall affect any right which she may have to her dower or any part thereof on the termination of marriage.

(2) The Court shall not pass a decree of termination unless the Court is satisfied that adequate provisions for the maintenance of children born out of the marriage has been made in commensuration with the financial capacity of the parties to the, marriage.

14. Alternate relief in termination of marriage proceeding.--In any proceeding under this Act, on a petition for termination of marriage by decree of termination, except in so far as the petition is found on the ground mentioned in sub-clauses (i), (ii), (iv) and (vii) of clause (a) and clause (b) of sub-section (1) of section 12, the Court may, if it considers it just so to do having regard to the circumstances of the case, pass, a decree for judicial separation instead oldecree for termination of marriage.

15. Termination of Hindu marriage by mutual consent.__(1) Subject to the provisions of this Act, a petition for termination of marriage by decree of termination may be presented to the Court by both the parties to a marriage together, whether such marriage was solemnized before or after commencement of this Act, on the ground that they have been living separately for a period of one year or more, that they have not been able to live together and they have mutually agreed that the marriage should be terminated.

(2) On the decision by both the parties made not earlier than six months after the date of the presentation of the petition referred to in sub-section (1) and not later than eighteen months after the said date, the Court shall, on being satisfied after hearing the parties and after making such inquiry as it thinks fit that a marriage has been solemnized and that the averments in the petition are true, pass a decree of termination declaring the marriage to be terminated with effect from the date of the decree.

16. Separated person may marry again—When a Hindu marriage has been annulled or terminated by a decree of nullity or decree of termination, as the case may be and the time for appeal has expired or an appeal has been preferred but has been dismissed, it shall be lawful for either party to the marriage so terminated to marry again after expiry of six months from **fi**nal decision.

17. Hindu widows are entitled to remarry.—A Hindu widow shall have right tore-marry of her own will and consent after the death of herhusband provided a period of six months has lapsed after the husband's death.

18. Legitimacy of child born out of void and voidable Hindu marriage.—(1) Notwithstanding that a Hindu marriage is null and void under section 10, any child of such marriage who would have been legitimate if the marriage had been valid, shall be legitimate, whether such child is born before • or after commencement of this Act and whether or not a decree of nullity is granted in respect of that marriage under this Act and whether or not the marriage is held to be void otherwise than on a petition under this Act.

(2) Where a decree of nullity is granted in respect of a voidable Hindu marriage under section 11, any child begotten or conceived before the decree is made, who would have been the legitimate child of the parties to the marriage if at the date of the decree it had been terminated instead of being annulled, shall be deemed to be their legitimate child notwithstanding the decree of nullity.

19. Validation of marriages.— All Hindu marriages solemnized before commencement of this Act shall be deemed valid.

20. Punishment of bigamy.—Any Hindu marriage solemnized after commencement of this Act is void if at the date of such marriage either party had a spouse living and the provisions of section 494 and 495 of the Pakistan Panel Code, 1860 (Act XLV of 1860) shall apply accordingly.

21. Punishment for contravention of certain other conditions for Hindu marriage. Every person who get his or her marriage solemnized under this Act in contravention of the conditions specified in clauses **(b)** or (c) of section (4) shall be punishable with simple imprisonment which may extend to six months but not less than three months, or with fine which may extend to five thousand rupees; or with both.

22. Court to which petition shall be presented—Every petition under this Act shall be presented to the Family Court and the provision of—

(a) the West Pakistan Family Courts Act, 1964 (WPXXXV of 1964) except proviso of sub-section (4) of section 10, sub-section (2) of section 14 and section 21 and 23 thereof; and

(b) the West Pakistan Family Court Rules 1965, except proviso to clause (b) of rule (6) thereof;

shall *mutatis mutandis* apply to the proceedings under this Act.

---

23. Penalty for violating the provision of this Act.—(1) Any person who contravenes the provision of this Act or rules made there under regarding registration of Hindu marriage shall be punishable with simple imprisonment for a term which may extend to three months or with fine which may extend to one thousand rupees or with both..

(2) Any person who make statement or give particulars to be entered in the *shaadiparat,* which is false or has reason to believe to be false; shall be punished with a simple imprisonment which may extend to six month .but not less than one month of a fine which may extend up to one hundred thousand or with both.

24. **Cognizance of offence under this Act.—**Notwithstanding anything contained in the Code of Criminal Procedure 1898 (Act V of 1898), all offences under this Act shall be non-cognizable and non-compoundable and the same shall be triable by a Magistrate First Class on a complaint in writing by a marriage registrar.

25. **Power to make rules.—The** Government may, by notification in the official Gazette, make rules to carry out purposes of this Act.

Schedule

SHAADIPARAT
[See Section 7(3)]

1. Date of Marriage: _____

2. Name of Union Council, Tehsil, Town, District:_____

Particulars of Groom:

i._____ Full Name:_____ CNIC No.____

Father's Name:_____ CNIC No._____

iii Mother's Name: CNIC No.

iv Date of Birth:_____

v..._____ Temporary Address:____

vi. Parmanent Address:_____
vii. Matrimonial Status ☐ Single ☐ Married ☐ Divorced ☐ Widower ☐
viii. Number of Dependent's:_____

4. Particular of Bride:

i._____ Full Name: _____ CNIC No.____

Father's Name:_____ CNIC No._____

Mother's Name:_____ CNIC No._____

iv Date of Birth:_____

v. Temporary Address:_____
vi. Permanent Address:_____
vii. Matrimonial Status: ☐ Single Married ☐ Divorced ☐ Widow ☐
viii. Number of Dependents:

5. Date of Solemnization of Marriage:_____ Place: _____

6. Signature of Bride:_____
7. Signature of Groom:_____
8. Signature of Witnesses: 1.

(CN1C No.

2.

(CNIC No._____

9. Signature of Registrar:

REGISTERED No. M - 302
L.-7646

The Gazette of Pakistan

EXTRAORDINARY
PUBLISHED BY AUTHORITY

ISLAMABAD, FRIDAY, DECEMBER 19, 2025

PART I

Acts, Ordinances, President's Orders and Regulations

NATIONAL ASSEMBLY SECRETARIAT

Islamabad, the 18th December, 2025

No. F. 22(16)/2025-Legis.—The following Act of *Majlis-e-Shoora* (Parliament) received the assent of the President on the 16th December, 2025 is hereby published for general information:—

ACT NO. XL OF 2025

AN

ACT

to provide for constitution of a National Commission for Minorities Rights

WHEREAS in accordance with Article 144 of the Constitution of the Islamic Republic of Pakistan, the Provincial Assemblies of Khyber Pakhtunkhwa and Balochistan have passed resolutions to the extent that the Majlis-e-Shoora (Parliament) may by law constitute a National Commission for Minorities Rights;

Price: Rs. 40.00

[2682 (2025)/Ex. Gaz.]

WHEREAS it is expedient to provide for Constitution of a National Commission for Minorities Rights to safeguard and promote social, economic, political and legal rights and interests of Minorities, as provided under Article 36 of the Constitution of the Islamic Republic of Pakistan, and in accordance with applicable international instruments relating thereto ratified by the Islamic Republic of Pakistan;

AND WHEREAS it is necessary that in order to enable the National Commission for Minorities Rights to perform its functions effectively, it should be provided with sufficient resources and adequate powers to ensure its administrative and financial autonomy and to provide for matters connected therewith and incidental thereto.

It is hereby enacted as follows:-

CHAPTER-I

PRELIMINARY

1. **Short title, extent and commencement.**—(1) This Act shall be called the National Commission for Minorities Rights Act, 2025.

(2) It extends to the whole of Pakistan.

(3) It shall come into force at once.

2. **Definitions**.– In this Act, unless there is anything repugnant in the subject or context,—

(a) **"Commission"** means the National Commission for Minorities Rights constituted under this Act;

(b) **"Chairperson"** means the Chairperson of the Commission as appointed under this Act;

(c) **"Member"** means a person appointed as member of the Commission by the Prime Minister under this Act and includes Chairperson;

(d) **"Fund"** means National Commission for Minorities Fund created under this Act;

(e) **"Government concerned"** means the ministries and departments of the Federal Government, Provincial Governments or Local Governments, as the case may be;

(f) **"human rights"** means the rights relating to life, liberty and dignity of the citizens guaranteed and included in the international instruments including political and women rights;

(g) **"minorities"** means the persons who are non-Muslims as defined in Article 260 of the Constitution of the Islamic Republic of Pakistan;

(h) **"Minorities rights"** means the minorities rights as laid down in Article 20 of the Constitution of Islamic Republic of Pakistan and prevalent laws in relation thereto;

(i) **"Prescribed"** means prescribed by rules or regulations made under this Act;

(j) **"Regulations"** means the regulations made by the Commission under this Act;

(k) **"Rules"** means the rules made by the Commission with the approval of the Federal Government under this Act; and

(l) **"Secretary"** means a person appointed as secretary of the Commission under this Act.

CHAPTER-II

National Commission for Minorities

3. **Constitution of the Commission.**—(1) Upon the commencement of this Act, the National Commission for Minorities Rights shall stands established to exercise its powers and perform its functions under this Act.

(2) The Commission shall consist of—

(a) Chairperson who shall be a citizen of Pakistan not below the age of thirty-five years and shall be a professional of known integrity and eminence possessing demonstrable knowledge in the field of human rights advocacy;

(b) two minority members from each Province shall be nominated by the respective Provincial Governments, each of whom shall be a citizen of Pakistan not below the age of thirty-five years and shall be a professional of known integrity and eminence possessing demonstrable knowledge in the field of human rights advocacy:

Provided that one such member from each Province shall preferably be woman and one shall belong to a dominant minority group of the respective Province;

(c) one minority member from Islamabad Capital Territory shall be nominated by the Chief Commissioner Islamabad Capital Territory who shall be a citizen of Pakistan not below the age of thirty-five years and shall be a professional of known integrity and eminence possessing demonstrable knowledge in the field of human rights advocacy;

(d) a member of the National Commission for Human Rights as nominated by the Chairperson of the National Commission for Human Rights;

(e) a member of the National Commission on the Status of Women as nominated by the Chairperson of the National Commission on the Status of Women;

(f) a member of the National Commission on the Rights of the Child as nominated by the Chairperson of the National Commission on the Rights of the Child;

(g) a representative not below the rank of an officer in BPS-21 or equivalent of the Ministry of Human Rights as an *ex-officio* member;

(h) a representative not below the rank of an officer in BPS-21 or equivalent of the Ministry of Law and Justice as an *ex-officio* member;

(i) a representative not below the rank of an officer in BPS-21 or equivalent of the Ministry of Religious Affairs and Interfaith Harmony as an *ex-officio* member; and

(j) a representative not below the rank of an officer in BPS-21 or equivalent of the Ministry of Interior as an *ex-officio* member.

(3) For the appointment of the members of the Commission under this Act, the Ministry of Human Rights shall perform the Secretariat function and shall forward all names recommended under clauses (a) and (b) of sub-section (2) to the Prime Minister for appointment.

(4) The Commission shall be a body corporate, having perpetual succession and a common seal, with power to acquire and hold property both

movable and immovable, and to enter into contracts, and shall by the said name *sue* and be *sued*.

(5) The headquarters of the Commission shall be located at Islamabad and the Commission may establish its offices at such other places as the Chairperson may determine, with approval of the Ministry of Human Rights.

(6) A vacancy of member shall be filled in the manner provided under this Act within thirty days of occurrence of the vacancy:

Provided that a member shall continue to hold office until their successor is duly appointed and notified in accordance with the provisions of this Act.

(7) The appointment of the members under clauses (a) and (b) of sub-section (2) shall be on such terms and conditions as may be prescribed by rules.

4. **Appointment of Chairperson.**– (1) Upon the commencement of this Act or whenever required thereafter, the National Assembly Secretariat shall within sixty days initiate and complete the process for the appointment of the Chairperson of the Commission in the following manner, namely:—

(a) the Parliamentary Committee shall be constituted by the Speaker of the National Assembly after consultation with Chairman Senate, consisting of the following four members, namely:—

(i) two members from the Senate preferably Non-Muslim; and

(ii) two members from the National Assembly preferably Non-Muslim:

Provided that when the National Assembly is dissolved, the total membership of the Parliamentary Committee shall consist of the members from the Senate only:

Provided further that out of the four members of the Committee, two shall be from the Treasury Benches, one from each House and two from the Opposition Benches, one from each House:

Provided also that the nomination of members from the Treasury Benches shall be made by the Leader of the House and from the Opposition Benches by the Leader of the Opposition in the National Assembly and the Senate of Pakistan, respectively;

(b) each member shall propose one name for consideration by the Parliamentary Committee for appointment as Chairperson of the Commission;

(c) the decision of the Parliamentary Committee shall be made by a majority of its members:

Provided that if the Committee fails to reach to a majority decision on any one candidate, within thirty days of its first meeting, it shall forward all the names to the Prime Minister, who shall appoint one of them as the Chairperson; and

(d) the committee shall, in its first meeting, make the rules of its procedure.

(2) The Chairperson of the Commission shall be the chief executive officer and principal accounting officer of the Commission and his appointment shall be such as may be or full time.

(3) The terms and conditions of service of the Chairman shall be prescribed by rules.

5. **Term of office of Chairperson and members.**—(1) The Chairperson and every member, other than *ex-officio* members, shall hold office for a term of four years from the date on which he enters upon his office.

(2) The Chairperson or a member may, at any time, resign from his office in writing under his hand addressed to the Prime Minister through the Ministry of Human Rights.

6. **Acting Chairperson.**—By reason of a vacancy in the office of Chairperson due to death, illness, resignation or otherwise, the Prime Minister shall appoint acting Chairperson from amongst the members of the Commission to act as Chairperson for a period of not exceeding ninety days or till the appointment of a new Chairperson, whichever is earlier.

7. **Salary and travelling of Service of Chairperson and members.**—The salary, travelling and daily allowance of the Chairperson and members of the Commission shall be prescribed by regulations.

8. **Vacancy in office of the Chairperson or a member.**—If a vacancy occurs in the office of the Chairperson or of any member, whether by reason of death, resignation or removal, such vacancy shall be filled within a period of ninety days by making a fresh appointment in accordance with the provisions of this Act and the person so appointed on the initial appointment shall hold the office for the residual of the term of office of the Chairperson or member of whom the vacancy has arisen.

9. **Disqualification.**—A person shall be disqualified for becoming or being Chairperson or a member of the Commission, if such person—

(a) is an un-discharged insolvent or has been by a competent court of law declared as bankrupt or his application for such declaration is pending adjudication of law; or

(b) has been by a competent court of law declared as of unsound mind or has physical infirmity to discharge his functions under this Act; or

(c) has been dismissed from service of Pakistan on grounds of inefficiency, misconduct, fraud or corruption; or

(d) has been by a competent court of law convicted of an offence of moral turpitude.

10. **Removal of Chairperson and Members.**—The Chairperson and members may be removed from office by the Prime Minister, on the basis of any of the reasons for disqualification, as far as applicable including corruption and misuse of authority, specified in Article 209 of the Constitution of the Islamic Republic of Pakistan.

11. **Secretary, officers and other employees of the Commission.**—(1) The Prime Minister on the recommendation of the Ministry of Human Rights shall appoint Secretary of the Commission in such manner and on such terms and conditions as may be prescribed by rules.

(2) The Secretary shall be responsible for proper administration of affairs of the Commission and shall exercise such other powers and perform such other functions as may be prescribed by rules.

(3) The Commission with the consultation of the Ministry of Human Rights may appoint consultants, researchers, experts, advisers, officers and other staff members in the manner and on such terms and conditions, as may be prescribed by rules.

CHAPTER-III

FUNCTIONS OF THE COMMISSION

12. **Functions of the Commission.**—The Commission shall perform the following functions, namely:—

(a) assess and monitor implementation of the constitutional guarantees and safeguard for promotion and protection of rights of minorities;

(b) examine and review existing or proposed policies or programmes, plans of action, legislation, rules, regulations, administrative instruments, or other affirmative measures and to the Government concerned, recommend amendments, give advice or propose suggestion for prevention of discrimination and protection of rights of minorities to the concerned authorities;

(c) develop a national action plan for promotion and protection of rights of minorities;

(d) study the application of international minorities, rights, agreements and conventions and provide to the Government reports, proposals or recommendations necessary for effective application of such rights or agreements and conventions;

(e) establish and maintain database on complaints received concerning violation of rights of minorities or any such violations otherwise coming to notice of the Commission;

(f) advise on the victims about applicable legal procedures and, where appropriate, assist them in pursuing their complaints with the relevant authorities;

(g) ensure and monitor implementation of minorities job quota in private and public sector organizations;

(h) on a petition presented to it by a victim or any person on his behalf, inquire into complaints of—

(i) any violation of rights of minorities or abetment or aiding thereof by any organization, public or private, or any body, department, authority or instrumentality of any Federal, Provincial or Local Government; or

(ii) any neglect or willful breach of any provision of law in the prevention of or fair and independent inquiry or investigation of such a violation by any person or authority;

(i) coordinate with the relevant departments of the Federal and Provincial Governments for special measures for protection of minorities on special occasions, festivals and preservation of places of worship across Pakistan;

(j) subject to any relevant law, rules, regulations and policy, participate in proceedings involving violation of rights of minorities, before a

civil society forum or police or a court, by becoming a party to such proceedings;

(k) subject to law, a member of the Commission or any person authorized by it may visit any police station, jail or any other place of detention under the control of the Government or its agencies, where convicts, under trial prisoners, or detainees being minorities are lodged or detained to ascertain legality of such detention and recommend appropriate legal measures to the concerned authorities if so required;

(l) sponsor, initiate, encourage and undertake studies, research and other necessary interventions for analysis of the issues faced by minorities, and make appropriate recommendations to the Government for empowerment, progress and development of these communities;

(m) subject to law, seek and receive information, data and documents regarding minorities communities, from relevant department in the course of performance of its functions;

(n) organize consultations, dialogues and seminars, with civil society groups, actors and other similar institutions for promoting awareness on issues of minorities, institutional safeguard available for their protection and proposing a way forward to the Government in these matters;

(o) monitor implementation status of minorities rights, judgments and, where necessary, seek guidance of indulgence and support of higher judiciary to effectively deal with any bottlenecks;

(p) subject to the relevant law, recommend to the concerned authorities to remove any discriminatory, hate material or other divisive content appearing on social media, which is aimed at any minorities in Pakistan and to take appropriate action under the law against the publishers and creators of such material;

(q) submit special reports to the Majlis-e-Shoora (Parliament) through the Government on any matter pertaining to minorities and in particular the challenges encountered by them;

(r) take part in International forums and interact with Human Rights experts across the globe;

(s) take special measures for integration of all groups among minorities including Dalit and scheduled caste to promote solidarity and eliminate racial discrimination and recommend policy measures for social emancipation;

(t) investigation and inquiry in respect of any incident of violation of rights of minorities envisaged under this Act;

(u) the Commission shall monitor and prepare independent fact finding reports on Human Rights issues and shall submit to the Government for action; and

(v) carry out such other functions related or incidental to the above functions as the Commission may consider necessary for promotion and protection of the rights of minorities under this Act.

13. **Advice of the Commission.**—The Federal Government and Provincial Governments may refer to the Commission for opinion any issue deemed appropriate relating to the functions of the Commission.

14. **Financial and legal support for rehabilitation.**—Notwithstanding anything contained in other law for the time being enforce, the Federal Government shall allocate adequate rehabilitation fund to the Commission for extending financial and legal aid to the victims of the minority communities.

15. **Administrative and financial powers of the Commission.**—(1) The Commission shall enjoy administrative and financial autonomy as per applicable laws.

(2) The Commission shall have powers to re-appropriate, in the manner as may be prescribed by regulations, funds from one head of account to another head of account and to sanction expenditure on any item from within the allocated budget.

(3) The Chairperson shall be the chief executive officer of the Commission and also its principal accounting officer.

16. **Procedure of meeting of the Commission.**—(1) The Commission shall regulate its own procedure in the manner prescribed by regulations.

(2) The Commission shall meet at least on quarterly basis or whenever a need so arises.

(3) Notice for the meeting either at the direction of the Chairperson or when so requested by one-third of the Commission's total strength shall be issued, along with agenda, at least ten days before the date of meeting.

(4) The quorum for meetings shall be one-half of the Commission's total existing strength, including any members joining through modern techniques like video link conferencing.

(5) No decision of the Commission shall be valid unless taken by a majority of the total members present and voting:

Provided that where an issue or matter pertains to a particular minority, no decision of the Commission shall be valid unless the members belonging to that minority community are part of the session of the Commission in which such a decision is taken.

(6) In the event of a tie, the person chairing the meeting shall have a casting vote.

(7) The Chairperson may invite to the Commission's meeting any persons whose opinion or experience he deems appropriate to seek concerning a matter brought before the Commission for discussion, decision or review. Any such person shall not be entitled to vote.

(8) All orders and decisions of the Commission shall be authenticated by the Secretary or any other officer of the Commission duly authorized by the Chairperson in this behalf.

17. **Vacancy not to invalidate proceedings of Commission.**—No act or proceedings of the Commission shall be invalid merely by reason of existing of a vacancy in or defect in constitution of the Commission.

18. **Executive Committee of the Commission.**—(1) The Commission shall constitute an executive committee comprising the Chairperson, two members to be elected by the Commission and Secretary of the Commission.

(2) The executive committee constituted under sub-section (1) shall perform such functions as may be prescribed by regulations and as may be assigned by the commission.

19. **Appointment of sub-committees of the Commission.**—(1) The Commission may constitute sub-committees comprising of its members, including Chairperson and may refer to them any matter for consideration.

(2) The Commission may as it thinks fit constitute an expert or advisory committee, possessing a special knowledge, which shall fix an honorarium for services of the experts from the designated fund.

(3) The sub-committees constituted under sub-section (2) shall be need based and time bound.

CHAPTER-IV

POWERS OF THE COMMISSION

20. **Inquiry into complaints.**—(1) The Commission, while inquiring into the complaints of violations of minorities' rights, may call for information or report from the Government or any other authority or organization subordinate thereto, within such time as may be specified by it:

Provided that if the information or report is not received within the time stipulated for the purpose, the Commission may proceed to inquire into the complaint on its own.

(2) Without prejudice to anything contained in sub-section (1), if the Commission considers it necessary, having regard to nature of the complaint, it may initiate an inquiry without calling for any information or report.

(3) If at any stage of the inquiry, the Commission—

(a) considers it necessary to inquire into the conduct of any person; or

(b) is of the opinion that the reputation of any person is likely to be prejudicially affected by the inquiry, it shall give to that person a reasonable opportunity of being heard and to produce evidence in his defence:

Provided that nothing in this sub-section shall apply where the credit of a witness is being impeached.

21. **Powers of the Commission relating to inquiries.**—(1) The Commission shall, while inquiring into complaints under this Act, have all the powers of a civil court trying a suit under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of the following matters, namely:—

(a) summoning and enforcing the attendance of witnesses and examine them on oath;

(b) requiring discovery and production of documents;

(c) receiving evidence on affidavits;

(d) requisitioning any public record or copy thereof from any court or office; and

(e) issuing commission for the examination of witnesses or documents.

(2) The Commission shall have power to require any person, subject to any privilege which may be claimed by that person to furnish information on such points or matters as in opinion of the Commission may be useful for or relevant to the subject matter of the inquiry.

(3) The Commission may take any of the following, amongst others, steps upon the completion of an inquiry held under this Act, namely:—

(a) where the inquiry discloses violation of minorities' rights or negligence in prevention of violation of minorities' rights by a public servant, it may recommend to the concerned Government or authority the initiation of proceedings for prosecution or such other action as the Commission may deem fit against the concerned person or persons;

(b) recommend to the concerned Government or authority for the grant of such immediate interim relief to the victim or the members of his family as the Commission may consider necessary:

(c) provide a copy of the inquiry report to the accused and complainant or his representative;

(d) the Commission shall send a copy of its inquiry report together with its recommendations to the concerned Government or authority which shall, within a period of one month or such further time as the Commission may allow. submit its reply indicating the action taken or proposed to be taken to implement the recommendations or reasons why these cannot or should not be implemented; or

(e) the Commission shall publish its inquiry report together with its recommendations and the reply of the Government or authority thereto, and place the same on its website.

(4) The Commission may recommend any disciplinary action to the competent authority against any person or employee, as the case may be, on non-compliance of the order of the Commission under this Act.

22. **Statement made to the Commission.**—Any statement made by a person while giving evidence before the Commission shall not subject him to, or be used against him, in any civil or criminal proceeding except prosecution for giving false evidence.

23. **Protecting witness identity.**—Where the Commission considers it necessary to protect the identity of a person who has made a complaint or furnished or proposes to furnish information or produced or proposes to produce

a document or given or proposes to give evidence or made or proposes to make a submission to the Commission or to a person acting for or on behalf of the Commission, it may give directions prohibiting the disclosure of the identity of such person:

Provided that if the Commission is satisfied that such person, his family, friends or associates are at risk of any kind of serious harm in the case of disclosure of his identity, it may give directions for their protection:

Provided further that such directions may, where appropriate, include directions for giving requisite physical protection, security of employment, protection of privacy and securing human rights of such person.

24. **Council of the Commission.**—(1) There shall be a Council to be established under this Act. The Council shall exercise all powers, perform all functions, do all acts and things which assigned to it by the Commission.

(2) The Council shall consist of the following eighteen members from whom,—

(a) three members from Hindus out of which two from scheduled caste;

(b) three members from Christians;

(c) one member from Sikhs;

(d) one member from Bahai;

(e) one member from the Parsee Community;

(f) two Muslim members who are human rights background;

(g) one representative from each Provincial Human Rights or Minorities Affairs Departments; and

(h) one minority member from Islamabad Capital Territory.

(3) The members of the council shall be appointed by the Prime Minister on the recommendations of the Commission on such terms and conditions as may be prescribed.

(4) The tenure of the members other than the *ex-officio* members shall be for three years.

(5) The Council shall perform such powers and exercise such functions as assigned to it by the Commission from time to time.

CHAPTER-V

FUNDS, FINANCE, ACCOUNTS AND AUDIT

25. **National Commission for Minorities Fund.**—(1) There shall be created a fund to be known as the National Commission for Minorities Fund which shall vest in the Commission and shall be used by the Commission to meet charges in connection with its functions under this Act.

(2) The following shall be the sources of the Fund, created under sub-section (1), namely:—

(a) Federal Government shall allocate specific amount of money for the commission in each financial year and it shall not be necessary for the commission to take the prior approval from the government to spend such allocated money for the approved and specific purposes;

(b) donations, contributions or grants made by the Provincial Governments;

(c) donations, if any, made by private individuals, national and international institutions and other Governments; and

(d) income from investment made by the Commission.

(3) There shall be a separate account maintained at a scheduled bank for meeting routine expenses of the Commission out of the Fund in the manner as may be prescribed in the regulations.

(4) The provisions of the Public Finance Management Act, 2019 shall apply to the Commission.

26. **Expenditure to be charged on the Fund**—The following expenditures shall be charged to the Fund, namely:—

(a) expenditure lawfully incurred by the Commission, relating to remuneration of its members, employees, advisers and consultants, including legal fees and other costs;

(b) expenses, costs or expenditure incurred or accepted by the Commission in performance of its functions or in exercise of its powers under this Act;

(c) purchasing or hiring of accommodation, equipment, machinery, repair and maintenance thereof and any other work or undertaking

in the course of performance of its functions or in the exercise of its powers under this Act; and

(d) repayment of any financial liabilities.

27. **Accounts and audit.**—(1) The Commission shall maintain proper accounts and other relevant records and prepare an annual statement of accounts in such a form as may be prescribed in accordance with the provisions of Articles 169 and 170 of the Constitution.

(2) The Chairperson shall be the principal accounting officer of the Commission. The accounts of the Commission shall be audited by the Auditor-General at such intervals as may be specified by him.

(3) The Auditor-General and any person appointed by him in connection with the audit of the accounts of the Commission under this Act shall have the same rights and privileges and the authority in connection with the audit of Government's accounts and in particular shall have the right to demand the production of books, accounts, connected vouchers, other related documents and papers, and to inspect any of the offices of the Commission.

(4) The accounts of the Commission, as certified by the Audit-General or any other person appointed by him in this behalf, together with the audit report thereon shall be forwarded annually to the Federal Government by the Commission, and the Federal Government shall cause the audit report to be laid, as soon as may be after it is received, before both Houses of the Majlis-e-Shoora (Parliament).

CHAPTER-VI

MISCELLANEOUS

28. **Annual and other reports.**—(1) The Commission shall, each year, prepare bi-annual reports giving a true and full account of the Commission's activities during the previous financial year along with any recommendations.

(2) The Chairperson shall present the report to the President. The Commission shall simultaneously forward copies of the report to the Government. The report shall also be tabled in the Parliament for consideration.

(3) The Commission may at any time prepare special reports on any matters which in its opinion are of particular urgency or importance.

(4) The Federal Government shall, within three months of receipt of annual report and within one month of receipt of any special report, cause these reports to be laid before each House of the Majlis-e-Shoora (Parliament) along

with a memorandum indicating the action taken or proposed to be taken on the recommendations of the Commission and reasons for non-implementation of the recommendations, if any.

(5) In case of non-acceptance of any recommendations, the Federal Government shall inform the Commission of its reasons thereof.

(6) The Commission shall, after presentation to the President under sub-section (2), place the annual report and special reports on its official website for information of general public.

29. **Chairperson, members and employees of the Commission to be public servants.**—The Chairperson, members and employees of the Commission shall be deemed to be public servants within the meaning of section 21 of the Pakistan Penal Code (Act XLV of 1860).

30. **Returns or information.**—The Commission shall furnish to the Federal Government such returns or other information with respect to its activities as the Federal Government may, from time to time, require.

31. **Delegation of powers.**—The Commission may, by notification in the official Gazette, delegate such of its powers as deemed necessary to a standing committee or a member.

32. **Indemnity.**—No suit or any other proceeding shall lie against the Commission, Chairperson, member or employee of the Commission for anything which is done in good faith, in pursuance of this Act or the rules or regulations made thereunder or by or under the authority of the Commission.

33. **Power to make rules.**—(1) The Commission shall, within six months of the commencement of this Act and with the approval of the Federal Government make rules for carrying out the purposes of this Act.

34. **Power to make regulations.**—(1) The Commission may, with approval of the Federal Government and by notification in the official Gazette, make regulations for the conduct of its internal business, including efficiently and effectively organizing and managing its resources and its administrative, operational and other functions under this Act.

(2) In particular and without prejudice to generality of the foregoing powers, the regulations may provide for all or any of the following matters, namely:—

(a) terms and conditions of service of officers and other staff including their salaries and allowances;

(b) the form in which the annual statement of accounts is to be prepared under this Act; and

(c) any other matter which has to be, or may be, prescribed by regulations under this Act.

35. **Power to remove difficulties.**—If a difficulty arises in giving effect to any provision of this Act, the Federal Government may, within a period not exceeding two years of the commencement of this Act and by order in writing published in the official Gazette, make such provision as may appear to it to be necessary for removing the difficulty.

TAHIR HUSSAIN,
Secretary General.

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THE CONSTITUTION OF THE ISLAMIC REPUBLIC OF PAKISTAN



THE CONSTITUTION OF THE ISLAMIC REPUBLIC OF PAKISTAN

(As amended upto the Twenty-Seventh Amendment)

GOVERNMENT OF PAKISTAN

MINISTRY OF LAW AND JUSTICE

2025

PREFACE

This Fourteenth Edition of the Constitution of the Islamic Republic of Pakistan, 1973 incorporates all amendments made till date. It reflects the continuing evolution of Pakistan's constitutional framework.

In pursuit of greater accessibility and transparency in the administration of justice, the Law and Justice Division has also developed a comprehensive digital database of the Federal Laws of Pakistan, titled "The Pakistan Code." This initiative provides seamless access to the laws of Pakistan both domestically and internationally through a dedicated website and user-friendly mobile applications now available on the Apple App Store, Google Play Store and the official web portal www.pakistancode.gov.pk. The Pakistan Code represents a major step towards modernising legal dissemination and facilitating citizens, practitioners, and institutions in obtaining authentic legal references with ease.

RAJA NAEEM AKBAR
(*Hilal-e-Imtiaz*)
Secretary
Law and Justice Division.

ISLAMABAD:
The 21st November, 2025.

THE CONSTITUTION OF THE ISLAMIC REPUBLIC OF PAKISTAN

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بِسۡمِ اللّٰہِ الرَّحۡمٰنِ الرَّحِیۡمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

THE CONSTITUTION OF THE ISLAMIC REPUBLIC OF PAKISTAN

[12TH APRIL, 1973]

PREAMBLE

WHEREAS sovereignty over the entire Universe belongs to Almighty Allah alone, and the authority to be exercised by the people of Pakistan within the limits prescribed by Him is a sacred trust;

AND WHEREAS it is the will of the people of Pakistan to establish an order;

WHEREIN the State shall exercise its powers and authority through the chosen representatives of the people;

WHEREIN the principles of democracy, freedom, equality, tolerance and social justice, as enunciated by Islam, shall be fully observed;

WHEREIN the Muslims shall be enabled to order their lives in the individual and collective spheres in accordance with the teachings and requirements of Islam as set out in the Holy Quran and Sunnah;

WHEREIN adequate provision shall be made for the minorities to freely profess and practise their religions and develop their cultures;

WHEREIN the territories now included in or in accession with Pakistan and such other territories as may hereafter be included in or accede to Pakistan shall form a Federation wherein the units will be autonomous with such boundaries and limitations on their powers and authority as may be prescribed;

WHEREIN shall be guaranteed fundamental rights, including equality of status, of opportunity and before law, social, economic and political justice, and freedom of thought, expression, belief, faith, worship and association, subject to law and public morality;

WHEREIN adequate provision shall be made to safeguard the legitimate interests of minorities and backward and depressed classes;

WHEREIN the independence of the judiciary shall be fully, secured;

WHEREIN the integrity of the territories of the Federation, its independence and all its rights, including its sovereign rights on land, sea and air, shall be safeguarded;

So that the people of Pakistan may prosper and attain their rightful and honoured place amongst the nations of the World and make their full contribution towards international peace and progress and happiness of humanity;

NOW, THEREFORE, we, the people of Pakistan;

Conscious of our responsibility before Almighty Allah and men;

Cognisant of the sacrifices made by the people in the cause of Pakistan;

Faithful to the declaration made by the Founder of Pakistan, Quaid-i-Azam Mohammad Ali Jinnah, that Pakistan would be a democratic State based on Islamic principles of social justice;

Dedicated to the preservation of democracy achieved by the unremitting struggle of the people against oppression and tyranny;

Inspired by the resolve to protect our national and political unity and solidarity by creating an egalitarian society through a new order;

Do hereby, through our representatives in the National Assembly, adopt, enact and give to ourselves, this Constitution.

———

PART I

Introductory

The Republic and its territories.

[1]**1.** (1) Pakistan shall be Federal Republic to be known as the Islamic Republic of Pakistan, hereinafter referred to as Pakistan.

[2][(2) The territories of Pakistan shall comprise—

(a) the Provinces of [3][Balochistan], the [4][Khyber Pakhtunkhwa], the Punjab and [5][Sindh];

(b) the Islamabad Capital Territory, hereinafter referred to as the Federal Capital; [6][and]

[7]* * * * * * *

[8][(c)] such States and territories as are or may be included in Pakistan, whether by accession or otherwise.

(3) [9][Majlis-e-Shoora (Parliament)] may by law admit into the Federation new States or areas on such terms and conditions as it thinks fit.]

Islam to be State religion.

2. Islam shall be the State religion of Pakistan.

The Objectives Resolution to form part of substantive provisions.

[10][**2A.** The principles and provisions set out in the Objectives Resolution reproduced in the Annex are hereby made substantive part of the Constitution and shall have effect accordingly.]

Elimination of exploitation.

3. The State shall ensure the elimination of all forms of exploitation and the gradual fulfilment of the fundamental

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[1]The provisions of the Constitution except those of Articles 6, 8 to 28, (both inclusive), clauses (2) and (2a) of Article 101, Articles 199, 213 to 216 (both inclusive) and 270-A, brought into force with effect from 10th March, 1985, *vide* S.R.O. No. 212(I)/85, dated 10th March, 1985, Gazette of Pakistan, Extraordinary, Part-II, page 279 and the aforesaid Articles brought into force with effect from 30th December, 1985, *vide* S.R.O. No. 1273(I)/85 dated 29th December, 1985, Gazette of Pakistan, Extraordinary, Part-II, page 3185.

[2]Subs. by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 2, for "clauses (2), (3) and (4)" (*w.e.f.* the 4th May, 1974).

[3]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 3 for "Baluchistan."

[4]Subs. *ibid.,* for "North-West-Frontier".

[5]Subs. *ibid.,* for "Sind".

[6]Ins. by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 2.

[7]Paragraph (c) omitted *ibid.*

[8]Paragraph (d) renumbered *ibid.*

[9]Subs. by the Revival of the Constitution of 1973 Order, 1985 (P.O. No. 14 of 1985), Art. 2 and Sch., for "Parliament".

[10]New Article 2A ins. *ibid.*

principles, from each according to his ability to each according to his work.

Right of individuals to be dealt with in accordance with law, etc.

4. (1) To enjoy the protection of law and to be treated in accordance with law is the inalienable right of every citizen, wherever he may be, and of every other person for the time being within Pakistan.

(2) In particular–

(a) no action detrimental to the life, liberty, body, reputation or property of any person shall be taken except in accordance with law;

(b) no person shall be prevented from or be hindered in doing that which is not prohibited by law; and

(c) no person shall be compelled to do that which the law does not required him to do.

Loyalty to State and obedience to Constitution and law.

5. (1) Loyalty to the State is the basic duty of every citizen.

(2) Obedience to the Constitution and law is the [1][inviolable] obligation of every citizen wherever he may be and of every other person for the time being within Pakistan.

High treason.

6. [2][(1) Any person who abrogates or subverts or suspends or holds in abeyance, or attempts or conspires to abrogate or subvert or suspend or hold in abeyance, the Constitution by use of force or show of force or by any other unconstitutional means shall be guilty of high treason.]

(2) Any person aiding or abetting [3][or collaborating] the acts mentioned in clause (1) shall likewise be guilty of high treason.

[4][(2A) An act of high treason mentioned in clause (1) or clause (2) shall not be validated by any court including the [5][Federal Constitutional Court,] Supreme Court and a High Court.]

(3) [6][Majlis-e-Shoora (Parliament)] shall by law provide for the punishment of persons found guilty of high treason.

———

[1]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "basic".
[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 4, for "clause (1)".
[3]Ins. *ibid.*
[4]New clause (2A) ins. *ibid.*
[5]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.2.
[6]*See* footnote 9 on page 5, *supra.*

PART II

Fundamental Rights and Principles of Policy

Definition of the State.

7. In this Part, unless the context otherwise requires, '' the State'' means the Federal Government, [1][Majlis-e-Shoora (Parliament)], a Provincial Government, a Provincial Assembly, and such local or other authorities in Pakistan as are by law empowered to impose any tax or cess.

CHAPTER 1.–FUNDAMENTAL RIGHTS

Laws inconsistent with or in derogation of Fundamental Rights to be void.

8. (1) Any law, or any custom or usage having the force of law, in so far as it is inconsistent with the rights conferred by this Chapter, shall, to the extent of such inconsistency, be void.

(2) The State shall not make any law which takes away or abridges the rights so conferred and any law made in contravention of this clause shall, to the extent of such contravention, be void.

(3) The Provisions of this Article shall not apply to–

(a) any law relating to members of the Armed Forces, or of the police or of such other forces as are charged with the maintenance of public order, for the purpose of ensuring the proper discharge of their duties or the maintenance of discipline among them; or

[2][(b) any of the –

(i) laws specified in the First Schedule as in force immediately before the commencing day or as amended by any of the laws specified in that Schedule ;

(ii) other laws specified in Part I of the First Schedule;]

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 2, for ''paragraph (b)'', (*w.e.f.* the 21st November, 1985), which was previously amended by Act 33 of 1974, s. 3, (*w.e.f.* 4th May, 1974).

and no such law nor any provision thereof shall be void on the ground that such law or provision is inconsistent with, or repugnant to, any provision of this Chapter.

(4) Notwithstanding anything contained in paragraph (b) of clause (3), within a period of two years from the commencing day, the appropriate Legislature shall bring the laws specified in [1][Part II of the First Schedule] into conformity with the rights conferred by this Chapter :

Provided that the appropriate Legislature may by resolution extend the said period of two years by a period not exceeding six months.

Explanation.–If in respect of any law [2][Majlis-e-Shoora (Parliament)] is the appropriate Legislature, such resolution shall be a resolution of the National Assembly.

(5) The rights conferred by this Chapter shall not be suspended except as expressly provided by the Constitution.

Security of person.

9. No person shall be deprived of life or liberty save in accordance with law.

Clean and healty environment.

[3][**9A.** Every person shall be entitled to a clean, healthy and sustainable environment.]

Safeguards as to arrest and detention.

10. (1) No person who is arrested shall be detained in custody without being informed, as soon as may be, of the grounds for such arrest, nor shall he be denied the right to consult and be defended by a legal practitioner of his choice.

(2) Every person who is arrested and detained in custody shall be produced before a magistrate within a period of twenty-four hours of such arrest, excluding the time necessary for the journey from the place of arrest to the court of the nearest magistrate, and no such person shall be detained in custody beyond the said period without the authority of a magistrate.

(3) Nothing in clauses (1) and (2) shall apply to any person who is arrested or detained under any law providing for preventive detention.

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[1]Subs. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 2, for "the First Schedule, not being a law which relates to, or is connected with, economic reforms."

[2]*See* footnote 9 on page 5, *supra.*

[3]New Article 9A. ins. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024),s.2.

(4) No law providing for preventive detention shall be made except to deal with persons acting in a manner prejudicial to the integrity, security or defence of Pakistan or any part thereof, or external affairs of Pakistan, or public order, or the maintenance of supplies or services, and no such law shall authorize the detention of a person for a period exceeding [1][three months] unless the appropriate Review Board has, after affording him an opportunity of being heard in person, reviewed his case and reported, before the expiration of the said period, that there is, in its opinion, sufficient cause for such detention, and, if the detention is continued after the said period of [1][three months], unless the appropriate Review Board has reviewed his case and reported, before the expiration of each period of three months, that there is, in its opinion, sufficient cause for such detention.

Explanation I.–In this Article, ''the appropriate Review Board'' means,–

(i) in the case of a person detained under a Federal law, a Board appointed by the Chief Justice of [2][Supreme Court of] Pakistan and consisting of a Chairman and two other persons, each of whom is or has been a Judge of the Supreme Court or a High Court; and

(ii) in the case of a person detained under a Provincial law, a Board appointed by the Chief Justice of the High Court concerned and consisting of a Chairman and two other persons, each of whom is or has been a Judge of a High Court.

Explanation II.–The opinion of a Review Board shall be expressed in terms of the views of the majority of its members.

(5) When any person is detained in pursuance of an order made under any law providing for preventive detention, the authority making the order shall, [3][within fifteen days] from such detention, communicate to such person the grounds on which the order has been made, and shall afford him the earliest opportunity of making a representation against the order :

Provided that the authority making any such order may

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[1]Subs. by the Constitution (Third Amdt.) Act, 1975 (22 of 1975), s. 2, for ''one month'' (*w.e.f.* the 13th February, 1975).

[2]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 3.

[3]Subs. by the Act No. 22 of 1975, for ''as soon as may be, but not later than one week'' (*w.e.f.* the 13th February, 1975).

refuse to disclose facts which such authority considers it to be against the public interest to disclose.

(6) The authority making the order shall furnish to the appropriate Review Board all documents relevant to the case unless a certificate, signed by a Secretary to the Government concerned, to the effect that it is not in the public interest to furnish any documents, is produced.

(7) Within a period of twenty-four months commencing on the day of his first detention in pursuance of an order made under a law providing for preventive detention, no person shall be detained in pursuance of any such order for more than a total period of eight months in the case of a person detained for acting in a manner prejudicial to public order and twelve months in any other case :

Provided that this clause shall not apply to any person who is employed by, or works for, or acts on instructions received from, the enemy [1][, or who is acting or attempting to act in a manner prejudicial to the integrity, security or defence of Pakistan or any part thereof or who commits or attempts to commit any act which amounts to an anti-national activity as defined in a Federal law or is a member of any association which has for its objects, or which indulges in, any such anti-national activity.]

(8) The appropriate Review Board shall determine the place of detention of the person detained and fix a reasonable subsistence allowance for his family.

(9) Nothing in this Article shall apply to any person who for the time being is an enemy alien.

Right to fair trial.

[2][**10A.** For the determination of his civil rights and obligations or in any criminal charge against him a person shall be entitled to a fair trial and due process.]

Slavery, forced labour, etc., prohibited.

11. (1) Slavery is non-existent and forbidden and no law shall permit or facilitate its introduction into Pakistan in any form.

(2) All forms of forced labour and traffic in human beings are prohibited.

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[1]Added by the Constitution (Third Amdt.) Act, 1975 (22 of 1975), s. 2.

[2]New Article 10 A ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 5.

(3) No child below the age of fourteen years shall be engaged in any factory or mine or any other hazardous employment.

(4) Nothing in this Article shall be deemed to affect compulsory service–

(a) by any person undergoing punishment for an offence against any law; or

(b) required by any law for public purpose :

Provided that no compulsory service shall be of a cruel nature or incompatible with human dignity.

Protection against retrospective punishment.

12. (1) No law shall authorize the punishment of a person–

(a) for an act or omission that was not punishable by law at the time of the act or omission; or

(b) for an offence by a penalty greater than, or of a kind different from, the penalty prescribed by law for that offence at the time the offence was committed.

(2) Nothing in clause (1) or in Article 270 shall apply to any law making acts of abrogation or subversion of a Constitution in force in Pakistan at any time since the twenty-third day of March, one thousand nine hundred and fifty-six, an offence.

Protection against double punishment and self-incrimination.

13. No person–

(a) shall be prosecuted or punished for the same offence more than once; or

(b) shall, when accused of an offence, be compelled to be a witness against himself.

Inviolability of dignity of man, etc.

14. (1) The dignity of man and, subject to law, the privacy of home, shall be inviolable.

(2) No person shall be subjected to torture for the purpose of extracting evidence.

Freedom of movement,

15. Every citizen shall have the right to remain in, and, subject to any reasonable restriction imposed by law in the public

interest, enter and move freely throughout Pakistan and to reside and settle in any part thereof.

Freedom of assembly.

16. Every citizen shall have the right to assemble peacefully and without arms, subject to any reasonable restrictions imposed by law in the interest of public order.

Freedom of association.

[1][**17.** (1) Every citizen shall have the right to form associations or unions, subject to any reasonable restrictions imposed by law in the interest of sovereignty or integrity of Pakistan, public order or morality.

(2) Every citizen, not being in the service of Pakistan, shall have the right to form or be a member of a political party, subject to any reasonable restrictions imposed by law in the interest of the sovereignty or integrity of Pakistan and such law shall provide that where the Federal Government declares that any political party has been formed or is operating in a manner prejudicial to the sovereignty or integrity of Pakistan, the Federal Government shall, within fifteen days of such declaration, refer the matter to the [2][Federal Constitutional Court of Pakistan] whose decision on such reference shall be final.

(3) Every political party shall account for the source of its funds in accordance with law.]

Freedom of trade, business or profession.

18. Subject to such qualifications, if any, as may be prescribed by law, every citizen shall have the right to enter upon any lawful profession or occupation, and to conduct any lawful trade or business:

Provided that nothing in this Article shall prevent–

(a) the regulation of any trade or profession by a licensing system; or

(b) the regulation of trade, commerce or industry in the interest of free competition therein; or

(c) the carrying on, by the Federal Government or a Provincial Government, or by a corporation controlled by any such Government, of any trade, business,

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 6, for "Article 17".

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.4 for "Supreme Court".

industry or service, to the exclusion, complete or partial, of other persons.

Freedom of speech, etc.

19. Every citizen shall have the right to freedom of speech and expression, and there shall be freedom of the press, subject to any reasonable restrictions imposed by law in the interest of the glory of Islam or the integrity, security or defence of Pakistan or any part thereof, friendly relations with foreign States, public order, decency or morality, or in relation to contempt of court, [1][commission of] or incitement to an offence.

Right to information.

[2]**[19A.** Every citizen shall have the right to have access to information in all matters of public importance subject to regulation and reasonable restrictions imposed by law.]

Freedom to profess religion and to manage religious institutions.

20. Subject to law, public order and morality,–

(a) every citizen shall have the right to profess, practise and propagate his religion; and

(b) every religious denomination and every sect thereof shall have the right to establish, maintain and manage its religious institutions.

Safeguard against taxation for purposes of any particular religion.

21. No person shall be compelled to pay any special tax the proceeds of which are to be spent on the propagation or maintenance of any religion other than his own.

Safeguards as to educational institutions in respect of religion, etc.

22. (1) No person attending any educational institution shall be required to receive religious instruction, or take part in any religious ceremony, or attend religious worship, if such instruction, ceremony or worship relates to a religion other than his own.

(2) In respect of any religious institution, there shall be no discrimination against any community in the granting of exemption or concession in relation to taxation.

(3) Subject to law–

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[1]Subs. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 4, for "defamation" (*w.e.f.* the 21st November, 1975).

[2]New Article 19A ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 7.

(a) no religious community or denomination shall be prevented from providing religious instruction for pupils of that community or denomination in any educational institution maintained wholly by that community or denomination; and

(b) no citizen shall be denied admission to any educational institution receiving aid from public revenues on the ground only of race, religion, caste or place of birth.

(4) Nothing in this Article shall prevent any public authority from making provision for the advancement of any socially or educationally backward class of citizens.

Provision as to property.

23. Every citizen shall have the right to acquire, hold and dispose of property in any part of Pakistan, subject to the Constitution and any reasonable restrictions imposed by law in the public interest.

Protection of property rights.

24. (1) No person shall be deprived of his property save in accordance with law.

(2) No property shall be compulsorily acquired or taken possession of save for a public purpose, and save by the authority of law which provides for compensation therefor and either fixes the amount of compensation or specifies the principles on and the manner in which compensation is to be determined and given.

(3) Nothing in this Article shall affect the validity of–

(a) any law permitting the compulsory acquisition or taking possession of any property for preventing danger to life, property or public health; or

(b) any law permitting the taking over of any property which has been acquired by, or come into the possession of, any person by any unfair means, or in any manner, contrary to law; or

(c) any law relating to the acquisition, administration or disposal of any property which is or is deemed to be enemy property or evacuee property under any law (not being property which has ceased to be evacuee property under any law); or

(d) any law providing for the taking over of the management of any property by the State for a limited period, either in the public interest or in order to secure the proper management of the property, or for the benefit of its owner; or

(e) any law providing for the acquisition of any class of property for the purpose of–

(i) providing education and medical aid to all or any specified class of citizens; or

(ii) providing housing and public facilities and services such as roads, water supply, sewerage, gas and electric power to all or any specified class of citizens; or

(iii) providing maintenance to those who, on account of unemployment, sickness, infirmity or old age, are unable to maintain themselves; or

(f) any existing law or any law made in pursuance of Article 253.

(4) The adequacy or otherwise of any compensation provided for by any such law as is referred to in this Article, or determined in pursuance thereof, shall not be called in question in any court.

Equality of citizens.

25. (1) All citizens are equal before law and are entitled to equal protection of law.

(2) There shall be no discrimination on the basis of sex[1]*.

(3) Nothing in this Article shall prevent the State from making any special provision for the protection of women and children.

Right to education.

[2][**25A.** The State shall provide free and compulsory education to all children of the age of five to sixteen years in such manner as may be determined by law.]

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[1]The word "alone" omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 8.

[2]New Article 25A ins. *ibid.,* s. 9.

Non-discrimination in respect of access to public places.

26. (1) In respect of access to places of public entertainment or resort, not intended for religious purposes only, there shall be no discrimination against any citizen on the ground only of race, religion, caste, sex, residence or place of birth.

(2) Nothing in clause (1) shall prevent the State from making any special provision for women and children.

Safeguard against discrimination in services.

27. (1) No citizen otherwise qualified for appointment in the service of Pakistan shall be discriminated against in respect of any such appointment on the ground only of race, religion, caste, sex, residence or place of birth:

Provided that, for a period not exceeding [1][forty] years from the commencing day, posts may be reserved for persons belonging to any class or area to secure their adequate representation in the service of Pakistan:

Provided further that, in the interest of the said service, specified posts or services may be reserved for members of either sex if such posts or services entail the performance of duties and functions which cannot be adequately performed by members of the other sex [2][:]

[3][Provided also that under-representation of any class or area in the service of Pakistan may be redressed in such manner as may be determined by an Act of Majlis-e-Shoora (Parliament).]

(2) Nothing in clause (1) shall prevent any Provincial Government, or any local or other authority in a Province, from prescribing, in relation to any post or class of service under that Government or authority, conditions as to residence in the Province, for a period not exceeding three years, prior to appointment under that Government or authority.

Preservation of language, script and culture.

28. Subject to Article 251 any section of citizens having a distinct language, script or culture shall have the right to preserve and promote the same and subject to law, establish institutions for that purpose.

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[1]Subs. and shall be deemed always to have been so subs. by the Constitution (Sixteenth Amdt.) Act, 1999 (7 of 1999), s. 2, for "twenty", which was previously subs. by P.O. No. 14 of 1985, Art. 2 and Sch., for "ten".

[2] Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 10, for the full-stop.

[3]New proviso ins. *ibid.*

CHAPTER 2.–PRINCIPLES OF POLICY

Principles of Policy.

29. (1) The Principles set out in this Chapter shall be known as the Principles of Policy, and it is the responsibility of each organ and authority of the State, and of each person performing functions on behalf of an organ or authority of the State, to act in accordance with those Principles in so far as they relate to the functions of the organ or authority.

(2) In so far as the observance of any particular Principle of Policy may be dependent upon resources being available for the purpose, the Principle shall be regarded as being subject to the availability of resources.

(3) In respect of each year, the President in relation to the affairs of the Federation, and the Governor of each Province in relation to the affairs of his Province, shall cause to be prepared and laid before [1][each House of Majlis-e-Shoora (Parliament)] or, as the case may be, the Provincial Assembly, a report on the observance and implementation of the Principles of Policy, and provision shall be made in the rules of procedure of the National Assembly [2][and the Senate] or, as the case may be, the Provincial Assembly, for discussion on such report.

Responsibility with respect to Principles of Policy.

30. (1) The responsibility of deciding whether any action of an organ or authority of the State, or of a person performing functions on behalf of an organ or authority of the State, is in accordance with the Principles of Policy is that of the organ or authority of the State, or of the person, concerned.

(2) The validity of an action or of a law shall not be called in question on the ground that it is not in accordance with the Principles of Policy, and no action shall lie against the State, any organ or authority of the State or any person on such ground.

Islamic way of life.

31. (1) Steps shall be taken to enable the Muslims of Pakistan, individually and collectively, to order their lives in accordance with the fundamental principles and basic concepts of Islam and to provide facilities whereby they may be enabled to understand the meaning of life according to the Holy Quran and Sunnah.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 11, for "the National Assembly".

[2]Ins. *ibid.*

(2) The State shall endeavour, as respects the Muslims of Pakistan,—

(a) to make the teaching of the Holy Quran and Islamiat compulsory, to encourage and facilitate the learning of Arabic language and to secure correct and exact printing and publishing of the Holy Quran;

(b) to promote unity and the observance of the Islamic moral standards; and

(c) to secure the proper organisation of *zakat,* [1][*ushr,*] *auqaf* and mosques.

Promotion of local Government institutions.

32. The State shall encourage local Government institutions composed of elected representatives of the areas concerned and in such institutions special representation will be given to peasants, workers and women.

Parochial and other similar prejudices to be discouraged.

33. The State shall discourage parochial, racial, tribal, sectarian and provincial prejudices among the citizens.

Full participation of women in national life.

34. Steps shall be taken to ensure full participation of women in all spheres of national life.

Protection of family, etc.

35. The State shall protect the marriage, the family, the mother and the child.

Protection of minorities.

36. The State shall safeguard the legitimate rights and interests of minorities, including their due representation in the Federal and Provincial services.

Promotion of social justice and eradication of social evils.

37. The State shall—

(a) promote, with special care, the educational and economic interests of backward classes or areas;

(b) remove illiteracy and provide free and compulsory secondary education within minimum possible period;

(c) make technical and professional education generally available and higher education equally accessible to all on the basis of merit;

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[1]Ins.by P.O. No. 14 of 1985, Art. 2 and Sch.

(d) ensure inexpensive and expeditious justice;

(e) make provision for securing just and humane conditions of work, ensuring that children and women are not employed in vocations unsuited to their age or sex, and for maternity benefits for women in employment;

(f) enable the people of different areas, through education, training, agricultural and industrial development and other methods, to participate fully in all forms of national activities, including employment in the service of Pakistan;

(g) prevent prostitution, gambling and taking of injurious drugs, printing, publication, circulation and display of obscene literature and advertisements;

(h) prevent the consumption of alcoholic liquor otherwise than for medicinal and, in the case of non-Muslims, religious purposes; and

(i) decentralise the Government administration so as to facilitate expeditious disposal of its business to meet the convenience and requirements of the public.

Promotion of social and economic well-being of the people.

38. The State shall—

(a) secure the well-being of the people, irrespective of sex, caste, creed or race, by raising their standard of living, by preventing the concentration of wealth and means of production and distribution in the hands of a few to the detriment of general interest and by ensuring equitable adjustment of rights between employers and employees, and landlords and tenants;

(b) provide for all citizens, within the available resources of the country, facilities for work and adequate livelihood with reasonable rest and leisure;

(c) provide for all persons employed in the service of Pakistan or otherwise, social security by compulsory social insurance or other means;

(d) provide basic necessities of life, such as food, clothing, housing, education and medical relief, for all

such citizens, irrespective of sex, caste, creed or race, as are permanently or temporarily unable to earn their livelihood on account of infirmity, sickness or unemployment;

(e) reduce disparity in the income and earnings of individuals, including persons in the various classes of the service of Pakistan; [1]*

[2][(f) eliminate *riba* completly before the first day of January, two thousand twenty-eight; and]

[3][(g) ensure that the shares of the Provinces in all Federal services, including autonomous bodies and corporations established by, or under the control of, the Federal Government, shall be secured and any omission in the allocation of the shares of the Provinces in the past shall be rectified.]

Participation of people in Armed Forces.

39. The State shall enable people from all parts of Pakistan to participate in the Armed Forces of Pakistan.

Strengthening bonds with Muslim world and promoting international peace.

40. The State shall endeavour to preserve and strengthen fraternal relations among Muslim countries based on Islamic unity, support the common interests of the peoples of Asia, Africa and Latin America, promote international peace and security, foster goodwill and friendly relations among all nations and encourage the settlement of international disputes by peaceful means.

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[1]The word "and" omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 12.

[2]Subs. by the Constituion (Twenty-sixth Amdt.) Act, 2024 (26 of 2024). s.3.

[3]New paragraph (g) added by Act 10 of 2010, s.12.

PART III

The Federation of Pakistan

CHAPTER 1.–THE PRESIDENT

The President.

41. (1) There shall be a President of Pakistan who shall be the Head of State and shall represent the unity of the Republic.

(2) A person shall not be qualified for election as President unless he is a Muslim of not less than forty-five years of age and is qualified to be elected as member of the National Assembly.

[1][(3) The President [2]* * * shall be elected in accordance with the provisions of the Second Schedule by the members of an electoral college consisting of—

(a) the members of both Houses; and

(b) the members of the Provincial Assemblies.]

(4) Election to the office of President shall be held not earlier than sixty days and not later than thirty days before the expiration of the term of the President in office:

Provided that, if the election cannot be held within the period aforesaid because the National Assembly is dissolved, it shall be held within thirty days of the general election to the Assembly.

(5) An election to fill a vacancy in the office of President shall be held not later than thirty days from the occurrence of the vacancy:

Provided that, if the election cannot be held within the period aforesaid because the National Assembly is dissolved, it shall be held within thirty days of the general election to the Assembly.

(6) The validity of the election of the President shall not be called in question by or before any court or other authority.

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[1]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "clause (3)".

[2]Certain words omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 13.

[1]* * * * * * *

Oath of President.

42. Before entering upon office, the President shall make before the Chief Justice of Pakistan oath in the form set out in the Third Schedule.

Conditions of President's office.

43. (1) The President shall not hold any office of profit in the service of Pakistan or occupy any other position carrying the right to remuneration for the rendering of services.

(2) The President shall not be a candidate for election as a member of [2][Majlis-e-Shoora (Parliament)] or a Provincial Assembly; and, if a member of [2][Majlis-e-Shoora (Parliament)] or a Provincial Assembly is elected as President, his seat in [2][Majlis-e-Shoora (Parliament)] or, as the case may be, the Provincial Assembly shall become vacant on the day he enters upon his office.

Term of office of President.

44. (1) Subject to the Constitution, the President shall hold office for a term of five years from the day he enters upon his office:

Provided that the President shall, notwithstanding the expiration of his terms, continue to hold office until his successor enters upon his office.

(2) Subject to the Constitution, a person holding office as President shall be eligible for re-election to that office, but no person shall hold that office for more than two consecutive terms.

(3) The President may, by writing under his hand addressed to the Speaker of the National Assembly, resign his office.

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[1]Clauses (7) to (9) omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 13.

[2]*See* footnote 9 on page 5, *supra.*

45. The President shall have power to grant pardon, reprieve and respite, and to remit, suspend or commute any sentence passed by any court, tribunal or other authority.

President's power to grant pardon, etc.

[1][**46.** The Prime Minister shall keep the President informed on all matters of internal and foreign policy and on all legislative proposals the Federal Government intends to bring before Majlis-e-Shoora (Parliament).]

President to be kept informed.

47. [3][(1) Notwithstanding anything contained in the Constitution, the President may, in accordance with the provisions of this Article, be removed from office on the ground of physical or mental incapacity or impeached on a charge of violating the Constitution or gross misconduct.

Removal [2][or impeachment] of President.

(2) Not less than one-half of the total membership of either House may give to the Speaker of the National Assembly or, as the case may be, the Chairman written notice of its intention to move a resolution for the removal of, or, as the case may be, to impeach, the President; and such notice shall set out the particulars of his incapacity or of the charge against him.]

(3) If a notice under clause (2) is received by the Chairman, he shall transmit it forthwith to the Speaker.

(4) The Speaker shall, within three days of the receipt of a notice under clause (2) or clause (3), cause a copy of the notice to be transmitted to the President.

(5) The Speaker shall summon the two Houses to meet in a joint sitting not earlier than seven days and not later than fourteen days after the receipt of the notice by him.

(6) The joint sitting may investigate or cause to be investigated the ground or the charge upon which the notice is founded.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 14, for "Article 46".

[2]Ins.by the P.O. No. 14 of 1985, Art 2 and Sch.

[3]Subs. *ibid.,* for "clauses (1) and (2)".

(7) The President shall have the right to appear and be represented during the investigation, if any, and before the joint sitting.

(8) If, after consideration of the result of the investigation, if any, a resolution is passed at the joint sitting by the votes of not less than two-thirds of the total membership of [1][Majlis-e-Shoora (Parliament)] declaring that the President is unfit to hold the office due to incapacity or is guilty of violating the Constitution or of gross misconduct, the President shall cease to hold office immediately on the passing of the resolution.

President to act on advice, etc.

[2][**48.** (1) In the exercise of his functions, the President shall act [3][on and] in accordance with the advice of the Cabinet [4][or the Prime Minister] :

[5][Provided that [6][within fifteen days] the President may require the Cabinet or, as the case may be, the Prime Minister to reconsider such advice, either generally or otherwise, and the President shall [6][, within ten days,] act in accordance with the advice tendered after such reconsideration.]

(2) Notwithstanding anything contained in clause (1), the President shall act in his discretion in respect of any matter in respect of which he is empowered by the Constitution to do so [7][and the validity of anything done by the President in his discretion shall not be called in question on any ground whatsoever].

[8]* * * * * * *

[9][(4) The question whether any, and if so what, advice was tendered to the President by the Cabinet, or the Prime Minister, shall not be inquired into in, or by, any court, tribunal or other authority.]

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by P.O. No. 14 of 1985, Art. 2 and Sch., for "Article 48".

[3]Ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 15.

[4]Subs. by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985), s. 2, for ", the Prime Minister, or a appropriate Minister".

[5] Subs. *ibid.,* for "the original proviso".

[6]Ins. by the Act No. 10 of 2010, s. 15.

[7]Added by the Act No. 18 of 1985, s.2.

[8]Clause (3) omitted, *ibid.*

[9]Subs by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.4.

[1][(5) Where the President dissolves the National Assembly, notwithstanding anything contained in clause (1), he shall,—

(a) appoint a date, not later than ninety days from the date of the dissolution, for the holding of a general election to the Assembly; and

(b) appoint a care-taker Cabinet [2][in accordance with the provisions of Article 224 or, as the case may be, Article 224A].]

[1][(6) If at any time the Prime Minister considers it necessary to hold a referendum on any matter of national importance, he may refer the matter to a joint sitting of the Majlis-e-Shoora (Parliament) and if it is approved in a joint sitting, the Prime Minister may cause such matter to be referred to a referendum in the form of a question that is capable of being answered by either ''Yes'' or ''No''.]

(7) An Act of Majlis-e-Shoora (Parliament) may lay down the procedure for the holding of a referendum and the compiling and consolidation of the result of a referendum.]

Chairman or Speaker to act as, or perform functions of, President.

49. (1) If the office of President becomes vacant by reason of death, resignation or removal of the President, the Chairman or, if he is unable to perform the functions of the office of President, the Speaker of the National Assembly shall act as President until a President is elected in accordance with clause (3) of Article 41.

(2) When the President, by reason of absence from Pakistan or any other cause, is unable to perform his functions, the Chairman or, if he too is absent or unable to perform the functions of the office of President, the Speaker of the National Assembly shall perform the functions of President until the President returns to Pakistan or, as the case may be, resumes his functions.

CHAPTER 2.–THE [3][MAJLIS-E-SHOORA (PARLIAMENT)]

Composition, Duration and Meetings of [3][Majlis-e-Shoora (Parliament)]

Majlis-e-Shoora (Parliament).

[4]**[50.** There shall be a Majlis-e-Shoora (Parliament) of Pakistan consisting of the President and two Houses to be known respectively as the National Assembly and the Senate.]

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 15, for "clauses (5) and (6)" .

[2]Added by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 2.

[3]*See* footnote 9 on page 5, *supra.*

[4]Subs. by P.O. No. 14 of 1985, Art. 2 and Sch., for ''Article 50''.

National Assembly.

[1][**51.** (1) There shall be [2][three hundred and thirty-six] seats for members in the National Assembly, including seats reserved for women and non-Muslims.

(2) A person shall be entitled to vote if—

(a) he is a citizen of Pakistan;

(b) he is not less than eighteen years of age;

(c) his name appears on the electoral roll; and

(d) he is not declared by a competent court to be of unsound mind.

[3][(3) The seats in the National Assembly referred to in clause (1), except the seats mentioned in clause (4), shall be allocated to each Province, and the Federal Capital as under:—

	General Seats	**Women Seats**	**Total Seats**
Balochistan	16	4	20
Khyber Pakhtunkhwa	45	10	55
Punjab	141	32	173
Sindh	61	14	75
Federal Capital	3	–	3
Total	**266**	**60**	**326]**

[4]* * * * * * *

(4) In addition to the number of seats referred to in clause (3), there shall be, in the National Assembly, ten seats reserved for non-Muslims.

[5][(5) [6]* * * [7][The] seats in the National Assembly shall be allocated to each Province and the Federal Capital on the basis of population in accordance with the last preceding census officially published:

Provided that for purposes of the next general elections to be held in 2018 and bye-elections related thereto, the allocation shall be made on the basis of provisional results of the 2017 census which shall be published by the Federal Government.]

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 16 for "Article 51" and shall be deemed always to have been so subs. with effect from the 21st day of August, 2002.

[2]Subs. by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 3, for "three hundred and forty-two".

[3]Subs. *ibid.,* for "clause (3)".

[4]Clause (3A) ins. under s.3 of Act 37 of 2018, effective for the election of members from the former FATA areas in the general election, 2018 stood omitted on the dissolution of the National Assembly on 10-08-2023.

[5]Subs. by the Constitution (Twenty-fourth Amdt.) Act , 2017 (38 of 2017), s. 2, for "clause (5)".

[6]Omitted by the Act No. 37 of 2018, s. 3.

[7]Subs. *ibid.*, for the word "the".

(6) For the purpose of election to the National Assembly,–

(a) the constituencies for the general seats shall be single member territorial constituencies and the members to fill such seats shall be elected by direct and free vote in accordance with law;

(b) each Province shall be a single constituency for all seats reserved for women which are allocated to the respective Provinces under clause (3);

(c) the constituency for all seats reserved for non-Muslims shall be the whole country;

(d) members to the seats reserved for women which are allocated to a Province under clause (3) shall be elected in accordance with law through proportional representation system of political parties' lists of candidates on the basis of total number of general seats secured by each political party from the Province concerned in the National Assembly:

Provided that for the purpose of this paragraph the total number of general seats won by a political party shall include the independent returned candidate or candidates who may duly join such political party within three days of the publication in the official Gazette of the names of the returned candidates; and

(e) members to the seats reserved for non-Muslims shall be elected in accordance with law through proportional representation system of political parties' lists of candidates on the basis of total number of general seats won by each political party in the National Assembly:

Provided that for the purpose of this paragraph the total number of general seats won by a political party shall include the independent returned candidate or candidates who may duly join such political party within three days of the publication in the official Gazette of the names of the returned candidates.]

Duration of National Assembly.

52. The National Assembly shall, unless sooner dissolved, continue for a term of five years from the day of its first meeting and shall stand dissolved at the expiration of its term.

Speaker and Deputy Speaker of National Assembly.

53. (1) After a general election, the National Assembly shall, at its first meeting and to the exclusion of any other business, elect from amongst its members a Speaker and a Deputy Speaker and, so often as the office of Speaker or Deputy Speaker becomes vacant, the Assembly shall elect another member as Speaker or, as the case may be, Deputy Speaker.

(2) Before entering upon office, a member elected as Speaker or Deputy Speaker shall make before the National Assembly oath in the form set out in the Third Schedule.

(3) When the office of Speaker is vacant, or the Speaker is absent or is unable to perform his functions due to any cause, the Deputy Speaker shall act as Speaker, and if, at that time, the Deputy Speaker is also absent or is unable to act as Speaker due to any cause, such member as may be determined by the rules of procedure of the Assembly shall preside at the meeting of the Assembly.

(4) The Speaker or the Deputy Speaker shall not preside at a meeting of the Assembly when a resolution for his removal from office is being considered.

(5) The Speaker may, by writing under his hand addressed to the President, resign his office.

(6) The Deputy Speaker may, by writing under his hand addressed to the Speaker, resign his office.

(7) The office of Speaker or Deputy Speaker shall become vacant if–

(a) he resigns his office;

(b) he ceases to be a member of the Assembly; or

(c) he is removed from office by a resolution of the Assembly, of which not less than seven days' notice has been given and which is passed by the votes of the majority of the total membership of the Assembly.

(8) When the National Assembly is dissolved, the Speaker shall continue in his office till the person elected to fill the office by the next Assembly enters upon his office.

Summoning and prorogation of Majlis-e-Shoora (Parliament).

[1]**54.** (1) The President may, from time to time, summon either House or both Houses or [2][Majlis-e-Shoora (Parliament)] in joint sitting to meet at such time and place as he thinks fit and may also prorogue the same.

(2) There shall be at least [3][three] sessions of the National Assembly every year, and not more than one hundred and twenty days shall intervene between the last sitting of the Assembly in one session and the date appointed for its first sitting in the next session:

Provided that the National Assembly shall meet for not less than one hundred and [4][thirty] working days in each year.

[5][*Explanation.*–In this clause, ''working days'' includes any day on which there is a joint sitting and any period, not exceeding two days, for which the National Assembly is adjourned.]

(3) On a requisition signed by not less than one-fourth of the total membership of the National Assembly, the Speaker shall summon the National Assembly to meet, at such time and place as he thinks fit, within fourteen days of the receipt of the requisition; and when the Speaker has summoned the Assembly only he may prorogue it.

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[1]Article 54, had, until the 31st day of December, 1973, effect as if the proviso to clause (2) thereof were omitted, *see* the Removal of Difficulties (Sittings of National Assembly) Order 1973 (P.O. No. 23 of 1973), Art. 2.

[2]*See* footnote 9 on page 5, *supra*.

[3]Subs. by P.O. No. 14 of 1985, Art. 2 and Sch., for "two".

[4]Subs. by the Constitution (Tenth Amdt.) Act, 1987 (1 of 1987), s. 2, for "sixty" which was previously amended by P.O. No.14 of 1985, Art. 2 and Sch.

[5]Explanation added by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 6, (*w.e.f.* the 21st November, 1975).

Voting in Assembly and quorum.

55. (1) Subject to the Constitution, all decisions of the National Assembly shall be taken by majority of the members present and voting, but the person presiding shall not vote except in the case of equality of votes.

(2) If at any time during a sitting of the National Assembly the attention of the person presiding is drawn to the fact that less than one-fourth of the total membership of the Assembly is present, he shall either adjourn the Assembly or suspend the meeting until at least one-fourth of such membership is present.

Address by President.

56. [1][(1)] The President may address either House or both Houses assembled together and may for that purpose require the attendance of the members.

[1][(2) The President may send messages to either House, whether with respect to a Bill then pending in the Majlis-e-Shoora (Parliament) or otherwise, and a House to which any message is so sent shall with all convenient despatch consider any matter required by the message to be taken into consideration.

[2][(3) At the commencement of the first session after each general election to the National Assembly and at the commencement of the first session of each year the President shall address both Houses assembled together and inform the Majlis-e-Shoora (Parliament) of the causes of its summons.]

(4) Provision shall be made in the rules for regulating the procedure of a House and the conduct of its business for the allotment of time for discussion of the matters referred to in the address of the President.]

Right to speak in [3][Majlis-e-Shoora (Parliament)].

57. The Prime Minister, a Federal Minister, a Minister of State and the Attorney-General shall have the right to speak and otherwise take part in the proceedings of either House, or a joint sitting or any committee thereof, of which he may be named a member, but shall not by virtue of this Article be entitled to vote.

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[1]Re-numbered and added by P. O. No. 14 of 1985, Art. 2 and Sch.
[2]Subs. by the Constitution (Eighth Amdt.) Act 1985, (18 of 1985), s. 4, for "clause (3)".
[3]*See* footnote 9 on page 5, *supra*.

Dissolution of the National Assembly.

[1][**58.** (1) The President shall dissolve the National Assembly if so advised by the Prime Minister; and the National Assembly shall, unless sooner dissolved, stand dissolved at the expiration of forty-eight hours after the Prime Minister has so advised.

Explanation.- Reference in this Article to "Prime Minister" shall not be construed to include reference to a Prime Minister against whom a notice of a resolution for a vote of no-confidence has been given in the National Assembly but has not been voted upon or against whom such a resolution has been passed or who is continuing in office after his resignation or after the dissolution of the National Assembly.

(2) Notwithstanding anything contained in clause (2) of Article 48, the President may also dissolve the National Assembly in his discretion where, a vote of no-confidence having been passed against the Prime Minister, no other member of the National Assembly commands the confidence of the majority of the members of the National Assembly in accordance with the provisions of the Constitution, as ascertained in a session of the National Assembly summoned for the purpose.]

The Senate.

[2][**59.** (1) The Senate shall consist of [3][ninety-six] members, of whom,-

(a) fourteen shall be elected by the members of each Provincial Assembly;

[4]* * * * * * *

(c) two on general seats, and one woman and one technocrat including *aalim* shall be elected from the Federal Capital in such manner as the President may, by Order, prescribe;

(d) four women shall be elected by the members of each Provincial Assembly;

(e) four technocrats including *ulema* shall be elected by the members of each Provincial Assembly; and

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 17, for "Article 58".

[2]Subs. *ibid*., s. 18, for "Article 59".

[3]Subs. by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 4, for "one hundred and four".

[4]Paragraph (b) omitted *ibid.*

(f) four non-Muslims, one from each Province, shall be elected by the members of each Provincial Assembly:

Provided that paragraph (f) shall be effective from the next Senate election after the commencement of the Constitution (Eighteenth Amendment)Act, 2010.

(2) Election to fill seats in the Senate allocated to each Province shall be held in accordance with the system of proportional representation by means of the single transferable vote.

(3) The Senate shall not be subject to dissolution but the term of its members, who shall retire as follows, shall be six years:–

(a) of the members referred to in paragraph (a) of clause (1), seven shall retire after the expiration of the first three years and seven shall retire after the expiration of the next three years;

[1]* * * * * * *

(c) of the members referred to in paragraph (c) of the aforesaid clause,–

(i) one elected on general seat shall retire after the expiration of the first three years and the other one shall retire after the expiration of the next three years; and

(ii) one elected on the seat reserved for technocrat shall retire after first three years and the one elected on the seat reserved for woman shall retire after the expiration of the next three years;

(d) of the members referred to in paragraph (d) of the aforesaid clause, two shall retire after the expiration of the first three years and two shall retire after the expiration of the next three years;

(e) of the members referred to in paragraph (e) of the aforesaid clause, two shall retire after the expiration of the first three years and two shall retire after the expiration of the next three years; and

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[1]Paragraph (b) omitted by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 4.

(f) of the members referred to in paragraph (f) of the aforesaid clause, two shall retire after the expiration of first three years and two shall retire after the expiration of next three years:

Provided that the Election Commission for the first term of seats for non-Muslims shall draw a lot as to which two members shall retire after the first three years.

[1][*Explanation*.–The term of a member, notwithstanding the date of his election, shall expire on the eleventh day of March of the year of the completion of term for which he is elected.]

[2][(3A) Notwithstanding the omission of paragraph (b) of clause (1) and the omission of paragraph (b) of clause (3), the existing members of the Senate from the Federally Administered Tribal Areas shall continue till expiry of their respective terms of office and on the expiry of the aforesaid terms this clause shall stand omitted.]

(4) The term of office of a person elected to fill a casual vacancy shall be the unexpired term of the member whose vacancy he has filled.]

Chairman and Deputy Chairman.

60. (1) After the Senate has been duly constituted, it shall, at its first meeting and to the exclusion of any other business, elect from amongst its members a Chairman and a Deputy Chairman and, so often as the Office of Chairman or Deputy Chairman becomes vacant, the Senate shall elect another member as Chairman or, as the case may be, Deputy Chairman.

(2) The term of office of the Chairman or Deputy Chairman shall be [3][three] years from the day on which he enters upon his office.

Other provisions relating to Senate.

61. The provisions of clauses (2) to (7) of Article 53, clauses (2) and (3) of Article 54 and Article 55 shall apply to the Senate as they apply to the National Assembly and, in their application to the Senate, shall have effect as if references therin to the National Assembly, Speaker and Deputy Speaker, were references, respectively, to the Senate, Chairman and Deputy Chairman [4][and as if, in the proviso to the said clause (2) of Article 54, for the words [5][one hundred and thirty] the words [6][one hundred and ten] were substituted].

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[1]Explanation added by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.5.

[2]Ins. by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 4.

[3]Subs. by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985), s. 7, for "two".

[4]Added by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 5 (*w.e.f.* the 14th May, 1974).

[5]Subs. by the Constitution (Tenth Amdt.) Act, 1987 (1 of 1987), s. 3, which was previously amended by P.O. No. 24 of 1985, Art. 2.

[6]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 19 for "ninety".

Provisions as to Members of [1][Majlis-e-Shoora (Parliament)]

Qualifications for membership of Majlis-e-Shoora (Parliament).

[2][**62**. (1) A person shall not be qualified to be elected or chosen as a member of Majlis-e-Shoora (Parliament) unless–

(a) he is a citizen of Pakistan;

(b) he is, in the case of the National Assembly, not less than twenty-five years of age and is enrolled as a voter in any electoral roll in–

(i) any part of Pakistan, for election to a general seat or a seat reserved for non-Muslims; and

(ii) any area in a Province from which she seeks membership for election to a seat reserved for women.

(c) he is, in the case of the Senate, not less than thirty years of age and is enrolled as a voter in any area in a Province or, as the case may be, the Federal Capital [3]* * *, from where he seeks membership;

(d) he is of good character and is not commonly known as one who violates Islamic Injunctions;

(e) he has adequate knowledge of Islamic teachings and practices obligatory duties prescribed by Islam as well as abstains from major sins;

(f) he is sagacious, righteous, non-profligate, honest and ameen, there being no declaration to the contrary by a court of law; and

(g) he has not, after the establishment of Pakistan, worked against the integrity of the country or opposed the ideology of Pakistan.

(2) The disqualifications specified in paragraphs (d) and (e) shall not apply to a person who is a non-Muslim, but such a person shall have good moral reputation.]

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[1]*See* footnote 9 on page 5, *supra*.

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 20, for "Article 62".

[3]The words "or the Federally Administered Tribal Areas" omitted by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 5.

[1][**63.** (1) A person shall be disqualified from being elected or chosen as, and from being, a member of the Majlis-e-Shoora (Parliament), if –

Disqualifications for membership of Majlis-e-Shoora (Parliament).

(a) he is of unsound mind and has been so declared by a competent court; or

(b) he is an undischarged insolvent; or

(c) he ceases to be a citizen of Pakistan, or acquires the citizenship of a foreign State; or

(d) he holds an office of profit in the service of Pakistan other than an office declared by law not to disqualify its holder; or

(e) he is in the service of any statutory body or any body which is owned or controlled by the Government or in which the Government has a controlling share or interest; or

(f) being a citizen of Pakistan by virtue of section 14B of the Pakistan Citizenship Act, 1951 (II of 1951), he is for the time being disqualified under any law in force in Azad Jammu and Kashmir from being elected as a member of the Legislative Assembly of Azad Jammu and Kashmir; or

(g) he has been convicted by a court of competent jurisdiction for propagating any opinion, or acting in any manner, prejudicial to the ideology of Pakistan, or the sovereignty, integrity or security of Pakistan, or the integrity, or independence of the judiciary of Pakistan, or which defames or brings into ridicule the judiciary or the Armed Forces of Pakistan, unless a period of five years has elapsed since his release; or

(h) he has been, on conviction for any offence involving moral turpitude, sentenced to imprisonment for a term of not less than two years, unless a period of five years has elapsed since his release; or

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 21, for "Article 63".

(i) he has been dismissed from the service of Pakistan or service of a corporation or office set up or, controlled by the Federal Government, Provincial Government or a Local Government on the grounds of misconduct, unless a period of five years has elapsed since his dismissal; or

(j) he has been removed or compulsorily retired from the service of Pakistan or service of a corporation or office set up or controlled by the Federal Government, Provincial Government or a Local Government on the grounds of misconduct, unless a period of three years has elapsed since his removal or compulsory retirement; or

(k) he has been in the service of Pakistan or of any statutory body or any body which is owned or controlled by the Government or in which the Government has a controlling share or interest, unless a period of two years has elapsed since he ceased to be in such service; or

(l) he, whether by himself or by any person or body of persons in trust for him or for his benefit or on his account or as a member of a Hindu undivided family, has any share or interest in a contract, not being a contract between a cooperative society and Government, for the supply of goods to, or for the execution of any contract or for the performance of any service undertaken by, Government:

Provided that the disqualification under this paragraph shall not apply to a person–

(i) where the share or interest in the contract devolves on him by inheritance or succession or as a legatee, executor or administrator, until the expiration of six months after it has so devolved on him;

(ii) where the contract has been entered into by or on behalf of a public company as defined in the Companies Ordinance, 1984 (XLVII of 1984), of which he is a shareholder but is not a director holding an office of profit under the company; or

(iii) where he is a member of a Hindu undivided family and the contract has been entered into by any other member of that family in the course of carrying on a separate business in which he has no share or interest; or

Explanation.–In this Article ''goods'' does not include agricultural produce or commodity grown or produced by him or such goods as he is, under any directive of Government or any law for the time being in force, under a duty or obligation to supply; or

(m) he holds any office of profit in the service of Pakistan other than the following offices, namely:—

(i) an office which is not whole time office remunerated either by salary or by fee;

(ii) the office of Lumbardar, whether called by this or any other title;

(iii) the Qaumi Razakars;

(iv) any office the holder whereof, by virtue of such office, is liable to be called up for military training or military service under any law providing for the constitution or raising of a Force; or

(n) he has obtained a loan for an amount of two million rupees or more, from any bank, financial institution, cooperative society or cooperative body in his own name or in the name of his spouse or any of his dependents, which remains unpaid for more than one year from the due date, or has got such loan written off; or

(o) he or his spouse or any of his dependents has defaulted in payment of government dues and utility expenses, including telephone, electricity, gas and water charges in excess of ten thousand rupees, for over six months, at the time of filing his nomination papers; or

(p) he is for the time being disqualified from being elected or chosen as a member of the Majlis-e-Shoora (Parliament) or of a Provincial Assembly under any law for the time being in force.

Explanation.—For the purposes of this paragraph "law" shall not include an Ordinance promulgated under Article 89 or Article 128.

(2) If any question arises whether a member of the Majlis-e-Shoora (Parliament) has become disqualified from being a member, the Speaker or, as the case may be, the Chairman shall, unless he decides that no such question has arisen, refer the question to the Election Commission within thirty days and if he fails to do so within the aforesaid period it shall be deemed to have been referred to the Election Commission.

(3) The Election Commission shall decide the question within ninety days from its receipt or deemed to have been received and if it is of the opinion that the member has become disqualified, he shall cease to be a member and his seat shall become vacant.]

Disqualification on grounds of defection, etc.

[1][**63A.** (1) If a member of a Parliamentary Party composed of a single political party in a House–

(a) resigns from membership of his political party or joins another Parliamentary Party; or

(b) votes or abstains from voting in the House contrary to any direction issued by the Parliamentary Party to which he belongs, in relation to–

(i) election of the Prime Minister or the Chief Minister; or

(ii) a vote of confidence or a vote of no-confidence; or

(iii) a Money Bill or a Constitution (Amendment) Bill;

he may be declared in writing by the Party Head to have defected from the political party, and the Party Head may forward a copy of the declaration to the Presiding Officer and the Chief Election Commissioner and shall similarly forward a copy thereof to the member concerned:

[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 22, for "Article 63A".

Provided that before making the declaration, the Party Head shall provide such member with an opportunity to show cause as to why such declaration may not be made against him.

Explanation.—"Party Head" means any person, by whatever name called, declared as such by the Party.

(2) A member of a House shall be deemed to be a member of a Parliamentary Party if he, having been elected as a candidate or nominee of a political party which constitutes the Parliamentary Party in the House or, having been elected otherwise than as a candidate or nominee of a political party, has become a member of such Parliamentary Party after such election by means of a declaration in writing.

(3) Upon receipt of the declaration under clause (1), the Presiding Officer of the House shall within two days refer, and in case he fails to do so it shall be deemed that he has referred, the declaration to the Chief Election Commissioner who shall lay the declaration before the Election Commission for its decision thereon confirming the declaration or otherwise within thirty days of its receipt by the Chief Election Commissioner.

(4) Where the Election Commission confirms the declaration, the member referred to in clause (1) shall cease to be a member of the House and his seat shall become vacant.

(5) Any party aggrieved by the decision of the Election Commission may, within thirty days, prefer an appeal to the [1][Federal Constitutional] Court which shall decide the matter within ninety days from the date of the filing of the appeal.

(6) Nothing contained in this Article shall apply to the Chairman or Speaker of a House.

(7) For the purpose of this Article,–

(a) ''House'' means the National Assembly or the Senate, in relation to the Federation; and a Provincial Assembly in relation to the Province, as the case may be;

(b) ''Presiding Officer'' means the Speaker of the National Assembly, the Chairman of the Senate or the Speaker of the Provincial Assembly, as the case may be.

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 6, for "Supreme".

(8) Article 63A substituted as aforesaid shall come into effect from the next general elections to be held after the commencement of the Constitution (Eighteenth Amendment) Act, 2010:

Provided that till Article 63A substituted as aforesaid comes into effect the provisions of existing Article 63A shall remain operative.]

Vacation of seats.

64. (1) A member of [1][Majlis-e-Shoora (Parliament)] may, by writing under his hand addressed to the Speaker or, as the case may be, the Chairman resign his seat, and thereupon his seat shall become vacant.

(2) A House may declare the seat of a member vacant if, without leave of the House, he remains absent for forty consecutive days of its sittings.

Oath of Members.

65. A person elected to a House shall not sit or vote until he has made before the House oath in the form set out in the Third Schedule.

Privileges of members, etc.

66. (1) Subject to the Constitution and to the rules of procedure of [1][Majlis-e-Shoora (Parliament)], there shall be freedom of speech in [1][Majlis-e-Shoora (Parliament)] and no member shall be liable to any proceedings in any court in respect of anything said or any vote given by him in [1][Majlis-e-Shoora (Parliament)], and no person shall be so liable in respect of the publication by or under the authority of [1][Majlis-e-Shoora (Parliament)] of any report, paper, votes or proceedings.

(2) In other respects, the powers, immunities and privileges of [1][Majlis-e-Shoora (Parliament)], and the immunities and privileges of the members of [1][Majlis-e-Shoora (Parliament)], shall be such as may from time to time be defined by law and, until so defined, shall be such as were, immediately before the commencing day, enjoyed by the National Assembly of Pakistan and the committees thereof and its members.

(3) Provision may be made by law for the punishment, by a House, of persons who refuse to give evidence or produce documents before a committee of the House when duly required by the chairman of the committee so to do :

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[1]*See* footnote 9 on page 5, *supra.*

Provided that any such law–

(a) may empower a court to punish a person who refuses to give evidence or produce documents; and

(b) shall have effect subject to such Order for safeguarding confidential matters from disclosure as may be made by the President.

(4) The provisions of this Article shall apply to persons who have the right to speak in, and otherwise to take part in the proceedings of, [1][Majlis-e-Shoora (Parliament)] as they apply to members.

(5) In this Article, [1][Majlis-e-Shoora (Parliament)] means either House or a joint sitting, or a committee thereof.

Procedure Generally

Rules of procedure, etc.

67. (1) Subject to the Constitution, a House may make [2]rules for regulating its procedure and the conduct of its business, and shall have power to act notwithstanding any vacancy in the membership thereof, and any proceedings in the House shall not be invalid on the ground that some persons who were not entitled to do so sat, voted or otherwise took part in the proceedings.

(2) Until rules are made under clause (1), the procedure and conduct of business in a House shall be regulated by the rules of procedure made by the President.

Restriction on discussion in Majlis-e-Shoora (Parliament).

68. No discussion shall take place in [1][Majlis-e-Shoora (Parliament)] with respect to the conduct of any Judge of [3][the Federal Constitutional Court,] the Supreme Court or of a High Court in the discharge of his duties.

Courts not to inquire into proceedings of Majlis-e-shoora (Parliament).

69. (1) The validity of any proceedings in [1][Majlis-e-Shoora (Parliament)] shall not be called in question on the ground of any irregularity of procedure.

(2) No officer or member of [1][Majlis-e-Shoora (Parliament)] in whom powers are vested by or under the Constitution for regulating procedure or the conduct of business, or for maintaining order in [1][Majlis-e-Shoora (Parliament)], shall be subject to the jurisdiction of any court in respect of the exercise by him of those powers.

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[1]*See* footnote 9 on page 5, *supra.*

[2]For the rules of Procedure and Conduct of Business in the Senate, *see* Gaz. of Pak. 1973, Ext., Pt. II, pp. 1543-1620.

For the Rules of Procedure and Conduct of Business in the National Assembly, 1973, *see* Gaz. of Pak. 1973, Ext., Pt. II, pp. 1897-1957.

[3]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 7.

(3) In this Article, [1][Majlis-e-Shoora (Parliament)] has the same meaning as in Article 66.

Legislative Procedure

Introduction and passing of Bills.

[2][**70.** (1) A Bill with respect to any matter in the Federal Legislative List may originate in either House and shall, if it is passed by the House in which it originated, be transmitted to the other House; and, if the Bill is passed without amendment by the other House also, it shall be presented to the President for assent.

(2) If a Bill transmitted to a House under clause (1) is passed with amendments it shall be sent back to the House in which it originated and if that House passes the Bill with those amendments it shall be presented to the President for assent.

(3) If a Bill transmitted to a House under clause (1) is rejected or is not passed within ninety days of its laying in the House or a Bill sent to a House under clause (2) with amendments is not passed by that House with such amendments, the Bill, at the request of the House in which it originated, shall be considered in a joint sitting and if passed by the votes of the majority of the members present and voting in the joint sitting it shall be presented to the President for assent.

(4) In this Article and the succeeding provisions of the Constitution, ''Federal Legislative List'' means the Federal Legislative List in the Fourth Schedule.]

71. [Mediation Committee] *Omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 24 as amended by various enactments.*

Procedure at joint sittings.

72. (1) The President, after consultation with the Speaker of the National Assembly and the Chairman, may make [3]rules as to the procedure with respect to the joint sittings of, and communications between, the two Houses.

(2) At a joint sitting, the Speaker of the National Assembly or, in his absence, such person as may be determined by the rules made under clause (1), shall preside.

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 23, for "Article 70".

[3]For the Parliament (Joint Sitting), Rules 1973, *See* Gaz. of Pak. 1973, Ext., Pt. II, pp. 1657—1672.

(3) The rules made under clause (1) shall be laid before a joint sitting and may be added to, varied, amended or replaced at a joint sitting.

(4) Subject to the Constitution, all decisions at a joint sitting shall be taken by the votes of the majority of the members present and voting.

Procedure with respect to Money Bills.

73. [1][(1) Notwithstanding anything contained in Article 70, a Money Bill shall originate in the National Assembly:

Provided that simultaneously when a Money Bill, including the Finance Bill containing the Annual Budget Statement, is presented in the National Assembly, a copy thereof shall be transmitted to the Senate which may, within fourteen days, make recommendations thereon to the National Assembly.]

[2][(1A) The National Assembly shall consider the recommendations of the Senate and after the Bill has been passed by the Assembly with or without incorporating the recommendations of the Senate, it shall be presented to the President for assent.]

[3]* * * * * * *

(2) For the purposes of this Chapter, a Bill or amendment shall be deemed to be a Money Bill if it contains provisions dealing with all or any of the following matters, namely:–

(a) the imposition, abolition, remission, alteration or regulation of any tax;

(b) the borrowing of money, or the giving of any guarantee, by the Federal Government, or the amendment of the law relating to the financial obligations of that Government;

(c) the custody of the Federal Consolidated Fund, the payment of moneys into, or the issue of moneys from, that Fund;

(d) the imposition of a charge upon the Federal Consolidated Fund, or the abolition or alteration of any such charge;

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 25, for "clause (1)".

[2]New clause (1A) ins. *ibid*.

[3]Existing clause (1A) stands omitted as consequence of the (Eighteenth Amdt.) Act, 2010 (10 of 2010), *see* section 2.

(e) the receipt of moneys on account of the Public Account of the Federation, the custody or issue of such moneys;

(f) the audit of the accounts of the Federal Government or a Provincial Government; and

(g) any matter incidental to any of the matters specified in the preceding paragraphs.

(3) A Bill shall not be deemed to be a Money Bill by reason only that it provides–

(a) for the imposition or alteration of any fine or other pecuniary penalty, or for the demand or payment of a licence fee or a fee or charge for any service rendered; or

(b) for the imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.

(4) If any question arises whether a Bill is a Money Bill or not, the decision of the Speaker of the National Assembly thereon shall be final.

(5) Every Money Bill presented to the President for assent shall bear a certificate under the hand of the Speaker of the National Assembly that it is a Money Bill, and such certificate shall be conclusive for all purposes and shall not be called in question.

Federal Government's consent required for financial measures.

74. A Money Bill, or a Bill or amendment which if enacted and brought into operation would involve expenditure from the Federal Consolidated Fund or withdrawal from the Public Account of the Federation or affect the coinage or currency of Pakistan or the constitution or functions of the State Bank of Pakistan shall not be introduced or moved in [1][Majlis-e-Shoora (Parliament)] except by or with the consent of the Federal Government.

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[1]*See* footnote 9 on page 5, *supra.*

President's assent to Bills.

[1][**75.** (1) When a Bill is presented to the President for assent, the President shall, within [2][ten] days,–

(a) assent to the Bill; or

(b) in the case of a Bill other than a Money Bill, return the Bill to the Majlis-e-Shoora (Parliament) with a message requesting that the Bill or any specified provision thereof, be reconsidered and that any amendment specified in the message be considered.

[3][(2) When the President has returned a Bill to the Majlis-e-Shoora (Parliament), it shall be reconsidered by the Majlis-e-Shoora (Parliament) in joint sitting and, if it is again passed, with or without amendment, by the Majlis-e-Shoora (Parliament), by the votes of the majority of the members of both Houses present and voting, it shall be deemed for the purposes of the Constitution to have been passed by both Houses and shall be presented to the President, and the President shall give his assent within ten days, failing which such assent shall be deemed to have been given.]

(3) When the President has assented [4][or is deemed to have assented] to a Bill, it shall become law and be called an Act of Majlis-e-Shoora (Parliament).

(4) No Act of Majlis-e-Shoora (Parliament), and no provision in any such Act, shall be invalid by reason only that some recommendation, previous sanction or consent required by the Constitution was not given if that Act was assented to in accordance with the Constitution.]

Bill not to lapse on prorogation, etc.

76. (1) A Bill pending in either House shall not lapse by reason of the prorogation of the House.

(2) A Bill pending in the Senate which has not been passed by the National Assembly shall not lapse on the dissolution of the National Assembly.

(3) A Bill pending in the National Assembly, or a Bill which having been passed by the National Assembly is pending in the Senate, shall lapse on the dissolution of the National Assembly.

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[1]Subs. by P.O. No. 14 of 1985, Art. 2 and Sch., for "Article 75".

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 26, for "thirty".

[3]Subs *ibid.,* for "clause (2)".

[4]Ins. *ibid.*

Tax to be levied by law only.

77. No tax shall be levied for the purposes of the Federation except by or under the authority of Act of [1][Majlis-e-Shoora (Parliament)].

Financial Procedure

Federal Consolidated Fund and Public Account.

78. (1) All revenues received by the Federal Government, all loans raised by that Government, and all moneys received by it in repayment of any loan, shall form part of a consolidated fund, to be known as the Federal Consolidated Fund.

(2) All other moneys–

(a) received by or on behalf of the Federal Government; or

(b) received by or deposited with [2][the Federal Constitutional Court,] Supreme Court or any other court established under the authority of the Federation;

shall be credited to the Public Account of the Federation.

Custody, etc., of Federal Consolidated Fund and Public Account.

79. The custody of the Federal Consolidated Fund, the payment of moneys into that Fund, the withdrawal of moneys therefrom, the custody of other moneys received by or on behalf of the Federal Government, their payment into, and withdrawal from, the Public Account of the Federation, and all matters connected with or ancillary to the matters aforesaid shall be regulated by Act of [1][Majlis-e-Shoora (Parliament)] or, until provision in that behalf is so made, by rules made by the President.

Annual Budget Statement.

80. (1) The Federal Government shall, in respect of every financial year, cause to be laid before the National Assembly a statement of the estimated receipt and expenditure of the Federal Government for that year, in this Part, referred to as the Annual Budget Statement.

(2) The Annual Budget Statement shall show separately–

(a) the sums required to meet expenditure described by the Constitution as expenditure charged upon the Federal Consolidated Fund; and

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[1]*See* footnote 9 on page 5, *supra*.

[2]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.8.

(b) the sums required to meet other expenditure proposed to be made from the Federal Consolidated Fund;

and shall distinguish expenditure on revenue account from other expenditure.

Expenditure charged upon Federal Consolidated Fund.

81. The following expenditure shall be expenditure charged upon the Federal Consolidated Fund:–

(a) the remuneration payable to the President and other expenditure relating to his office, and the remuneration payable to–

(i) the Judges of [1][the Federal Constiutional Court,] the Supreme Court [2][and the Islamabad High Court];

(ii) the Chief Election Commissioner;

(iii) the Chairman and the Deputy Chairman;

(iv) the Speaker and the Deputy Speaker of the National Assembly;

(v) the Auditor-General;

[3][(b) the administrative expenses, including the remuneration payable to officers and [4][staff], of [1][the Federal Constiutional Court,] the [5][Supreme Court, the Judicial Commission of Pakistan, the Supreme Judicial Council], the department of the Auditor-General, the Office of the Chief Election Commissioner and of the Election Commission and the Secretariats of the Senate and the National Assembly;]

(c) all debt charges for which the Federal Government is liable, including interest, sinking fund charges, the repayment or amortisation of capital, and other expenditure in connection with the raising of loans, and the service and redemption of debt on the security of the Federal Consolidated Fund;

(d) any sums required to satisfy any judgment, decree or award against Pakistan by any court or tribunal;[5]*

[5][(da) any sums required to organize and conduct elections to the National Assembly, Senate, Provincial Assemblies and the local governments; and]

(e) any other sums declared by the Constitution or by Act of [6][Majlis-e-Shoora (Parliament)] to be so charged.

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[1] Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 9.

[2] Added by the Constitution (Nineteenth Amdt.) Act, 2010 (1 of 2011), s. 2.

[3] Subs. *ibid.,* for "paragraph (b)".

[4] Subs. by the Constitution (Twenty-Second Amdt.) Act, 2016 (25 of 2016), s. 2, for "servants".

[5] Subs.,omitted and ins. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.5.

[6] *See* footnote 9 on page 5, *supra*.

Procedure relating to Annual Budget Statement.

82. (1) So much of the Annual Budget Statement as relates to expenditure charged upon the Federal Consolidated Fund may be discussed in, but shall not be submitted to the vote of, the National Assembly.

(2) So much of the Annual Budget Statement as relates to other expenditure shall be submitted to the National Assembly in the form of demands for grants, and the Assembly shall have power to assent to, or to refuse to assent to, any demand, or to assent to any demand subject to a reduction of the amount specified therein:

Provided that, for a period of ten years from the commencing day or the holding of the second general election to the National Assembly, whichever occurs later, a demand shall be deemed to have been assented to without any reduction of the amount specified therein, unless, by the votes of a majority of the total membership of the Assembly, it is refused or assented to subject to a reduction of the amount specified therein.

(3) No demand for a grant shall be made except on the recommendation of the Federal Government.

Authentication of schedule of authorized expenditure.

83. (1) The Prime Minister shall authenticate by his signature a schedule specifying–

(a) the grants made or deemed to have been made by the National Assembly under Article 82; and

(b) the several sums required to meet the expenditure charged upon the Federal Consolidated Fund but not exceeding, in the case of any sum, the sum shown in the statement previously laid before the National Assembly.

(2) The schedule so authenticated shall be laid before the National Assembly, but shall not be open to discussion or vote thereon.

(3) Subject to the Constitution, no expenditure from the Federal Consolidated Fund shall be deemed to be duly authorized unless it is specified in the schedule so authenticated and such schedule is laid before the National Assembly as required by clause (2).

Supplementary and excess grants.

84. If in respect of any financial year it is found–

(a) that the amount authorized to be expended for a particular service for the current financial year is insufficient, or that a need has arisen for expenditure upon some new service not included in the Annual Budget Statement for that year; or

(b) that any money has been spent on any service during a financial year in excess of the amount granted for that service for that year;

the Federal Government shall have power to authorize expenditure from the Federal Consolidated Fund, whether the expenditure is charged by the Constitution upon that Fund or not, and shall cause to be laid before the National Assembly Supplementary Budget Statement or, as the case may be, an Excess Budget Statement, setting out the amount of that expenditure, and the provisions of Articles 80 to 83 shall apply to those statements as they apply to the Annual Budget Statement.

Votes on account.

85. Notwithstanding anything contained in the foregoing provisions relating to financial matters, the National Assembly shall have power to make any grant in advance in respect of the estimated expenditure for a part of any financial year, not exceeding four months, pending completion of the procedure prescribed in Article 82 for the voting of such grant and the authentication of the schedule of authorized expenditure in accordance with the provisions of Article 83 in relation to the expenditure.

Power to authorize expenditure when Assembly stands dissolved.

86. Notwithstanding anything contained in the foregoing provisions relating to financial matters, at any time when the National Assembly stands dissolved, the Federal Government may authorize expenditure from the Federal Consolidated Fund in respect of the estimated expenditure for a period not exceeding four months in any financial year, pending completion of the procedure prescribed in Article 82 for the voting of grants and the authentication of the schedule of authorized expenditure in accordance with the provisions of Article 83 in relation to the expenditure.

Secretariats of Majlis-e-Shoora (Parliament).

87. (1) Each House shall have a separate Secretariat :

Provided that nothing in this clause shall be construed as preventing the creation of posts common to both Houses.

(2) [1][Majlis-e-Shoora (Parliament)] may by law regulate the recruitment and the conditions of service of persons appointed to the secretarial staff of either House.

(3) Until provision is made by [1][Majlis-e-Shoora (Parliament)] under clause (2), the Speaker or, as the case may be, the Chairman may, with the approval of the President, make rules[2] regulating the recruitment, and the conditions of service, of persons appointed to the secretarial staff of the National Assembly or the Senate.

Finance Committee.

88. (1) The expenditure of the National Assembly and the Senate within authorized appropriations shall be controlled by the National Assembly or, as the case may be, the Senate acting on the advice of its Finance Committee.

(2) The Finance Committee shall consist of the Speaker or, as the case may be, the Chairman, the Minister of Finance and such other members as may be elected thereto by the National Assembly or, as the case may be, the Senate.

(3) The Finance Committee may make rules[3] for regulating its procedure.

Ordinances

Power of President to promulgate Ordinances.

89. (1) The President may, except when the [4][Senate or] National Assembly is in session, if satisfied that circumstances exist which render it necessary to take immediate action, make and promulgate an Ordinance as the circumstances may require.

(2) An Ordinance promulgated under this Article shall have the same force and effect as an Act of [1][Majlis-e-Shoora (Parliament)] and shall be subject to like restrictions as the power

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[1]*See* footnote 9 on page 5, *supra.*

[2]For the National Assembly Secretariat (Recruitment) Rules, 1973, *see* Gaz. of Pak. 1973, Ext., Part-II, pp. 2279–2286.

For the Senate Secretariat (Recruitment) Rules, 1973, *see ibid*., pp. 2301–2307.

[3]For the National Assembly (Finance Committee) Rules, 1973, *see* Gaz. of Pak. 1973, Ext., Part-II, pp. 2451–2454.

For the Senate (Finance Committee) Rules, 1973, *see ibid.,* pp. 2479–2482.

[4]Ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 27.

of [1][Majlis-e-Shoora (Parliament)] to make law, but every such Ordinance –

(a) shall be laid–

(i) before the National Assembly if it [2][contains provisions dealing with all or any of the matters specified in clause (2) of Article 73], and shall stand repealed at the expiration of [3][one hundred and twenty days] from its promulgation or, if before the expiration of that period a resolution disapproving it is passed by the Assembly, upon the passing of that resolution [4][:]

[5][Provided that the National Assembly may by a resolution extend the Ordinance for a further period of one hundred and twenty days and it shall stand repealed at the expiration of the extended period, or if before the expiration of that period a resolution disapproving it is passed by the Assembly, upon the passing of that resolution:

Provided further that extension for further period may be made only once;]

(ii) before both Houses if it [6][does not contain provisions dealing with any of the matters referred to in sub-paragraph (i)], and shall stand repealed at the expiration of [3][one hundred and twenty days] from its promulgation or, if before the expiration of that period a resolution disapproving it is passed by either House, upon the passing of that resolution [7][:]

[8][Provided that either House may by a resolution extend it for a further period of one hundred and twenty days and it shall

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by the Constitution (Second Amdt.) Order, 1985 (P.O. No. 20 of 1985), Art. 2, for certain words.

[3]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 27, for "four months".

[4]Subs. *ibid.,* for the semi-colon.

[5]New provisos ins. *ibid.*

[6]Subs. by P.O. No. 20 of 1985 Art. 2, for certain words.

[7]Subs. by the Act No. 10 of 2010, s. 27, for ";and".

[8]New provisos ins. *ibid.*

stand repealed at the expiration of the extended period, or if before the expiration of that period a resolution disapproving it is passed by a House, upon the passing of that resolution:

Provided further that extension for a further period may be made only once; and]

(b) may be withdrawn at any time by the President.

[1][(3) Without prejudice to the provisions of clause (2),—

(a) an Ordinance laid before the National Assembly under sub-paragraph (i) of paragraph (a) of clause (2) shall be deemed to be a Bill introduced in the National Assembly; and

(b) an Ordinance laid before both Houses under sub-paragraph (ii) of paragraph (a) of clause (2) shall be deemed to be a Bill introduced in the House where it was first laid.]

CHAPTER 3.–THE FEDERAL GOVERNMENT

The Federal Government.

[2][[3][**90.** (1) Subject to the Constitution, the executive authority of the Federation shall be exercised in the name of the President by the Federal Government, consisting of the Prime Minister and the Federal Ministers, which shall act through the Prime Minister, who shall be the chief executive of the Federation.

(2) In the performance of his functions under the Constitution, the Prime Minister may act either directly or through the Federal Ministers.]

The Cabinet.

[4][**91.** (1) There shall be a Cabinet of Ministers, with the Prime Minister at its head, to aid and advise the President in the exercise of his functions.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 27, for "clause (3)".

[2]Subs. by P.O. No. 14 of 1985 Art. 2 and Sch., for Articles "90, 91, 92, 93, 94, 95 and 96".

[3]Subs. by the Act 10 of 2010, s. 28, for "Article 90".

[4]Subs. *ibid.,* s. 29, for "Article 91".

(2) The National Assembly shall meet on the twenty-first day following the day on which a general election to the Assembly is held, unless sooner summoned by the President.

(3) After the election of the Speaker and the Deputy Speaker, the National Assembly shall, to the exclusion of any other business, proceed to elect without debate one of its Muslim members to be the Prime Minister.

(4) The Prime Minister shall be elected by the votes of the majority of the total membership of the National Assembly:

Provided that, if no member secures such majority in the first poll, a second poll shall be held between the members who secure the two highest numbers of votes in the first poll and the member who secures a majority of votes of the members present and voting shall be declared to have been elected as Prime Minister:

Provided further that, if the number of votes secured by two or more members securing the highest number of votes is equal, further poll shall be held between them until one of them secures a majority of votes of the members present and voting.

(5) The member elected under clause (4) shall be called upon by the President to assume the office of Prime Minister and he shall, before entering upon the office, make before the President oath in the form set out in the Third Schedule:

Provided that there shall be no restriction on the number of terms for the office of the Prime Minister.

(6) The Cabinet, together with the Ministers of State, shall be collectively responsible to the Senate and the National Assembly.

(7) The Prime Minister shall hold office during the pleasure of the President, but the President shall not exercise his powers under this clause unless he is satisfied that the Prime Minister does not command the confidence of the majority of the members of the National Assembly, in which case he shall summon the National Assembly and require the Prime Minister to obtain a vote of confidence from the Assembly.

(8) The Prime Minister may, by writing under his hand addressed to the President, resign his office.

(9) A Minister who for any period of six consecutive months is not a member of the National Assembly shall, at the expiration of that period, cease to be a Minister and shall not before the dissolution of that Assembly be again appointed a Minister unless he is elected a member of that Assembly:

Provided that nothing contained in this clause shall apply to a Minister who is member of the Senate.

(10) Nothing contained in this Article shall be construed as disqualifying the Prime Minister or any other Minister or a Minister of State for continuing in office during any period during which the National Assembly stands dissolved, or as preventing the appointment of any person as Prime Minister or other Minister or a Minister of State during any such period.]

Federal Ministers and Ministers of State.

92. (1) Subject to clauses [1][(9) and (10)] of Article 91, the President shall appoint Federal Ministers and Ministers of State from amongst the members of Majlis-e-Shoora (Parliament) on the advice of the Prime Minister:

Provided that the number of Federal Ministers and Ministers of State who are members of the Senate shall not at any time exceed one-fourth of the number of Federal Ministers [2][:]

[3][Provided further that the total strength of the Cabinet, including Ministers of State, shall not exceed eleven percent of the total membership of Majlis-e-Shoora (Parliament):

Provided also that the aforesaid amendment shall be effective from the next general election held after the commencement of the Constitution (Eighteenth Amendment) Act, 2010.].

(2) Before entering upon office, a Federal Minister or Minister of State shall make before the President oath in the form set out in the Third Schedule.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 30, for "(7) and (8)".

[2]Subs. *ibid.*, for the full-stop.

[3]Provisos ins. *ibid.*

(3) A Federal Minister or Minister of State may, by writing under his hand addressed to the President, resign his office or may be removed from office by the President on the advice of the Prime Minister.

Advisers.

93. (1) The President may, on the advice of the Prime Minister, appoint not more than [1][seven] Advisers, on such terms and conditions as he may determine.

(2) The provisions of Article 57 shall also apply to an Adviser.

Prime Minister continuing in office.

94. The President may ask the Prime Minister to continue to hold office until his successor enters upon the office of Prime Minister.

Vote of no-confidence against Prime Minister.

95. (1) A resolution for a vote of no-confidence moved by not less than twenty per centum of the total membership of the National Assembly may be passed against the Prime Minister by the National Assembly.

(2) A resolution referred to in clause (1) shall not be voted upon before the expiration of three days, or later than seven days, from the day on which such resolution is moved in the National Assembly.

(3) A resolution referred to in clause (1) shall not be moved in the National Assembly while the National Assembly is considering demands for grants submitted to it in the Annual Budget Statement.

(4) If the resolution referred to in clause (1) is passed by a majority of the total membership of the National Assembly, the Prime Minister shall cease to hold office.]

96. *[Vote of no-confidence against Prime Minister.] Omitted by substitution through renumbering vide P. O. No. 14 of 1985, Art. 2 and Sch.*

96A. *[Referendum as to confidence in Prime Minister] It cease to be in force on the 30th September, 1977 by the Constitution (Seventh Amdt.) Act, 1977 (23 of 1977), s.1(3) and previously ins. by Act 23 of 1977, s.2, and come into force on 16th May, 1977.*

Extent of executive authority of Federation.

97. Subject to the Constitution, the executive authority of the Federation shall extend to the matters with respect to which

[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 10, for the word "five".

[1][Majlis-e-Shoora (Parliament)] has power to make laws, including exercise of rights, authority and jurisdiction in and in relation to areas outside Pakistan:

Provided that the said authority shall not, save as expressly provided in the Constitution or in any law made by [1][Majlis-e-Shoora (Parliament)], extend in any Province to a matter with respect to which the Provincial Assembly has also power to make laws.

Conferring of functions on subordinate authorities.

98. On the recommendation of the Federal Government, [1][Majlis-e-Shoora (Parliament)] may by law confer functions upon officers or authorities subordinate to the Federal Government.

Conduct of business of Federal Government.

[2][**99**. (1) All executive actions of the Federal Government shall be expressed to be taken in the name of the President.

(2) The [3][Federal Government] shall by rules specify the manner in which orders and other instruments made and executed [4][in the name of the President] shall be authenticated, and the validity of any order or instrument so authenticated shall not be questioned in any court on the ground that it was not made or executed by the President.

[5][(3) The Federal Government shall also make rules for the allocation and transaction of its business.]]

Attorney-General for Pakistan.

100. (1) The President shall appoint a person, being a person qualified to be appointed a Judge of the [6][Federal Constitutional] Court, to be the Attorney-General for Pakistan.

(2) The Attorney-General shall hold office during the pleasure of the President [7][and shall not engage in private practice so long as he holds the office of the Attorney-General].

(3) It shall be the duty of the Attorney-General to give advice to the Federal Government upon such legal matters, and to perform such other duties of a legal character, as may be referred or assigned to him by the Federal Government, and in the performance of his duties he shall have the right of audience in all courts and tribunals in Pakistan.

(4) The Attorney-General may, by writing under his hand addressed to the President, resign his office.

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by P.O. No. 14 of 1985, Art. 2 and Sch., for " Article 99".

[3]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 31, for "President".

[4]Subs. *ibid.*, for "in his name".

[5]Subs. *ibid.,* s. 31, for "clause (3)".

[6]Subs. by tbe Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.11 for the word "Supreme".

[7]Added by Act 10 of 2010*,* s. 32.

PART IV

Provinces

CHAPTER 1.–THE GOVERNORS

Appointment of Governor.

101. [1][(1) There shall be a Governor for each Province, who shall be appointed by the President on the advice of the Prime Minister.].

(2) A person shall not be appointed a Governor unless he is qualified to be elected as a member of the National Assembly and is not less than thirty-five years of age [2][and is a registered voter and resident of the Province concerned] [3][:]

[4]* * * * * * *

[4]* * * * * * *

(3) The Governor shall hold office during the pleasure of the President [5][and shall be entitled to such salary, allowances and privileges as the President may determine].

(4) The Governor may, by writing under his hand addressed to the President, resign his office.

[6][(5) The President may make such provision as he thinks fit for the discharge of the functions of a Governor [7][in any contingency not provided for in this Part].]

Oath of Office.

102. Before entering upon office, the Governor shall make before the Chief Justice of the High Court oath in the form set out in the Third Schedule.

Conditions of Governor's office.

103. (1) The Governor shall not hold any office of profit in the service of Pakistan or occupy any other position carrying the right to remuneration for the rendering of services.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 33, for "clause (1)".

[2]Added *ibid*.

[3]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 2 for full-stop (*w.e.f.* the 13th September, 1976).

[4]Proviso and clause (2A) omitted by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985), s. 11, which was previously amended by Act 62 of 1976, s. 2.

[5]Added by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 6, (*w.e.f.* the 4th May, 1974).

[6]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

[7]Added by the Act 18 of 1985, s. 11.

(2) The Governor shall not be a candidate for election as a member of [1][Majlis-e-Shoora (Parliament)] or a Provincial Assembly and, if a member of [1][Majlis-e-Shoora (Parliament)] or a Provincial Assembly is appointed as Governor, his seat in [1][Majlis-e-Shoora (Parliament)] or, as the case may be, the Provincial Assembly shall become vacant on the day he enters upon his office.

Speaker Provincial Assembly to act as, or perform functions of Governor in his absence.

[2][**104.** When the Governor, by reason of absence from Pakistan or for any other cause, is unable to perform his functions, the Speaker of the Provincial Assembly and in his absence any other person as the President may nominate shall perform the functions of Governor until the Governor returns to Pakistan or, as the case may be, resumes his functions.]

Governor to act on advice, etc.

[3][**105.** (1) Subject to Constitution, in the performance of his functions, the Governor shall act [4][on and] in accordance with the advice of the Cabinet [5][or the Chief Minister]:

[5][Provided that [4][within fifteen days] the Governor may require the Cabinet or, as the case may be, the Chief Minister to reconsider such advice, whether generally or otherwise, and the Governor shall [4][,within ten days,] act in accordance with the advice tendered after such reconsideration.]

[6]* * * * * * *

(2) The question whether any, and if so what, advice was tendered to the Governor by the Chief Minister [7][or the Cabinet] shall not be inquired into in, or by, any court, tribunal or other authority.

[8][(3) Where the Governor dissolves the Provincial Assembly, notwithstanding anything contained in clause (1), he shall,—

(a) appoint a date, not later than ninety days from the date of dissolution, for the holding of a general election to the Assembly; and

(b) appoint a care-taker Cabinet [9][in accordance with the provisions of Article 224 or, as the case may be, Article 224A].]

[10]* * * * * * *

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 34, for "Article 104".

[3]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for ''Article 105''.

[4]Ins. by the Act No. 10 of 2010, s. 35.

[5]Subs. by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985), s. 12, for "proviso".

[6]Proviso omitted *ibid.*

[7]Subs. *ibid.,* for "the Cabinet or a Minister".

[8]Subs. by the Act No. 10 of 2010, s. 35, for "clause (3)".

[9]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.12.

[10]Clause (4) omitted by the Act No. 10 of 2010, s. 35.

(5) The provisions of clause [1][(2)] of Article 48 shall have effect in relation to a Governor as if reference therein to ''President'' were reference to ''Governor''.]

CHAPTER 2.–PROVINCIAL ASSEMBLIES

Constitution of Provincial Assemblies.

[2][**106.** (1) Each Provincial Assembly shall consist of general seats and seats reserved for women and non-Muslims as specified herein below:-

	General seats	Women	Non-Muslims	Total
Balochistan	51	11	3	65
[3][Khyber Pakhtunkhwa	115	26	4	145]
Punjab	297	66	8	371
Sindh	130	29	9	168

[4]* * * * * * *

(2) A person shall be entitled to vote if–

(a) he is a citizen of Pakistan;

(b) he is not less than eighteen years of age;

(c) his name appears on the electoral roll for any area in the Province; and

(d) he is not declared by a competent court to be of unsound mind.

(3) For the purpose of election to a Provincial Assembly,–

(a) the constituencies for the general seats shall be single member territorial constituencies and the members to fill such seats shall be elected by direct and free vote;

(b) each Province shall be a single constituency for all seats reserved for women and non-Muslims allocated to the respective Provinces under clause (1);

(c) the members to fill seats reserved for women and non-Muslims allocated to a Province under clause (1) shall be elected in accordance with law through proportional representation system of political parties'

[1]Subs. by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985) s. 12, for "(3)".

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 36, for "Article 106" and shall be deemed always to have been so subs. with effect from 21st day of August, 2002.

[3]Subs. by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 6.

[4]Clauses (1A) and (1B) ins. under s.6 of Act No. 37 of 2018, after merger of former FATA areas in Khyber Pakhtunkhawa and effective for election of members from that areas within one year after general elections, 2018 stood omitted after their election.

lists of candidates on the basis of the total number of general seats secured by each political party in the Provincial Assembly:

Provided that for the purpose of this sub-clause, the total number of general seats won by a political party shall include the independent returned candidate or candidates who may duly join such political party within three days of the publication in the official Gazette of the names of the returned candidates.]

Duration of Provincial Assembly.

107. A Provincial Assembly shall, unless sooner dissolved, continue for a term of five years from the day of its first meeting and shall stand dissolved at the expiration of its term.

Speaker and Deputy Speaker.

108. After a general election, a Provincial Assembly shall, at its first meeting and to the exclusion of any other business, elect from amongst its members a Speaker and a Deputy Speaker and, so often as the office of Speaker or Deputy Speaker becomes vacant, the Assembly shall elect another member as Speaker or, as the case may be, Deputy Speaker.

Summoning and prorogation of Provincial Assembly.

109. The Governor may from time to time–

(a) summon the Provincial Assembly to meet at such time and place as he thinks fit; and

(b) prorogue the Provincial Assembly.

Right of Governor to address Provincial Assembly.

110. The Governor may address the Provincial Assembly and may for that purpose require the attendance of the members.

Right to speak in Provincial Assembly.

111. The Advocate-General [1][and an Advisor appointed under clause (11) of Article 130] shall have the right to speak and otherwise take part in the proceedings of the Provincial Assembly or any committee thereof of which he may be named a member, but shall not by virtue of this Article be entitled to vote.

Dissolution of Provincial Assembly.

[2][**112.** (1) The Governor shall dissolve the Provincial Assembly if so advised by the Chief Minister; and the Provincial Assembly shall, unless sooner dissolved, stand dissolved at the expiration of forty-eight hours after the Chief Minister has so advised.

Explanation.–Reference in this Article to 'Chief Minister' shall not be construed to include reference to a Chief Minister against whom a notice of a resolution for a vote of no-confidence has been given in the Provincial Assembly but has not been voted upon or against whom a resolution for a vote of no-confidence has been passed.

(2) The Governor may also dissolve the Provincial Assembly in his discretion, but subject to the previous approval

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[1]Ins. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.6.

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 37, for "Article 112".

of the President, where a vote of no-confidence having been passed against the Chief Minister, no other member of the Provincial Assembly commands the confidence of the majority of the members of the Provincial Assembly in accordance with the provisions of the Constitution, as ascertained in a session of the Provincial Assembly summoned for the purpose.]

Qualifications and disqualifications for membership of Provincial Assembly.

[1][**113.** The qualifications and disqualifications for membership of the National Assembly set out in Articles 62 and 63 shall also apply for membership of a Provincial Assembly as if reference therein to "National Assembly" were a reference to "Provincial Assembly".]

Restriction on discussion in Provincial Assembly.

114. No discussion shall take place in a Provincial Assembly with respect to the conduct of any Judge of [2][the Federal Constitutional Court,] the Supreme Court or of a High Court in the discharge of his duties.

Provincial Government's consent required for financial measures.

115. (1) A Money Bill, or a Bill or amendment which if enacted and brought into operation would involve expenditure from the Provincial Consolidated Fund or withdrawal from the Public Account of the Province shall not be introduced or moved in the Provincial Assembly except by or with the consent of the Provincial Government.

(2) For the purposes of this Article, a Bill or amendment shall be deemed to be a Money Bill if it contains provisions dealing with all or any of the following matters, namely:–

(a) the imposition, abolition, remission, alteration or regulation of any tax;

(b) the borrowing of money, or the giving of any guarantee, by the Provincial Government or the amendment of the law relating to the financial obligations of that Government;

(c) the custody of the Provincial Consolidated Fund, the payment of moneys into, or issue of moneys from, that Fund;

(d) the imposition of a charge upon the Provincial Consolidated Fund, or the abolition or alteration of any such charge;

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[1]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "Article 113".
[2]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 13.

(e) the receipt of moneys on account of the Public Account of the Province, the custody or issue of such moneys; and

(f) any matter incidental to any of the matters specified in the preceding paragraphs.

(3) A Bill shall not be deemed to be a Money Bill by reason only that it provides–

(a) for the imposition or alteration of any fine or other pecuniary penalty or for the demand or payment of a licence fee or a fee or charge for any service rendered; or

(b) for the imposition, abolition, remission, alteration or regulation of any tax by any local authority or body for local purposes.

(4) If any question arises whether a Bill is a Money Bill or not, the decision of the Speaker of the Provincial Assembly thereon shall be final.

(5) Every Money Bill presented to the Governor for assent shall bear a certificate under the hand of the Speaker of the Provincial Assembly that it is a Money Bill and such certificate shall be conclusive for all purposes and shall not be called in question.

Governor's assent to Bills.

[1][**116.** (1) When a Bill has been passed by the Provincial Assembly, it shall be presented to the Governor for assent.

(2) When a Bill is presented to the Governor for assent, the Governor shall, within [2][ten] days,–

(a) assent to the Bill; or

(b) in the case of a Bill other than a Money Bill, return the Bill to the Provincial Assembly with a message requesting that the Bill, or any specified provision thereof, be reconsidered and that any amendment specified in the message be considered.

[3][(3) When the Governor has returned a Bill to the Provincial Assembly, it shall be reconsidered by the Provincial

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[1]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "Article 116".

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 38, for "thirty".

[3]Subs. by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985), s. 15, for "clause (3)".

Assembly and, if it is again passed, with or without amendment, by the Provincial Assembly, by the votes of the majority of the members of the Provincial Assembly present and voting, it shall be again presented to the Governor and the Governor shall [1][give his assent within ten days, failing which such assent shall be deemed to have been given].]

(4) When the Governor has assented [2][or is deemed to have assented] to a Bill, it shall become law and be called an Act of Provincial Assembly.

(5) No Act of a Provincial Assembly, and no provision in any such Act, shall be invalid by reason only that some recommendation, previous sanction or consent required by the Constitution was not given if that Act was assented to in accordance with the Constitution.]

Bill not to lapse on prorogation, etc.

117. (1) A Bill pending in a Provincial Assembly shall not lapse by reason of the prorogation of the Assembly.

(2) A Bill pending in a Provincial Assembly shall lapse on the dissolution of the Assembly.

Financial Procedure

Provincial Consolidated Fund and Public Account.

118. (1) All revenues received by the Provincial Government, all loans raised by that Government, and all moneys received by it in repayment of any loan, shall form part of a consolidated fund, to be known as the Provincial Consolidated Fund.

(2) All other moneys–

(a) received by or on behalf of the Provincial Government; or

(b) received by or deposited with the High Court or any other court established under the authority of the Province;

shall be credited to the Public Account of the Province.

Custody, etc., of Provincial Consolidated Fund and Public Account.

119. The custody of the Provincial Consolidated Fund, the payment of moneys into that Fund, the withdrawal of moneys therefrom, the custody of other moneys received by or on behalf of the Provincial Government, their payment into, and

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 38, for "not withhold his assent therefrom".

[2] Ins. *ibid.*

withdrawal from, the Public Account of the Province, and all matters connected with or ancillary to the matters aforesaid, shall be regulated by Act of the Provincial Assembly or, until provision in that behalf is so made, by rules made by the Governor.

Annual Budget Statement.

120. (1) The Provincial Government shall, in respect of every financial year, cause to be laid before the Provincial Assembly a statement of the estimated receipts and expenditure of the Provincial Government for that year, in this Chapter referred to as the Annual Budget Statement.

(2) The Annual Budget Statement shall show separately–

(a) the sums required to meet expenditure described by the constitution as expenditure charged upon the Provincial Consolidated Fund; and

(b) the sums required to meet other expenditure proposed to be made from the Provincial Consolidated Fund;

and shall distinguish expenditure on revenue account from other expenditure.

Expenditure charged upon Provincial Consolidated Fund.

121. The following expenditure shall be expenditure charged upon the Provincial Consolidated Fund:–

(a) the remuneration payable to the Governor and other expenditure relating to his office, and the remuneration payable to–

(i) the Judges of the High Court; and

(ii) the Speaker and Deputy Speaker of the Provincial Assembly;

(b) the administrative expenses, including the remuneration payable to officers and servants, of the High Court and the Secretariat of the Provincial Assembly;

(c) all debt charges for which the Provincial Government is liable, including interest, sinking fund charges, the repayment or amortisation of capital, and other expenditure in connection with the raising of loans, and the service and redemption of debt on the security of the Provincial Consolidated Fund;

(d) any sums required to satisfy any judgement, decree or award against the Province by any court or tribunal; and

(e) any other sums declared by the Constitution or by Act of the Provincial Assembly to be so charged.

Procedure relating to Annual Budget Statement.

122. (1) So much of the Annual Budget Statement as relates to expenditure charged upon the Provincial Consolidated Fund may be discussed in, but shall not be submitted to the vote of, the Provincial Assembly.

(2) So much of the Annual Budget Statement as relates to other expenditure shall be submitted to the Provincial Assembly in the form of demands for grants, and that Assembly shall have power to assent to, or to refuse to assent to, any demand, or to assent to any demand subject to a reduction of the amount specified therein:

[1]* * * * * * *

(3) No demand for a grant shall be made except on the recommendation of the Provincial Government.

Authentication of schedule of authorized expenditure.

123. (1) The Chief Minister shall authenticate by his signature a schedule specifying–

(a) the grants made or deemed to have been made by the Provincial Assembly under Article 122; and

(b) the several sums required to meet the expenditure charged upon the Provincial Consolidated Fund but not exceeding, in the case of any sum, the sum shown in the statement previously laid before the Assembly.

(2) The schedule so authenticated shall be laid before the Provincial Assembly, but shall not be open to discussion or vote thereon.

(3) Subject to the Constitution, no expenditure from the Provincial Consolidated Fund shall be deemed to be duly

[1]Proviso omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 39.

authorized unless it is specified in the schedule so authenticated and such schedule is laid before the Provincial Assembly as required by clause (2).

Supplementary and excess grant.

124. If in respect of any financial year it is found–

(a) that the amount authorized to be expended for a particular service for the current financial year is insufficient, or that a need has arisen for expenditure upon some new service not included in the Annual Budget Statement for that year; or

(b) that any money has been spent on any service during a financial year in excess of the amount granted for that service for that year;

the Provincial Government shall have power to authorize expenditure from the Provincial Consolidated Fund, whether the expenditure is charged by the Constitution upon that Fund or not, and shall cause to be laid before the Provincial Assembly a Supplementary Budget Statement or, as the case may be, an Excess Budget Statement, setting out the amount of that expenditure, and the provisions of Articles 120 to 123 shall apply to those statements as they apply to the Annual Budget Statement.

Votes on account.

125. Notwithstanding anything contained in the foregoing provisions relating to financial matters, the Provincial Assembly shall have power to make any grant in advance in respect of the estimated expenditure for a part of any financial year, not exceeding three months, pending completion of the procedure prescribed in Article 122 for the voting of such grant and the authentication of the schedule of expenditure in accordance with the provisions of Article 123 in relation to the expenditure.

Power to authorize expenditure when Assembly stands dissolved.

126. Notwithstanding anything contained in the foregoing provisions relating to financial matters, at any time when the Provincial Assembly stands dissolved, the Provincial Government may authorize expenditure from the Provincial Consolidated Fund in respect of the estimated expenditure for a period not exceeding four months in any financial year, pending completion of the procedure prescribed in Article 122 for the voting of grants and the authentication of the schedule of authorized expenditure, in accordance with the provisions of Article 123 in relation to the expenditure.

Provisions relating to National Assembly, etc., to apply to Provincial Assembly, etc.

127. Subject to the Constitution, the provisions of clauses (2) to (8) of Article 53, clauses (2) and (3) of Article 54, Article 55, Articles 63 to 67, Article 69, Article 77, Article 87 and Article 88 shall apply to and in relation to a Provincial Assembly or a committee or members thereof or the Provincial Government, but so that –

(a) any reference in those provisions to [1][Majlis-e-Shoora (Parliament)], a House or the National Assembly shall be read as a reference to the Provincial Assembly;

(b) any reference in those provisions to the President shall be read as a reference to the Governor of the Province;

(c) any reference in those provisions to the Federal Government shall be read as a reference to the Provincial Government;

(d) any reference in those provisions to the Prime Minister shall be read as a reference to the Chief Minister ;

(e) any reference in those provisions to a Federal Minister shall be read as a reference to a Provincial Minister; [2]*

(f) any reference in those provisions to the National Assembly of Pakistan shall be read as a reference to the Provincial Assembly in existence immediately before the commencing day [3][; and]

[4][(g) the said clause (2) of Article 54 shall have effect as if, in the proviso thereto, for the words "one hundred and thirty" the words [5][one hundred] were substituted.]

Ordinances

Power of Governor to promulgate Ordinances.

128. (1) The Governor may, except when the Provincial Assembly is in session, if satisfied that circumstances exist which render it necessary to take immediate action, make and promulgate an Ordinance as the circumstances may require.

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[1]*See* footnote 9 on page 5, *supra.*

[2]The word "and" omitted by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 7 (*w.e.f.* the 4th May, 1974).

[3]Subs. *ibid.,* s. 7, for the full-stop.

[4]Paragraph (g) added *ibid.*

[5]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 40, for "seventy".

(2) An Ordinance promulgated under this Article shall have the same force and effect as an Act of the Provincial Assembly and shall be subject to like restrictions as the power of the Provincial Assembly to make laws, but every such Ordinance–

(a) shall be laid before the Provincial Assembly and shall stand repealed at the expiration of [1][ninety days] from its promulgation or, if before the expiration of that period a resolution disapproving it is passed by the Assembly, upon the passing of that resolution [2][:]

[3][Provided that the Provincial Assembly may by a resolution extend the Ordinance for a further period of ninety days and it shall stand repealed at the expiration of the extended period, or if before the expiration of that period a resolution disapproving it is passed by the Assembly, upon the passing of that resolution:

Provided further that extension for a further period may be made only once.]

(b) may be withdrawn at any time by the Governor.

(3) Without prejudice to the provisions of clause (2), an Ordinance laid before the Provincial Assembly shall be deemed to be a Bill introduced in the Provincial Assembly.

CHAPTER 3.–THE PROVINCIAL GOVERNMENTS

The Provincial Government.

[4]**[129**. (1) Subject to the Constitution, the executive authority of the Province shall be exercised in the name of the Governor by the Provincial Government, consisting of the Chief Minister and Provincial Ministers, which shall act through the Chief Minister.

(2) In the performance of his functions under the Constitution, the Chief Minister may act either directly or through the Provincial Ministers.]

The Cabinet.

[5][**130.** (1) There shall be a Cabinet of Ministers, with the Chief Minister at its head, to aid and advise the Governor in the exercise of his functions.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 41, for "three months".
[2]Subs. *ibid.,* for ";and".
[3]Provisos ins. *ibid*.
[4]Subs. *ibid*., s. 42, for "Article 129".
[5]Subs. *ibid.*, s. 43, for "Article 130".

(2) The Provincial Assembly shall meet on the twenty-first day following the day on which a general election to the Assembly is held, unless sooner summoned by the Governor.

(3) After the election of the Speaker and the Deputy Speaker, the Provincial Assembly shall, to the exclusion of any other business, proceed to elect without debate one of its members to be the Chief Minister.

(4) The Chief Minsiter shall be elected by the votes of the majority of the total membership of the Provincial Assembly:

Provided that, if no member secures such majority in the first poll, a second poll shall be held between the members who secure the two highest numbers of votes in the first poll and the member who secures a majority of votes of the members present and voting shall be declared to have been elected as Chief Minister:

Provided further that, if the number of votes secured by two or more members securing the highest number of votes is equal, further polls shall be held between them until one of them secures a majority of votes of the members present and voting.

(5) The member elected under clause (4) shall be called upon by the Governor to assume the office of Chief Minister and he shall, before entering upon the office, make before the Governor oath in the form set out in the Third Schedule:

Provided that there shall be no restriction on the number of terms for the office of the Chief Minister.

(6) The Cabinet shall be collectively responsible to the Provincial Assembly and the total strength of the Cabinet shall not exceed [1][seventeen] members or [2][thirteen] percent of the total membership of a Provincial Assembly, whichever is higher [3][.]

[4]* * * * * * *

(7) The Chief Minister shall hold office during the pleasure of the Governor, but the Governor shall not exercise his powers under this clause unless he is satisfied that the Chief Minister does not command the confidence of the majority of the members of the Provincial Assembly, in which case he shall summon the Provincial Assembly and require the Chief Minister to obtain a vote of confidence from the Assembly.

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.14 for "fifteen".

[2]Subs. *ibid*., for "eleven".

[3]Subs. *ibid*., for the colon.

[4]Proviso omitted *ibid*.

(8) The Chief Minister may, by writing under his hand addressed to the Governor, resign his office.

(9) A Minister who for any period of six consecutive months is not a member of the Provincial Assembly shall, at the expiration of that period, cease to be a Minister and shall not before the dissolution of that Assembly be again appointed a Minister unless he is elected a member of that Assembly.

(10) Nothing contained in this Article shall be construed as disqualifying the Chief Minister or any other Minister for continuing in office during any period during which the Provincial Assembly stands dissolved, or as preventing the appointment of any person as Chief Minister or other Minister during any such period.

(11) The Chief Minister shall not appoint more than [1][seven] Advisers.]

Governor to be kept informed.

[2][**131.** The Chief Minister shall keep the Governor informed on matters relating to Provincial administration and on all legislative proposals the Provincial Government intends to bring before the Provincial Assembly.]

Provincial Ministers.

[3][**132.** (1) Subject to clauses [4][(9) and (10)] of Article 130, the Governor shall appoint Provincial Ministers from amongst members of the Provincial Assembly on the advice of the Chief Minister.

(2) Before entering upon office, a Provincial Minister shall make before the Governor oath in the form set out in the Third Schedule.

(3) A Provincial Minister may, by writing under his hand addressed to the Governor, resign his office or may be removed from office by the Governor on the advice of the Chief Minister.

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 14, for the word "five".

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 44, for "Article 131".

[3]Subs. by P.O. No. 14 of 1985, Art. 2 and Sch., for "Articles 132 and 133".

[4]Subs. by the Act No. 10 of 2010, s. 45, for "(7) and (8)".

133. The Governor may ask the Chief Minister to continue to hold office until his successor enters upon the office of Chief Minister.] **Chief Minister continuing in office.**

134. *[Resignation by Chief Minister.] Omitted by P.O. No. 14 of 1985, Art. 2 and Sch.*

135. *[Provincial Minister performing functions of Chief Minister.] Omitted by P.O. No. 14 of 1985, Art. 2 and Sch.*

[1][**136.** (1) A resolution for a vote of no-confidence moved by not less than twenty per centum of the total membership of the Provincial Assembly may be passed against the Chief Minister by the Provincial Assembly. **Vote of no-confidence against Chief Minister.**

(2) A resolution referred to in clause (1) shall not be voted upon before the expiration of three days, or later than seven days, from the day on which such resolution is moved in the Provincial Assembly.

(3) If the resolution referred to in clause (1) is passed by a majority of the total membership of the Provincial Assembly, the Chief Minister shall cease to hold office.]

137. Subject to the Constitution, the executive authority of the Province shall extend to the matters with respect to which the Provincial Assembly has power to make laws: **Extent of executive authority of Province.**

Provided that, in any matter with respect to which both [2][Majlis-e-Shoora (Parliament)] and the Provincial Assembly of a Province have power to make laws, the executive authority of the Province shall be subject to, and limited by, the executive authority expressly conferred by the Constitution or by law made by [2][Majlis-e-Shoora (Parliament)] upon the Federal Government or authorities thereof.

138. On the recommendation of the Provincial Government, the Provincial Assembly may by law confer functions upon officers or authorities subordinate to the Provincial Government. **Conferring of functions on subordinate authorities.**

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[1]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "Article 136".

[2]*See* footnote 9 on page 5, *supra.*

Conduct of business of Provincial Government.

[1][**139.** (1) All executive actions of the Provincial Government shall be expressed to be taken in the name of the Governor.

(2) The [2][Provincial Government] shall by rules specify the manner in which orders and other instruments made and executed [3][in the name of Governor] shall be authenticated, and the validity of any order or instrument so authenticated shall not be questioned in any court on the ground that it was not made or executed by the Governor.

[4][(3) The Provincial Government shall also make rules for the allocation and transaction of its business.]]

Advocate-General for a Province.

140. (1) The Governor of each Province shall appoint a person, being a person qualified to be appointed a Judge of the High Court, to be the Advocate-General for the Province.

(2) It shall be the duty of the Advocate-General to give advice to the Provincial Government upon such legal matters, and to perform such other duties of a legal character, as may be referred or assigned to him by the Provincial Government.

(3) The Advocate-General shall hold office during the pleasure of the Governor [5][and shall not engage in private practice so long as he holds the office of the Advocate-General].

(4) The Advocate-General may, by writing under his hand addressed to the Governor, resign his office.

[6]* * * * * * *

Local Government.

[7][**140A.** (1) Each Province shall, by law, establish a local government system and devolve political, administrative and financial responsibility and authority to the elected representatives of the local governments.

(2) Elections to the local governments shall be held by the Election Commission of Pakistan.]

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[1]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for ''Article 139''.

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 46, for "Governor".

[3]Subs. *ibid.,* for "in his name".

[4]Subs. *ibid.,* for "clause (3)".

[5]Added *ibid.,* s. 47.

[6]Existing Article 140A stands omitted as a consequence of the (Eighteenth Amdt.) Act, 2010 (10 of 2010), *see* section 2.

[7]New Article 140A ins. *ibid.*, s. 48.

PART V

Relations Between Federation and Provinces

CHAPTER 1.—DISTRIBUTION OF LEGISLATIVE POWERS.

Extent of Federal and Provincial laws.

141. Subject to the Constitution, [1][Majlis-e-Shoora (Parliament)] may make laws (including laws having extra-territorial operation) for the whole or any part of Pakistan, and a Provincial Assembly may make laws for the Province or any part thereof.

Subject-matter of Federal and Provincial laws.

142. Subject to the Constitution—

(a) [1][Majlis-e-Shoora (Parliament)] shall have exclusive power to make laws with respect to any matter in the Federal Legislative List;

[2][(b) Majlis-e-Shoora (Parliament) and a Provincial Assembly shall have power to make laws with respect to criminal law, criminal procedure and evidence;]

[3][(c) subject to paragraph (b), a Provincial Assembly shall, and Majlis-e-Shoora (Parliament) shall not, have power to make laws with respect to any matter not enumerated in the Federal Legislative List;]

[4][(d) Majlis-e-Shoora (Parliament) shall have exclusive power to make laws with respect to all matters pertaining to such areas in the Federation as are not included in any Province.]

Inconsistency between Federal and Provincial laws

[5][**143.** If any provision of an Act of a Provincial Assembly is repugnant to any provision of an Act of Majlis-e-Shoora (Parliament) which Majlis-e-Shoora (Parliament) is competent to enact, then the Act of Majlis-e-Shoora (Parliament), whether passed before or after the Act of the Provincial Assembly, shall prevail and the Act of the Provincial Assembly shall, to the extent of the repugnancy, be void.]

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[1]*See* footnote 9 on page 5, *supra.*
[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 49, for "Paragraph (b)".
[3]Subs. *ibid*., for "Paragraph (c)".
[4]Subs. *ibid*., for "Paragraph (d)".
[5]Subs. *ibid*., s. 50, for "Article 143".

Power of Majlis-e-Shoora (Parliament) to legislate for [1][one] or more Provinces by consent.

144. (1) If [1][one] or more Provincial Assemblies pass resolutions to the effect that [2][Majlis-e-Shoora (Parliament)] may by law regulate any matter not enumerated in [3][the Federal Legislative List] in the Fourth Schedule, it shall be lawful for [2][Majlis-e-Shoora (Parliament)] to pass an Act for regulating that matter accordingly, but any Act so passed may, as respects any Province to which it applies, be amended or repealed by Act of the Assembly of that Province.

[4]* * * * * * *

CHAPTER 2.—ADMINISTRATIVE RELATIONS BETWEEN FEDERATION AND PROVINCES.

Power of President to direct Governor to discharge certain functions as his Agent.

145. (1) The President may direct the Governor of any Province to discharge as his Agent, either generally or in any particular matter, such functions relating to such areas in the Federation which are not included in any Province as may be specified in the direction.

(2) The provisions of Article 105 shall not apply to the discharge by the Governor of his functions under clause (1).

Power of Federation to confer powers, etc., on Provinces, in certain cases.

146. (1) Notwithstanding anything contained in the Constitution, the Federal Government may, with the consent of the Government of a Province, entrust either conditionally or unconditionally to that Government, or to its officers functions in relation to any matter to which the executive authority of the Federation extends.

(2) An Act of [1][Majlis-e-Shoora (Parliament)] may, notwithstanding that it relates to a matter with respect to which a Provincial Assembly has no power to make laws, confer powers and impose duties upon a Province or officers and authorities thereof.

(3) Where by virtue of this Article powers and duties have been conferred or imposed upon a Province or officers or authorities thereof, there shall be paid by the Federation to the Province such sum as may be agreed or, in default of agreement, as may be determined by an arbitrator appointed by the Chief Justice of [5][Federal Constitutional Court], in respect of any extra costs of administration incurred by the Province in connection with the exercise of those powers or the discharge of those duties.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 51, for "Two".

[2]*See* footnote 9 on page 5, *supra.*

[3]Subs. by the Act No. 10 of 2010, s. 51, for "either list".

[4]Clause (2) omitted by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985), s. 17.

[5]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 15, for "Pakistan".

Power of the Provinces to entrust functions to the Federation.

147. Notwithstanding anything contained in the Constitution, the Government of a Province may, with the consent of the Federal Government, entrust, either conditionally or unconditionally, to the Federal Government, or to its officers, functions in relation to any matter to which the executive authority of the Province extends [1][:]

[2][Provided that the Provincial Government shall get the functions so entrusted ratified by the Provincial Assembly within sixty days.]

Obligation of Provinces and Federation.

148. (1) The executive authority of every Province shall be so exercised as to secure compliance with Federal laws which apply in that Province.

(2) Without prejudice to any other provision of this Chapter, in the exercise of the executive authority of the Federation in any Province regard shall be had to the interests of that Province.

(3) It shall be the duty of the Federation to protect every Province against external aggression and internal disturbances and to ensure that the Government of every Province is carried on in accordance with the provisions of the Constitution.

Directions to Provinces in certain cases.

149. (1) The executive authority of every Province shall be so exercised as not to impede or prejudice the exercise of the executive authority of the Federation, and the executive authority of the Federation shall extend to the giving of such directions to a Province as may appear to the Federal Government to be necessary for that purpose.

[3]* * * * * * *

(3) The executive authority of the Federation shall also extend to the giving of directions to a Province as to the construction and maintenance of means of communication declared in the direction to be of national or strategic importance.

(4) The executive authority of the Federation shall also extend to the giving of directions to a Province as to the manner in which the executive authority thereof is to be exercised for the purpose of preventing any grave menace to the peace or tranquillity or economic life of Pakistan or any part thereof.

Full faith and credit for public acts, etc.

150. Full faith and credit shall be given throughout Pakistan to public acts and records, and judicial proceedings of every Province.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 52, for the full-stop.

[2]Proviso added *ibid*.

[3]Clause (2) omitted *ibid*., s. 53.

Inter-Provincial trade.

151. (1) Subject to clause (2), trade, commerce and intercourse throughout Pakistan shall be free.

(2) [1][Majlis-e-Shoora (Parliament)] may by law impose such restrictions on the freedom of trade, commerce or intercourse between one Province and another or within any part of Pakistan as may be required in the public interest.

(3) A Provincial Assembly or a Provincial Government shall not have power to—

(a) make any law, or take any executive action, prohibiting or restricting the entry into, or the export from, the Province of goods of any class or description, or

(b) impose a tax which, as between goods manufactured or produced in the Province and similar goods not so manufactured or produced, discriminates in favour of the former goods or which, in the case of goods manufactured or produced outside the Province discriminates between goods manufactured or produced in any area in Pakistan and similar goods manufactured or produced in any other area in Pakistan.

(4) An Act of a Provincial Assembly which imposes any reasonable restriction in the interest of public health, public order or morality, or for the purpose of protecting animals or plants from disease or preventing or alleviating any serious shortage in the Province of any essential commodity shall not, if it was made with the consent of the President, be invalid.

Acquisition of land for Federal purposes.

152. The Federation may, if it deems necessary to acquire any land situate in a Province for any purpose connected with a matter with respect to which [1][Majlis-e-Shoora (Parliament)] has power to make laws, require the Province to acquire the land on behalf, and at the expense, of the Federation or, if the land belongs to the

[1]*See* footnote 9 on page 5, *supra.*

Province, to transfer it to the Federation on such terms as may be agreed or, in default of agreement, as may be determined by an arbitrator appointed by the Chief Justice of [1][Federal Constitutional Court].

CHAPTER 3.—SPECIAL PROVISIONS

152A. [*National Security Council*.] *Omitted by the Constitution (Seventeenth Amdt.) Act, 2003 (3 of 2003), s. 5, which was previously ins. by C.E's.O No. 24 of 2002, Art. 3 and Sch., as amended by various enactments (see also Article 267B.)*

Council of Common Interests.

153. (1) There shall be a Council of Common Interests, in this Chapter referred to as the Council, to be appointed by the President.

[2][(2) The Council shall consist of—

(a) the Prime Minister who shall be the Chairman of the Council;

(b) the Chief Ministers of the Provinces; and

(c) three members from the Federal Government to be nominated by the Prime Minister from time to time.]

[3]* * * * * * *

(4) The Council shall be responsible to [4][Majlis-e-Shoora (Parliament)] [5][and shall submit an Annual Report to both Houses of Majlis-e-Shoora (Parliament)].

Functions and rules of procedure.

154. [6][(1) The Council shall formulate and regulate policies in relation to matters in Part II of the Federal Legislative List and shall exercise supervision and control over related institutions.]

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 16, for "Pakistan".

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 54, for "clause (2)".

[3]Clause (3) omitted *ibid*.

[4]*See* footnote 9 on page 5, *supra*.

[5]Added by the Act No. 10 of 2010, s. 54.

[6]Subs. *ibid.,* s. 55, for "clause (1)".

[1][(2) The Council shall be constituted within thirty days of the Prime Minister taking oath of office.

(3) The Council shall have a permanent Secretariat and shall meet at least once in ninety days:

Provided that the Prime Minister may convene a meeting on the request of a Province on an urgent matter.]

[2][(4)] The decisions of the Council shall be expressed in terms of the opinion of the majority.

[2][(5)] Until [3][Majlis-e-Shoora (Parliament)] makes provision by law in this behalf, the Council may make its rules of procedure.

[2][(6)] [3][Majlis-e-Shoora (Parliament)] in joint sitting may from time to time by resolution issue directions through the Federal Government to the Council generally or in a particular matter to take action as [3][Majlis-e-Shoora (Parliament)] may deem just and proper and such directions shall be binding on the Council.

[2][(7)] If the Federal Government or a Provincial Government is dissatisfied with a decision of the Council, it may refer the matter to [3][Majlis-e-Shoora (Parliament)] in a joint sitting whose decision in this behalf shall be final.

Complaints as to interference with water supplies.

155. (1) If the interests of a Province, the Federal Capital [4]* * * or any of the inhabitants thereof, in water from any natural source of supply [5][or reservoir] have been or are likely to be affected prejudicially by —

(a) any executive act or legislation taken or passed or proposed to be taken or passed, or

(b) the failure of any authority to exercise any of its powers with respect to the use and distribution or control of water from that source,

the Federal Government or the Provincial Government concerned may make a complaint in writing to the Council.

(2) Upon receiving such complaint, the Council shall, after having considered the matter, either give its decision or request the President to appoint a commission consisting of such persons

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[1]New clauses (2) and (3) ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 55.

[2]Clauses (2), (3), (4) and (5) renumbered *ibid*.

[3]*See* footnote 9 on page 5, *supra.*

[4]The words "or the Federally Administered Tribal Areas" omitted by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 7.

[5]Ins. by the Act No. 10 of 2010, s. 56.

having special knowledge and experience in irrigation, engineering, administration, finance or law as he may think fit, hereinafter referred to as the Commission.

(3) Until [1][Majlis-e-Shoora (Parliament)] makes provision by law in this behalf, the provisions of the Pakistan Commissions of Inquiry Act, 1956, as in force immediately before the commencing day shall apply to the Council or the Commission as if the Council or the Commission were a Commission appointed under that Act to which all the provisions of section 5 thereof applied and upon which the power contemplated by section 10A thereof had been conferred.

(4) After considering the report and supplementary report, if any, of the Commission, the Council shall record its decision on all matters referred to the Commission.

(5) Notwithstanding any law to the contrary, but subject to the provisions of clause (5) of Article 154, it shall be the duty of the Federal Government and the Provincial Government concerned in the matter in issue to give effect to the decision of the Council faithfully according to its terms and tenor.

(6) No proceeding shall lie before any court at the instance of any party to a matter which is or has been in issue before the Council, or of any person whatsoever, in respect of a matter which is actually or has been or might or ought to have been a proper subject of complaint to the Council under this Article.

National Economic Council.

[2][**156.** (1) The President shall constitute a National Economic Council which shall consist of—

(a) the Prime Minister, who shall be the Chairman of the Council;

(b) the Chief Ministers and one member from each Province to be nominated by the Chief Minister; and

(c) four other members as the Prime Minister may nominate from time to time.

(2) The National Economic Council shall review the overall economic condition of the country and shall, for advising the Federal Government and the Provincial Governments, formulate plans in respect of financial, commercial, social and economic policies; and in formulating such plans it shall,

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 57, for "Article 156".

amongst other factors, ensure balanced development and regional equity and shall also be guided by the Principles of Policy set out in Chapter 2 of Part-II.

(3) The meetings of the Council shall be summoned by the Chairman or on a requisition made by one-half of the members of the Council.

(4) The Council shall meet at least twice in a year and the quorum for a meeting of the Council shall be one-half of its total membership.

(5) The Council shall be responsible to the Majlis-e-Shoora (Parliament) and shall submit an Annual Report to each House of Majlis-e-Shoora (Parliament).].

Electricity.

157. (1) The Federal Government may in any Province construct or cause to be constructed hydro-electric or thermal power installations or grid stations for the generation of electricity and lay or cause to be laid inter-Provincial transmission lines [1][:]

[2][Provided that the Federal Government, prior to taking a decision to construct or cause to be constructed, hydro-electric power stations in any Province, shall consult the Provincial Government concerned.]

(2) The Government of a Province may —

(a) to the extent electricity is supplied to that Province from the national grid, require supply to be made in bulk for transmission and distribution within the Province;

(b) levy tax on consumption of electricity within the Province;

(c) construct power houses and grid stations and lay transmission lines for use within the Province; and

(d) determine the tariff for distribution of electricity within the Province.

[3][(3) In case of any dispute between the Federal Government and a Provincial Government in respect of any matter under this Article, any of the said Governments may move the Council of Common Interests for resolution of the dispute.]

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 58, for the full-stop.

[2]Proviso ins. *ibid.*

[3]New clause (3) added *ibid.*

Priority of requirements of natural gas.

158. The Province in which a well-head of natural gas is situated shall have precedence over other parts of Pakistan in meeting the requirements from that well-head, subject to the commitments and obligations as on the commencing day.

Broadcasting and telecasting.

159. (1) The Federal Government shall not unreasonably refuse to entrust to a Provincial Government such functions with respect to broadcasting and telecasting as may be necessary to enable that Government—

(a) to construct and use transmitters in the Province; and

(b) to regulate, and impose fees in respect of, the construction and use of transmitters and the use of receiving apparatus in the Province:

Provided that nothing in this clause shall be construed as requiring the Federal Government to entrust to any Provincial Government any control over the use of transmitters constructed or maintained by the Federal Government or by persons authorized by the Federal Government, or over the use of receiving apparatus by person so authorized.

(2) Any functions so entrusted to a Provincial Government shall be exercised subject to such conditions as may be imposed by the Federal Government, including, notwithstanding anything contained in the Constitution, any conditions with respect to finance, but it shall not be lawful for the Federal Government so to impose any conditions regulating the matter of broadcast or telecast by, or by authority of, the Provincial Government.

(3) Any Federal law with respect to broadcasting and telecasting shall be such as to secure that effect can be given to the foregoing provisions of this Article.

(4) If any question arises whether any conditions imposed on any Provincial Government are lawfully imposed, or whether any refusal by the Federal Government to entrust functions is unreasonable, the question shall be determined by an arbitrator appointed by the Chief Justice of [1][Federal Constitutional Court].

(5) Nothing in this Article shall be construed as restricting the powers of the Federal Government under the Constitution for the prevention of any grave menace to the peace or tranquillity of Pakistan or any part thereof.

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 17, for "Pakistan".

PART VI

Finance, Property, Contracts and Suits

CHAPTER 1.—FINANCE

Distribution of Revenues between the Federation and the Provinces.

National Finance Commission.

160. (1) Within six months of the commencing day and thereafter at intervals not exceeding five years, the President shall [1]constitute a National Finance Commission consisting of the Minister of Finance of the Federal Government, the Ministers of Finance of the Provincial Governments, and such other persons as may be appointed by the President after consultation with the Governors of the Provinces.

(2) It shall be the duty of the National Finance Commission to make recommendations to the President as to—

(a) the distribution between the Federation and the Provinces of the net proceeds of the taxes mentioned in clause (3);

(b) the making of grants-in-aid by the Federal Government to the Provincial Governments;

(c) the exercise by the Federal Government and the Provincial Governments of the borrowing powers conferred by the Constitution; and

(d) any other matter relating to finance referred to the Commission by the President.

(3) The taxes referred to in paragraph (a) of clause (2) are the following taxes raised under the authority of [2][Majlis-e-Shoora (Parliament)], namely :—

(i) taxes on income, including corporation tax but not including taxes on income consisting of remuneration paid out of the Federal Consolidated Fund;

[3][(ii) taxes on the sales and purchases of goods imported, exported, produced, manufactured or consumed;]

(iii) export duties on cotton, and such other export duties as may be specified by the President;

(iv) such duties of excise as may be specified by the President; and

(v) such other taxes as may be specified by the President.

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[1]For the notification constituting the National Finance Commission, *see* Gaz. of Pak. 1974, Ext., Part II, pp. 191-192.

[2]*See* footnote 9 on page 5, *supra.*

[3]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 3, for the "original paragraph (ii)", (*w.e.f.* the 13th September, 1976).

[1][(3A) The share of the Provinces in each Award of National Finance Commission shall not be less than the share given to the Provinces in the previous Award.

(3B) The Federal Finance Minister and Provincial Finance Ministers shall monitor the implementation of the Award biannually and lay their reports before both Houses of Majlis-e-Shoora (Parliament) and the Provincial Assemblies.]

(4) As soon as may be after receiving the recommendations of the National Finance Commission, the President shall, by [2]Order, specify, in accordance with the recommendations of the Commission under paragraph (a) of clause (2), the share of the net proceeds of the taxes mentioned in clause (3) which is to be allocated to each Province, and that share shall be paid to the Government of the Province concerned, and, notwithstanding the provision of Article 78 shall not form part of the Federal Consolidated Fund.

(5) The recommendations of the National Finance Commission, together with an explanatory memorandum as to the action taken thereon, shall be laid before both Houses and the Provincial Assemblies.

(6) At any time before an Order under clause (4) is made, the President may, by Order, make such amendments or modifications in the law relating to the distribution of revenues between the Federal Government and the Provincial Governments as he may deem necessary or expedient.

(7) The President may, by Order, make grants-in-aid of the revenues of the Provinces in need of assistance and such grants shall be charged upon the Federal Consolidated Fund.

Natural gas and hydro-electric power.

161. [3][(1) Notwithstanding the provisions of Article 78,—

(a) the net proceeds of the Federal duty of excise on natural gas levied at well-head and collected by the Federal Government and of the royalty collected by the Federal Government, shall not form part of the Federal Consolidated Fund and shall be paid to the Province in which the well-head of natural gas is situated.

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[1]New clauses (3A) and (3B) ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 59.

[2]For such Order, *see* the Distribution of Revenues and Grants-in-Aid Order, 1975 (P.O. No. 2 of 1975).

[3]Subs. by the Act No. 10 of 2010, s. 60 for "clause (1)".

(b) the net proceeds of the Federal duty of excise on oil levied at well-head and collected by the Federal Government, shall not form part of the Federal Consolidated Fund and shall be paid to the Province in which the well-head of oil is situated.]

(2) The net profits earned by the Federal Government, or any undertaking established or administered by the Federal Government from the bulk generation of power at a hydro-electric station shall be paid to the Province in which the hydro-electric station is situated.

Explanation.—For the purposes of this clause "net profits" shall be computed by deducting from the revenues accruing from the bulk supply of power from the bus-bars of a hydro-electric station at a rate to be determined by the Council of Common Interests, the operating expenses of the station, which shall include any sums payable as taxes, duties, interest or return on investment, and depreciations and element of obsolescence, and over-heads, and provision for reserves.

Prior sanction of President required to Bills affecting taxation in which Provinces are interested.

162. No Bill or amendment which imposes or varies a tax or duty the whole or part of the net proceeds whereof is assigned to any Province, or which varies the meaning of the expression "agricultural income" as defined for the purposes of the enactments relating to income-tax, or which affects the principles on which under any of the foregoing provisions of this Chapter moneys are or may be distributable to Provinces, shall be introduced or moved in the National Assembly except with the previous sanction of the President.

Provincial taxes in respect of professions, etc.

163. A Provincial Assembly may by Act impose taxes, not exceeding such limits as may from time to time be fixed by Act of [1][Majlis-e-Shoora (Parliament)], on persons engaged in professions, trades, callings or employments, and no such Act of the Assembly shall be regarded as imposing a tax on income.

Miscellaneous Financial Provisions

Grants out of Consolidated Fund.

164. The Federation or a Province may make grants for any purpose, notwithstanding that the purpose is not one with respect to which [1][Majlis-e-Shoora (Parliament)] or, as the case may be, a Provincial Assembly may make laws.

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[1]*See* footnote 9 on page 5, *supra.*

Exemption of certain public property from taxation.

165. (1) The Federal Government shall not, in respect of its property or income, be liable to taxation under any Act of Provincial Assembly and, subject to clause (2), a Provincial Government shall not, in respect of its property or income, be liable to taxation under Act of [1][Majlis-e-Shoora (Parliament)] or under Act of the Provincial Assembly of any other Province.

(2) If a trade or business of any kind is carried on by or on behalf of the Government of a Province outside that Province, that Government may, in respect of any property used in connection with that trade or business or any income arising from that trade or business, be taxed under Act of [1][Majlis-e-Shoora (Parliament)] or under Act of the Provincial Assembly of the Province in which that trade or business is carried on.

(3) Nothing in this Article shall prevent the imposition of fees for services rendered.

Power of Majlis-e-Shoora (Parliament) to impose tax on the income of certain corporations, etc.

[2][**165A.** (1) For the removal of doubt, it is hereby declared that [1][Majlis-e-Shoora (Parliament)] has, and shall be deemed always to have had, the power to make a law to provide for the levy and recovery of a tax on the income of a corporation, company or other body or institution established by or under a Federal law or a Provincial law or an existing law or a corporation, company or other body or institution owned or controlled, either directly or indirectly, by the Federal Government or a Provincial Government, regardless of the ultimate destination of such income.

(2) All orders made, proceedings taken and acts done by any authority or person, which were made, taken or done, or purported to have been made, taken or done, before the commencement of the Constitution (Amendment) Order, 1985, in exercise of the powers derived from any law referred to in clause (1), or in execution of any orders made by any authority in the exercise or purported exercise of powers as aforesaid, shall, notwithstanding any judgment of any court or tribunal, including the Supreme Court and a High Court, be deemed to be and always to have been validly made, taken or done and shall not be called in question in any court, including [3][the Federal Constitutional Court,] the Supreme Court and a High Court, on any ground whatsoever.

(3) Every judgement or order of any court or tribunal, including [3][the Federal Constitutional Court,] the Supreme Court and a High Court, which is repugnant to the provisions of clause (1) or clause (2) shall be, and shall be deemed always to have been, void and of no effect whatsoever.]

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[1]*See* footnote 9 on page 5, *supra*.

[2]Added by the Constitution (Amdt.) Order, 1985 (P.O. No. 11 of 1985), Art. 2.

[3]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 18.

CHAPTER 2.—BORROWING AND AUDIT

Borrowing by Federal Government.

166. The executive authority of the Federation extends to borrowing upon the security of the Federal Consolidated Fund within such limits, if any, as may from time to time be fixed by Act of [1][Majlis-e-Shoora (Parliament)], and to the giving of guarantees within such limits, if any, as may be so fixed.

Borrowing by Provincial Government.

167. (1) Subject to the provisions of this Article, the executive authority of a Province extends to borrowing upon the security of the Provincial Consolidated Fund within such limits, if any, as may from time to time be fixed by Act of the Provincial Assembly, and to the giving of guarantees within such limits, if any, as may be so fixed.

(2) The Federal Government may, subject to such conditions, if any, as it may think fit to impose, make loans to, or, so long as any limits fixed under Article 166 are not exceeded give guarantees in respect of loans raised by, any Province, and any sums required for the purpose of making loans to a Province shall be charged upon the Federal Consolidated Fund.

(3) A Province may not, without the consent of the Federal Government, raise any loan if there is still outstanding any part of a loan made to the Province by the Federal Government, or in respect of which guarantee has been given by the Federal Government; and consent under this clause may be granted subject to such conditions, if any, as the Federal Government may think fit to impose.

[2][(4) A Province may raise domestic or international loan, or give guarantees on the security of the Provincial Consolidated Fund within such limits and subject to such conditions as may be specified by the National Economic Council.]

Audit and Accounts

Auditor-General of Pakistan.

168. (1) There shall be an Auditor-General of Pakistan, who shall be appointed by the President.

(2) Before entering upon office, the Auditor-General shall make before the Chief Justice of Pakistan oath in the form set out in the Third Schedule.

[3][(3) The Auditor-General shall, unless he sooner resigns or is removed from office in accordance with clause (5), hold office for a term of four years from the date on which he assumes such office or attains the age of sixty-five years, whichever is earlier.]

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[1]*See* footnote 9 on page 5, *supra*.
[2]New clause (4) ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 61.
[3]Subs. *ibid.,* s. 62, for "clause (3)".

[1][(3A) The other terms and conditions of service of the Auditor-General shall be determined by Act of Majlis-e-Shoora (Parliament); and, until so determined, by Order of the President.]

(4) A person who has held office as Auditor-General shall not be eligible for further appointment in the service of Pakistan before the expiration of two years after he has ceased to hold that office.

(5) The Auditor-General shall not be removed from office except in the like manner and on the like grounds as a Judge of the Supreme Court.

(6) At any time when the office of the Auditor-General is vacant or the Auditor-General is absent or is unable to perform the functions of his office due to any cause, [2][the President may appoint the most senior officer in the Office of the Auditor-General to] act as Auditor-General and perform the functions of that office.

Functions and powers of Auditor-General.

169. The Auditor-General shall, in relation to—

(a) the accounts of the Federation and of the Provinces; and

(b) the accounts of any authority or body established by the Federation or a Province,

perform such functions and exercise such powers as may be determined by or under Act of [3][Majlis-e-Shoora (Parliament)] and, until so determined, by [4]Order of the President.

Power of Auditor-General to give directions as to accounts.

170.[5][(1)] The accounts of the Federation and of the Provinces shall be kept in such form and in accordance with such principles and methods as the Auditor-General may, with the approval of the President, prescribe.

[5][(2) The audit of the accounts of the Federal and of the Provincial Governments and the accounts of any authority or body established by, or under the control of, the Federal or a Provincial Government shall be conducted by the Auditor-General, who shall determine the extent and nature of such audit.]

Reports of Auditor-General.

171. The reports of the Auditor-General relating to the accounts of the Federation shall be submitted to the President, who shall cause them to be laid before the [6][both Houses of Majlis-e-Shoora (Parliament)] and the reports of the Auditor-General relating to the accounts of a Province shall be submitted to the Governor of the Province, who shall cause them to be laid before the Provincial Assembly.

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[1]New clause (3A) ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 62.

[2]Subs. *ibid*., for certain words.

[3]*See* footnote 9 on page 5, *supra.*

[4]For such Order, *see* the Pakistan (Audit and Accounts) Order, 1973 (P.O. No. 21 of 1973).

[5]Re-numbered (1) and new clause (2) added by the Act 10 of 2010, s. 63.

[6]Subs. *ibid.,* s. 64, for "National Assembly".

CHAPTER 3.—PROPERTY, CONTRACTS, LIABILITIES AND SUITS.

Ownerless property.

172. (1) Any property which has no rightful owner shall, if located in a Province, vest in the Government of that Province, and in every other case, in the Federal Government.

(2) All lands, minerals and other things of value within the continental shelf or underlying the ocean [1][beyond] the territorial waters of Pakistan shall vest in the Federal Government.

[2][(3) Subject to the existing commitments and obligations, mineral oil and natural gas within the Province or the territorial waters adjacent thereto shall vest jointly and equally in that Province and the Federal Government.]

Power to acquire property and to make contracts, etc.

173. (1) The executive authority of the Federation and of a Province shall extend, subject to any Act of the appropriate Legislature, to the grant, sale, disposition or mortgage of any property vested in, and to the purchase or acquisition of property on behalf of, the Federal Government or, as the case may be, the Provincial Government, and to the making of contracts.

(2) All property acquired for the purposes of the Federation or of a Province shall vest in the Federal Government or, as the case may be, in the Provincial Government.

(3) All contracts made in the exercise of the executive authority of the Federation or of a Province shall be expressed to be made in the name of the President or, as the case may be, the Governor of the Province, and all such contracts and all assurances of property made in the exercise of that authority shall be executed on behalf of the President or Governor by such persons and in such manner as he may direct or authorize.

(4) Neither the President, nor the Governor of a Province, shall be personally liable in respect of any contract or assurance made or executed in the exercise of the executive authority of the Federation or, as the case may be, the Province, nor shall any person making or executing any such contract or assurance on behalf of any of them be personally liable in respect thereof.

(5) Transfer of land by the Federal Government or a Provincial Government shall be regulated by law.

Suits and proceedings.

174. The Federation may sue or be sued by the name of Pakistan and a Province may sue or be sued by the name of the Province.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 65 for "within".

[2]Ins. *ibid.*

PART VII

The Judicature

CHAPTER 1.—THE COURTS

Establishment and jurisdiction of courts.

175. (1) There shall be [1][a Federal Constitutional Court of Pakistan, hereinafter referred to as the Federal Constitutional Court] a Supreme Court of Pakistan [1][hereinafter referred to as the Supreme Court], a High Court for each Province [2][and a High Court for the Islamabad Capital Territory] and such other courts as may be established by law.

[3][*Explanation.*—Unless the context otherwise requires, the words "High Court" wherever occurring in the Constitution shall include "Islamabad High Court."]

(2) No court shall have any jurisdiction save as is or may be conferred on it by the Constitution or by or under any law.

(3) The Judiciary shall be separated progressively from the Executive within [4][fourteen] years from the commencing day [5]*

[6]* * * * * *

Appointment of Judges to [8][the Federal Constitutional Court,] the Supreme Court, High Courts and the Federal Shariat Court.

[7][**175A.** (1) There shall be a Judicial Commission of Pakistan, hereinafter in this Article referred to as the Commission, for appointment of Judges of [8][the Federal Constitutional Court,] the Supreme Court, High Courts and the Federal Shariat Court, [9][and for performance evaluation of Judges of the High Courts,] as hereinafter provided.

[10][(2) For appointment of Judges of [8][the Federal Constitutional Court and] the Supreme Court, the Commission shall consist of—

[11][(i) Chief Justice of the Federal Constitutional Court;

(ii) Chief Justice of the Supreme Court;

(iii) one next most senior Judge each of the Federal Constitutional Court and the Supreme Court; *Members*

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[1]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 19.
[2]Ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 66.
[3]Subs. by the Constitution (Nineteenth Amdt.) Act, 2010 (1 of 2011), s. 3, for "Explanation".
[4]Subs. by P.O. No. 14 of 1985, Art. 2 and Sch., for "five".
[5]The Constitution (Twenty-third Amdt.) Act, 2017 (12 of 2017), shall stand repealed on the expiry of two years on 6th January, 2019.
[6]Proviso and Explanation shall stand repealed *ibid.*
[7]New Article 175A ins. by the Act No. 10 of 2010, s. 67.
[8]Ins. by Act No. 32 of 2025, s.20.
[9]Ins. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.7.
[10]Subs. *ibid.,* for "clause (2)".
[11]Subs. by Act No. 32 of 2025, s.20 for "paragraphs (i), (ii) and (iii)".

(iiia)	a Judge of the Federal Constitutional Court or the Supreme Court jointly nominated by the Chief Justice of the Federal Constitutional Court and the Chief Justice of the Supreme Court, for a period of two years;]	*Member;*
(iv)	Federal Minister for Law and Justice;	*Member*
(v)	Attorney-General for Pakistan;	*Member*
(vi)	an advocate having not less than fifteen years of practice in the Supreme Court to be nominated by the Pakistan Bar Council for a term of two years;	*Member*
(vii)	two members from the Senate and two members from the National Assembly of whom two shall be from the Treasury Benches, one from each House, and two from the Opposition Benches, one from each House. The nomination from the Treasury Benches shall be made by the Leader of the House and from the Opposition Benches by the Leader of the Opposition: Provided that during the time when the National Assembly stands dissolved, the remaining two members, for the purpose of this paragraph, shall be nominated from the Senate in the manner as aforesaid, for such period;	*Members*
[1][(viii)	a woman or non Muslim or a technocrat, other than a member of *Majlis-e-Shoora* (Parliament), who is qualified to be member of the *Majlis-e-Shoora* (Parliament), to be appointed by the Speaker of the National Assembly;	*Member;*]

[2][*Explanation I*.- The senior amongst the Chief Justice of the Federal Constitutional Court and the Chief Justice of the Supreme Court shall be the Chairperson of the Commission. Their *inter se* seniority shall be determined with reference to their dates of appointment as the Chief Justice of the Federal Constitutional Court and the Chief Justice of the Supreme Court otherwise than as Acting Chief Justice and in case the dates of such appointment are the same, with reference to their dates of appointment as Judges of the High Courts.

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[1]Subs. by the Constitution (Twenty-seventh Amdt.) Act, 2025 (32 of 2025), s.20, for "clause (viii)".

[2]Subs *ibid*., for "Explanation".

Explanation II.- If a Judge may not be nominated under paragraph (iiia), one nominee each of the respective Chief Justices shall be placed before the Commission which shall, by the majority of its total membership, nominate a Judge under paragraph (iiia) from amongst the nominees.

Explanation III.- If the Chief Justice of the Supreme Court or a Judge mentioned in paragraph (iii) is to be nominated for appointment as a Judge of the Federal Constitutional Court, the next most senior Judge, as the case may be, shall act as a member of the Commission in his place.

Explanation IV.- If a Judge appointed under paragraph (iiia) is a Judge of the Supreme Court and is to be nominated for appointment as a Judge of the Federal Constitutional Court, another Judge of the Federal Constitutional Court or the Supreme Court shall be nominated under clause (iiia) or Explanation II, as the case may be, to act as a member of the Commission in his place.]

[1][(3) Notwithstanding anything contained in clause (1), or clause (2), [2][the Chief Justice of the Federal Constitutional Court and the Chief Justice of the Supreme Court] shall be nominated by the Special Parliamentary Committee, in this Article referred to as the Committee, from amongst the three most senior Judges of [2][the Federal Constitutional Court or the Supreme Court, as the case may be]. The Committee shall send the name of the nominee to the Prime Minister who shall forward the same to the President for appointment:

[3]* * * * * * *

[4][Provided that if the nominee under this clause declines to become the Chief Justice, he shall be deemed to have retired and the three next most senior Judges shall be considered and so on till the appointment of the Chief Justice of the Federal Constitutional Court or the Chief Justice of the Supreme Court, as the case may be:

Provided further that notwithstanding anything contained in the Constitution, the President shall, on advice of the Prime Minister, appoint the first Chief Justice of the Federal Constitutional Court from amongst the Judges of the Supreme Court:

Provided also and notwithstanding anything contained in the Constitution, the appointment of the first batch of Judges of the Federal Constitutional Court, shall be made by the President, on advice of the Prime Minister in consultation with the Chief Justice of the Federal Constitutional Court:

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[1]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.7, for "clause (3)".

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 20.

[3]Proviso omitted *ibid*.

[4]Subs. *ibid*., for "proviso".

Provided also that the second, third and this proviso shall stand omitted on the appointment of the first Chief Justice and the Judges under the above said provisos.]

[1][(3A) The Committee shall consist of the following twelve members, namely:—

(i) eight members from the National Assembly; and

(ii) four members from the Senate:

Provided that when the National Assembly stands dissolved, the total membership of the Committee shall consist of the members from the Senate only mentioned in paragraph (ii) and the provisions of this Article shall, *mutatis mutandis*, apply.

(3B) The Parliamentary Parties shall have proportional representation on the Committee, based on their strength in Majlis-e-Shoora (Parliament), to be nominated by their respective Parliamentary Leaders. The Chairman and the Speaker of the National Assembly, as the case may be, shall notify members of the Committee.

(3C) The Committee, by the majority of not less than two-thirds of its total membership, within fourteen days prior to the retirement of the Chief Justice of [2][the Federal Constitutional Court or the Chief Justice of the Supreme Court, as the case may be] shall send the nomination as provided in clause (3) [3][.]

[4]* * * * * * *

(3D) No action or decision taken by the Commission or the Committee shall be invalid or called in question only on the ground of existence of a vacancy therein or of the absence of any member from any meeting thereof.

(3E) The meetings of the Committee shall be held in camera and the record of its proceedings shall be maintained.

(3F) The provisions of Article 68 shall not apply to the proceedings of the Committee.

(3G) The Committee may make rules for regulating its procedure.]

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[1]Clauses (3A) to (3G) ins. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.7.

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 20 for "Pakistan".

[3]Subs. *ibid.* for "colon".

[4]Proviso omitted *ibid.*

[1][(4) The Commission [2][shall] make rules regulating its procedure including the procedure and criteria for assessment, [2][interview,] evaluation and fitness for appointment of Judges.]

(5) For appointment of Judges of a High Court, the Commission in clause (2) shall also include the following, namely:—

(i)	Chief Justice of the High Court to which the appointment is being made;	*Member*
(ii)	[3][Head of Constitutional Benches of that High Court]	*Member*
(iii)	Provincial Minister for Law; and	*Member*
[4][(iv)	an advocate having not less than fifteen years practice in the High Court to be nominated by the concerned Bar Council for a term of two years [5][.]]	*Member*

[6][*Explanation*.—If Head of Constitutional Benches of a High Court is the Chief Justice of that High Court, the Judge who is next in seniority shall become member of the Commission:]

[7][Provided that for appointment of the Chief Justice of a High Court the Judge mentioned in paragraph (ii), if he is the most senior Judge of a High Court, shall not be member of the Commission:]

Provided further that if for any reason the Chief Justice of a High Court is not available, he shall be substituted by a former Chief Justice or former Judge of that Court, to be nominated by the [8][Commission][9][:]]

[10][Provided also that if Article 202A has not come into force for a High Court, the most senior Judge of such High Court shall be a member of the Commission under paragraph (ii).]]

(6) For appointment of Judges of the Islamabad High Court, the Commission in clause (2) shall also include the following, namely:—

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[1]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.7, for "clause (4)".
[2]Subs. & ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 20.
[3]Subs. by Act No. 26 of 2024, s.7 for certain words.
[4]Subs. by the Constitution (Nineteenth Amdt.) Act, 2010 (1 of 2011), s.4. for "paragraph (iv)".
[5]Subs. by Act No. 26 of 2024, s.7. for "colon".
[6]*Explanation* ins. *ibid.*
[7]Subs. *ibid.,* for proviso.
[8]Subs. *ibid.,* for certain words.
[9]Subs. *ibid.,* for full stop.
[10]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 20, which was previously added by the Constitution (Twenty-sixth Amdt.) Act 26 of 2024, s. 7.

(i)	Chief Justice of the Islamabad High Court;[1]*	*Member*
(ii)	[2][Head of Constitutional Benches of that High Court] [3][;]	*Member*
[4][(iii)	an advocate having not less than fifteen years of practice in the High Court to be nominated by the Islamabad Bar Council for a term of two years; and	*Member*
(iv)	a Federal Minister nominated by the Prime Minister:	*Member]*

Provided that for initial appointment of the [5][Chief Justice and the] Judges of the Islamabad High Court, the Chief Justices of the four Provincial High Courts shall also be members of the Commission:

Provided further that subject to the foregoing proviso, in case of appointment of Chief Justice [6][and the Judges] of Islamabad High Court, the [7][Explanation and] provisos to clause (5) shall, *mutatis mutandis,* apply.

(7) For appointment of Judges of the Federal Shariat Court, the Commission in clause (2) shall also include the Chief Justice of the Federal Shariat Court and the most senior Judge of that Court as its members:

Provided that for appointment of Chief Justice of Federal Shariat Court, the provisos, to clause (5) shall, *mutatis mutandis*, apply.

[8][(8) The Commission, by the majority of its total membership, shall nominate one person for each vacancy of a Judge in [9][the Federal Constitutional Court,] the Supreme Court, a High Court or the Federal Shariat Court, as the case may be, to the Prime Minister who shall forward the same to the President for appointment.]

[10]* * * * * * *

(11) Secretary, [11][National Assembly] shall act as the Secretary of the Committee.

[12]* * * * * * *

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[1]The word "and" omitted by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.7.
[2]Subs. *ibid.,*
[3]Subs. *ibid.,* for colon.
[4]Paragraph (iii) and (iv) added *ibid.,*
[5]Ins. by the Constitution (Nineteenth Amdt.) Act, 2010 (1 of 2011), s.4.
[6]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.20.
[7]Ins. by the Act No. 26 of 2024, s.4.
[8]Subs. *ibid.,* for "clause (8)".
[9]Ins. by the Act No. 32 of 2025 s.20.
[10]Clauses (9) and (10) omitted by the Act No. 26 of 2024, s.4.
[11]Subs. *ibid.,* for "Senate".
[12]Clauses (12) to (17) omitted *ibid*.

[1][(18) The Commission in clause (2) shall conduct an annual performance evaluation of Judges of the High Courts.

(19) If the performance of a Judge of a High Court is found by the Commission to be inefficient, it shall grant him such period for improvement, as it deems appropriate. If, upon completion of the period so granted, the performance of such Judge is again found to be inefficient, the Commission shall send its report to the Supreme Judicial Council.

[2][(20) The Commission shall make rules for the purposes of clauses (18) and (19) within sixty days of commencement of the Constitution (Twenty-seventh Amendment) Act, 2025.]

(21) For the purposes of this Article and subject to the rules made by the Commission, there shall be a secretariat of the Commission to be headed by a secretary and shall include such other officers and staff, as may be necessary.

(22) One-third of the members of the Commission may requisition a meeting of the Commission by sending a written request to the Chairperson who shall convene the meeting of the Commission not later than fifteen days from the receipt of such requisition. If the Chairperson fails to convene a meeting within the aforesaid period, the secretary shall convene the meeting within seven days of the expiry of the aforesaid period.

(23) For each anticipated or actual vacancy of a Judge in [3][the Federal Constitutional Court,] the Supreme Court, the Chief Justice of the Federal Shariat Court, the Chief Justice of a High Court, a Judge in the Federal Shariat Court or a Judge in a High Court, any member of the Commission may give nominations in the Commission for appointment against such vacancy.]

[4][CHAPTER 1A.—THE FEDERAL CONSTITUTIONAL COURT

Constitution of Federal Constitutional Court.

175B. (1) The Federal Constitutional Court shall consist of a Chief Justice to be known as the Chief Justice of the Federal Constitutional Court of Pakistan hereinafter referred to as the Chief Justice of the Federal Constitutional Court and as many other Judges as may be determined by Act of *Majlis-e-Shoora* (Parliament) or, until so determined, as may be fixed by the President:

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[1]New clauses (18) to (23) added by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.7.

[2]Subs. by the Constitution (Twenty-seventh Amdt.) Act, 2025 (32 of 2025), s.20, for "clause (20)".

[3]Ins. *ibid.*

[4]New Chapter 1A ins. *ibid*., s.21.

Provided that the Federal Constitutional Court shall have equal number of Judges from each Province and at least one Judge from Islamabad High Court.

Explanation.—In no case the number of Judges from the Islamabad High Court shall exceed the numbers of Judges from a Province:

Provided further that nothing contained in the first proviso shall effect the functioning of the Federal Constitutional Court.

(2) The President may, by Order, make necessary provisions for the matters consequential or ancillary to the establishment and functioning of the Federal Constitutional Court.

Appointment of Federal Constitutional Court Judges.

175C. (1) The Chief Justice of the Federal Constitutional Court and each of the other Judges thereof shall be appointed by the President in accordance with Article 175A.

(2) A person shall not be appointed as Judge of the Federal Constitutional Court unless he is a citizen of Pakistan and—

(a) is or has been a Judge of the Supreme Court; or

(b) has, for a period of not less than five years, been a Judge of a High Court; or

(c) has, for a period of not less than twenty years, been an advocate of a High Court and is an advocate of the Supreme Court.

(3) The *inter se* seniority of Judges appointed under this Article shall be reckoned from the date they enter upon the office and in case that date is same then on the basis of their age:

Provided that a Judge of the Supreme Court, who holds the said office on the commencement of the Constitution (Twenty-seventh Amendment) Act, 2025, shall retain his *inter se* seniority among Judges other than the Chief Justice of the Federal Constitutional Court.

Oath of Office of the Chief Justice and other judges of the Federal Constitutional Court.

175D. Before entering upon office, the Chief Justice of the Federal Constitutional Court shall make before the President, and any other Judge of the Federal Constitutional Court shall make before the Chief Justice, oath in the form set out in the Third Schedule.

Original jurisdiction of Federal Constitutional Court.

175E. (1) The Federal Constitutional Court shall, to the exclusion of every other court, have original jurisdiction in any dispute between any two or more Governments.

Explanation.—In this clause, "Governments" means the Federal Government and the Provincial Governments.

(2) In the exercise of the jurisdiction conferred on it by clause (1), the Federal Constitutional Court shall pronounce declaratory judgments only.

(3) Without prejudice to the provisions of Article 199, the Federal Constitutional Court shall, if it considers that a question of public importance with reference to the enforcement of any of the Fundamental Rights conferred by Chapter 1 of Part II is involved, have the power to make an order of the nature mentioned in the said Article:

Provided that, subject to the satisfaction of the Federal Constitutional Court, the jurisdiction under this clause shall only be exercised if an application is filed by a person in that Court.

(4) All petitions which fall under this Article and appeals or review applications against judgments rendered or orders passed under this Article, pending or filed before the Supreme Court or its Constitutional Benches, prior to commencement of the Constitution (Twenty-seventh Amendment) Act, 2025, shall forthwith stand transferred to the Federal Constitutional Court and shall only be heard and decided by the Federal Constitutional Court.

(5) The Federal Constitutional Court may, on its own motion or otherwise, if it considers that the case involves a substantial question of law as to the interpretation of the Constitution, call for the record of any case pending before any court and make such order in the case as it thinks fit.

Appellate jurisdiction of the Federal Constitutional Court.

175F. (1) The Federal Constitutional Court shall have jurisdiction to hear and determine appeals from judgments, decrees, final orders or sentences of a High Court as provided herein below —

(a) where an Act of *Majlis-e-Shoora* (Parliament) so provides;

(b) if the High Court certifies that the case involves a substantial question of law as to the interpretation of the Constitution; or

(c) from a judgment or an order of a High Court made under Article 199 only if the Federal Constitutional Court grants leave to appeal:

Provided that no appeal shall lie against a judgment or an order of a High Court made under Article 199, in a case which relates to rent and family except guardianship and such other matters as may be determined by law.

(2) All petitions for leave to appeal, appeals or review applications, to which clause (1) apply or any other proceedings falling within the jurisdiction of the Federal Constitutional Court, filed or pending before the Supreme Court prior to commencement of the Constitution (Twenty-seventh Amendment) Act, 2025, stand transferred to the Federal Constitutional Court and shall only be heard and decided by that Court.

Review of judgments or orders by the Federal Constitutional Court.

175G. The Federal Constitutional Court shall have the power, subject to the provisions of any Act of *Majlis-e-Shoora* (Parliament) and any rules made by the Federal Constitutional Court, to review any judgment pronounced or any order made by it.

Advisory jurisdiction.

175H. (1) If, at any time, the President considers that it is desirable to obtain the opinion of the Federal Constitutional Court on any question of law which he considers of public importance, he may refer the question to the Federal Constitutional Court for consideration.

(2) The Federal Constitutional Court shall consider a question so referred and report its opinion on the question to the President.

Retiring Age of the Chief Justice and other judges of the Federal Constitutional Court.

175I. A Judge of the Federal Constitutional Court shall hold office until he attains the age of sixty-eight years, unless he sooner resigns or is removed from office in accordance with the Constitution:

Provided that the term of office of the Chief Justice of the Federal Constitutional Court shall be three years or unless he sooner resigns or he attains the age of sixty-eight years or is removed from his office in accordance with the Constitution, whichever is earlier:

Provided further that the Chief Justice of the Federal Constitutional Court on completion of his term of three years shall stand retired notwithstanding his age of superannuation.

Acting Chief Justice of the Federal Constitutional Court.

175J. At any time when —

(a) the office of Chief Justice of the Federal Constitutional Court is vacant; or

(b) the Chief Justice of the Federal Constitutional Court is absent or is unable to perform the functions of his office due to any other cause,

the President shall appoint one of the other Judges of the Federal Constitutional Court to act as its Chief Justice.

Acting Judges of the Federal Constitutional Court.

175K. (1) At any time when —

(a) the office of a Judge of the Federal Constitutional Court is vacant; or

(b) a Judge of the Federal Constitutional Court is absent or is unable to perform the functions of his office due to any other cause,

the President may, in the manner provided in clause (1) of Article 175A, appoint a Judge of the Supreme Court or a High Court who is qualified for appointment as a Judge of the Federal Constitutional Court to act temporarily as a Judge of the Federal Constitutional Court.

Explanation. — In this clause, Judge of the Supreme Court or a High Court includes a person who has retired as a Judge of the Supreme Court or a High Court.

(2) An appointment under this Article shall continue in force until it is revoked by the President.

Seat of the Federal Constitutional Court.

175L. (1) The permanent seat of the Federal Constitutional Court shall be at Islamabad.

(2) The Federal Constitutional Court may from time to time sit at such other places as the Chief Justice of the Federal Constitutional Court, with the prior approval of the President, may appoint.]

CHAPTER 2.—THE SUPREME COURT OF PAKISTAN

Constitution of Supreme Court.

176. The Supreme Court shall consist of a Chief Justice to be known as the Chief Justice [1][of Supreme Court] of Pakistan and so many other Judges as may be determined by Act of [2][*Majlis-e-Shoora* (Parliament)] or, until so determined, as may be fixed by the President [3][:]

[4][Provided that and notwithstanding anything contained in the Constitution, the incumbent Chief Justice shall be and continue to be known as the Chief Justice of Pakistan during his term in office.]

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[1]Ins. by the Constitution (Twenty-seventh Amendment) Act, 2025 (32 of 2025), s. 22.
[2]*See* footnote 9 on page 5, *supra*
[3]Subs. by the Act No. 32 of 2025, s. 22 for full stop.
[4]Proviso added *ibid.*

Appointment of Supreme Court Judges.

177. [1][(1) The Chief Justice of [2][Supreme Court] and each of the other Judges of the Supreme Court shall be appointed by the President in accordance with Article 175A.]

[3][(2) A person shall not be appointed as Judge of the Supreme Court unless he is a citizen of Pakistan and—

(a) has for a period of, or for periods aggregating, not less than five years been a Judge of a High Court; or

(b) has, for a period of not less than fifteen years, been an advocate of a High Court and is an advocate of the Supreme Court.]

Oath of Office.

178. Before entering upon office, the Chief Justice of [4][Supreme Court] shall make before the President, and any other Judge of the Supreme Court shall make before the Chief Justice, oath in the form set out in the Third Schedule.

Retiring Age.

[5][**179.** A Judge of the Supreme Court shall hold office until he attains the age of sixty-five years, unless he sooner resigns or is removed from office in accordance with the Constitution [6][:]]

[7][Provided that the term of the Chief Justice of [8][Supreme Court] shall be three years or unless he sooner resigns or attains the age of sixty-five years or is removed from his office in accordance with the Constitution, whichever is earlier:

Provided further that the Chief Justice of [8][Supreme Court] on completion of his term of three years shall stand retired notwithstanding his age of superannuation.]

Acting Chief Justice.

180. At any time when—

(a) the office of Chief Justice of [9][the Supreme Court] is vacant; or

(b) the Chief Justice of [9][the Supreme Court] is absent or is unable to perform the functions of his office due to any other cause,

the President shall appoint [10][[11][one] of the other Judges of the Supreme Court] to act as Chief Justice of [9][the Supreme Court].

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s.68, for "clause(I)".

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.23 for "Pakistan".

[3]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.8, for "clause (2)".

[4]Subs. by the Act No. 32 of 2025, s.24, for "Pakistan".

[5]Article 179 subs. by the Constitution(Seventeenth Amdt.) Act, 2003 (3 of 2003), s.6, which was previously amended by various enactments (see also Article 267B).

[6]Subs. by Act No. 26 of 2024, s.9 for "full stop".

[7]Provisios added *ibid.,*

[8]Subs. by the Act No. 32 of 2025, s.25, for "Pakistan".

[9]Subs. *ibid.,* s.26.

[10]Subs. by P.O. No. 14 of 1985, Art.2 and Sch., for certain words.

[11]Subs. by the Act No. 32 of 2025, s.26, for the words "the most senior".

Acting Judges.

181. (1) At any time when—

(a) the office of a Judge of the Supreme Court is vacant; or

(b) a Judge of the Supreme Court is absent or is unable to perform the functions of his office due to any other cause,

the President may, in the manner provided in clause (1) of Article 177, appoint a Judge of a High Court who is qualified for appointment as a Judge of the Supreme Court to act temporarily as a Judge of the Supreme Court.

[1][*Explanation.*—In this clause, 'Judge of a High Court' includes a person who has retired as a Judge of a High Court.]

(2) An appointment under this Article shall continue in force until it is revoked by the President.

Appointment of ad-hoc Judges.

182. If at any time it is not possible for want of quorum of Judges of the Supreme Court to hold or continue any sitting of the Court, or for any other reason it is necessary to increase temporarily the number of Judges of the Supreme Court, the Chief Justice of [2][Supreme Court] [3][, in consultation with the Judicial Commission as provided in clause (2) of the Article 175A,] may, in writing,—

(a) with the approval of the President, request any person who has held the office of a Judge of that Court and since whose ceasing to hold that office three years have not elapsed; or

(b) with the approval of the President and with the consent of the Chief Justice of a High Court, require a Judge of that Court qualified for appointment as a judge of the Supreme Court,

to attend sittings of the Supreme Court as an *ad-hoc* Judge for such period as may be necessary and while so attending an *ad-hoc* Judge shall have the same power and jurisdiction as a Judge of the Supreme Court.

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[1]*Explanation* added by the Constitution (Amdt.) Order, 1982 (P. O . No. 2 of 1982), Art.2.

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.27 for "Pakistan".

[3]Ins. by the Constitution (Nineteenth Amendment) Act, 2011 (1 of 2011) s. 5.

Seat of the Supreme Court.

183. (1) The permanent seat of the Supreme Court shall, subject to clause (3), be at Islamabad.

(2) The Supreme Court may from time to time sit in such other places as the Chief Justice of [1][Supreme Court], with the approval of the President, may appoint.

[2]* * * * * * *

184. *[Original Jurisdiction of Supreme Court.] Omitted by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.29.*

Appellate Jurisdiction of the Supreme Court.

[3][**185.** (1) Subject to this Article and Article 175F, the Supreme Court shall have jurisdiction to hear and determine appeals from judgments, decrees, final orders or sentences of a High Court.

(2) An appeal shall lie to the Supreme Court from any judgment, decree, final order or sentence of a High Court—

(a) if the High Court has on appeal reversed an order of acquittal of an accused person and sentenced him to death or to transportation for life or imprisonment for life; or, on revision, has enhanced a sentence to a sentence as aforesaid; or

(b) if the High Court has withdrawn for trial before itself any case from any court subordinate to it and has in such trial co nvicted the accused person and sen tenced him as aforesaid; or

(c) if the High Court has imposed any punishment on any person for contempt of the High Court; or

(d) if the amount or value of the subject-matter of the dispute in the court of first instance was, and also in dispute in appeal is, not less than one million rupees or such other sum as may be specified in that behalf by Act of *Majlis-e-Shoora* (Parliament) and the judgment, decree or final order appealed from has varied or set aside the judgment, decree or final order of the court or tribunal immediately below; or

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.28 for "Pakistan".

[2]Clause (3) omitted *ibid.,*

[3]Subs. *ibid.,* s.30, for "Article 185".

(e) if the judgment, decree or final order involves directly or indirectly some claim or question respecting property of the like amount or value and the judgment, decree or final order appealed from has varied or set aside the judgment, decree or final order of the court or tribunal immediately below.

(3) An appeal to the Supreme Court, from a judgment, decree, order or sentence of a High Court in case to which clause (2) does not apply shall lie only if the Supreme Court grants leave to appeal:

Provided that no appeal shall lie to the Supreme Court in cases to which clause (1) of Article 175F applies.]

186. *[Advisory Jurisdiction.] Omitted by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.31.*

186A. *[Power of Supreme Court to transfer cases.] Omitted by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.32, which was previously ins. by various enactments.*

Issue and execution of processes of [1][Federal Constitutional Court and] Supreme Court.

187. (1) [2][Subject to clause (2) of Article 175, [1][the Federal Constitutional Court and] the] Supreme Court shall have power to issue such directions, orders or decrees as may be necessary for doing complete justice in any case or matter pending before it, including an order for the purpose of securing the attendance of any person or the discovery or production of any document [3][:]

[4][Provided that no order under this clause shall be passed otherwise than in pursuance of any jurisdiction vested in and exercised by [1][the Federal Constitutional Court and] the Supreme Court.]

(2) Any such direction, order or decree shall be enforceable throughout Pakistan and shall, where it is to be executed in a Province, or a territory or an area not forming part of a Province but within the jurisdiction of the High Court of the Province, be executed as if it had been issued by the High Court of that Province.

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[1]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 33.
[2]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 7, for "The" (w.e.f the 13th September, 1976).
[3]Subs. by the Constitution (Twenty-Sixth Amdt.) Act 2024 (26 of 2024), s.13 for "full stop".
[4]Proviso added *ibid.,*

(3) If a question arises as to which High Court shall give effect to a direction, order or decree of the Supreme Court, the decision of the Supreme Court on the question shall be final.

Review of Judgments or orders by the Supreme Court.

188. The Supreme Court shall have power, subject to the provisions of any Act of [1][*Majlis-e-Shoora* (Parliament)] and of any rules made by the Supreme Court, to review any judgment pronounced or any order made by it.

Decisions of Federal Constitutional Court and Supreme Court binding on other courts.

[2][**189.** (1) Any decision of the Federal Constitutional Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other courts in Pakistan including the Supreme Court.

(2) Any decision of the Supreme Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all other courts in Pakistan except the Federal Constitutional Court.]

Action in aid of [3][Federal Constitutional Court and] Supreme Court.

190. All executive and judicial authorities throughout Pakistan shall act in aid of [3][the Federal Constitutional Court and] the Supreme Court.

Rules of procedure.

[4][**191.** Subject to the Constitution and any Act of *Majlis-e-Shoora* (Parliament), the Federal Constitutional Court and the Supreme Court may make rules regulating their respective practice and procedure.]

191A. *[Constitutional Benches of the Supreme Court.] Omitted by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.37.*

CHAPTER 3.—THE HIGH COURTS

Constitution of High Court.

192. (1) A High Court shall consist of a Chief Justice and so many other Judges as may be determined by law or, until so determined, as may be fixed by the President.

[5][(2) The Sindh and Balochistan High Court shall cease to function as a common High Court for the Provinces of Balochistan and Sindh.

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[1]*See* footnote 9 on page 5, *supra*.
[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.34, for Article 189.
[3]Ins. *ibid.,* s.35.
[4]Subs. *ibid.,* s.36 for "Article 191".
[5]Subs.by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s.8, for "clause (2)".

(3) The President shall, by [1]Order, establish a High Court for each of the Provinces of Balochistan and Sindh and may make such provision in the Order for the principal seats of the two High Courts, transfer of the Judges of the common High Court, transfer of cases pending in the common High Court immediately before the establishment of two High Courts and, generally, for matters consequential or ancillary to the common High Court ceasing to function and the establishment of the two High Courts as he may deem fit.]

[2][(4)] The jurisdiction of a High Court may, by Act of [3][*Majlis-e-Shoora* (Parliament)], be extended to any area in Pakistan not forming part of a Province.

Appointment of High Court Judges.

193. [4][(1) The Chief Justice and each of other Judges of a High Court shall be appointed by the President in accordance with Article 175A.]

[5][(2) A person shall not be appointed as a Judge of a High Court unless he is a citizen of Pakistan, is not less than forty years of age, and—

(a) he has, for a period of not less than ten years, been an advocate of a High Court; or

(b) he has, for a period of not less than ten years, held a judicial office in Pakistan.

Explanation.—In computing the period during which a person has been an advocate of a High Court or has held judicial office, there shall be included any period during which he has held judicial office after he became an advocate or, as the case may be, the period during which he has been an advocate after having held judicial office.

[6]* * * * * * *

Oath of Office.

194. Before entering upon office, the Chief Justice of a High Court shall make before the Governor, and any other Judge of the Court shall make before the Chief Justice, oath in the form set out in the Third Schedule [7][:]

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[1]For such Order, in respect of establishment of High Courts for Balochistan and Sindh, see the P.O. No. 6 of 1976, dated the 29th November, 1976, see Gaz. of Pak. 1976, Ext., Pt. I, pp.595 - 599.

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.38, for "(5)".

[3]*See* footnote 9 on page 5, *supra.*

[4]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 69, for "clause (1)".

[5]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.15, for "clause (2)".

[6]Clause (3) omitted by Act No. 32 of 2025, s.39.

[7]Subs. by the Act No. 10 of 2010, s.70, for "full stop".

[1][Provided that the Chief Justice of the Islamabad High Court shall make oath before the President and other Judges of that Court shall make oath before the Chief Justice of the Islamabad High Court.]

Retiring age.

[2][**195.** A Judge of a High Court shall hold office until he attains the age of sixty-two years, unless he sooner resigns or is removed from office in accordance with the Constitution.]

Acting Cheif Justice.

196. At any time when—

(a) the office of Chief Justice of a High Court is vacant, or

(b) the Chief Justice of a High Court is absent or is unable to perform the functions of his office due to any other cause,

the President shall appoint [3][one of the other Judges of the High Court, or may request one of the Judges of the Supreme Court], to act as Chief Justice.

Additional Judges.

197. At any time when—

(a) the office of a Judge of a High Court is vacant ; or

(b) a Judge of a High Court is absent or is unable to perform the functions of his office due to any other cause ; or

(c) for any reason it is necessary to increase the number of Judges of a High Court, the President may, in the manner provided in clause (1) of Article 193, appoint a person qualified for appointment as a Judge of the High Court to be Additional Judge of the Court for such period as the President may determine, being a period not exceeding such period, if any, as may be prescribed by law.

Seat of the High Court.

198. [4][(l)] Each High Court in existence immediately before the commencing day shall continue to have its principal seat at the place where it had such seat before that day.

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[1]New proviso added by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 70.

[2]Article 195 subs. by the Constitution (seventeenth Amdt.) Act, 2003 (3 of 2003), s. 7, which was previously amended byvarious enac tments (see also Article 267B).

[3]Subs. by P.O. No. 14 of 1985 Art. 2 and Sch., for certain words.

[4]Re-numbered (1) *ibid.,*

[1][(1A) The High Court for Islamabad Capital Territory shall have its principal seat at Islamabad.]

[2][(2) Each High Court and the Judges and divisional courts thereof shall sit at its principal seat and the seats of its Benches and may hold, at any place within its territorial jurisdiction, circuit courts consisting of such of the Judges as may be nominated by the Chief Justice.

(3) The Lahore High Court shall have a Benches each at Bahawalpur, Multan and Rawalpindi; the High Court of Sindh shall have a Bench at Sukkur; the Peshawar High Court shall have a Bench each at Abbottabad [3][, Mingora] and Dera Ismail Khan and the High Court of Balochistan shall have a Bench at Sibi [4][and Turbat.]

(4) Each of the High Courts may have Benches at such other places as the Governor may determine on the advice of the Cabinet and in consultation with the Chief Justice of the High Court.

(5) A Bench referred to in clause (3), or established under clause (4), shall consist of such of the Judges of the High Court as may be nominated by the Chief Justice from time to time for a period of not less than one year.

(6) The Governor in consultation with the Chief Justice of the High Court shall make rules to provide the following matters, that is to say,—

(a) assigning the area in relation to which each Bench shall exercise jurisdiction vested in the High Court; and

(b) for all incidental, supplemental or consequential matters.]

Jurisdiction of High Court.

199. (1) Subject to the Constitution, a High Court may, if it is satisfied that no other adequate remedy is provided by law,—

(a) on the application of any aggrieved party, make an order—

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[1]New clause (1A) ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 71.

[2]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

[3]Ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 71.

[4]Added ibid.,

(i) directing a person performing, within the territorial jurisdiction of the Court, functions in connection with the affairs of the Federation, a Province or a local authority, to refrain from doing anything he is not permitted by law to do, or to do anything he is required by law to do ; or

(ii) declaring that any act done or proceeding taken within the territorial jurisdiction of the Court by a person performing functions in connection with the affairs of the Federation, a Province or a local authority has been done or taken without lawful authority and is of no legal effect; or

(b) on the application of any person, make an order—

(i) directing that a person in custody within the territorial jurisdiction of the Court be brought before it so that the Court may satisfy itself that he is not being held in custody without lawful authority or in an unlawful manner; or

(ii) requiring a person within the territorial jurisdiction of the Court holding or purporting to hold a public office to show under what authority of law he claims to hold that office ; or

(c) on the application of any aggrieved person, make an order giving such directions to any person or authority, including any Government exercising any power or performing any function in, or in relation to, any territory within the jurisdiction of that Court as may be appropriate for the enforcement of any of the Fundamental Rights conferred by Chapter 1 of Part II.

[1][(1A) For removal of doubt, the High Court shall not make an order or give direction or make a declaration on its own or in the nature of *suo motu* exercise of jurisdiction beyond the contents of any application filed under clause (1).]

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[1]New clause (1A) ins. by the Constitution (Twenty-sixth Amdt.) Act 2024 (26 of 2024), s. 16.

(2) Subject to the Constitution, the right to move a High Court for the enforcement of any of the Fundamental Rights conferred by Chapter 1 of Part II shall not be abridged.

[1][(3) An order shall not be made under clause (1) on application made by or in relation to a person who is a member of the Armed Forces of Pakistan, or who is for the time being subject to any law relating to any of those Forces, in respect of his terms and conditions of service, in respect of any matter arising out of his service, or in respect of any action taken in relation to him as a member of the Armed Forces of Pakistan or as a person subject to such law.]

[2]* * * * * * *

(4) Where–

(a) an application is made to a High Court for an order under paragraph (a) or paragraph (c) of clause (1), and

(b) the making of an interim order would have the effect of prejudicing or interfering with the carrying out of a public work or of otherwise being harmful to public interest [3][or State property] or of impeding the assessment or collection of public revenues,

the Court shall not make an interim order unless the prescribed law officer has been given notice of the application and he or any person authorized by him in that behalf has had an opportunity of being heard and the Court, for reasons to be recorded in writing, is satisfed that the interim order–

(i) would not have such affect as aforesaid; or

(ii) would have the effect of suspending an order or proceeding which on the face of the record is without jurisdiction.

[4][(4A) An interim order made by a High Court on an application made to it to question the validity or legal effect of any order made, proceeding taken or act done by any authority or

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[1]Subs. by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 9, for "clause (3)", (w.e.f. the 4th May, 1974).

[2]Clauses (3A), (3B) and (3C) omitted by P. O. No. 14 of 1985, Art. 2 and Sch., which was previously amended by various enactments.

[3]Ins. by P. O. No. 14 of 1985, Art. 2 and Sch.,

[4]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 72, for "clause (4A)".

person, which has been made, taken or done or purports to have been made, taken or done under any law which is specified in Part I of the First Schedule or relates to, or is connected with, State property or assessment or collection of public revenues shall cease to have effect on the expiration of a period of six months following the day on which it is made:

[1][Provided that, for reasons to be recorded, an interim order may be extended only for a period upto six months.]]

[2][(4B) Every case in which, on an application under clause (1), the High Court has made an interim order shall be disposed of by the High Court on merits within six months from the day on which it is made, unless the High Court is prevented from doing so for sufficient cause to be recorded.]

(5) In this Article, unless the context otherwise requires,—

"person" includes any body politic or corporate, any authority of or under the control of the Federal Government or of a Provincial Government, and any Court or tribunal, other than the [3][Federal Constitutional Court or the] Supreme Court, a High Court or a Court or tribunal established under a law relating to the Armed Forces of Pakistan; and

"prescribed law officer" means–

(a) in relation to an application affecting the Federal Government or an authority of or under the control of the Federal Government, the Attorney-General, and

(b) in any other case, the Advocate-General for the Province in which the application is made.

Transfer of High Court Judges.

[4]**[200.** (1) The President may transfer a Judge of a High Court from one High Court to another High Court on the recommendation of and on such terms and conditions as may be determined by the Judicial Commission of Pakistan as mentioned in clause (2) of Article 175A:

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[1]Proviso subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.40.

[2]Clause (4B) restored by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 20l0), s. 2.

[3]Ins. by Act No. 32 of 2025, s. 40.

[4]Subs. *ibid.,* s. 41, for "Article 200".

Provided that the Chief Justices of both High Courts shall also be members of the Judicial Commission of Pakistan for the purposes of this clause:

Provided further that the Judicial Commission of Pakistan before making recommendation under this clause may hear the Judge.

Explanation.—In this Article, "Judge" does not include a Chief Justice but includes a Judge for the time being acting as Chief Justice of a High Court other than a Judge of the Supreme Court acting as such in pursuance of a request made under paragraph (b) of Article 196.

(2) The seniority of a Judge of a High Court transferred under clause (1) shall be reckoned from the date of his initial appointment as a Judge of the High Court:

Provided that no Judge shall be transferred to a High Court where on transfer he becomes senior to the Chief Justice of such High Court.

(3) Where a Judge is so transferred, he shall be entitled to such additional allowances and privileges, in addition to his salary and allowances, as the President may, by Order, determine.

(4) A Judge of a High Court who does not accept a transfer under this Article shall be proceeded against under Article 209 within a period of thirty days. Such Judge shall not perform his functions till such time the Counc il under Article 209 renders its decision.]

Decision of High Court binding on subordinate courts.

201. Subject to Article 189, any decision of a High Court shall, to the extent that it decides a question of law or is based upon or enunciates a principle of law, be binding on all courts subordinate to it.

Rules of Procedure.

202. Subject to the Constitution and law, a High Court may make rules regulating the practice and procedure of the Court or of any court subordinate to it.

Constitutional Benches of High Courts.

[1][**202A**. (1) There shall be Constitutional Benches of a High Court comprising such Judges of a High Court and for such term as may be nominated and determined by the Judicial Commission of Pakistan as constituted under clause (5) of Article 175A, from time to time.

(2) The most senior Judge amongst Judges nominated under clause (1) shall be the Head of the Constitutional Benches.

[2][(3) No Bench of a High Court other than a Constitutional Bench shall exercise jurisdiction vested in the High Court under Article 199.]

(4) For the purposes of clause (1), a Bench, to be nominated by a committee comprising the Head of the Constitutional Benches and next two most senior Judges from amongst the Judges nominated under clause (1), shall hear and dispose of such matters.

(5) All petitions under sub-paragraph (i) of paragraph (a) and paragraph (c) of clause (1) of Article 199 or appeals therefrom, pending or filed in a High Court prior to commencement of the Constitution (Twenty-sixth Amendment) Act, 2024 (XXVI of 2024), subject to clause (7), forthwith stand transferred to the Constitutional Benches and shall only be heard and decided by Benches constituted under clause (4).

(6) Notwithstanding anything contained in the Constitution but subject to an Act of *Majlis-e-Shoora* (Parliament) in respect of the Islamabad High Court and an Act of Provincial Assembly in respect of other respective High Courts, a High Court may make rules regulating the practice and procedure of the Constitutional Benches.

(7) This Article shall come into force, if in respect of–

(a) the Islamabad High Court, both Houses of *Majlis-e-Shoora* (Parliament) in the joint sitting; and

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[1]Ins. by the Constitution (Twenty-sixth Amdt.) Act 2024 (26 of 2024), s. 17.

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 42, for "Clause (3)".

(b) a High Court, the respective Provincial Assembly,

through a resolution passed by majority of the total membership of the joint sitting or the respective Provincial Assembly, as the case may be, give effect to the provisions of this Article.]

High Court to superindent subordinate courts.

203. Each High Court shall supervise and control all courts subordinate to it.

[1]CHAPTER 3A.—FEDERAL SHARIAT COURT

Provision of Chapter to override other provision of Constitution.

203A. The provisions of this Chapter shall have effect notwithstanding anything contained in the Constitution.

Definitions.

203B. In this Chapter, unless there is anything repugnant in the subject or context,—

[2][(a) "Chief Justice" means Chief Justice of the Court;]

(b) "Court" means the Federal Shariat Court constituted in pursuance of Article 203C ;

[3][(bb) "Judge" means Judge of the Court;]

(c) "law" includes any custom or usage having the force of law but does not include the Constitution, Muslim personal law, any law relating to the procedure of any court or tribunal or, until the expiration of [4][ten] years from the commencement of this Chapter, any fiscal law or any law relating to the levy and collection of taxes and fees or banking or insurance practice and procedure ; and

[5]* * * * * * *

The Federal Shariat Court.

203C. (1) There shall be constituted for the purposes of this Chapter a Court to be called the Federal Shariat Court.

[6][(2) The Court shall consist of not more than eight Muslim [7][Judges], including the [8][Chief Justice], to be appointed by the President [9][in accordance with Article 175A].]

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[1]Subs. by the Constitution (Amdt.) Order, 1980 (P.O. No. 1 of 1980), Art. 3, for the "existing Chapter 3A" (w.e.f. 26th May, 1980).

[2]Subs. by the Constitution (Second Amdt.) Order, 1982 (P. O. No. 5 of 1982), Art. 2. for "paragraph (a)".

[3]Ins. *ibid.,*

[4]Subs. by P.O. No. 14 of 1985, Art. 2 and Sch., which was previously amended by various enactments for "five".

[5]Paragraph (d) omitted by P. O. No. 5 of 1982, Art. 2.

[6]Subs. by the Constitution (Second Amdt.) Order, 1981 (P. O. No. 7 of 1981), Art. 2, for "clause (2)".

[7]Subs. by P. O. No. 5 of 1982, Art. 3, for "members".

[8]Subs. *ibid.,* for "Chairman".

[9]Ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 74.

[1][(3) The Chief Justice shall be a person who is, or has been, or is qualified to be, a Judge of the Supreme Court or who is or has been a permanent Judge of a High Court [2][or a Judge of the Federal Shariat Court qualified to be a Judge of the Supreme Court].

(3A) Of the Judges, not more than four shall be persons each one of whom is, or has been, or is qualified to be, a Judge of a High Court and not more than three shall be *Ulema* [3][having at least fifteen years experience in Islamic law, research or instruction].]

(4) The [4][Chief Justice] and a [5][Judge] shall hold office for a period not exceeding three years, but may be appointed for such further term or terms as the President may determine:

Provided that a Judge of a High Court shall not be appointed to be a [5][Judge] [6]* * * except with his consent and [7][, except where the Judge is himself the Chief Justice,] after consultation by the President with the Chief Justice of the High Court.

[8][(4A) The [4][Chief Justice], if he is not a Judge of the Supreme Court, and a [5][Judge] who is not a Judge of a High Court, may, by writing under his hand addressed to the President, resign his office.]

[9][(4B) The Chief Justice and a Judge shall not be removed from office except in the like manner and on the like grounds as a Judge of the Supreme Court.]

[10]* * * * * * *

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[1]Subs. by the Constitution (Third Amdt.) order, 1985 (P.O. No. 24 of 1985), Art. 4, for "clause (3)".

[2]Ins. by the Constitution (Twenty-sixth Amdt.) Act 2024 (26 of 2024), s. 18.

[3]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s.74, for certain words.

[4]Subs. by the Constitution (Second Amdt.) Order, 1982 (P. O. No. 5 of 1982), Art. 3, for "Chairman".

[5]Subs. *ibid.*, for "members".

[6]Certain words omitted by Act No. 10 of 2010, s. 74.

[7]Subs. by the Constitution (Second Amdt.) Order 1980 (P. O. No. 4 of 1980), Art. 2, for "one year".

[8]Ins. by the Constitution (Second Amdt.) Order, 1980 (P. O. No. 4 of 1980), Art. 2.

[9]Subs. by Act No. 10 of 2010, s. 74, for clause (4B) for which was previously ins. by P. O. No. 14 of 1985, Art. 2 and Sch.

[10]Clauses (4C) and (5) omitted *ibid.*

(6) The principal seat of the Court shall be at Islamabad, but the Court may from time to time sit in such other places in Pakistan as the [1][Chief Justice] may, with the approval of the President, appoint.

(7) Before entering upon office, the [1][Chief Justice] and a [2][Judge] shall make before the President or a person nominated by him oath in the form set out in the Third Schedule.

(8) At any time when the [1][Chief Justice] or a [2][Judge] is absent or is unable to perform the functions of his office, the President shall appoint another person qualified for the purpose to act as [1][Chief Justice] or, as the case may be, [2][Judge].

[3][(9) A Chief Justice who is not a Judge of the Supreme Court shall be entitled to the same remuneration, allowances and privileges as are admissible to a Judge of the Supreme Court and a Judge who is not a Judge of a High Court shall be entitled to the same remuneration, allowances and privileges as are admissible to a Judge of a High Court:

Provided that where a Judge is already drawing a pension for any other post in the service of Pakistan, the amount of such pension shall be deducted from the pension admissible under this clause.]

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[1]Subs. by the Constitution (Second Amdt.) Order, 1982 (P. O. No. 5 of 1982), Art. 3, for "Chairman".

[2]Subs. *ibid.*, for "members".

[3]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 74, and shall be deemed always to have been so, subs. with affect from the 21st day of August 2002 for "clause (9)".

203CC. *[Penal of Ulema and Ulema members.] Omitted by the Constitution (Second Amdt.) Order, 1981 (P.O. No. 7 of 1981), Art. 3, which was previously ins. by P.O. No. 5 of 1981, Art. 2.*

Powers, jurisdiction and functions of the court.

203D. (1) The Court may, [1][either of its own motion or] on the petition of a citizen of Pakistan or the Federal Government or a Provincial Government, examine and decide the question whether or not any law or provision of law is repugnant to the Injunctions of Islam, as laid down in the Holy Quran and the Sunnah of the Holy Prophet, hereinafter referred to as the Injunctions of Islam.

[2][(1A) Where the Court takes up the examination of any law or provision of law under clause (1) and such law or provision of law appears to it to be repugnant to the Injunctions of Islam, the Court shall cause to be given to the Federal Government in the case of a law with respect to a matter in the Federal Legislative List [3]* * * or to the Provincial Government in the case of a law with respect to a matter not enumerated [4][in the Federal Legislative List], a notice specifying the particular provisions that appear to it to be so repugnant, and afford to such Government adequate opportunity to have its point of view placed before the Court.]

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[1]Ins. by the Constitution (Second Amdt.) Order, 1982 (5 of 1982), Art. 4.

[2]Ins. by the Constitution (Amdt.) Order, 1984 (P. O. No. 1 of 1984), Art. 2.

[3]The words "or the Concurrent Legislative List" omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 75.

[4]Subs. *ibid.,* for the words "in the either of those lists".

(2) If the Court decides that any law or provision of law is repugnant to the Injunctions of Islam, it shall set out in its decision :–

(a) the reasons for its holding that opinion; and

(b) the extent to which such law or provision is so repugnant;

and specify the day on which the decision shall take effect [1][:]

[2][Provided that no such decision shall be deemed to take effect before the expiration of the period within which an appeal therefrom may be preferred to the Supreme Court or, where an appeal has been so preferred, before the disposal of such appeal [3][:]]

[4][Provided further that appeal against decision given after the commencement of the Constitution (Twenty-sixth Amendment) Act, 2024 (XXVI of 2024) shall be disposed of within twelve months whereafter the decision shall take effect unless suspended by the Supreme Court.]

(3) If any law or provision of law is held by the Court to be repugnant to the Injunctions of Islam,–

(a) the President in the case of a law with respect to a matter in the Federal Legislative List [5]* * * or the Governor in the case of a law with respect to a matter not enumerated in [6][said List] shall take steps to amend the law so as to bring such law or provision into conformity with the Injunctions of Islam; and

(b) such law or provision shall, to the extent to which it is held to be so repugnant, cease to have effect on the day on which the decision of the Court takes effect.

[7]* * * * * * *

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[1]Subs. and shall be deemed always to have been so subs. by the Constitution (Amdt.) Order, 1984 (P. O. No. 1 of 1984), Art. 2, for the full-stop.

[2]Proviso added and shall be deemed always to have been so added *ibid.*

[3]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.19 for full stop.

[4]Proviso added *ibid.,*

[5]The words "or the Concurrent Legislative List" stand omitted as consequence of the (Eighteenth Amdt.) Act, 2010 (10 of 2010), *see* section 2.

[6]Subs. *ibid.,* for "either of those Lists".

[7]Clause (4) omitted by the Constitution (Second Amdt.) Order, 1980 (P. O. No. 4 of 1980), Art. 3.

[1][**203DD.** (1) The Court may call for and examine the record of any case decided by any criminal court under any law relating to the enforcement of *Hudood* for the purpose of satisfying itself as to the correctness, legality or propriety of any finding, sentence or order recorded or passed by, and as to the regularity of any proceedings of, such court and may, when calling for such record, direct that the execution of any sentence be suspended and, if the accused is in confinement, that he be released on bail or on his own bond pending the examination of the record.

Revisional and other jurisdiction of the Court.

(2) In any case the record of which has been called for by the Court, the Court may pass such order as it may deem fit and may enhance the sentence :

Provided that nothing in this Article shall be deemed to authorize the Court to convert a finding of acquittal into one of conviction and no order under this Article shall be made to the prejudice of the accused unless he has had an opportunity of being heard in his own defence.

(3) The Court shall have such other jurisdiction as may be conferred on it by or under any law.]

203E. (1) For the purposes of the performance of its functions, the Court shall have the powers of a Civil Court trying a suit under the Code of Civil Procedure, 1908 (Act V of 1908), in respect of the following matters, namely :—

Powers and procedure of the Court.

(a) summoning and enforcing the attendance of any person and examining him on oath;

(b) requiring the discovery and production of any document;

(c) receiving evidence on affidavits; and

(d) issuing commissions for the examination of witnesses or documents.

(2) The Court shall have power to conduct its proceedings and regulate its procedure in all respects as it deems fit.

(3) The Court shall have the power of a High Court to punish its own contempt.

(4) A party to any proceedings before the Court under clause (1) of Article 203D may be represented by a legal practitioner who is a Muslim and has been enrolled as an

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[1]Subs. by the Constitution (Second Amdt.) Order, 1982 (P. O. No. 5 of 1982), Art. 5, for "Article 203DD", which was previously ins. by P. O. No. 4 of 1980, Art. 3.

advocate of a High Court for a period of not less than five years or as an advocate of the Supreme Court or by a jurisconsult selected by the party from out of a panel of jurisconsults maintained by the Court for the purpose.

(5) For being eligible to have his name borne on the panel of jurisconsults referred to in clause (4), a person shall be an *aalim* who, in the opinion of the Court, is well-versed in Shariat.

(6) A legal practitioner or jurisconsult representing a party before the Court shall not plead for the party but shall state, expound and interpret the Injunctions of Islam relevant to the proceedings so far as may be known to him and submit to the Court a written statement of his interpretation of such Injunctions of Islam.

(7) The Court may invite any person in Pakistan or abroad whom the Court considers to be well-versed in Islamic law to appear before it and render such assistance as may be required of him.

(8) No court fee shall be payable in respect of any petition or application made to the Court under [1][Article 203D].

[2][(9) The Court shall have power to review any decision given or order made by it.]

Appeal to Supreme Court.

203F. (1) Any party to any proceedings before the Court under Article 203D aggrieved by the final decision of the Court in such proceedings may, within sixty days of such decision, prefer an appeal to the Supreme Court [3][:]

[4][Provided that an appeal on behalf of the Federation or of a Province may be preferred within six months of such decision.]

(2) The provisions of clauses (2) and (3) of Article 203D and clauses (4) to (8) of Article 203E shall apply to and in relation to the Supreme Court as if reference in those provisions to Court were a reference to the Supreme Court.

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[1]Subs. by the Constitution (Second Amdt.) Order, 1980 (P. O. No. 4 of 1980), Art. 5, for "this Article".

[2]New clause (9) added by the Constitution (Amdt.) Order, 1981 (P. O. No. 5 of 1981), Art. 3.

[3]Subs. by the Constitution (Third Amdt.) Order, 1983 (P. O. No. 9 of 1983), Art. 2, for the full-stop.

[4]Proviso added *ibid*.

[1][(2A) An appeal shall lie to the Supreme Court from any judgment, final order or sentence of the Federal Shariat Court—

(a) if the Federal Shariat Court has on appeal reversed an order of acquittal of an accused person and sentenced him to death or imprisonment for life or imprisonment for a term exceeding fourteen years ; or, on revision, has enhanced a sentence as aforesaid; or

(b) if the Federal Shariat Court has imposed any punishment on any person for contempt of the Court.

(2B) An appeal to the Supreme Court from a judgment, decision, order or sentence of the Federal Shariat Court in a case to which the preceding clauses do not apply shall lie only if the Supreme Court grants leave to appeal.]

[2][(3) For the purpose of the exercise of the jurisdiction conferred by this Article, there shall be constituted in the Supreme Court a Bench to be called the Shariat Appellate Bench and consisting of—

(a) three Muslim Judges of the Supreme Court; and

(b) not more than two *Ulema* to be appointed by the President to attend sittings of the Bench as *ad-hoc* members thereof from amongst the Judges of the Federal Shariat Court or from out of a panel of *Ulema* to be drawn up by the President in consultation with the Chief Justice.

(4) A person appointed under paragraph (b) of clause (3) shall hold office for such period as the President may determine.

(5) Reference in clauses (1) and (2) to "Supreme Court" shall be construed as a reference to the Shariat Appellate Bench.

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[1]New "clauses (2A) and (2B)" ins. by the Constitution (Second Amdt.) Order, 1982 (P. O. No. 5 of 1982), Art. 6.

[2]Subs. by the Constitution (Third Amdt.) Order, 1982 (P. O. No. 12 of 1982), Art. 2, for "clause (3)".

(6) While attending sittings of the Shariat Appellate Bench, a person appointed under paragraph (b) of clause (3) shall have the same power and jurisdiction, and be entitled to the same privileges, as a Judge of the Supreme Court and be paid such allowances as the President may determine.]

Bar of jurisdiction.

203G. Save as provided in Article 203F, no court or tribunal, including the Supreme Court and a High Court, shall entertain any proceedings or exercise any power or jurisdiction in respect of any matter within the power or jurisdiction of the Court.

Decision of Court binding on High Court and courts subordinate to it.

[1][**203GG.** Subject to Articles 203D and 203F, any decision of the Court in the exercise of its jurisdiction under this Chapter shall be binding on a High Court and on all courts subordinate to a High Court.]

Pending proceedings to continue, etc.

203H. (1) Subject to clause (2) nothing in this Chapter shall be deemed to require any proceedings pending in any court or tribunal immediately before the commencement of this Chapter or initiated after such commencement, to be adjourned or stayed by reason only of a petition having been made to the Court for a decision as to whether or not a law or provision of law relevant to the decision of the point in issue in such proceedings is repugnant to the Injunctions of Islam; and all such proceedings shall continue, and the point in issue therein shall be decided, in accordance with the law for the time being in force.

(2) All proceedings under clause (1) of Article 203B of the Constitution that may be pending before any High Court immediately before the commencement of this Chapter shall stand transferred to the Court and shall be dealt with by the Court from the stage from which they are so transferred.

(3) Neither the Court nor the Supreme Court shall in the exercise of its jurisdiction under this Chapter have power to grant an injunction or make any interim order in relation to any proceedings pending in any other court or tribunal.

203I. [*Administrative arrangements, etc.,*] *Omitted by the Constitution (Second Amdt.) Order, 1982, (P.O. No. 5 of 1982), Art. 8.*

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[1]New Article 203GG ins. by the Constitution (Second Amdt.) Order, 1982 (P. O. No. 5 of 1982), Art. 7.

Power to make rules.

203J. (1) The Court may, by notification in the official Gazette, make rules for carrying out the purposes of this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may make provision in respect of all or any of the following matters, namely :—

(a) the scale of payment of honoraria to be made to jurisconsults, experts and witnesses summoned by the Court to defray the expenses, if any, incurred by them in attending for the purposes of the proceedings before the Court; [1]*

(b) the form of oath to be made by a Jurisconsult, expert or witness appearing before the Court [2][;]

[3][(c) the powers and functions of the Court being exercised or performed by Benches consisting of one or more members constituted by the Chairman ;

(d) the decision of the Court being expressed in terms of the opinion of the majority of its members or, as the case may be, of the members constituting a Bench ; and

(e) the decision of cases in which the members constituting a Bench are equally divided in their opinion.]

(3) Until rules are made under clause (1), the Shariat Benches of Superior Courts Rules, 1979, shall, with the necessary modifications and so far as they are not inconsistent with the provisions of this Chapter, continue in force.]

CHAPTER 4.—GENERAL PROVISIONS RELATING TO THE JUDICATURE.

Contempt of Court.

[4][**204.** (1) In this Article, "Court" means the [5][Federal Constitutional Court or the] Supreme Court or a High Court.

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[1]The word "and" omitted by the Constitution (Second Amdt.) Order, 1980 (P. O. No. 4 of 1980), Art. 6.

[2]Subs. *ibid.*, for the full-stop.

[3]Paragraphs (c), (d) and (e) added *ibid.*

[4]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "Article 204".

[5]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.43.

(2) A Court shall have power to punish any person who—

(a) abuses, interferes with or obstructs the process of the Court in any way or disobeys any order of the Court;

(b) scandalizes the Court or otherwise does anything which tends to bring the Court or a Judge of the Court into hatred, ridicule or contempt;

(c) does anything which tends to prejudice the determination of a matter pending before the Court; or

(d) does any other thing which, by law, constitutes contempt of the Court.

(3) The exercise of the power conferred on a Court by this Article may be regulated by law and, subject to law, by rules made by the Court.]

Remuneration, etc., of Judges.

205. The remuneration and other terms and conditions of service of a Judge of [1][the Federal Constitutional Court or] the Supreme Court or of a High Court shall be as provided in the Fifth Schedule.

Resignation.

206. [2][(l)] A Judge of the [3][Federal Constitutional Court or of the] Supreme Court or of a High Court may resign his office by writing under his hand addressed to the President.

[4][(2) A Judge of a High Court who does not accept appointment as a Judge of the Federal Constitutional Court or the Supreme Court or a Judge of the Supreme Court who does not accept appointment as a Judge of the Federal Constitutional Court shall be deemed to have retired from his office and, on retirement, shall be entitled to receive a pension calculated on the basis of the length of his service as Judge and total service, if any, in the service of Pakistan.]

Judge not to hold office of profit, etc.

207. (1) A Judge of the [5][Federal Constitutional Court or of the Supreme Court] or of a High Court shall not—

(a) hold any other office of profit in the service of Pakistan if his remuneration is thereby increased; or

(b) occupy any other position carrying the right to remuneration for the rendering of services.

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[1]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.44.

[2]Article 206 re-numbered as clause (1) of that Article, by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 14, (*w.e.f.* the 13th September, 1976).

[3]Ins. by the Act No. 32 of 2025, s. 45.

[4]New clause (2) subs. *ibid.*

[5]Subs. *ibid.,* s.46, for "Supreme Court".

(2) A person who has held office as a Judge of the [1][Federal Constitutional Court or of the Supreme Court] or of a High Court shall not hold any office of profit in the service of Pakistan, not being a judicial or *quasi-judicial* office or the office of Chief Election Commissioner or of Chairman or member of a Law Commission or of Chairman or member of the Council of Islamic Ideology, before the expiration of two years after he has ceased to hold that office.

(3) A person who has held office as a permanent Judge—

(a) of the [1][Federal Constitutional Court or of the Supreme Court], shall not plead or act in any court or before any authority in Pakistan; [2][and]

(b) of a High Court, shall not plead or act in any court or before any authority within its jurisdiction[3][.]

[4]* * * * * * *

Officers and servants of Courts.

208. The [5][Federal Constitutional Court, the] [6][Supreme Court, the Federal Shariat Court and the Islamabad High Court], with the approval of the President and a High Court, with the approval of the Governor concerned, may make rules providing for the appointment by the Court of officers and servants of the Court and for their terms and conditions of employment[7][:]

[8][Provided that till such time rules are made in this regard, the rules providing for the appointment of officers and servants of the Supreme Court and for their terms and conditions of employment shall *mutatis mutandis* apply to the officers and servants of the Federal Constitutional Court.]

Supreme Judicial Council.

[9][**209**. (1) There shall be a Supreme Judicial Council of Pakistan, in this Chapter referred to as the Council.

[10][(2) The Council shall consist of —

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.46.
[2]Ins. *ibid.,*
[3]Subs. *ibid.,* for ";and".
[4]Clause (3) omitted *ibid.,*
[5]Ins. *ibid.,* s. 47
[6]Ins. by the Constitution (Twenty-sixthy Amdt.) Act, 2024 (26 of 2024), s.20 which was previously ins. by the Constitution (Second Amdt.) Order, 1982 (P. O. No. 5 of 1982), Art. 9.
[7]Subs. by the Act No. 32 of 2025, s.47, for "full-stop".
[8]Added *ibid.*
[9]Subs. by the Act No. 26 of 2024, s.21.
[10]Subs. by the Act No. 32 of 2025, s.48, for "clause (2)".

(a) the Chief Justice of the Federal Constitutional Court;

(b) the Chief Justice of the Supreme Court;

(c) one next most senior Judge each of the Federal Constitutional Court and the Supreme Court;

(d) a Judge of the Federal Constitutional Court or the Supreme Court jointly nominated by the Chief Justice of the Federal Constitutional Court and the Chief Justice of the Supreme Court, for a period of two years;

(e) the two most senior Chief Justices of the High Courts.

Explanation I. — The senior amongst the Chief Justice of the Federal Constitutional Court and the Chief Justice of the Supreme Court shall be the Chairperson of the Council. Their *inter se* seniority shall be determined with reference to their dates of appointment as the Chief Justices of the Federal Constitutional Court and the Chief Justice of the Supreme Court otherwise than as acting Chief Justice, in case the dates of such appointment are the same, with reference to their dates of appointment as Judges of the High Courts.

Explanation II. — If a Judge may not be nominated under paragraph (d), the respective Chief Justices shall forward one nominee each to the President who shall , on advice of the Prime Minister, nominate one of them as a Judge under paragraph (d).

Explanation III. — For the purposes of this clause, the *inter se* seniority of the Chief Justices of the High Courts shall be determined with reference to their dates of appointment as Chief Justice otherwise than as acting Chief Justice, and in case the dates of such appointment are the same, with reference to their dates of appointment as Judges of the High Courts.]

[1][(3) If at any time, the Council is inquiring into the capacity, inefficiency or conduct of a Judge who is a member of the Council, or a member of the Council is absent or is unable to act due to illness or any other cause, then if such member is the —

(a) Chief Justice or Judge of the Federal Constitutional Court or the Supreme Court, as the case may be, the Judge who is next in seniority below the Judges referred to in paragraph (c) of clause (2), as the case may be;

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.48, for "clause (3)".

(b) Judge of the Federal Constitutional Court or the Supreme Court referred to in paragraph (d) of clause (2), another Judge nominated under paragraph (d) or Explanation II of clause (2); and

(c) Chief Justice of a High Court, the Chief Justice of another High Court who is next in seniority amongst the Chief Justices of the remaining High Courts,

shall act as a member of the Council in his place.]

(4) If, upon any matter inquired into by the Council, there is a difference of opinion amongst its members, the opinion of the majority shall prevail, and the report of the Council to the President shall be expressed in terms of the view of the majority.

(5) If, on information from any source or the report from the Commission under clause (19) of Article 175A [1][and Article 200], the Council or the President is of the opinion that a Judge [1][of the Federal Constitution Court or] of the Supreme Court or of a High Court—

(a) may be incapable of properly performing the duties of his office by reason of physical or mental incapacity; or

(b) may be inefficient in the performance of the duties of his office; or

(c) may have been guilty of misconduct, [1][or]

[1][(d) does not accept a transfer under Article 200.]

the Council, on its own motion or on receipt of report from the Commission under clause (19) of Article 175A [1][and Article 200], or on the direction of the President, shall inquire into the matter.

(6) If, after inquiring into the matter, without unnecessary delay and in case of report or direction under clause (5), within six months [1][and within thirty days in case where paragraph (d) applies], the Council reports to the President that it is of the opinion that —

(a) the Judge is incapable of performing the duties of his office or is found inefficient in performance of the duties of his office or has been guilty of misconduct [1][or does not accept transfer under Article 200]; and

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[1]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.48.

(b) he should be removed from office, the President may remove the Judge from office.

(7) A Judge [1][of the Federal Constitutional Court or] of the Supreme Court or of a High Court shall not be removed from office except as provided by this Article.

(8) The Council shall issue a code of conduct to be observed by Judges of [1][the Federal Constitutional Court,] the Supreme Court and the High Courts.

(9) Subject to the rules made by the Council, there shall be a secretariat of the Council to be headed by a secretary and shall include such other officers and staff, as may be necessary.]

[1][(10) Within sixty days of commencement of the Constitution (Twenty-seventh Amendment) Act, 2025, the Council shall make rules regulating its procedure and conduct of business.]

Power of Council to enforce attendance of persons, etc.

210. (1) For the purpose of inquiring into any matter, the Council shall have the same power as the [2][the Federal Constitutional Court or the Supreme Court] has to issue directions or orders for securing the attendance of any person or the discovery or production of any document; and any such direction or order shall be enforceable as if it had been issued by the [2][the Federal Constitutional Court or the Supreme Court].

(2) The provisions of Article 204 shall apply to the Council as they apply to the [2][Federal Constitutional Court, the Supreme Court] and a High Court.

Bar of jurisdiction.

211. The proceedings before the Council, its report to the President and the removal of a Judge under clause (6) of Article 209 shall not be called in question in any court.

Administrative Courts and Tribunals.

212. (1) Notwithstanding anything hereinbefore contained the appropriate Legislature may by Act [3][provide for the establishment of] one or more Administrative Courts or Tribunals to exercise exclusive jurisdiction in respect of—

(a) matters relating to the terms and conditions of persons [4][who are or have been] in the service of Pakistan, including disciplinary matters

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[1]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.48.

[2]Subs.*ibid.,* s.49, for "Supreme Court".

[3]Subs. and shall be deemed always to have been so subs. by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 12, for "establish".

[4]Ins. and shall be deemed always to have been so ins. *ibid.*

(b) matters relating to claims arising from tortious acts of Government, or any person in the service of Pakistan, or of any local or other authority empowered by law to levy any tax or cess and any servant of such authority acting in the discharge of his duties as such servant; or

(c) matters relating to the acquisition, administration and disposal of any property which is deemed to be enemy property under any law.

(2) Notwithstanding anything hereinbefore contained where any Administrative Court or Tribunal is established under clause (1), no other court shall grant an injunction, make any order or entertain any proceedings in respect of any matter to which the jurisdiction of such Administrative Court or Tribunal extends [1][and all proceedings in respect of any such matter which may be pending before such other court immediately before the establishment of the Administrative Court or Tribunal [2][; other than an appeal pending before the Supreme Court,] shall abate on such establishment]:

Provided that the provisions of this clause shall not apply to an Administrative Court or Tribunal established under an Act of a Provincial Assembly unless, at the request of that Assembly made in the form of a resolution, [3][Majlis-e-Shoora (Parliament)] by law[4] extends the provisions to such a Court or Tribunal.

(3) An appeal to the Supreme Court from a judgment, decree, order or sentence of an Administrative Court or Tribunal shall lie only if the Supreme Court, being satisfied that the case involves a substantial question of law of public importance, grants leave to appeal.

212A. [*Establishment of Military Courts or Tribunals.] Omitted by S.R.O. No. 1278 (I) 85, dated 30-12-85, read with proclamation of withdrawal of Martial Law dated 30-12-85 see Gaz. of P. 1985, Ext., Pt. I, dated 30-12-85, pp. 431-432, which was previously added by P. 0. No. 21 of 1979, Art. 2.*

212B. [*Establishment of Special Courts for trial of heinous offences.] Repealed by the Constitution (Twelfth Amdt.) Act,* 1991 *(14 of 1991), s. 1 (3), (w.e.f. 26th July, 1994), which was previously added by Act 14 of 1991 s. 2, (w.e.f. 27th July, 1991).*

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[1]Ins. and shall be deemed always to have been so ins. by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 12.

[2]Ins. and shall be deemed always to have been so ins. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 15.

[3]*See* footnote 9 on page 5, *supra*.

[4]For such law see the Provincial Service Tribunals (Extension of Provisions of the Constitution) Act, 1974 (32 of 1974).

PART VIII

Elections

CHAPTER 1.—CHIEF ELECTION COMMISSIONER AND ELECTION [1][COMMISSION].

213. (1) There shall be a Chief Election Commissioner (in this Part referred to as the Commissioner), who shall be appointed by the President [2]***. **Chief Election Commissioner.**

[3][(2) No person shall be appointed Commissioner unless he has been a Judge of the Supreme Court or has been a senior civil servant or is a technocrat and is not more than sixty-eight years of age.

Explanation 1.— "senior civil servant" means a civil servant who has served for at least twenty years under Federal or a Provincial Government and has retired in BPS-22 or above.

Explanation 2.— "technocrat" means a person who is the holder of a degree requiring conclusion of at least sixteen years of education, recognized by the Higher Education Commission and has at least twenty years of experience, including a record of achievements at the national or international level.]

[4][(2A) The Prime Minister shall in consultation with the Leader of the Opposition in the National Assembly, forward three names for appointment of the Commissioner to a Parliamentary Committee for hearing and confirmation of any one person [5][:]

[6][Provided that in case there is no consensus between the Prime Minister and the Leader of the Opposition, each shall forward separate lists to the Parliamentary Committee for consideration which may confirm any one name.]

(2B) The Parliamentary Committee to be constituted by the Speaker shall comprise fifty percent members from the Treasury Benches and fifty percent from the Opposition Parties, based on their strength in Majlis-e-Shoora (Parliament), to be nominated by the respective Parliamentary Leaders:

[7]* * * * * * *

[8][Provided [9]* that the total strength of the Parliamentary Committee shall be twelve members out of which one-third shall be from the Senate:]

Provided [10][further] that when the National Assembly is dissolved and a vacancy occurs in the office of the Chief Election Commissioner, the [11][total membership of the Parliamentary Committee shall consist of] the members from the Senate only and the foregoing provisions of this clause shall, *mutatis mutandis*, apply.]

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[1]Subs. by the Constitution (Twenty-Second Amdt.) Act, 2016 (25 of 2016), s. 3, for "COMMISSIONS".
[2]The words "in his discretion" omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 77.
[3]Subs. by the Act No. 25 of 2016, s. 4, for "clause (2)".
[4]New clauses (2A) and (2B) ins. by the Act No. 10 of 2010, s. 77.
[5]Subs. by the Act No. 25 of 2016, s. 4, for the full-stop.
[6]Proviso ins. *ibid.*
[7]First Proviso omitted *ibid.*
[8]Subs. by the Constitution (Nineteenth Amdt.) Act, 2010(1 of 2011), s. 6 for "proviso".
[9]The word "further" omitted by the Act No. 25 of 2016, s. 4.
[10]Subs. *ibid.,* for the word "also".
[11]Subs. by the Act No. 1 of 2011, s. 6, for the words "Parliamentary Committee shall comprise".

(3) The Commissioner [1][or a member] shall have such powers and functions as are conferred on him by the Constitution and law.

[2]*Oath of Office.

214. Before entering upon office, the Commissioner shall make before the Chief Justice of Pakistan [3][, and a member of the Election Commission shall make before the Commissioner,] oath in the form set-out in the Third Schedule.

Term of office of Commissioner [4][and members].

215. (1) The Commissioner [5][and a member] shall, subject to this Article, hold office for a term of [6][five] years from the day he enters upon his office:

[7][Provided that two of the members shall retire after the expiration of first two and a half years and two shall retire after the expiration of the next two and a half years:

[8][Provided further that the Commissioner and a member shall, notwithstanding the expiration of his term, continue to hold office until his successor enters upon the office:]

Provided [8][also] that the Commission shall for the first term of office of members draw a lot as to which two members shall retire after the first two and a half years:

Provided also that the term of office of a member appointed to fill a casual vacancy shall be the un-expired term of office of the member whose vacancy he has filled.]

[9]* * * * * * *

(2) The Commissioner [10][or a member] shall not be removed from office except in the manner prescribed in Article 209 for the removal from office of a Judge and, in the application of the Article for the purposes of this clause, any reference in that Article to a Judge shall be construed as a reference to the Commissioner [11][or, as the case may be, a member].

(3) The Commissioner [10][or a member] may, by writing under his hand addressed to the President, resign his office.

[12][(4) Vacancy in the office of the Commissioner or a member shall be filled within forty-five days.]

Commissioner [12][and members] not to hold office of profit.

216. (1) The Commissioner [13][or a member] shall not—

(a) hold any other office of profit in the service of Pakistan; or

(b) occupy any other position carrying the right to remuneration for the rendering of services.

(2) A person who has held office as Commissioner [13][or a member] shall not hold any office of profit in the service of

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[1]Ins. by the Constitution (Twenty-Second Amdt.) Act, 2016 (25 of 2016), s.4.
[2]The word "Commissioner's" omitted by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 3.
[3]Ins. *ibid.,* s. 3.
[4]Added *ibid.* s.4.
[5]Ins. *ibid.*
[6]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 78, for "three".
[7]Subs. by the Act No. 25 of 2016, s.5, for "proviso".
[8]Ins., and subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.22.
[9]Proviso omitted by the Act No. 10 of 2010, s.78.
[10]Ins. by the Act No. 5 of 2012, s. 4.
[11]Added *ibid.*
[12]New clause (4) ins. by the Act No. 25 of 2016, s. 5.
[13]Ins. by the Act No. 5 of 2012, s. 5.

Pakistan before the expiration of two years after he has ceased to hold that office [1][.]

[2]* * * * * * *

[3]* * * * * * *

Acting Commissioner.

217. At any time when—

(a) the office of Commissioner is vacant, or

(b) the Commissioner is absent or is unable to perform the functions of his office due to any other cause,

[4][the most senior member in age of the members of Commission] shall act as Commissioner.

Election Commission.

218. [5][(1) For the purpose of election to both Houses of *Majlis-e-Shoora* (Parliament), Provincial Assemblies and for election to such other public offices as may be specified by law, a permanent Election Commission shall be constituted in accordance with this Article.]

[5][(2) The Election Commission shall consist of,—

(a) the Commissioner who shall be the Chairman of the Commission; and

[6][(b) four members, one from each Province, each of whom shall be a person who has been a Judge of a High Court or has been a senior civil servant or is a technocrat and is not more than sixty-five years of age, to be appointed by the President in the manner provided for appointment of the Commissioner in clauses (2A) and (2B) of Article 213.

Explanation.— "senior civil servant" and "technocrat" shall have the same meaning as given in clause (2) of Article 213.]].

(3) It shall be the duty of the Election Commission [7]* * * to organize and conduct the election and to make such arrangements as are necessary to ensure that the election is conducted honestly, justly, fairly and in accordance with law, and that corrupt practices are guarded against.

Duties of [8][Commission].

219. The [9][Commission] shall be charged with the duty of—

[10][(a) preparing electoral rolls for election to the National Assembly, Provincial Assemblies and local governments, and revising such rolls periodically to keep them up-to-date;]

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[1]Subs. by the Constitution (Twenty-Second Amdt.) Act, 2016 (25 of 2016), s. 6, for full-stop.
[2]Proviso omitted *ibid.*
[3]Paragraph (b) omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 79.
[4]Subs. by the Act No. 25 of 2016, s. 7, for certain words.
[5]Subs. by the Act No. 10 of 2010, s. 80, for "clauses (1) and (2)".
[6]Subs. by the Act No. 25 of 2016, s. 8, for "paragraph (b)".
[7]The words "constituted in relation to an election" omitted by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 6.
[8]Subs. by the Act. No. 25 of 2016, s. 9, for "Commissioner".
[9]Subs. by the Act. No. 10 of 2010, s. 81, for "Commissioner".
[10]Subs. by the Act. No. 25 of 2016, s. 9, for "paragraph (a)".

(b) organizing and conducting election to the Senate or to fill casual vacancies in a House or a Provincial Assembly;

(c) appointing Election Tribunals [1][;]

[2][(d) the holding of general elections to the National Assembly, Provincial Assemblies and the local governments; and

(e) such other functions as may be specified by an Act of *Majlis-e-Shoora* (Parliament) [3][:]]

[4][Provided that till such time as the members of the Commission are first appointed in accordance with the provisions of paragraph (b) of clause (2) of Article 218 pursuant to the Constitution (Eighteenth Amendment) Act, 2010, and enter upon their office, the Commissioner shall remain charged with the duties enumerated in paragraphs (a), (b) and (c) of this Article.]

Executive authorities to assist Commission, etc.

220. It shall be the duty of all executive authorities in the Federation and in the Provinces to assist the Commissioner and the Election Commission in the discharge of his or their functions.

Officers and [5][staff].

221. Until [6][Majlis-e-Shoora (Parliament)] by law otherwise provides, the [7][Election Commission] may, with the approval of the President, make rules providing for the appointment by the [8][Commissioner] of officers and [5][staff] to be employed in connection with the functions of the [9]* * * Election Commission and for their terms and conditions of employment.

CHAPTER 2.—ELECTORAL LAWS AND CONDUCT OF ELECTIONS

Electoral laws.

222. Subject to the Constitution, [6][Majlis-e-Shoora (Parliament)] may by law provide for—

(a) the allocation of seats in the National Assembly as required by clauses (3) and (4) of Article 51;

(b) the delimitation of constituencies by the Election Commission [10][including delimitation of constituencies of local governments];

(c) the preparation of electoral rolls, the requirements as to residence in a constituency, the determination of objections pertaining to and the commencement of electoral rolls;

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 81, for the full-stop.
[2]New paragraphs (d) and (e) added *ibid*.
[3]Subs. by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 7, for the full-stop.
[4]Proviso ins. *ibid.*
[5]Subs. by the Constitution (Twenty-Second Amdt.) Act, 2016 (25 of 2016), s.10, for "servants".
[6]*See* footnote 9 on page 5, *supra.*
[7]Subs. by the Act No. 10 of 2010, s. 82, for "Commissioner".
[8]Subs by the Act No. 25 of 2016, s. 10, for "Election Commission".
[9]The words "Commissioner or an" omitted by the Act No. 10 of 2010, s. 82.
[10]Added by the Act No. 25 of 2016, s. 11.

(d) the conduct of elections and election petitions the decision of doubts and disputes arising in connection with elections;

(e) matters relating to corrupt practices and other offences in connection with elections; and

(f) all other matters necessary for the due constitution of the two Houses [1][,] [2]* the Provincial Assemblies [3][and local governments];

but no such law shall have the effect of taking away or abridging any of the powers of the Commissioner or [4][the] Election Commission under this Part.

Bar against double membership.

223. (1) No person shall, at the same time, be a member of—

(a) both Houses; or

(b) a House and a Provincial Assembly; or

(c) the Assemblies of two or more Provinces; or

(d) a House or a Provincial Assembly in respect of more than one seat.

(2) Nothing in clause (1) shall prevent a person from being a candidate for two or more seats at the same time, whether in the same body or in different bodies, but if he is elected to more than one seat he shall, within a period of thirty days after the declaration of the result for the last such seat, resign all but one of his seats, and if he does not so resign, all the seats to which he has been elected shall become vacant at the expiration of the said period of thirty days except the seat to which he has been elected last or, if he has been elected to more than one seat on the same day, the seat for election to which his nomination was filed last.

Explanation.—In this clause, "body" means either House or a Provincial Assembly.

(3) A person to whom clause (2) applies shall not take a seat in either House or the Provincial Assembly to which he has been elected until he has resigned all but one of his seats.

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[1]Ins. by the Constitution (Twenty-Second Amdt.) Act, 2016 (25 of 2016), s. 11.
[2]The word "and" omitted *ibid*.
[3]Added *ibid.*
[4]Subs. *ibid.,* for the word "an".

(4) Subject to clause (2) if a member of either House or of a Provincial Assembly becomes a candidate for a second seat which, in accordance with clause (1), he may not hold concurrently with his first seat, then his first seat shall become vacant as soon as he is elected to the second seat.

Time of Election and bye-election.

224. [1][(1) A general election to the National Assembly or a Provincial Assembly shall be held within a period of sixty days immediately following the day on which the term of the Assembly is due to expire, unless the Assembly has been sooner dissolved, and the results of the election shall be declared not later than fourteen days before that day.]

[2][(1A) On dissolution of the Assembly on completion of its term, or in case it is dissolved under Article 58 or Article 112, the President, or the Governor, as the case may be, shall appoint a care-taker Cabinet:

Provided that the care-taker Prime Minister shall be [3][appointed] by the President in consultation with the Prime Minister and the Leader of the Opposition in the outgoing National Assembly, and a care-taker Chief Minister shall be appointed by the Governor in consultation with the Chief Minister and the Leader of the Opposition in the outgoing Provincial Assembly:

[4][Provided further that if the Prime Minister or a Chief Minister and their respective Leader of the Opposition do not agree on any person to be appointed as a care-taker Prime Minister or the care-taker Chief Minister, as the case may be, the provisions of Article 224A shall be followed:]

Provided [5][also] that the Members of the Federal and Provincial care-taker Cabinets shall be appointed on the advice of the care-taker Prime Minister or the care-taker Chief Minister, as the case may be.

(1B) Members of the care-taker Cabinets including the care-taker Prime Minister and the care-taker Chief Minister and their immediate family members shall not be eligible to contest the immediately following elections to such Assemblies.

Explanation.—In this clause "immediate family members" means spouse and children.]

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 83, for "clause (1)".

[2]New clauses (1A), (1B) and Explanation ins. *ibid*.

[3]Subs. by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 8, for "selected".

[4]New proviso ins. *ibid.*

[5]Subs. *ibid.,* for "further".

(2) When the National Assembly or a Provincial Assembly is dissolved, a general election to the Assembly shall be held within a period of ninety days after the dissolution, and the results of the election shall be declared not later than fourteen days after the conclusion of the polls.

(3) An election to fill the seats in the Senate which are to become vacant on the expiration of the term of the members of the Senate shall be held not earlier than thirty days immediately preceding the day on which the vacancies are due to occur.

(4) When, except by dissolution of the National Assembly or a Provincial Assembly, a [1]* seat in any such Assembly has become vacant not later than one hundred and twenty days before the term of that Assembly is due to expire, an election to fill the seat shall be held within sixty days from the occurrence of the vacancy.

(5) When a seat in the Senate has become vacant, an election to fill the seat shall be held within thirty days from the occurrence of the vacancy.

[2][(6) When a seat reserved for women or non-Muslims in the National Assembly or a Provincial Assembly falls vacant, on account of death, resignation or disqualification of a member, it shall be filled by the next person in order of precedence from the party list of the candidates to be submitted to the Election Commission by the political party whose member has vacated such seat [3][:]]

[4][Provided that if at any time the party list is exhausted, the concerned political party may submit a name for any vacancy which may occur thereafter.]

[5]* * * * * * *

Resolution by Committee or Election Commission.

[6][**224A.** (1) In case the Prime Minister and the Leader of the Opposition in the outgoing National Assembly do not agree on any person to be appointed as the care-taker Prime Minister, within three days of the dissolution of the National Assembly, they shall forward two nominees each to a Committee to be

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[1]The word "general" omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 2.

[2]New clause (6) ins. and shall be deemed always to have been so ins. with effect from the 21st day of August 2002 *ibid*., s. 83.

[3]Subs. by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 8, for the full-stop.

[4]Proviso added *ibid.*

[5]Clause (7) stands omitted as a consequence (Eighteenth Amdt.) Act, 2010 (10 of 2010), see section 2.

[6]New Article 224A ins. by the Act No. 5 of 2012, s. 9.

immediately constituted by the Speaker of the National Assembly, comprising eight members of the outgoing National Assembly, or the Senate, or both, having equal representation from the Treasury and the Opposition, to be nominated by the Prime Minister and the Leader of the Opposition respectively.

(2) In case a Chief Minister and the Leader of the Opposition in the outgoing Provincial Assembly do not agree on any person to be appointed as the care-taker Chief Minister, within three days of the dissolution of that Assembly, they shall forward two nominees each to a Committee to be immediately constituted by the Speaker of the Provincial Assembly, comprising six members of the outgoing Provincial Assembly having equal representation from the Treasury and the Opposition, to be nominated by the Chief Minister and the Leader of the Opposition respectively.

(3) The Committee constituted under clause (1) or (2) shall finalize the name of the care-taker Prime Minister or care-taker Chief Minister, as the case may be, within three days of the referral of the matter to it:

Provided that in case of inability of the Committee to decide the matter in the aforesaid period, the names of the nominees shall be referred to the Election Commission of Pakistan for final decision within two days.

(4) The incumbent Prime Minister and the incumbent Chief Minister shall continue to hold office till appointment of the care-taker Prime Minister and the care-taker Chief Minister, as the case may be.

(5) Notwithstanding anything contained in clauses (1) and (2), if the members of the Opposition are less than five in the Majlis-e-Shoora (Parliament) and less than four in any Provincial Assembly, then all of them shall be members of the Committee mentioned in the aforesaid clauses and the Committee shall be deemed to be duly constituted.]

Election dispute.

225. No election to a House or a Provincial Assembly shall be called in question except by an election petition presented to such tribunal and in such manner as may be determined by Act of [1][Majlis-e-Shoora (Parliament)].

Election by secret ballot.

[2][**226.** All elections under the Constitution, other than those of the Prime Minister and the Chief Minister, shall be by secret ballot.]

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 84, for "Article 226".

PART IX

Islamic Provisions

Provisions relating to the Holy Quran and Sunnah.

227. (1) All existing laws shall be brought in conformity with the Injunctions of Islam as laid down in the Holy Quran and Sunnah, in this part referred to as the Injunctions of Islam, and no law shall be enacted which is repugnant to such Injunctions.

[1][*Explanation.*–In the application of this clause to the personal law of any Muslim sect, the expression "Quran and Sunnah" shall mean the Quran and Sunnah as interpreted by the sect.]

(2) Effect shall be given to the provisions of clause (1) only in the manner provided in this Part.

(3) Nothing in this Part shall affect the personal laws of non-Muslim citizens or their status as citizens.

Composition, etc., of Islamic Council.

228. (1) There shall be, constituted[2] within a period of ninety days from the commencing day a Council of Islamic Ideology, in this part referred to as the Islamic Council.

(2) The Islamic Council shall consist of such members, being not less than eight and not more than [3][twenty] as the President may appoint from amongst persons having knowledge of the principles and philosophy of Islam as enunciated in the Holy Quran and Sunnah, or understanding of the economic, political, legal or administrative problems of Pakistan.

(3) While appointing members of the Islamic Council, the President shall ensure that–

(a) so far as practicable various schools of thought are represented in the Council;

(b) not less than two of the members are persons each of whom is, or has been a Judge of the Supreme Court or of a High Court;

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[1]*Explanation* added by the Constitution (Third Amdt.) Order, 1980 (P. O. No. 14 of 1980), Art. 2.

[2]For the notification constituting the Council of Islamic Ideology, *see* Gaz. of Pak., 1974, Ext., Pt. II, p. 165.

For the Council of Islamic Ideology (Terms and Conditions of Members) Rules, 1974, *see* Gaz. of Pak., Ext., Pt. II, p. 1727.

[3]Subs. by the Constitution (Fourth Amdt.) Order, 1980 (P.O. No. 16 of 1980), Art. 2, for "fifteen".

(c) not less than [1][one third] of the members are persons each of whom has been engaged, for a period of not less than fifteen years, in Islamic research or instruction; and

(d) at least one member is a woman.

[2][(4) The President shall appoint one of the members of the Islamic Council to be the Chairman thereof.]

(5) Subject to clause (6), a member of the Islamic Council shall hold office for a period of three years.

(6) A member may, by writing under his hand addressed to the President, resign his office or may be removed by the President upon the passing of a resolution for his removal by a majority of the total membership of the Islamic Council.

Reference by [3][Majlis-e-Shoora (Parliament)], etc., to Islamic Council.

229. The President or the Governor of a Province may, or if [3][one-fourth] of its total membership so requires, a House or a Provincial Assembly shall, refer to the Islamic Council for advice any question as to whether a proposed law is or is not repugnant to the Injunctions of Islam.

Functions of the Islamic Council.

230. (1) The functions of the Islamic Council shall be–

(a) to make recommendations to [4][Majlis-e-Shoora (Parliament)] and the Provincial Assemblies as to the ways and means of enabling and encouraging the Muslims of Pakistan to order their lives individually and collectively in all respects in accordance with the principles and concepts of Islam as enunciated in the Holy Quran and Sunnah;

(b) to advise a House, a Provincial Assembly, the President or a Governor on any question referred to the Council as to whether proposed law is or is not repugnant to the Injunctions of Islam;

(c) to make recommendations as to the measures for bringing existing laws into conformity with the Injunctions of Islam and the stages by which such measures should be brought into effect; and

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 85, for "four".

[2]Subs. by the Constitution (Fourth Amdt.) Order, 1982 (P.O. No. 13 of 1982), Art. 2, for "clause (4)".

[3]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.23, for "two-fifths".

[4]*See* footnote 9 on page 5, *supra*.

(d) to compile in a suitable form, for the guidance of [1][Majlis-e-Shoora (Parliament)] and the Provincial Assemblies, such Injunctions of Islam as can be given legislative effect.

(2) When, under Article 229, a question is referred by a House, a Provincial Assembly, the President or a Governor to the Islamic Council, the Council shall, within fifteen days thereof, inform the House, the Assembly, the President or the Governor, as the case may be, of the period within which the Council expects to be able to furnish that advice.

(3) Where a House, a Provincial Assembly, the President or the Governor, as the case may be, considers that, in the public interest, the making of the proposed law in relation to which the question arose should not be postponed until the advice of the Islamic Council is furnished, the law may be made before the advice is furnished:

Provided that, where a law is referred for advice to the Islamic Council and the Council advises that the law is repugnant to the Injunctions of Islam, the House or, as the case may be, the Provincial Assembly, the President or the Governor shall reconsider the law so made.

(4) The Islamic Council shall submit its final report within seven years of its appointment, and shall submit an annual interim report. The report, whether interim or final, shall be laid for discussion before both Houses and each Provincial Assembly within six months of its receipt, and [1][Majlis-e-Shoora (Parliament)] and the Assembly, after considering the report, shall enact laws in respect thereof within a period of two years of the final report [2][:]

[3][Provided that the final report in any case shall be considered within twelve months after it has been laid.]

Rules of procedure.

231. The proceedings of the Islamic Council shall be regulated by rules of procedure[4] to be made by the Council with approval of the President.

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[1]*See* footnote 9 on page 5, *supra*.

[2]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.24, for "full stop".

[3]Added *ibid.,*

[4]For the Council of Islamic Ideology (Procedure Rules), 1974, *see* Gaz. of Pak., 1974, Ext., Pt. II, pp. 771–773.

PART X

Emergency Provisions

Proclamation of emergency on account of war, internal disturbance, etc.

232. (1) If the President is satisfied that a grave emergency exists in which the security of Pakistan, or any part thereof, is threatened by war or external aggression, or by internal disturbance beyond the power of a Provincial Government to control, he may issue a Proclamation of Emergency [1][:]

[2][Provided that for imposition of emergency due to internal disturbances beyond the powers of a Provincial Government to control, a resolution from the Provincial Assembly of that Province shall be required:

Provided further that if the President acts on his own, the Proclamation of Emergency shall be placed before both Houses of Majlis-e-Shoora (Parliament) for approval by each House within ten days.]

(2) Notwithstanding anything in the Constitution, while a Proclamation of Emergency is in force–

[3][(a) Majlis-e-Shoora (Parliament) shall have power to make laws for a Province, or any part thereof, with respect to any matter not enumerated in the Federal Legislative List [4]* * *;]

(b) the executive authority of the Federation shall extend to the giving of directions to a Province as to the manner in which the executive authority of the Province is to be exercised; and

(c) the Federal Government may by Order[5] assume to itself, or direct the Governor of a Province to assume on behalf of the Federal Government, all or any of the functions of the Government of the Province, and all or any of the powers vested in, or exercisable by, any body or authority in the Province other than the Provincial Assembly, and make such incidental and consequential provisions as appear to the Federal Government to be necessary or desirable for giving

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 86, for the full-stop.

[2]New provisos ins. *ibid.*

[3]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "paragraph (a)".

[4]The words "or the Concurrent Legislative List" stand omitted as a consequence of the (Eighteenth Amdt.) Act, 2010 (10 of 2010), *see* section 2.

[5]For such Order, in respect of N.W.F.P. *see* S.R.O. No. 202(I)/75, dated the 16th February, 1975, *see* Gaz. of Pak. 1975, Ext., Pt. II, p. 329, since rescinded by S.R.O. No. 522(I)/75, dated the 3rd May, 1975, *see* Gaz. of Pak., 1975, Ext., Pt. II, p. 727; and

For such Order, in respect of the Province of Balochistan, *see* S.R.O. No. 641(I)/76, dated the 30th June, 1976, *see* Gaz. of Pak., 1976, Ext., Pt. II, p. 1207 since rescinded by S. R. O. No. 1161 (I)/76, dated the 6th December, 1976, *see* Gaz. of Pak. 1976, Ext., Pt. II, p. 2279.

For such proclamation issued on 28-5-1998, *see* Gaz. of Pak. 1998, Ext., Pt. I, p. 32.

effect to the objects of the Proclamation, including provisions for suspending, in whole or in part, the operation of any provisions of the Constitution relating to any body or authority in the Province:

Provided that nothing in paragraph (c) shall authorize the Federal Government to assume to itself, or direct the Governor of the Province to assume on its behalf, any of the powers vested in or exercisable by a High Court, or to suspend either in whole or in part the operation of any provisions of the Constitution relating to High Courts.

(3) The power of [1][Majlis-e-Shoora (Parliament)] to make laws for a Province with respect to any matter shall include power to make laws conferring powers and imposing duties, or authorizing the conferring of powers and the imposition of duties upon the Federation, or officers and authorities of the Federation, as respects that matter.

(4) Nothing in this Article shall restrict the power of a Provincial Assembly to make any law which under the Constitution it has power to make, but if any provision of a Provincial law is repugnant to any provision of an Act of [1][Majlis-e-Shoora (Parliament)] which [1][Majlis-e-Shoora (Parliament)] has under this Article power to make, the Act of [1][Majlis-e-Shoora (Parliament)], whether passed before or after the Provincial law, shall prevail and the Provincial law shall, to the extent of the repugnancy, but so long only as the Act of [1][Majlis-e-Shoora (Parliament)] continues to have effect, be void.

(5) A law made by [1][Majlis-e-Shoora (Parliament)] which [1][Majlis-e-Shoora (Parliament)] would not but for the issue of a Proclamation of Emergency have been competent to make, shall, to the extent of the incompetency, cease to have effect on the expiration of a period of six months after the Proclamation of Emergency has ceased to be in force, except as respects things done or omitted to be done before the expiration of the said period.

(6) While a Proclamation of emergency is in force, [1][Majlis-e-Shoora (Parliament)] may by law extend the term of the National Assembly for a period not exceeding one year and not extending in any case beyond a period of six months after the Proclamation has ceased to be in force.

(7) A Proclamation of Emergency shall be laid before a joint sitting which shall be summoned by the President to meet within thirty days of the Proclamation being issued and–

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[1]*See* footnote 9 on page 5, *supra.*

(a) shall cease to be in force at the expiration of two months unless before the expiration of that period it has been approved by a resolution[1] of the joint sitting; and

[2][(b) shall, subject to the provisions of paragraph (a), cease to be in force upon a resolution disapproving the proclamation being passed by the votes of the majority of the total membership of the two Houses in joint sitting.]

(8) Notwithstanding anything contained in clause (7), if the National Assembly stands dissolved at the time when a Proclamation of Emergency is issued, the Proclamation shall continue in force for a period of four months but, if a general election to the Assembly is not held before the expiration of that period; it shall cease to be in force at the expiration of that period unless it has earlier been approved by a resolution of the Senate.

Power to suspend Fundamental Rights, etc., during emergency period.

233. (1) Nothing contained in Articles 15, 16, 17, 18, 19, and 24 shall, while a Proclamation of Emergency is in force, restrict the power of the State as defined in Article 7 to make any law or to take any executive action which it would, but for the provisions in the said Articles, be competent to make or to take, but any law so made shall, to the extent of the incompetency, cease to have effect, and shall be deemed to have been repealed, at the time when the Proclamation is revoked or has ceased to be in force.

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[1]The joint sitting passed the following resolution on the 5th September, 1973 :–

"That the joint sitting approves under clause (7) of Art. 232 of the Constitution read with Art. 280 thereof, the Proclamation of Emergency issued on the 23rd day of November, 1971, and the continuance in force of the said Proclamation for the period of six months following the expiration of the period mentioned in paragraph (a) of the said clause (7)."

The joint sitting passed the following resolution on 10-6-1998.

"That the joint sitting approve under clause (7) of Article 232 of the Constitution the Proclamation of Emergency issued by the President on the 28th May, 1998, under clause (1) of Article 232 of the Constitution." *see* Gaz. of Pak. 1998, Ext., Pt. III, p. 647.

[2]Subs. by the Constitution (Third Amdt.) Act, 1975 (22 of 1975), s. 3, for original paragraph (b) (*w.e.f.* the 13th February, 1975) which reads as follows :–

"(b) may by resolution of a joint sitting, be continued in force for a period not exceeding six months at a time."

For resolutions under original paragraph (b) approving the continuance in force of the Proclamation of Emergency, *see* Gaz. of Pak., 1974, Ext., Pt. III, p. 343, and *ibid.,* p. 1183.

(2) While a Proclamation of Emergency is in force, the President may, by Order,[1] declare that the right to move any court for the enforcement of such of the Fundamental Rights conferred by Chapter 1 of Part II as may be specified in the Order, and any proceeding in any court which is for the enforcement, or involves the determination of any question as to the infringement, of any of the Rights so specified, shall remain suspended for the period during which the Proclamation is in force, and any such Order may be made in repect of the whole or any part of Pakistan.

(3) Every Order made under this Article shall, as soon as may be, be laid before [2][both Houses of Majlis-e-Shoora (Parliament) separately] for approval[3] and the provisions of clauses (7) and (8) of Article 232 shall apply to such an Order as they apply to a Proclamation of Emergency.

Power to issue Proclamation in case of failure of Constitutional machinery in a Province.

234. (1) If the President, on receipt of a report from the Governor of a Province [4]* * is satisfied that a situation has arisen in which the Government of the Province cannot be carried on in accordance with the provisions of the Constitution, the President may, or if a resolution in this behalf is passed [5][by each House separately] shall, by Proclamation,

(a) assume to himself, or direct the Governor of the Province to assume on behalf of the President, all or any of the functions of the Government of the Province, and all or any of the powers vested in, or exercisable by, any body or authority in the Province, other than the Provincial Assembly ;

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[1]The Order suspending the right to move any court for the enforcement of certain Fundamental Rights issued *vide see* Gaz. of Pak., 1973, Ext., Pt. I, p. 602, has been rescinded by S.R.O. 1093(I)/74, dated the 14th August, 1974, *see* Gaz. of Pak. 1974, Ext. Pt. II, p. 1548.

[2]Subs. the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 87 for "a joint sitting".

[3]For the Order issued on 28-5-1998 suspending of Fundamental Rights, (*See* Notifications No. 7-3/98-Min. I, dated 28-5-1998, Gaz. of Pak., 1998, Part I, Page 31).

The joint sitting passed the following resolution on the 6th September, 1973 :–

"That the joint sitting approves under clause (7) of Article 232 of the Constitution, read with clause (3) of Article 233 thereof, the President's Order of the 14th August, 1973, made under clause (2) of the said Art. 233 and the continuance in force of the said Order for the period of six months following the expiration of the period mentioned in paragraph (a) of the said clause (7) of Art. 232."

For resolution approving the continuance in force of the President's Order of the 14th August, 1973, for a further period of six months, *see* Gaz. of Pak., 1974, Ext., Pt. III, p. 343.

The joint sitting passed the following resolution on 10-6-1998.

"That the joint sitting approves the Order made by the President on the 28th May, 1998, under clause (2) of Article 233 of the Constitution." *see* Gaz. of Pak. 1998, Part III, p. 647.

[4]The words "or otherwise" omitted by the Act No. 10 of 2010, s. 88.

[5]Subs. *ibid.,* for "at a joint sitting".

(b) declare that the powers of the Provincial Assembly shall be exercisable by, or under the authority of, [1][Majlis-e-Shoora (Parliament)]; and

(c) make such incidental and consequential provisions as appear to the President to be necessary or desirable for giving effect to the objects of the Proclamation, including provisions for suspending in whole or in part the operation of any provisions of the Constitution relating to any body or authority in the Province :

Provided that nothing in this Article shall authorize the President to assume to himself, or direct the Governor of the Province to assume on his behalf, any of the powers vested in, or exercisable by, a High Court, or to suspend either in whole or in part the operation of any provisions of the Constitution relating to High Courts.

(2) The provisions of Article 105 shall not apply to the discharge by the Governor of his functions under clause (1).

(3) A Proclamation issued under this Article shall be laid before a joint sitting and shall cease to be in force at the expiration of two months, unless before the expiration of that period it has been approved by resolution of the joint sitting and may by like resolution be extended for a further period not exceeding two months at a time; but no such Proclamation shall in any case remain in force for more than six months.

(4) Notwithstanding anything contained in clause (3), if the National Assembly stands dissolved at the time when a Proclamation is issued under this Article, the Proclamation shall continue in force for a period of three months but, if a general election to the Assembly is not held before the expiration of that period, it shall cease to be in force at the expiration of that period unless it has earlier been approved by a resolution of the Senate.

(5) Where by a Proclamation issued under this Article it has been declared that the powers of the Provincial Assembly shall be exercisable by or under the authority of [1][Majlis-e-Shoora (Parliament)], it shall be competent–

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[1]*See* footnote 9 on page 5, *supra.*

(a) to [1][Majlis-e-Shoora (Parliament)] in joint sitting to confer on the President the power to make laws with respect to any matter within the legislative competence of the Provincial Assembly ;

(b) to [1][Majlis-e-Shoora (Parliament)] in joint sitting, or the President, when he is empowered under paragraph (a), to make laws conferring powers and imposing duties, or authorizing the conferring of powers and the imposition of duties, upon the Federation, or officers and authorities thereof;

(c) to the President, when [1][Majlis-e-Shoora (Parliament)] is not in session, to authorize expenditure from the Provincial Consolidated Fund, whether the expenditure is charged by the Constitution upon that fund or not, pending the sanction of such expenditure by [1][Majlis-e-Shoora (Parliament)] in joint sitting ; and

(d) to [1][Majlis-e-Shoora (Parliament)] in joint sitting by resolution to sanction expenditure authorized by the President under paragraph (c).

(6) Any law made by [1][Majlis-e-Shoora (Parliament)] or the President which [1][Majlis-e-Shoora (Parliament)] or the President would not, but for the issue of a Proclamation under this Article, have been competent to make, shall, to the extent of the incompetency, cease to have effect on the expiration of a period of six months after the Proclamation under this Article has ceased to be in force, except as to things, done or omitted to be done before the expiration of the said period.

Proclamation in case of financial emergency.

235. (1) If the President is satisfied that a situation has arisen whereby the economic life, financial stability or credit of Pakistan, or any part thereof, is threatened, he may, after consultation with the Governors of the Provinces or, as the case may be, the Governor of the Province concerned, by Proclamation make a declaration to that effect, and, while such a Proclamation is in force, the executive authority of the Federation shall extend to the giving of directions to any Province to observe such principles of financial propriety as may be specified in the directions, and to the giving of such other directions as the

[1]*See* footnote 9 on page 5, *supra.*

President may deem necessary in the interest of the economic life, financial stability or credit of Pakistan or any part thereof.

(2) Notwithstanding anything in the Constitution, any such directions may include a provision requiring a reduction of the salary and allowances of all or any class of persons serving in connection with the affairs of a Province.

(3) While a Proclamation issued under this Article is in force the President may issue directions for the reduction of the salaries and allowances of all or any class of persons serving in connection with the affairs of the Federation.

(4) The provisions of clauses (3) and (4) Article 234 shall apply to a Proclamation issued under this Article as they apply to a Proclamation issued under that Article.

Revocation of Proclamation, etc.

236. (1) A Proclamation issued under this Part may be varied or revoked by a subsequent Proclamation.

(2) The validity of any Proclamation issued or Order made under this part shall not be called in question in any court.

[1][Majlis-e-Shoora (Parliament)] may make laws of indemnity, etc.

237. Nothing in the Constitution shall prevent [1][Majlis-e-Shoora (Parliament)] from making any law indemnifying any person in the service of the Federal Government or a Provincial Government, or any other person, in respect of any act done in connection with the maintenance or restoration of order in any area in Pakistan.

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[1]*See* footnote 9 on page 5, *supra.*

PART XI

Amendment of Constitution

Amendment of Constitution.

238. Subject to this Part, the Constitution may be amended by Act of [1][Majlis-e-Shoora (Parliament)].

Constitution, amendment Bill.

[2]**[239.** (1) A Bill to amend the Constitution may originate in either House and, when the Bill has been passed by the votes of not less than two-thirds of the total membership of the House, it shall be transmitted to the other House.

(2) If the Bill is passed without amendment by the votes of not less than two-thirds of the total membership of the House to which it is transmitted under clause (1), it shall, subject to the provisions of clause (4), be presented to the President for assent.

(3) If the Bill is passed with amendment by the votes of not less than two-thirds of the total membership of the House to which it is transmitted under clause (1), it shall be reconsidered by the House in which it had originated, and if the Bill as amended by the former House is passed by the latter by the votes of not less than two-thirds of its total membership it shall, subject to the provisions of clause (4), be presented to the President for assent.

(4) A Bill to amend the Constitution which would have the effect of altering the limits of a Province shall not be presented to the President for assent unless it has been passed by the Provincial Assembly of that Province by the votes of not less than two-thirds of its total membership.

[3][(5) Notwithstanding anything contained in the Constitution and any judgment of any court, no court shall have jurisdiction to call in question any amendment to the Constitution on any ground whatsoever.]

(6) For the removal of doubt, it is hereby declared that there is no limitation whatever on the power of the Majlis-e-Shoora (Parliament) to amend any of the provisions of the Constitution.]

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by the Constitution (Second Amdt.) Order, 1985 (P. O. No. 20 of 1985), Art. 3, for Art. 239, which was previously subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "the original Art. 239".

[3]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.50, for "clause (5)".

PART XII

Miscellaneous

CHAPTER 1.–SERVICES

Appointments to service of Pakistan and conditions of service.

240. Subject to the Constitution, the appointments to and the conditions of service of persons in the service of Pakistan shall be determined–

(a) in the case of the services of the Federation, posts in connection with the affairs of the Federation and All-Pakistan Services, by or under Act of [1][*Majlis-e-Shoora* (Parliament)]; and

(b) in the case of the services of a Province and posts in connection with the affairs of a Province, by or under Act of the Provincial Assembly.

Explanation.–In this Article, ''All-Pakistan Service'' means a service common to the Federation and the Provinces, which was in existence immediately before the commencing day or which may be created by Act of [1][*Majlis-e-Shoora* (Parliament)].

Existing rules, etc., to continue.

241. Until the appropriate Legislature makes a law under Article 240, all rules and orders in force immediately before the commencing day shall, so far as consistent with the provisions of the Constitution, continue in force and may be amended from time to time by the Federal Government or, as the case may be the Provincial Government.

Public Service Commission.

242. (1) [1][*Majlis-e-Shoora* (Parliament)] in relation to the affairs of the Federation, and the Provincial Assembly of a Province in relation to the affairs of the Province may, by law provide for the establishment and constitution of a Public Service Commission.

[2][(1A) The Chairman of the Public Service Commission constituted in relation to the affairs of the Federation shall be appointed by the President [3][on the advice of the Prime Minister].]

[4][(1B) The Chairman of the Public Service Commission constituted in relation to affairs of a Province shall be appointed by the Governor on advice of the Chief Minister.]

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[1]*See* footnote 9 on page 5, *supra*.

[2]Ins. by P.O. No. 14 of 1985, Art. 2 and Sch.

[3]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 89, for "in his discretion".

[4]New clause (1B) ins. *ibid.*

(2) A Public Service Commission shall perform such functions as may be prescribed by law.

CHAPTER 2.–ARMED FORCES

Command of Armed Forces.

[1][**243.** (1) The Federal Government shall have control and command of the Armed Forces.

(2) Without prejudice to the generality of the foregoing provision, the Supreme Command of the Armed Forces shall vest in the President.

(3) The President shall subject to law, have power–

(a) to raise and maintain the Military, Naval and Air Forces of Pakistan; and the Reserves of such Forces; and

(b) to grant Commissions in such Forces.

[2][(4) The President shall, on advice of the Prime Minister, appoint–

(a) the Chief of the Army Staff concurrently the Chief of the Defense Forces;

(b) the Chief of the Naval Staff; and

(c) the Chief of the Air Staff;

and shall also determine their salaries and allowances.]

[3][(5) Notwithstanding anything contained in clause (4), the office of the Chairman, Joint Chiefs of Staff Committee shall stand abolished with effect from the twenty-seventh day of November two thousand and twenty-five.

(6) The Prime Minister shall, on the recommendation of the Chief of the Army Staff concurrently the Chief of the Defense Forces, appoint the Commander of the National Strategic Command from the members of Pakistan Army and shall also determine his salary and allowances.

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 90, for "Article 243".

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 51, for "clause (4)".

[3]New clauses (5) to (11) ins. *ibid.*

(7) Where the Federal Government promotes a member of the Armed Forces to the rank of Field Marshal, Marshal of the Air Force or Admiral of the Fleet, such officer shall retain the rank, privileges and remain in uniform for life.

(8) Field Marshal, Marshal of the Air Force and Admiral of the Fleet, being national heroes, shall not be removed from office except on the ground or charges and in the manner provided under Article 47.

(9) The provisions of Article 248, as applicable to the President, shall *mutatis mutandis* apply to Field Marshal, Marshal of the Air Force and Admiral of the Fleet.

(10) Upon completion of the term of his command, under the law, the Federal Government shall determine the responsibilities and duties of Field Marshal, Marshal of the Air Force or Admiral of the Fleet in the interest of State.

(11) The President shall, on advice of the Prime Minister, determine the salary, allowances and privileges of Field Marshal, Marshal of the Air Force and Admiral of the Fleet.]

Oath of Armed Forces.

244. Every member of the Armed Forces shall make oath in the form set out in the Third Schedule.

Functions of Armed Forces.

245. [1][(1)] The Armed Forces shall, under the directions of the Federal Government defend Pakistan against external aggression or threat of war, and, subject to law, act in aid of civil power when called upon to do so.

[2][(2) The validity of any direction issued by the Federal Government under clause (1) shall not be called in question in any court.

(3) A High Court shall not exercise any jurisdiction under Article 199 in relation to any area in which the Armed Forces of Pakistan are, for the time being, acting in aid of civil power in pursuance of Article 245:

Provided that this clause shall not be deemed to affect the jurisdiction of the High Court in respect of any proceeding pending immediately before the day on which the Armed Forces start acting in aid of civil power.

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[1]Re-numbered as clause (1) by the Constitution (Seventh Amdt.) Act, 1977 (23 of 1977), s. 4. (*w.e.f.* the 21st April, 1977).

[2]Added *ibid.*

(4) Any proceeding in relation to an area referred to in clause (3) instituted on or after the day the Armed Forces start acting in aid of civil power and pending in any High Court shall remain suspended for the period during which the Armed Forces are so acting.]

CHAPTER 3.–TRIBAL AREAS

Tribal Areas.

246. In the Constitution,–

(a) ''Tribal Areas'' means the areas in Pakistan which, immediately before the commencing day, were Tribal Area, and includes–

(i) the Tribal Areas of [1][Balochistan] and the [2][Khyber Pakhtunkhwa]; [3]*

(ii) the former States of Amb, Chitral, Dir and Swat;

[4]* * * * * * *

[4]* * * * * * *

(b) ''Provincially Administered Tribal Areas'' means –

(i) the districts of Chitral, Dir and Swat (which includes Kalam) [5][the Tribal Area in Kohistan district,] Malakand Protected Area, the Tribal Area adjoining [6][Mansehra] district and the former State of Amb; and

(ii) Zhob district, Loralai district (excluding Duki Tehsil), Dalbandin Tehsil of Chagai district and Marri and Bugti Tribal territories of Sibi district; [7]*

(c) ''Federally Administered Tribal Areas'' includes –

(i) Tribal Areas, adjoining Peshawar district;

(ii) Tribal Areas adjoining Kohat district;

(iii) Tribal Areas adjoining Bannu district;

[8][(iiia) Tribal Areas adjoining Lakki Marwat district;]

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 91, for "Baluchistan".

[2]Subs. *ibid*., for "North-West-Frontier Province".

[3]The word "and" omitted *ibid.*

[4]Sub-paragraphs (iii) and (iv) omitted by the Constitution (Nineteenth Amdt.) Act, 2010 (1 of 2011), s. 7.

[5]Ins. and shall be deemed to have been so ins. by the Constitution (Sixth Amdt.) Act, 1976 (84 of 1976), s. 4, (*w.e.f.* the 1st October, 1976).

[6]Subs. and shall be deemed to have been so subs. *ibid.*, for "Hazara".

[7]The word "and " omitted by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 8.

[8]New sub-paragraph (iiia) ins. by the Constitution (Nineteenth Amdt.) Act, 2010 (1 of 2011), s. 7.

(iv) Tribal Areas adjoining Dera Ismail Khan district;

[1][(iva) Tribal Areas adjoining Tank district;]

[2][(v) Bajaur Agency;

(va) Orakzai Agency;]

(vi) Mohmand Agency;

(vii) Khyber Agency;

(viii) Kurram Agency;

(ix) North Waziristan Agency; and

(x) South Waziristan Agency [3][;and]

[4][(d) On the commencement of the Constitution (Twenty-fifth Amendment) Act, 2018, the areas mentioned in-

(i) paragraph (b),-

(a) in sub-paragraph (i), shall stand merged in the Province of Khyber Pakhtunkhwa; and

(b) in sub-paragraph (ii), shall stand merged in the Province of Balochistan; and

(ii) paragraph (c), shall stand merged in the Province of Khyber Pakhtunkhwa.]

247. [*Administration of Tribal Areas.] Omitted by the Constitution (Twenty-fifth Amdt.) Act, 2018 (37 of 2018), s. 9.*

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[1]New sub-paragraph (iva) ins. by the Constitution (Nineteenth Amdt.) Act, 2010 (1 of 2011), s. 7.

[2]Subs. and shall be deemed to have been so subs. by the Constitution (Sixth Amdt.) Act, 1976 (84 of 1976), s. 4, for the "original sub-paragraph (v)," (*w.e.f.* the 1st December, 1973).

[3]Subs. by the Act No. 37 of 2018, s. 8, for full-stop.

[4]New paragraph (d) added *ibid.*

CHAPTER 4.–GENERAL

Protection to President, Governor, Minister, etc.

248. (1) [1][Notwithstanding any judgment of any court, the] President, a Governor, the Prime Minister, a Federal Minister, a Minister of State, the Chief Minister and a Provincial Minister shall not be answerable to any court for the exercise of powers and performance of functions of their respective offices or for any act done or purported to be done in the exercise of those powers and performance of those functions:

Provided that nothing in this clause shall be construed as restricting the right of any person to bring appropriate proceedings against the Federation or a Province.

[2][(2) No criminal proceedings whatsoever shall be initiated or continued against the President for his life and for a Governor during his term of office in any court.]

[3][(3) No process for arrest or imprisonment of the President for his life and for a Governor during his term of office, shall be issued from any court:

Provided that the provisions of clauses (2) and (3) shall not apply during the period the President holds a public office after he ceases to be the President.]

(4) No civil proceedings in which relief is claimed against the President or a Governor shall be instituted during his term of office in respect of any thing done or not done by him in his personal capacity whether before or after he enters upon his office unless, at least sixty days before the proceedings are instituted, notice in writing has been delivered to him, or sent to him in the manner prescribed by law, stating the nature of the proceedings, the cause of action, the name, description and place of residence of the party by whom the proceedings are to be instituted and the relief which the party claims.

Legal proceedings.

249. (1) Any legal proceedings which, but for the Constitution, could have been brought by or against the Federation in respect of a matter which, immediately before the commencing day, was the responsibility of the Federation and has, under the Constitution, become the responsibility of a Province, shall be brought by or against the Province concerned; and if any such legal proceedings were pending in any court immediately before the commencing day then, in those proceedings, for the

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[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act , 2025 (32 of 2025), s.52, for the word "The".

[2]Subs. ibid., for "clauses (2)".

[3]Subs. ibid., for "clauses (3)".

Federation the Province concerned shall, as from that day, be deemed to have been substituted.

(2) Any legal proceedings which, but for the Constitution, could have been brought by or against a Province in respect of a matter which, immediately before the commencing day, was the responsibility of the Province and has under the Constitution become the responsibility of the Federation, shall be brought by or against the Federation; and if any such legal proceedings were pending in any court immediately before the commencing day then, in those proceedings, for the Province the Federation shall, as from that day, be deemed to have been substituted.

Salaries, allowances, etc., of the President, etc.

250. (1) Within two years from the commencing day, provision shall be made by law for determining the salaries, allowances and privileges of the President, the Speaker and Deputy Speaker and a member of the National Assembly or a Provincial Assembly, the Chairman and Deputy Chairman and a member of the Senate, the Prime Minister, a Federal Minister, a Minister of State, [1]* * a Chief Minister, a Provincial Minister and the Chief Election Commissioner.

(2) Until other provision is made by law,–

(a) the salaries, allowances and privileges of the President, the Speaker or Deputy Speaker or a member of the National Assembly or a Provincial Assembly, a Federal Minister, a Minister of State, [1]* * a Chief Minister, a Provincial Minister and the Chief Election Commissioner shall be same as the salaries, allowances and privileges to which the President, the Speaker or Deputy Speaker or member of the National Assembly of Pakistan or a Provincial Assembly, a Federal Minister, a Minister of State,[1]* * a Chief Minister, a Provincial Minister or, as the case may be, the Chief Election Commissioner was entitled immediately before the commencing day; and

(b) the salaries, allowances and privileges of the Chairman, the Deputy Chairman, the Prime Minister and a member of the Senate shall be such as the President may by Order determine.

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[1]The words and comma "a Governor," omitted by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 13 (*w.e.f.* the 4th May, 1974).

(3) The salary, allowances and privileges of a person holding office as–

(a) the President;
(b) the Chairman or Deputy Chairman;
(c) the Speaker or Deputy Speaker of the National Assembly or a Provincial Assembly;
(d) a Governor;
(e) the Chief Election Commissioner; or
(f) the Auditor-General ;

shall not be varied to his disadvantage during his term of office.

(4) At any time when the Chairman or Speaker is acting as President, he shall be entitled to the same salary, allowances and privileges as a President but shall not exercise any of the functions of the office of Chairman or Speaker or a member of [1][Majlis-e-Shoora (Parliament)] or be entitled to salary, allowances or privileges as Chairman, Speaker or such a member.

National language.

251. (1) The National language of Pakistan is Urdu, and arrangements shall be made for its being used for official and other purposes within fifteen years from the commencing day.

(2) Subject to clause (1), the English language may be used for official purposes until arrangements are made for its replacement by Urdu.

(3) Without prejudice to the status of the National language, a Provincial Assembly may by law prescribe measures for the teaching, promotion and use of a provincial language in addition to the national language.

Special provisions in relation to major ports and aerodromes.

252. (1) Notwithstanding anything contained in the Constitution or in any law, the President may, by public notification, direct that, for a period not exceeding three months from a specified date, a specified law, whether a Federal law or a Provincial law, shall not apply to a specified major port or major aerodrome, or shall apply to a specified major port or major aerodrome subject to specified exceptions or modifications.

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[1]*See* footnote 9 on page 5, *supra.*

(2) The giving of a direction under this Article in relation to any law shall not affect the operation of the law prior to the date specified in the direction.

Maximum limits as to property, etc.

253. (1) [1][Majlis-e-Shoora (Parliament)] may by law–

(a) prescribe the maximum limits as to property or any class thereof which may be owned, held, possessed or controlled by any person; and

(b) declare that any trade, business, industry or service specified in such law shall be carried on or owned, to the exclusion, complete or partial, of other persons, by the Federal Government or a Provincial Government, or by a corporation controlled by any such Government.

(2) Any law which permits a person to own beneficially or possess beneficially an area of land greater than that which, immediately before the commencing day, he could have lawfully owned beneficially or possessed beneficially shall be invalid.

Failure to comply with requirement as to time does not render an act invalid.

254. When any act or thing is required by the Constitution to be done within a particular period and it is not done within that period, the doing of the act or thing shall not be invalid or otherwise ineffective by reason only that it was not done within that period.

Oath of Office.

255. (1) An oath required to be made by a person under the Constitution shall [2][preferably be made in Urdu or] a language that is understood by that person.

(2) Where, under the Constitution, an oath is required to be made before a specified person and, for any reason, it is impracticable for the oath to be made before that person, it may be made before such other person as may be nominated by [3][the Chief Justice of a High Court, in case of a Province and by the Chief Justice of Pakistan, in all other cases].

(3) Where, under the Constitution, a person is required to make an oath before he enters upon an office, he shall be deemed to have entered upon the office on the day on which he makes the oath.

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[1]*See* footnote 9 on page 5, *supra.*

[2]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for "be made in".

[3]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.25 for "that person".

Private armies forbidden.

256. No private organisation capable of functioning as a military organisation shall be formed, and any such organisation shall be illegal.

Provision relating to the State of Jammu and Kashmir.

257. When the people of the State of Jammu and Kashmir decide to accede to Pakistan, the relationship between Pakistan and that State shall be determined in accordance with the wishes of the people of that State.

Government of territories outside Provinces.

258. Subject to the Constitution, until [1][Majlis-e-Shoora (Parliament)] by law otherwise provides, the President may, by Order, make provision for peace and good government of any part of Pakistan not forming part of a Province.

Awards.

259. (1) No citizen shall accept any title, honour or decoration from any foreign State except with the approval of the Federal Government.

(2) No title, honour or decoration shall be conferred by the Federal Government or any Provincial Government on any citizen, but the President may award decorations in recognition of gallantry [2][, meritorious service in the Armed Forces] [3][, academic distinction or distinction in the field of sports [4][, science, technology, medicine, arts or public service]], as provided by Federal law.

(3) All titles, honours and decorations awarded to citizens by any authority in Pakistan before the commencing day otherwise than in recognition of gallantry [5][, meritorious service in the Armed Forces] or academic distinction shall stand annulled.

CHAPTER 5.–INTERPRETATION

Definitions.

260. (1) In the Constitution, unless the context otherwise requires, the following expressions have the meaning hereby respectively assigned to them, that is to say,–

"Act of [1][Majlis-e-Shoora (Parliament)]" means an Act passed by [1][Majlis-e-Shoora (Parliament)] or the National Assembly and assented to, or deemed to have been assented to, by the President;

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[1]*See* footnote 9 on page 5, *supra.*

[2]Ins. by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 14, (*w.e.f.* the 4th May, 1974).

[3]Subs. by the Constitution (Third Amdt.) Order, 1981 (P. O. No. 12 of 1981), Art. 2, for "or academic distinction".

[4]Subs. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s.26 for "or nursing".

[5]Ins. and shall be deemed always to have been so ins. by Act 33 of 1974, s. 14, (*w.e.f.* the 4th May, 1974).

"Act of Provincial Assembly" means an Act passed by the Provincial Assembly of a Province and assented to, or deemed to have been assented to, by the Governor;

"agricultural income" means agricultural income as defined for the purposes of the law relating to income-tax;

"Article" means Article of the Constitution;

"borrow" includes the raising of money by the grant of annuities, and "loans" shall be construed accordingly;

"Chairman" means the Chairman of the Senate and, except in Article 49, includes a person acting as Chairman of the Senate;

[1]["Chief Justice", in relation to the [2][Federal Constitutional Court or the] Supreme Court or a High Court, includes the Judge for the time being acting as Chief Justice of the Court;]

[3]["Chief Justice of Pakistan" means the senior amongst the Chief Justice of the Federal Constitutional Court and the Chief Justice of Supreme Court;]

"citizen" means a citizen of Pakistan as defined by law;

"clause" means clause of the Article in which it occurs;

[4]* * * * * * *

"corporation tax" means any tax on income that is payable by companies and in respect of which the following conditions apply:–

(a) the tax is not chargeable in respect of agricultural income;

(b) no deduction in respect of the tax paid by companies is, by any law which may apply to the tax, authorized to be made from dividends payable by the companies to individuals;

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[1]Ins. by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 15.

[2]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.53.

[3]New defination "Cheif Justice of Pakistan" ins. *ibid.*

[4]The definition of expression "consultation" omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 92.

(c) no provision exists for taking the tax so paid into account in computing for the purposes of income-tax the total income of individual receiving such dividends, or in computing the income-tax payable by, or refundable to, such individuals;

"debt" includes any liability in respect of any obligation to repay capital sums by way of annuities and any liability under any guarantee, and "debt charges" shall be construed accordingly;

"estate duty" means a duty assessed on, or by reference to, the value of property passing upon death;

"existing law" has the same meaning as in clause (7) of Article 268;

"Federal law" means a law made by or under the authority of [1][*Majlis-e-Shoora* (Parliament)];

''financial year'' means a year commencing on the first day of July;

''goods'' includes all materials, commodities and articles;

''Governor'' means the Governor of a Province and includes any person for the time being acting as the Governor of a Province;

''guarantee'' includes any obligation undertaken before the commencing day to make payments in the event of the profits of an undertaking falling short of a specified amount;

''House'' means the Senate or the National Assembly;

''Joint sitting'' means a joint sitting of the two Houses;

''Judge'' in relation to the [2][Federal Constitutional Court or the] Supreme Court or a High Court, includes the Chief Justice of the Court and also includes–

[3][(a) in relation to the Federal Constitutional Court, a person who is acting as a Judge of the Court;]

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[1]*See* footnote 9 on page 5, *supra.*
[2]Ins. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.53.
[3]New paragraph (a) ins. *ibid.*

[1][(b)] in relation to the Supreme Court, a person who is acting as a Judge of the Court; and

[1][(c)] in relation to the High Court, a person who is an Additional Judge of the Court;

"members of the Armed Forces" does not include persons who are not, for the time being, subject to any law relating to the members of the Armed Forces;

"net proceeds" means, in relation to any tax or duty, the proceeds thereof, reduced by the cost of collection, as ascertained and certified by the Auditor-General;

"oath" includes affirmation;

"Part" means Part of the Constitution;

"pension" means a pension, whether contributory or not, of any kind whatsoever payable to, or in respect of, any person and includes retired pay so payable, a gratuity so payable, and any sum or sums so payable by way of the return, with or without interest thereon or any addition thereto, of subscriptions to a provident fund;

"person" includes any body politic or corporate;

"President" means the President of Pakistan and includes a person for the time being acting as, or performing the functions of, the President of Pakistan and, as respects anything required to be done under the Constitution before the commencing day, the President under the Interim Constitution of the Islamic Republic of Pakistan;

"Property" includes any right, title or interest in property, movable or immovable, and any means and instruments of production;

"Provincial law" means a law made by or under the authourity of the Provincial Assembly;

''remuneration'' includes salary and pension;

"Schedule" means Schedule to the Constitution;

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[1]Re-numbered by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.53.

"security of Pakistan" includes the safety, welfare, stability and integrity of Pakistan and of each part of Pakistan, but shall not include public safety as such;

"service of Pakistan" means any service, post or office in connection with the affairs of the Federation or of a Province, and includes an All-Pakistan Service, service in the Armed Forces and any other service declared to be a service of Pakistan by or under Act of [1][*Majlis-e-Shoora* (Parliament)] or of a Provincial Assembly, but does not include service as [2][President,] Speaker, Deputy Speaker, Chairman, Deputy Chairman, Prime Minister, Federal Minister, Minister of State, Chief Minister, Provincial Minister, [3][Attorney-General, [4][Advocate-General,] Parliamentary Secretary] or [5][Chairman or member of a Law Commission, Chairman or member of the Council of Islamic Ideology, Special Assistant to the Prime Minister, Adviser to the Prime Minister, Special Assistant to a Chief Minister, Adviser to a Chief Minister] or member of a House or a Provincial Assembly;

"Speaker" means the Speaker of the National Assembly or a Provincial Assembly, and includes any person acting as the Speaker of the Assembly;

"taxation" includes the imposition of any tax or duty, whether general, local or special, and "tax" shall be construed accordingly;

"tax on income" includes a tax in the nature of an excess profits tax or a business profits tax.

[6]["technocrat" means a person who has sixteen years of education and fifteen years of experience in his field.]

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[1]*See* footnote 9 on page 5, *supra.*

[2] Ins. by the Constitution (Twenty-Seventh Amdt) Act, 2025 (32 of 2025), s. 53.

[3]Ins. by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 15, (*w.e.f.* the 4th May, 1974).

[4]Ins. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 16, (*w.e.f.* the 13th September, 1976).

[5]Ins. by the Constitution (Sixth Amdt.) Act, 1976 (84 of 1976), s. 5, *(w.e.f.* the 31st December, 1976).

[6]New defination "technocrat" ins. by Act No. 32 of 2025, s.53.

(2) In the Constitution "Act of [1][Majlis-e-Shoora (Parliament)]" or "Federal law" or "Act of Provincial Assembly" or "Provincial law" shall include an Ordinance promulgated by the President or, as the case may be, a Governor.

[2][(3) In the Constitution and all enactments and other legal instruments, unless there is anything repugnant in the subject or context,–

(a) "Muslim" means a person who believes in the unity and oneness of Almighty Allah, in the absolute and unqualified finality of the Prophethood of Muhammad (peace be upon him), the last of the prophets, and does not believe in, or recognize as a prophet or religious reformer, any person who claimed or claims to be a prophet, in any sense of the word or of any description whatsoever, after Muhammad (peace be upon him); and

(b) "non-Muslim" means a person who is not a Muslim and includes a person belonging to the Christian, Hindu, Sikh, Budhist or Parsi community, a person of the Quadiani group or the Lahori group (who call themselves 'Ahmadis' or by any other name), or a Bahai, and a person belonging to any of the scheduled castes.]

Person acting in office not to be regarded as successor to previous occupant of office, etc.

261. For the purposes of the Constitution, a person who acts in an office shall not be regarded as the successor to the person who held that office before him or as the predecessor to the person who holds that office after him.

Gregorian calendar to be used.

262. For the purposes of the Constitution, periods of time shall be reckoned according to the Gregorian calendar.

Gender and number.

263. In the Constitution,–

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[1] *See* footnote 9 on page 5, *supra.*

[2] Subs. by the Constitution (Third Amdt.) Order, 1985 (P. O. No. 24 of 1985), Art. 6, for "clause (3)", which was previously added by Act 49 of 1974, s. 3, (*w.e.f.* the 17th September, 1974).

(a) words importing the masculine gender shall be taken to include females; and

(b) words in the singular shall include the plural, and words in the plural shall include the singular.

Effect of repeal of laws.

264. Where a law is repealed, or is deemed to have been repealed, by, under, or by virtue of the Constitution, the repeal shall not, except as otherwise provided in the Constitution,–

(a) revive anything not in force or existing at the time at which the repeal takes effect;

(b) affect the previous operation of the law or anything duly done or suffered under the law;

(c) affect any right, privilege, obligation or liability acquired, accrued or incurred under the law;

(d) affect any penalty, forfeiture or punishment incurred in respect of any offence committed against the law; or

(e) affect any investigation, legal proceeding or remedy in respect of any such right, privilege, obligation, liability, penalty, forfeiture or punishment;

and any such investigation, legal proceeding or remedy may be instituted, continued or enforced, and any such penalty, forfeiture or punishment may be imposed, as if the law had not been repealed.

CHAPTER 6.–TITLE, COMMENCEMENT AND REPEAL

Title of Constitution and commencement.

265. (1) This Constitution shall be known as the Constitution of the Islamic Republic of Pakistan.

(2) Subject to clauses (3) and (4), the Constitution shall come into force on the fourteenth day of August, one thousand nine hundred and seventy-three or on such earlier day as the President may, by notification in the official Gazette, appoint, in the Constitution referred to as the "commencing day".

(3) The Constitution shall, to the extent necessary–

(a) for the constitution of the first Senate;

(b) for the first meeting of a House or a joint sitting to be held;

(c) for the election of the President and the Prime Minister to be held; and

(d) to enable any other thing to be done which, for the purposes of the Constitution, it is necessary to do before the commencing day,

come into force upon the enactment of the Constitution, but the person elected as President or Prime Minister shall not enter upon his office before the commencing day.

(4) Where by the Constitution a power is conferred to make rules or to issue orders with respect to the enforcement of any provision thereof, or with respect to the establishment of any court or office, or the appointment of any Judge or officer thereunder, or with respect to the person by whom, or the time when, or the place where, or the manner in which, anything is to be done under any such provision, then that power may be exercised at any time between the enactment of the Constitution and its commencement.

Repeal.

266. The Interim Constitution of the Islamic Republic of Pakistan, together with the Acts and President's Orders making omissions from, additions to, modifications of, or amendments in, that Constitution is hereby repealed.

CHAPTER 7.–TRANSITIONAL

Power of President to remove difficulties.

267. (1) At any time before the commencing day or before the expiration of three months from the commencing day, the President may, for the purpose of removing any difficulties, or for bringing the provisions of the Constitution into effective operation, by Order, direct that the provisions of the Constitution shall, during such period as may be specified in the Order, have effect, subject to such adaptations, whether by way of modification, addition or omission, as he may deem to be necessary or expedient.

(2) An Order made under clause (1) shall be laid before both Houses without undue delay, and shall remain in force until

a resolution disapproving it is passed by each House or, in case of disagreement between the two Houses, until such resolution is passed at a joint sitting.

Power to remove difficulties.

[1]**[267A.** If any difficulty arises in giving effect to the provisions of the Constitution (Eighteenth Amendment) Act, 2010, hereinafter in this Article referred to as the Act, or for bringing the provisions of the Act into effective operation, the matter shall be laid before both Houses in a joint sitting which may by a resolution direct that the provisions of the Act shall, during such period as may be specified in the resolution, have effect, subject to such adaptations, whether by way of modification, addition or omission, as may be deemed necessary or expedient:

Provided that this power shall be available for a period of one year from the commencement of the Act.

Removal of doubt.

267B. For removal of doubt it is hereby declared that Article 152A omitted and Articles 179 and 195 substituted by the Constitution (Seventeenth Amendment) Act, 2003 (Act No. III of 2003), notwithstanding its repeal, shall be deemed always to have been so omitted and substituted.]

Continuance in force, and adaptation of certain laws.

268. (1) Except as provided by this Article, all existing laws shall, subject to the Constitution, continue in force, so far as applicable and with the necessary adaptations, until altered, repealed or amended by the appropriate Legislature.

[2]* * * * * * *

(3) For the purpose of bringing the provisions of any existing law into accord with the provisions of the Constitution (other than Part II of the Constitution), the President may by Order, within a period of two years from the commencing day, make such adaptations, whether by way of modification, addition or omission, as he may deem to be necessary or expedient, and any such Order may be made so as to have effect from such day, not being a day earlier than the commencing day, as may be specified in the Order.

(4) The President may [3]authorize the Governor of a Province to exercise, in relation to the Province, the powers conferred on the President by clause (3) in respect of laws relating to matters with respect to which the Provincial Assembly has power to make laws.

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[1]New Articles 267A and 267B ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 93.

[2]Clause (2) omitted *ibid.,* s. 94.

[3]For such authorization, *see* Gaz. of Pak., 1973, Ext., Pt. II, p. 2001.

(5) The powers exercisable under clauses (3) and (4) shall be subject to the provisions of an Act of the appropriate Legislature.

(6) Any court, tribunal or authority required or empowered to enforce an existing law shall, notwithstanding that no adaptations have been made in such law by an Order made under clause (3) or clause (4), construe the law with all such adaptations as are necessary to bring it into accord with the provisions of the Constitution.

(7) In this Article, "existing laws" means all laws (including Ordinances, Orders-in-Council, Orders, rules, bye-laws, regulations and Letters Patent constituting a High Court, and any notifications and other legal instruments having the force of law) in force in Pakistan or any part thereof, or having extra-territorial validity, immediately before the commencing day.

Explanation.–In this Article, "in force", in relation to any law, means having effect as law whether or not the law has been brought into operation.

Validation of laws, acts, etc.

269. (1) All Proclamations, President's Orders, Martial Law Regulations, Martial Law Orders and all other laws made between the twentieth day of December, one thousand nine hundred and seventy-one and the twentieth day of April, one thousand nine hundred and seventy-two (both days inclusive), are hereby declared notwithstanding any judgment of any court, to have been validly made by competent authority and shall not be called in question in any court on any ground whatsoever.

(2) All orders made, proceedings taken and acts done by any authority, or by any person, which were made, taken or done, or purported to have been made, taken or done, between the twentieth day of December, one thousand nine hundred and seventy-one, and the twentieth day of April, one thousand nine hundred and seventy-two (both days inclusive), in exercise of the powers derived from any President's Orders, Martial Law Regulations, Martial Law Orders, enactments, notifications, rules, orders or bye-laws, or in execution of any orders made or sentences passed by any authority in the exercise or purported exercise of powers as aforesaid, shall, notwithstanding any judgment of any court, be deemed to be and always to have been validly made, taken or done and shall not be called in question in any court on any ground whatsoever.

(3) No suit or other legal proceedings shall lie in any court against any authority or any person for or on account of or in respect of any order made, proceedings taken or act done whether

in the exercise or purported exercise of the powers referred to in clause (2) or in execution of or in compliance with orders made or sentences passed in exercise or purported exercise of such powers.

Temporary validation of certain laws, etc.

270. (1) [1][Majlis-e-Shoora (Parliament)] may by law made in the manner prescribed for legislation for a matter in Part I of the Federal Legislative List validate all Proclamations, President's Orders, Martial Law Regulations, Martial Law Orders and other laws made between the twenty-fifth day of March, one thousand nine hundred and sixty-nine, and the nineteenth day of December, one thousand nine hundred and seventy-one (both days inclusive).

(2) Notwithstanding a judgment of any court, a law made by [1][Majlis-e-Shoora (Parliament)] under clause (1) shall not be questioned in any court on any ground, whatsoever.

(3) Notwithstanding the provisions of clause (1), and a judgment of any court to the contrary, for a period of two years from the commencing day, the validity of all such instruments as are referred to in clause (1) shall not be called in question before any court on any ground whatsoever.

(4) All orders, made, proceedings taken, and acts done by any authority, or any person, which were made, taken or done, or purported to have been made, taken or done, between the twenty-fifth day of March, one thousand nine hundred and sixty-nine and nineteenth day of December, one thousand nine hundred and seventy-one (both days inclusive), in exercise of powers derived from any President's Orders, Martial Law Regulations, Martial Law Orders, enactments, notifications, rules, orders or bye-laws, or in execution of any order made or sentence passed by any authority in the exercise or purported exercise of power as aforesaid shall, notwithstanding any judgement of any court, be deemed to be and always to have been validly made, taken or done, so however that any such order, proceeding or act may be declared invalid by [1][Majlis-e-Shoora (Parliament)] at any time within a period of two years from the commencing day byresolution of both Houses, or in case of disagreement between the two Houses, by such resolution passed at a joint sitting and shall not be called in question before any court on any ground, whatsoever.

Affirmation of President's Orders, etc.

[2][[3][**270A.**–(1) The Proclamation of the fifth day of July, 1977, all President's Orders, Ordinances, Martial Law Regulations,

[1]*See* footnote 9 on page 5, *supra.*

[2]Articles 270A and 270B ins. by P. O. No. 14 of 1985, Art. 2 and Sch.

[3]Article 270A subs. by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985) s. 19, for "Art. 270A" (*w.e.f.* 30-12-1985) *vide* S.R.O. No. 1279(1)/85, dated 29-12-85 read with Proclamation of withdrawal of Martial Law, dated 30-12-85, *see* Gaz. of Pak., 1985, Ext., Pt. 1. Pp. 431-432.

Martial Law Orders, including the Referendum Order, 1984 (P.O. No. 11 of 1984), [1]* * * the Revival of the Constitution of 1973 Order, 1985 (P.O. No. 14 of 1985), the Constitution (Second Amendment) Order, 1985 (P.O. No. 20 of 1985), the Constitution (Third Amendment) Order, 1985 (P.O. No. 24 of 1985), and all other laws made between the fifth day of July, 1977, and the date* on which this Article comes into force are hereby affirmed, adopted and declared, notwithstanding any judgement of any court, to have been validly made by competent authority and, notwithstanding anything contained in the Constitution, shall not be called in question in any court on any ground whatsoever :

Provided that a President's Order, Martial Law Regulation or Martial Law Order made after the thirtieth day of September, 1985, shall be confined only to making such provisions as facilitate, or are incidental to, the revocation of the Proclamation of the fifth day of July, 1977.

(2) All orders made, proceedings taken and acts done by any authority or by any person, which were made, taken or done, or purported to have been made, taken or done, between the fifth day of July, 1977, and the date on which this Article comes into force, in exercise of the powers derived from any Proclamation, President's Orders, Ordinances, Martial Law Regulations, Martial Law Orders, enactments, notifications, rules, orders or bye-laws, or in execution of or in compliance with any order made or sentence passed by any authority in the exercise or purported exercise of powers as aforesaid, shall, notwithstanding any judgement of any court, be deemed to be and always to have been validly made, taken or done and shall not be called in question in any court on any ground whatsoever.

(3) All President's Orders, Ordinances, Martial Law Regulations, Martial Law Orders, enactments, notifications, rules, orders, or bye-laws, in force immediately before the date* on which this Article comes into force shall continue in force until altered, repealed or amended by competent authority.

Explanation.–In this clause, ''competent authority'' means,—

(a) in respect of President's Orders, Ordinances, Martial Law Regulations, Martial Law Orders and enactments, the appropriate Legislature; and

[1]Certain words omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 95.

*Article 270A subs. by the Constitution (Eighth Amdt.) Act, 1985 (18 of 1985), which received Presidet's assent on 09-11-1985, came into forece on 09-11-1985.

(b) in respect of notifications, rules, orders and bye-laws, the authority in which the power to make, alter, repeal or amend the same vests under the law.

(4) No suit, prosecution or other legal proceedings shall lie in any court against any authority or any person, for or on account of or in respect of any order made, proceedings taken or act done whether in the exercise or purported exercise of the powers referred to in clause (2) or in execution of or in compliance with orders made or sentences passed in exercise or purported exercise of such powers.

(5) For the purposes of clauses (1), (2) and (4), all orders made, proceedings taken, acts done or purporting to be made, taken or done by any authority or person shall be deemed to have been made, taken or done in good faith and for the purpose intended to be served thereby.

[1][(6) The laws referred to in clause (1) may be amended by the appropriate Legislature in the manner provided for amendment of such laws].]

Declaration and continuance of laws etc.

[2]**[270AA.** (1) The Proclamation of Emergency of the fourteenth day of October, 1999, the Provisional Constitution Order No. 1 of 1999, the Oath of Office (Judges) Order, 2000 (No. 1 of 2000), Chief Executive's Order No. 12 of 2002, Chief Executive's Order No. 19 of 2002, the amendments made in the Constitution through the Legal Framework Order, 2002 (Chief Executive's Order No. 24 of 2002), the Legal Framework (Amendment) Order, 2002 (Chief Executive's Order No. 29 of 2002) and the Legal Framework (Second Amendment) Order, 2002 (Chief Executive's Order No. 32 of 2002) notwithstanding any judgment of any court including the Supreme Court or a High Court, are hereby declared as having been made without lawful authority and of no legal effect.

(2) Except as provided in clause (1) and subject to the provisions of the Constitution (Eighteenth Amendment) Act, 2010, all laws including President's Orders, Acts, Ordinances, Chief Executive's Orders, regulations, enactments, notifications, rules, orders or bye-laws made between the twelfth day of

[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 95, for "clause (6)".

[2]Subs. *ibid*., for "Article 270AA" s. 96.

October, one thousand nine hundred and ninety-nine and the thirty-first day of December, two thousand and three (both days inclusive) and still in force shall, continue to be in force until altered, repealed or amended by the competent authority.

Explanation.–For the purposes of clause (2) and clause (6), "competent authority" means,–

(a) in respect of Presidents' Orders, Ordinances, Chief Executive's Orders and all other laws, the appropriate Legislature; and

(b) in respect of notifications, rules, orders and bye-laws, the authority in which the power to make, alter, repeal or amend the same vests under the law.

(3) Notwithstanding anything contained in the Constitution or clause (1), or judgment of any court including the Supreme Court or a High Court,—

(a) Judges of the Supreme Court, High Courts and Federal Shariat Court who were holding the office of a Judge or were appointed as such, and had taken oath under the Oath of Office (Judges) Order, 2000 (1 of 2000), shall be deemed to have continued to hold the office as a Judge or to have been appointed as such, as the case may be, under the Constitution, and such continuance or appointment, shall have effect accordingly.

(b) Judges of the Supreme Court, High Courts and Federal Shariat Court who not having been given or taken oath under the Oath of Office (Judges) Order, 2000 (1 of 2000), and ceased to hold the office of a Judge shall, for the purposes of pensionary benefits only, be deemed to have continued to hold office under the Constitution till their date of superannuation.

(4) All orders made, proceedings taken, appointments made, including secondments and deputations, and acts done by any authority, or by any person, which were made, taken or done, or purported to have been made, taken or done, between the twelfth day of October, one thousand nine hundred and

ninety-nine, and the thirty first day of December, two thousand and three (both days inclusive), in exercise of the powers derived from any authority or laws mentioned in clause (2), or in execution of or in complaince with any orders made or sentences passed by any authority in the exercise or purported exercise of powers as aforesaid, shall, notwithstanding anything contained in clause (1), be deemed to be valid and shall not be called in question in any court or forum on any ground whatsoever.

(5) No suit, prosecution or other legal proceedings, including writ petitions, shall lie in any court or forum against any authority or any person, for or on account of or in respect of any order made, proceedings taken or act done whether in the exercise or purported exercise of the powers referred to in clause (2) or clause (4) or in execution of or in compliance with orders made or sentences passed in exercise or purported exercise of such powers.

(6) Notwithstanding omission of the Concurrent Legislative List by the Constitution (Eighteenth Amendment) Act, 2010, all laws with respect to any of the matters enumerated in the said List (including Ordinances, Orders, rules, bye-laws, regulations and notifications and other legal instruments having the force of law) in force in Pakistan or any part thereof, or having extra-territorial operation, immediately before the commencement of the Constitution (Eighteenth Amendment) Act, 2010, shall continue to remain in force until altered, repealed or amended by the competent authority.

(7) Nothwithstanding anything contained in the Constitution, all taxes and fees levied under any law in force immediately before the commencement of the Constitution (Eighteenth Amendment) Act, 2010, shall continue to be levied until they are varied or abolished by an Act of the appropriate legislature.

(8) On the omission of the Concurrent Legislative List, the process of devolution of the matters mentioned in the said List to the Provinces shall be completed by the thirtieth day of June, two thousand and eleven.

(9) For purposes of the devolution process under clause (8), the Federal Government shall constitute an Implementation Commission as it may deem fit within fifteen days of the commencement of the Constitution (Eighteenth Amendment) Act, 2010.]

[1][**270AAA.** *Validation and affirmation of laws etc.]*

Elections to be deemed to be held under Constitution.

270B. Notwithstanding anything contained in the Constitution, the elections held under the Houses of (Parliament) and Provincial Assemblies (Elections) Order, 1977, [2][and the Conduct of General Elections Order, 2002 (Chief Executive's Order No. 7 of 2002),] to the Houses and the Provincial Assemblies shall be deemed to have been held under the Constitution and shall have effect accordingly].

General Elections 2008.

[3][**270BB.** Notwithstanding anything contained in the Constitution, or any other law for the time being in force, the General Elections 2008, to the National Assembly and the Provincial Assemblies held on the eighteenth day of February, two thousand and eight shall be deemed to have been held under the Constitution and shall have effect accordingly.]

[4]* * * * * * *

First National Assembly.

[5][**271.** (1) Notwithstanding anything contained in the Constitution, but subject to [6][Article 63,] Article 64 and Article 223,—

[7][(a) the first National Assembly shall consist of—

(i) persons who have taken oath in the National Assembly of Pakistan existing immediately before the commencing day ; and

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[1]Article 270AAA has been inserted with effect from the 20th November, 2007, *vide* Article 6 of the Constitution (Amendement) Order, 2007, (President's Order No. 5 of 2007), which was declared unlawful, without authority and void *ab initio* by the Supreme Court of Pakistan.

[2]Ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 97, and shall be deemed always to have been so, ins. with affect from the 21st day of August 2002.

[3]New Article 270BB ins. *ibid*., s. 98.

[4]Article 270C stands omitted as a consequence of the (Eighteenth Amdt.) Act, 2010 (10 of 2010), *see* section 2 and Article 270AA.

[5]Article 271 shall, during the period of five years from the 27th October, 1973, have effect as if,–

(a) after clause (2) thereof, the following new clause was ins. namely:–
"(2A) A person referred to in clause (2) shall resign one of his seats at any time on or before the 10th day of November, 1973, and, if he does not so resign, the seat to which he was elected first shall become vacant."; and

(b) in clause (3) thereof, after the words "election petition", the words "or otherwise" were inserted, *see* the Removal of Difficulties (Bar against Double Membership) Order, 1973 (P. O. No. 22 of 1973).

[6]Ins. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 9, (*w.e.f.* the 21st November, 1975).

[7]Subs. *ibid*.

(ii) the persons to be elected in accordance with law by the members of the Assembly to fill the seats referred to in clause (2A) of Article 51,

and, unless sooner dissolved, shall continue until the fourteenth day of August, one thousand nine hundred and seventy-seven; and reference to 'total membership' of National Assembly in the Constitution shall be construed accordingly;]

(b) the qualifications and disqualifications for being elected and being a member of the first National Assembly shall, except in case of members filling casual vacancies [1][, or to be elected to the additional seats referred to in clause (2A) of Article 51,] after the commencing day, be the same as under the Interim Constitution of the Islamic Republic of Pakistan:

Provided that no person holding an office of profit in the service of Pakistan shall continue to be a member of the first National Assembly after the expiration of three months from the commencing day.

(2) If a person referred to in paragraph (a) of clause (1) is, immediately before the commencing day, also a member of a Provincial Assembly, he shall not take a seat in the National Assembly or the Provincial Assembly until he resigns one of his seats.

(3) A casual vacancy in a seat in the first National Assembly, including a vacancy in a seat in the National Assembly of Pakistan existing before the commencing day which was not filled before that day, caused by reason of death or resignation of a member or consequent upon his incurring a disqualification or ceasing to be a member as a result of the final decision of an election petition may be filled in the same manner in which it would have been filled before the comencing day.

(4) A person referred to in paragraph (a) of clause (1) shall not sit or vote in the National Assembly until he has made the oath prescribed by Article 65 and, if, without the leave of the

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[1]Ins. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 9, (*w.e.f.* the 21st November, 1975).

Speaker of the National Assembly granted on reasonable cause shown, he fails to make the oath within twenty one days from the day of the first meeting of the Assembly, his seat shall become vacant at the expiration of that period.

First [2][Constitution of] Senate.

[1]**272.** [3]*Notwithstanding anything contained in the Constitution, but subject to [4][Article 63 and] Article 223,–

(a) the Senate shall, until the first National Assembly under Constitution continues in existence, consist of forty-five members and the provisions of Article 59 shall have effect as if, in paragraph (a) of clause (1) thereof, for the word "fourteen" the word "ten" and in paragraph (b) of that clause for the word "five" the word "three", were substituted, and reference to "total membership" of the Senate in the Constitution shall be construed accordingly;

(b) the members elected or chosen as members of the Senate shall be divided into two groups by drawing of lots, the first group consisting of five members from each Province, two members from the Federally Administered Tribal Areas and one member from the Federal Capital and the second group consisting of five members from each Province one member from the said Areas and one member from the Federal Capital;

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[1]Article 272 had, between the 9th June, 1973, and the 14th August, 1974, effect subject to the following modifications made by the Election to the Senate Order, 1973 (P.O. No. 8 of 1973), namely:–

In the said Article, after clause (1), the following new clause shall be added, namely:–

"(2) Until Parliament by law makes provision in that behalf, the President may, for the purpose of the due Constitution of, and election to, the Senate, by Order, make provision for any of the matters referred to in–

(a) Paragraphs (d) and (e) of clause (1) of Article 63;
(b) Paragraphs (d), (e) and (f) of Article 222; and
(c) Article 225".

[2]Ins. by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 16, (*w.e.f.* the 4th May, 1974).

[3]The brackets and figure "(1)" omitted by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 10, (*w.e.f.* the 21st November, 1975).

[4]Ins. *ibid.*

(c) the term of office of members of the first group and of the second group shall respectively be two years and four years;

(d) the term of office of persons elected or chosen to succeed the members of the Senate at the expiration of their respective terms shall be four years;

(e) the term of office of a person elected or chosen to fill a casual vacancy shall be the unexpired term of the member whose vacancy he is elected or chosen to fill;

(f) as soon as the first general election to the National Assembly is held, there shall be elected to the Senate four additional members from each Province and two additional members from the Federally Administered Tribal Areas; and

(g) the term of office of such half of the members elected under paragraph (f) as may be determined by drawing of lots shall be the unexpired term of office of the members of the first group and the term of office of the other half shall be the unexpired term of the members of the second group.

First Provincial Assembly.

[1]**273.** (1) Notwithstanding anything contained in the Constitution, but subject to [2][Article 63,] Article 64 and Article 223,–

[3][(a) the first Assembly of a Province under the Constitution shall consist of–

(i) the members of the Assembly of that Province in existence immediately before the commencing day, and

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[1]Article 273 shall, during the period of five years from the 27th October, 1973, have effect as if, in clause (2) thereof, after the words ''elections petitions'', the words ''or otherwise'' were ins. *see.* the Removal of Difficulties (Bar against Double Membership) Order, 1973 (P.O. No. 22 of 1973).

[2]Ins. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 11, (*w.e.f.* the 21st November, 1975).

[3]Subs. *ibid.,* (*w.e.f.* the 21st November, 1975).

(ii) the additional members to be elected in accordance with law by the members of the Assembly to fill the seats referred to in clause (3) of Article 106,

and, unless sooner dissolved, shall continue until the fourteenth day of August, one thousand nine hundred and seventy-seven ; and reference "total membership" of the Assembly of a Province in the Constitution shall be construed accordingly;]

(b) the qualifications and disqualifications for membership of the first Assembly of a Province shall, except in case of members filling casual vacancies [1][, or to be elected to the additional seats referred to in clause (3) of Article 106,] after the commencing day, be the same as were provided in the Interim Constitution of the Islamic Republic of Pakistan :

Provided that no person holding an office of profit in the service of Pakistan shall continue to be a member of the Assembly after the expiration of three months from the commencing day.

(2) A casual vacancy in a seat in the first Assembly of a Province, including a vacancy in a seat in the Assembly of that Province in existence immediately before the commencing day which was not filled before that day, caused by reason of death or resignation of a member or consequent upon his incurring a disqualification or ceasing to be a member as a result of the final decision of an election petition may be filled in the same manner in which it would have been filled before the commencing day.

(3) A member referred to in paragraph (a) of clause (1) shall not sit or vote in the Provincial Assembly until he has made the oath prescribed by Article 65 read with Article 127 and, if, without leave of the Speaker of the Provincial Assembly granted on reasonable cause shown, he fails to make the oath within

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[1]Ins. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 11, (*w.e.f.* the 21st November, 1975).

twenty-one days from the day of the first meeting of the Provincial Assembly, his seat shall become vacant at the expiration of that period.

Vesting of property, assets, rights, liabilities and obligations.

274. (1) All property and assets which, immediately before the commencing day, were vested in the President or the Federal Government shall, as from that day, vest in the Federal Government unless they were used for purposes which, on that day, became purposes of the Government of a Province, in which case they shall, as from that day, vest in the Government of the Province.

(2) All property and assets which, immediately before the commencing day, were vested in the Government of a Province, shall, as from that day, continue to be vested in the Government of that Province, unless they were used for purposes, which on that day, became purposes of the Federal Government in which case they shall, as from that day, vest in the Federal Government.

(3) All rights, liabilities and obligations of the Federal Government or of the Government of a Province, whether arising out of contract or otherwise, shall as from the commencing day, continue to be respectively the rights, liabilities and obligations of the Federal Government or of the Government of the Province, except that –

(a) all rights, liabilities and obligations relating to any matter which, immediately before that day, was the responsibility of the Federal Government, but which under the Constitution, has become the responsibility of the Government of a Province, shall devolve upon the Government of that Province; and

(b) all rights, liabilities and obligations relating to any matter which, immediately before that day, was the responsibility of the Government of a Province, but which under the Constitution, has become the respon-sibility of the Federal Government, shall devolve upon the Federal Government.

Continuance in office of persons in service of Pakistan, etc.

275. (1) Subject to the Constitution and until law is made under Article 240 any person who, immediately before the commencing day, was in the service of Pakistan shall, as from that day, continue in the service of Pakistan on the same terms and conditions as were applicable to him under the Interim Constitution of the Islamic Republic of Pakistan immediately before that day.

(2) Clause (1) shall also apply in relation to a person holding office immediately before the commencing day as –

(a) Chief Justice of Pakistan or other Judge of the Supreme Court, or Chief Justice or other Judge of a High Court;

(b) Governor of a Province;

(c) Chief Minister of a Province;

(d) Speaker or Deputy Speaker of the National Assembly or a Provincial Assembly;

(e) Chief Election Commissioner;

(f) Attorney-General for Pakistan or Advocate-General for a Province; and

(g) Auditor-General of Pakistan.

(3) Notwithstanding anything contained in the Constitution, for a period of six months from the commencing day, a Federal Minister or a Minister of State or the Chief Minister of a Province or a Provincial Minister may be a person who is not a member of [1][Majlis-e-Shoora (Parliament)] or, as the case may be, the Provincial Assembly of that Province; and such Chief Minister and Provincial Minister shall have the right to speak and otherwise take part in the proceedings of the Provincial Assembly or any committee thereof of which he may be named a member, but shall not by virtue of this clause be entitled to vote.

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[1]*See* footnote 9 on page 5, *supra.*

(4) Any person who, under this Article, is continued in an office in respect of which a form of oath is set out in the third Schedule shall, as soon as is practicable after the commencing day make before the appropriate person oath in that form.

(5) Subject to the Constitution and law–

(a) all civil, criminal and revenue courts exercising jurisdiction and functions immediately before the commencing day shall, as from that day, continue to exercise their respective jurisdictions and functions; and

(b) all authorities and all offices (whether judicial, executive, revenue or ministerial) throughout Pakistan exercising functions immediately before the commencing day shall, as from that day, continue to exercise their respective functions.

Oath of first President.

276. Notwithstanding anything contained in the Constitution, the first President may, in the absence of the Chief Justice of Pakistan, make the oath referred to in Article 42 before the Speaker of the National Assembly.

Transitional Financial Provisions.

277. (1) The schedule or authorized expenditure authenticated by the President for the financial year ending on the thirtieth day of June, one thousand nine hundred and seventy-four, shall continue to remain a valid authority for expenditure from the Federal Consolidated Fund for that year.

(2) The President may, in respect of expenditure of the Federal Government for any financial year preceding the financial year commencing on the first day of July, one thousand nine hundred and seventy-three (being expenditure in excess of the authorized expenditure for that year), authorize the withdrawal of moneys from the Federal Consolidated Fund.

(3) The provisions of clauses (1) and (2) shall apply to and in relation to a Province, and for that purpose–

(a) any reference in those provisions to the President shall be read as a reference to the Governor of the Province;

(b) any reference in those provisions to the Federal Government shall be read as a reference to the Government of the Province; and

(c) any reference in those provisions to the Federal Consolidated Fund shall be read as a reference to the Provincial Consolidated Fund of the Province.

Accounts not audited before commencing day.

278. The Auditor-General shall perform the same functions and exercise the same powers in relation to accounts which have not been completed or audited before the commencing day as, by virtue of the Constitution, he is empowered to perform or exercise in relation to other accounts, and Article 171 shall, with the necessary modifications, apply accordingly.

Continuance of Taxes.

279. Notwithstanding anything contained in the Constitution, all taxes and fees levied under any law in force immediately before the commencing day shall continue to be levied until they are varied or abolished by Act of the appropriate Legislature.

Continuance of Proclamation of Emergency.

280. The Proclamation of Emergency issued on the twenty-third day of November, one thousand nine hundred and seventy-one, shall be deemed to be a Proclamation of Emergency issued under Article 232, and for the purposes of clause (7) and clause (8) thereof to have been issued on the commencing day, and any law, rule or order made or purporting to have been made in pursuance of that Proclamation shall be deemed to have been validly made [1][and shall not be called in question in any Court on the ground of inconsistency with any of the rights conferred by Chapter I of Part II].

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[1]Added and shall be deemed always to have been so added by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 17.

[1][**ANNEX**

(Article 2A)

The Objectives Resolution

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most merciful.)

Whereas sovereignty over the entire universe belongs to Allah Almighty alone and the authority which He has delegated to the State of Pakistan, through its people for being exercised within the limits prescribed by Him is a sacred trust;

This Constituent Assembly representing the people of Pakistan resolves to frame a Constitution for the sovereign independent State of Pakistan;

Wherein the State shall exercise its powers and authority through the chosen representatives of the people;

Wherein the principles of democracy, freedom, equality, tolerance and social justice as enunciated by Islam shall be fully observed;

Wherein the Muslims shall be enabled to order their lives in the individual and collective spheres in accordance with the teachings and requirements of Islam as set-out in the Holy Quran and the Sunnah;

Wherein adequate provision shall be made for the minorities to [2][freely] profess and practise their religions and develop their cultures;

Wherein the territories now included in or in accession with Pakistan and such other territories as may hereafter be included in or accede to Pakistan shall form a Federation wherein the units will be autonomous with such boundaries and limitations on their powers and authority as may be prescribed;

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[1]New Annex ins. by P.O. No. 14 of 1985, Art. 2 and Sch.

[2]Ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 99.

Wherein shall be guaranteed fundamental rights including equality of status, of opportunity and before law, social, economic and political justice, and freedom of thought, expression, belief, faith, worship and association, subject to law and public morality;

Wherein adequate provision shall be made to safeguard the legitimate interests of minorities and backward and depressed classes;

Wherein the independence of the Judiciary shall be fully secured;

Wherein the integrity of the territories of the Federation, its independence and all its rights including its sovereign rights on land, sea and air shall be safeguarded;

So that the people of Pakistan may prosper and attain their rightful and honoured place amongst the nations of the World and make their full contribution towards international peace and progress and happiness of humanity.]

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[1][FIRST SCHEDULE

[*Article 8(3) (b) and (4)*]

Laws exempted from the operation of Article 8 (1) and (2).

PART I

I. President's Orders

1. The Acceding State (Property) Order, 1961 (P. O. No. 12 of 1961).

2. The Economic Reforms Order, 1972 (P. O. No. 1 of 1972).

II. Regulations

1. The Land Reforms Regulation, 1972.

2. The Land Reforms (Balochistan Pat Feeder Canal) Regulation, 1972.

3. The Economic Reforms (Protection of Industries) Regulation, 1972.

4. The Distribution of Property (Chitral) Regulation, 1974 (II of 1974).

5. The Settlement of Disputes of Immovable Property (Chitral) Regulation, 1974 (III of 1974).

6. The Dir and Swat (Devolution and Distribution of Property and Settlement of Disputes of Immovable Property) (Amendment) Regulation, 1975 (II of 1975).

[2][7. The Settlement of Disputes of Immovable Property (Chitral) (Amendment) Regulation, 1976 (II of 1976).]

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[1]The First Schedule as amended by the Constitution (First Amdt.) Act, 1974 (33 of 1974), s. 17, (*w.e.f.* the 4th May, 1974), has been subs. by the Constitution (Fourth Amdt.) Act, 1975 (71 of 1975), s. 12, (*w.e.f.* the 21st November, 1975).

[2]Entry 7 added by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 18, (*w.e.f.* the 13th September, 1976).

III. **Federal Acts**

1. The Land Reforms (Amendment) Act, 1974 (XXX of 1974).

2. The Land Reforms (Amendment) Act, 1975 (XXXIX of 1975).

[1][3. The Flour Milling Control and Development Act, 1976 (LVII of 1976).

4. The Rice Milling Control and Development Act, 1976 (LVIII of 1976).

5. The Cotton Ginning Control and Development Act, 1976 (LIX of 1976).]

[2]* * * * * * *

IV. **Ordinance Promulgated by the President**

The Land Reforms (Amendment) Ordinance, 1975 (XXI of 1975), and the Federal Act enacted to replace the said Ordinance.

V. **Provincial Acts**

1. The Land Reforms (Balochistan Amendment) Act, 1974 (Balochistan Act XI of 1974).

2. The Land Reforms (Pat Feeder Canal Regulation) (Amendment) Act, 1975 (Balochistan Act VII of 1975).

[3][VI. **Provincial Ordinance**

The Land Reforms (Pat Feeder Canal) (Amendment) Ordinance, 1976.]

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[1]Entries 3 to 5 added by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 18, (*w.e.f.* the 13th September, 1976).

[2]Entries 6 and 7 shall stand repealed by Act 12 of 2017 on the expiry of two years on 6th January, 2019.

[3]Sub-heading VI and the entry added by Act 62 of 1976, s. 18 (*w.e.f.* the 13th September, 1976).

PART II

I. President's Orders

1. The Minerals (Acquisition and Transfer) Order, 1961 (P. O. No. 8 of 1961).

2. The Companies (Managing Agency and Election of Directors) Order, 1972 (P. O. No. 2 of 1972).

3. The Co-operative Societies (Reforms) Order, 1972 (P. O. No. 9 of 1972).

4. The Life Insurance (Nationalization) Order, 1972 (P. O. No. 10 of 1972).

5. The Martial Law (Pending Proceedings) Order, 1972 (P. O. No. 14 of 1972).

6. The Rulers of Acceding States (Abolition of Privy Purses and Privileges) Order, 1972 (P. O. No. 15 of 1972).

7. The Industrial Sanctions and Licences (Cancellation) Order, 1972 (P. O. No. 16 of 1972).

8. The Criminal Law Amendment (Special Court) Order, 1972 (P. O. No. 20 of 1972).

II. Regulations

1. Rawalpindi (Requisition of Property) Regulation, 1959.

2. The Pakistan Capital Regulation, 1960.

3. The Scrutiny of Claims (Evacuee Property) Regulation, 1961.

4. The Income-Tax (Correction of Returns and False Declaration) Regulation, 1969.

5. The Improper Acquisition of Property Regulation, 1969.

6. The Removal from Service (Special Provisions) Regulation, 1969.

7. The Living Beyond Ostensible Means (Punishment) Regulation, 1969.

8. The Government Agricultural Land (Recovery of Illegal Possession) Regulation, 1969.

9. The Enemy Property (Payment of Money Due to Enemy) Regulation, 1970.

10. The Withdrawal of Currency Notes (High Denomination) Regulation, 1971.

11. The Price of Evacuee Property and Public Dues (Recovery) Regulation, 1971.

12. The Peshawar District and Tribal Areas (Settlement of Disputes) Regulation, 1971.

13. The Convention Muslim League and Awami League (Scrutiny of Funds) Regulation, 1971.

14. The Foreign Exchange Repatriation Regulation, 1972.

15. The Foreign Assets (Declaration) Regulation, 1972.

16. The Removal from Service (Review Petition) Regulation, 1972.

17. The Privately Managed Schools and Colleges (Taking Over) Regulation, 1972.

18. The Enemy Property (Revocation of Sales) Regulation, 1972.

19. The Dir and Swat (Devolution and Distribution of Property) Regulation, 1972.

20. The Dir and Swat (Settlement of Disputes of Immovable Property) Regulation, 1972.

21. The West Pakistan Industrial Development Corporation (Revocation of Sale or Transfer) Regulation, 1972.

22. The National Press Trust (Suspension of Board of Trustees and Directors) Regulation, 1972.

23. The Co-operative Banks (Repayment of Loans) (Punjab) Regulation, 1972.

24. The Co-operative Societies (Repayment of Loans) (Sind) Regulation, 1972.

III. Ordinances Promulgated by the President

1. The Control of Shipping Ordinance, 1959 (XIII of 1959).

2. The Jammu and Kashmir (Administration of Property) Ordinance, 1961 (III of 1961).

3. The Muslim Family Laws Ordinance, 1961 (VIII of 1961).

4. The Security of Pakistan (Amendment) Ordinance, 1961 (XIV of 1961).

5. The Associated Press of Pakistan (Taking Over) Ordinance, 1961 (XX of 1961).

6. The Trade Organisations Ordinance, 1961 (XLV of 1961).

IV. Federal Acts

The Censorship of Films Act, 1963 (XVIII of 1963).

V. Ordinances Promulgated by the Governor of Former Province of West Pakistan

1. The West Pakistan Government Educational and Training Institutions Ordinance, 1960 (W.P. Ordinance No. XI of 1960).

2. The West Pakistan Wakf Properties Ordinance, 1961 (W.P. Ordinance No. XXVIII of 1961).

3. The Societies Registration (West Pakistan Amendment) Ordinance, 1962 (W.P. Ordinance No. IX of 1962).

4. The West Pakistan Industries (Control on Establishment and Enlargement) Ordinance, 1963 (W.P. Ordinance No. IV of 1963).

VI. Ordinances Promulgated by the Governor of the North-West Frontier Province

1. The North-West Frontier Province Government Educational and Training Institutions Ordinance, 1971 (N.W.F.P. Ordinance No. III of 1971).

2. The North-West Frontier Province Chashma Right Bank Canal Project (Control and Prevention of Speculation in Land) Ordinance, 1971 (N.W.F.P. Ordinance No. V of 1971).

3. The North-West Frontier Province Gomal Zam Project (Control and Prevention of Speculation in Land) Ordinance, 1971 (N.W.F.P. Ordinance No. VIII of 1971).]

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[1][SECOND SCHEDULE

[*Article 41 (3)*]

Election of President

1. The [2][Election Commission of Pakistan] shall hold and conduct election to the office of President, and [3][Chief Election Commissioner] shall be the Returning Officer for such election.

2. The [2][Election Commission of Pakistan] shall appoint Presiding Officers to preside at the meeting of the members of Majlis-e-Shoora (Parliament) and at the meetings of the members of the Provincial Assemblies.

3. The Chief Election Commissioner shall by public notification fix the time and place for depositing nomination papers, holding a scrutiny, making withdrawals, if any, and holding the poll, if necessary.

4. At any time before noon on the day fixed for nomination any member of the Majlis-e-Shoora (Parliament) or of a Provincial Assembly may nominate for election as President a person qualified for election as President by delivering to the Presiding Officer a nomination paper, signed by himself as proposer and by another member of the Majlis-e-Shoora (Parliament) or, as the case may be Assembly as seconder, together with a statement signed by the person nominated that he consents to the nomination:

Provided that no person shall subscribe, whether as proposer or as seconder, more than one nomination paper at any one election.

5. The scrutiny shall be held by the Chief Election Commissioner at the time and place fixed by him, and if after scrutiny only one person remains validly nominated, the Chief Election Commissioner shall declare that person

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[1]Subs. by P. O. No. 14 of 1985, Art. 2 and Sch., for ''Second Schedule''.

[2]Subs. by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 10, for "Chief Election Commissioner".

[3]Ins. *ibid.*

to be elected, or if more than one person remains validly nominated, he shall announce, by public notification, the names of the persons validly nominated, to be hereinafter called the candidates.

6. A candidate may withdraw his candidature at any time before noon on the day fixed for this purpose by delivering a notice in writing under his hand to the Presiding Officer with whom his nomination paper has been deposited, and a candidate who has given a notice of withdrawal of his candidature under this paragraph shall not be allowed to cancel that notice.

7. If all but one of the candidates have withdrawn, that one shall be declared by the Chief Election Commissioner to be elected.

8. If there is no withdrawal, or if, after withdrawals have taken place, two or more candidates are left, the Chief Election Commissioner shall announce by Public notification the names of the candidates, and their proposers and seconders, and shall proceed to hold a poll by secret ballot in accordance with the provisions of the succeeding paragraphs.

9. If a candidate whose nomination has been found to be in order dies after the time fixed for nomination, and a report of his death is received by the Presiding Officer before the commencement of the poll, the Presiding Officer shall, upon being satisfied of the fact of the death of the candidate, countermand the poll and report the fact to the Chief Election Commissioner, and all proceedings with reference to the election shall be commenced a new in all respects as if for a new election:

Provided that no further nomination shall be necessary in the case of a candidate whose nomination was valid at the time of the countermanding of the poll:

Provided further that no person who has under paragraph 6 of this Schedule given notice of withdrawal of

his candidature before the countermanding of the poll shall be ineligible for being nominated as a candidate for the election after such countermanding.

10. The poll shall be taken at the meetings of Majlis-e-Shoora (Parliament) and of each Provincial Assembly, and the respective Presiding Officers shall conduct the poll with the assistance of such officers as they may, with the approval of the Chief Election Commissioner, respectively appoint.

11. A ballot paper shall be issued to every member of Majlis-e-Shoora (Parliament), and of each Provincial Assembly, who presents himself for voting at the meeting of the members of the Majlis-e-Shoora (Parliament) or, as the case may be of the Provincial Assembly of which he is a member (hereinafter referred to as a person voting), and he shall exercise his vote personally by marking the paper in accordance with the provisions of the succeeding paragraphs.

12. The poll shall be by secret ballot by means of ballot papers containing the names of all the candidates in alphabetical order who have not withdrawn, and a person voting shall vote by placing a mark against the name of the person for whom he wishes to vote.

13. Ballot papers shall be issued from a book of ballot papers with counterfoils, each counterfoil being numbered; and when a ballot paper is issued to a person voting his name shall be entered on the counterfoil, and the ballot paper shall be authenticated by the initials of the Presiding Officer.

14. A ballot paper having been marked by the person voting shall be deposited by that person in a ballot box to be placed in front of the Presiding Officer.

15. If a ballot paper is spoiled by a person voting he may return it to the Presiding Officer, who shall issue a second ballot paper, cancelling the first ballot paper and marking the cancellation on the appropriate counterfoil.

16. A ballot paper shall be invalid if–

(i) there is upon it any name, word or mark, by which the person voting may be identified; or

(ii) it does not contain the initials of the Presiding Officer; or

(iii) it does not contain mark; or

(iv) a mark is placed against the names of two or more candidates ; or

(v) there is any uncertainty as to the identity of the candidate against whose name the mark is placed.

17. After the close of the poll each Presiding Officer shall, in the presence of such of the candidates or their authorized representatives as may desire to be present, open and empty the ballot boxes and examine the ballot papers therein, rejecting any which are invalid, count the number of votes recorded for each candidate on the valid ballot papers, and communicate the number of the votes so recorded to the Chief Election Commissioner.

18. (1) The Chief Election Commissioner shall determine the result of the election in the following manner, namely :–

(a) the number of votes cast in the Majlis-e-Shoora (Parliament) in favour of each candidate shall be counted;

(b) the number of votes cast in a Provincial Assembly in favour of each candidate shall be multiplied by the total number of seats in the Provincial Assembly for the time being having the smallest number of seats and divided by the total number of seats in the Provincial Assembly in which the votes have been cast; and

(c) the number of votes calculated in the manner referred to in clause (b) shall be added to the number of votes counted under clause (a).

Explanation.–In this paragraph, ''total number of seats'' includes seats reserved for non-Muslims and women.

(2) A fraction shall be rounded off to the nearest whole.

19. The candidate who has obtained the largest number of votes compiled in the manner specified in paragraph 18 shall be declared by the Chief Election Commissioner to be elected.

20. Where at any poll any two or more candidates obtain an equal number of votes, the selection of the candidate to be elected shall be by drawing of lots.

21. When, after any poll, the counting of the votes has been completed, and the result of the voting determined, the Chief Election Commissioner shall forthwith announce the result to those present, and shall report the result to the Federal Government, who shall forthwith cause the result to be declared by a public notification.

22. The [1][Election Commission of Pakistan] may, by public notification, with the approval of the President, make rules for carrying out the purposes of this Schedule.]

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[1]Subs. by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 10, for "Chief Election Commissioner".

THIRD SCHEDULE

Oaths of Office

PRESIDENT

[Article 42]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I,————————————, do solemnly swear that I am a Muslim and believe in the Unity and Oneness of Almighty Allah, the Books of Allah, the Holy Quran being the last of them, the Prophethood of Muhammad (peace be upon him) as the last of the Prophets and that there can be no Prophet after him, the Day of Judgement, and all the requirements and teachings of the Holy Quran and Sunnah.

That I will bear true faith and allegiance to Pakistan:

That, as President of Pakistan, I will discharge my duties, and perform my functions, honestly, to the best of my ability, faithfully in accordance with the Constitution of the Islamic Republic of Pakistan and the law, and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan:

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan:

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan:

That, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will :

And that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration or shall become known to me as President of Pakistan, except as may be required for the due discharge of my duties as President.

[1][May Allah Almighty help and guide me (A'meen).]

———

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

PRIME MINISTER

[Article 91 [1][(5)]]

بِسۡمِ اللّٰہِ الرَّحۡمٰنِ الرَّحِیۡمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I am a Muslim and believe in the Unity and Oneness of Almighty Allah, the Books of Allah, the Holy Quran being the last of them, the Prophethood of Muhammad (peace be upon him) as the last of the Prophets and that there can be no Prophet after him, the Day of Judgement, and all the requirements and teachings of the Holy Quran and Sunnah.

That I will bear true faith and allegiance to Pakistan:

That, as Prime Minister of Pakistan, I will discharge my duties, and perform my functions, honestly, to the best of my ability, faithfully in accordance with the Constitution of the Islamic Republic of Pakistan and the law, and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan :

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan:

That, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will:

And that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my

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[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 100, for "(3)".

consideration or shall become known to me as Prime Minister, except as may be required for the due discharge of my duties as Prime Minister.

[1][May Allah Almighty help and guide me (A'meen).]

———

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

FEDERAL MINISTER OR MINISTER OF STATE

[Article 92 (2)]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan :

That, as Federal Minister (or Minister of State); I will discharge my duties, and perform my functions, honestly, to the best of my ability, faithfully in accordance with the Constitution of the Islamic Republic of Pakistan and the law, and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan :

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

That, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will :

And that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration or shall become known to me as Federal Minister (or Minister of State), except as may be required for the due discharge of my duties as Federal Minister (or Minister of State), or as may be specially permitted by the Prime Minister.

[1][May Allah Almighty help and guide me (A'meen).]

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[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

SPEAKER OF NATIONAL ASSEMBLY OR CHAIRMAN OF SENATE

[Articles 53 (2) and 61]

بِسۡمِ اللّٰہِ الرَّحۡمٰنِ الرَّحِیۡمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan :

That, as Speaker of the National Assembly (or Chairman of the Senate) and whenever I am called upon to act as President of Pakistan, I will discharge my duties, and perform my functions honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan the law and as Speaker of the National Assembly in accordance with the rules of the Assembly (or as Chairman of the Senate in accordance with the rules of the Senate), and always in the interest of the sovereignty, integrity, well-being and prosperity of Pakistan :

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

And that, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will.

[1][May Allah Almighty help and guide me (A'meen).]

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[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

DEPUTY SPEAKER OF NATIONAL ASSEMBLY OR DEPUTY CHAIRMAN OF SENATE

[Articles 53 (2) and 61]

بِسۡمِ اللّٰہِ الرَّحۡمٰنِ الرَّحِیۡمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan :

That, whenever I am called upon to act as Speaker of the National Assembly (or Chairman of the Senate), I will discharge my duties, and perform my functions honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan, the law and the rules of the Assembly (or Senate), and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan :

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

And that, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will.

[1][May Allah Almighty help and guide me (A'meen).]

_____

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

MEMBER OF NATIONAL ASSEMBLY OR MEMBER OF SENATE

[Article 65]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan :

That, as a member of the National Assembly (or Senate), I will perform my functions honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan, and the law, and the rules of the Assembly (or Senate), and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan:

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan.

And that I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan.

[1][May Allah Almighty help and guide me (A'meen).]

_____

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

GOVERNOR OF PROVINCE

[Article 102]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan :

That, as the Governor of the Province of ————————, I will discharge my duties, and perform my functions, honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan, and the law and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan :

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

That, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will :

And that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration or shall become known to me as Governor of the Province of..... except as may be required for the due discharge of my duties as Governor.

[1][May Allah Almighty help and guide me (A'meen).]

———

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

CHIEF MINISTER OR PROVINCIAL MINISTER

[Articles [1][130 (5)] and 132 (2)]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan :

That, as a Chief Minister (or Minister) of the Government of the Province of ————————, I will discharge my duties, and perform my functions, honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan, and the law and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan :

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

That, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will :

And that I will not directly or indirectly communicate or reveal to any person any matter which shall be brought under my consideration or shall become known to me as Chief Minister (or Minister) except as may be required for the due discharge of my duties as Chief Minister (or Minister or as may be specially permitted by the Chief Minister).

[2][May Allah Almighty help and guide me (A'meen).]

———

[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 100 for "131 (4)".
[2]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

SPEAKER OF A PROVINCIAL ASSEMBLY

[Articles 53 (2) and 127]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan:

That, as Speaker of the Provincial Assembly of the Province of....., [1][and whenever I am called upon to act as Governer, I will discharge] my duties, and perform my functions, honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan, the law and the rules of the Assembly, and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan:

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

And that, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will.

[2][May Allah Almighty help and guide me (A'meen).]

_____

[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 100 for "I will discharge".

[2]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

DEPUTY SPEAKER OF A PROVINCIAL ASSEMBLY

[Articles 53 (2) and 127]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan:

That, whenever I am called upon to act as Speaker of the Provincial Assembly of the Province of....., I will discharge my duties, and perform my functions, honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan, the law and the rules of the Assembly, and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan:

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

And that, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will.

[1][May Allah Almighty help and guide me (A'meen).]

---

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

MEMBER OF A PROVINCIAL ASSEMBLY

[Articles 65 and 127]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan:

That, as a member of the Provincial Assembly of ....., I will perform my functions, honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan, the law and the rules of the Assembly, and always in the interest of the sovereignty, integrity, solidarity, well-being and prosperity of Pakistan:

That I will strive to preserve the Islamic Ideology which is the basis for the creation of Pakistan :

And that I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan.

[1][May Allah Almighty help and guide me (A'meen).]

_____

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

AUDITOR-GENERAL OF PAKISTAN

[Article 168 (2)]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan:

That, as Auditor-General of Pakistan, I will discharge my duties, and perform my functions, honestly, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan, and the law and to the best of my knowledge, ability and judgment, without fear or favour, affection or ill-will, and that I will not allow my personal interest to influence my official conduct or my official decisions.

[1][May Allah Almighty help and guide me (A'meen).]

_____

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

[1][Chief Justice Of The Federal Constitutional Court Of Pakistan Or Chief Justice Of The Supreme Court Of Pakistan Or Of A High Court Or Judge Of The Federal Constitutional Court Or Of The Supreme Court Or Of A High Court.

*[*Articles 175D, 178 and 194*]*

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan:

That, as [2][Chief Justice of the Federal Constitutional Court of Pakistan (or a Judge of the Federal Constitutional Court of Pakistan) or Chief Justice of the Supreme Court of Pakistan (or a Judge of the Supreme Court of Pakistan) or Chief Justice (or a Judge) of the High Court for the Province or Islamabad Capital Territory or Provinces of.....)], I will discharge my duties, and perform my functions, honestly, to the best of my ability, and faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan and the law :

That I will abide by the code of conduct issued by the Supreme Judicial Council :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

And that, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will.

[3][May Allah Almighty help and guide me (A'meen).]

---

[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 54, for "heading".

[2]Subs. *ibid.,* for certain words.

[3]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

[1][CHIEF JUSTICE OR JUDGE OF THE FEDERAL SHARIAT COURT.

[Article 203C (7)]

بِسۡمِ اللّٰہِ الرَّحۡمٰنِ الرَّحِیۡمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan:

That, as Chief Justice of the Federal Shariat Court (or a Judge of the Federal Shariat Court), I will discharge my duties, and perform my functions, honestly, to the best of my ability, and faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan and the law :

That I will not allow my personal interest to influence my official conduct or my official decisions :

That I will abide by the code of conduct issued by the Supreme Judicial Council :

That I will preserve, protect and defend the Constitution of the Islamic Republic of Pakistan :

And that, in all circumstances, I will do right to all manner of people, according to law, without fear or favour, affection or ill-will.

May Allah Almighty help and guide me (A'meen).]

---

[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 100 for "Oath of Chief Justice or a Judge of the Federal Shariat Court".

CHIEF ELECTION COMMISSIONER [1][OR A MEMBER OF THE ELECTION COMMISSION OF PAKISTAN]

[Article 214]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that as Chief Election Commissioner [2][or, as the case may be, member of the Election Commission of Pakistan] I will discharge my duties, and perform my functions, honestly, to the best of my ability, faithfully, in accordance with the Constitution of the Islamic Republic of Pakistan and the law, and without fear or favour, affection or ill-will, and that I will not allow my personal interest to influence my official conduct or my official decisions.

[3][May Allah Almighty help and guide me (A'meen).]

_____

[1]Added by the Constitution (Twentieth Amdt.) Act, 2012 (5 of 2012), s. 11.
[2]Ins. *ibid.*
[3]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

MEMBERS OF THE ARMED FORCES

[Article 244]

بِسْمِ اللّٰهِ الرَّحْمٰنِ الرَّحِيْمِ

(In the name of Allah, the most Beneficent, the most Merciful.)

I, _____, do solemnly swear that I will bear true faith and allegiance to Pakistan and uphold the Constitution of the Islamic Republic of Pakistan which embodies the will of the people, that I will not engage myself in any political activities whatsoever and that I will honestly and faithfully serve Pakistan in the Pakistan Army (or Navy or Air Force) as required by and under the law.

[1][May Allah Almighty help and guide me (A'meen).]

_____

[1]Added by P. O. No. 14 of 1985, Art. 2 and Sch.

FOURTH SCHEDULE

[Article 70 (4)]

LEGISLATIVE LISTS

Federal Legislative List

PART I

1. The defence of the Federation or any part thereof in peace or war; the military, naval and air forces of the Federation and any other armed forces raised or maintained by the Federation ; any armed forces which are not forces of the Federation but are attached to or operating with any of the Armed Forces of the Federation including civil Armed Forces; Federal Intelligence Bureau; preventive detention for reasons of State connected with defence, external affairs, or the security of Pakistan or any part thereof ; persons subjected to such detention; industries declared by Federal law to be necessary for the purpose of defence or for the prosecution of war.

2. Military, naval and air force works; local self-government in cantonment areas, [1][local taxes, fees, cess, charges, tolls in such areas] the constitution and powers within such areas of cantonment authorities, the regulation of house accommodation in such areas, and the delimitation of such areas.

3. External affairs; the implementing of treaties and agreements, including educational and cultural pacts and agreements, with other countries; extradition, including the surrender of criminals and accused persons to Governments outside Pakistan.

4. Nationality, citizenship and naturalisation.

5. Migration from or into, or settlement in, a Province or the Federal Capital.

6. Admission into, and emigration and expulsion from, Pakistan, including in relation thereto the regulation of the movements in Pakistan of persons not domiciled in Pakistan, pilgrimages to places beyond Pakistan.

7. Posts and telegraphs, including telephones, wireless, broadcasting and other like forms of communications; Post Office Saving Bank.

---

[1]Ins. by the Constitution (Twenty-sixth Amdt.) Act, 2024 (26 of 2024), s. 27.

8. Currency, coinage and legal tender.

9. Foreign exchange; cheques, bills of exchange, promissory notes and other like instruments.

10. Public debt of the Federation, including the borrowing of money on the security of the Federal Consolidated Fund ; foreign loans and foreign aid.

11. Federal Public Services and Federal Public Service Commission.

12. Federal pensions, that is to say, pensions payable by the Federation or out of the Federal Consolidated Fund.

13. Federal Ombudsman.

14. Administrative Courts and Tribunals for Federal subjects.

15. Libraries, museums, and similar institutions controlled or financed by the Federation.

16. Federal agencies and institutes for the following purposes, that is to say, for research, for professional or technical training, or for the promotion of special studies.

17. Education as respects Pakistani students in foreign countries and foreign students in Pakistan.

18. Nuclear energy, including–

(a) mineral resources necessary for the generation of nuclear energy;

(b) the production of nuclear fuels and the generation and use of nuclear energy;

(c) ionizing radiations [1][; and]

[2][(d) boilers.]

19. Port quarantine, seamen's and marine hospitals and hospitals connected with port quarantine.

20. Maritime shipping and navigation, including shipping and navigation on tidal waters; Admiralty jurisdiction.

---

[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 101, for the full-stop.

[2]New sub-entry (d) added *ibid.*

[1]* * * * * * *

22. Aircraft and air navigation; the provision of aerodromes; regulation and organisation of air traffic and of aerodromes.

23. Lighthouses, including lightships, beacons and other provisions for the safety of shipping and aircraft.

24. Carriage of passengers and goods by sea or by air.

25. Copyright, inventions, designs, trade-marks and merchandise marks.

26. Opium so far as regards sale for export.

27. Import and export across customs frontiers as defined by the Federal Government, inter-provincial trade and commerce, trade and commerce with foreign countries; standard of quality of goods to be exported out of Pakistan.

28. State Bank of Pakistan; banking, that is to say, the conduct of banking business by corporations other than corporations owned or controlled by a Province and carrying on business only within that Province.

29. The law of insurance, except as respects insurance undertaken by a Province, and the regulation of the conduct of insurance business, except as respects business undertaken by a Province; Government insurance, except so far as undertaken by a Province by virtue of any matter within the legislative competence of the Provincial Assembly.

30. Stock exchanges and futures markets with objects and business not confined to one Province.

31. Corporations, that is to say, the incorporation, regulation and winding-up of trading corporations, including banking, insurance and financial corporations, but not including corporations owned or controlled by a Province and carrying on business only within that Province, or co-operative societies, and of corporations, whether trading or not, with objects not confined to a Province, but not including universities.

---

[1]Entry "21" omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 101.

[1][32. International treaties, conventions and agreements and International arbitration.]

[2]* * * * * * *

34. National highways and strategic roads.

35. Federal surveys including geological surveys and Federal meteorological organisations.

36. Fishing and fisheries beyond territorial waters.

37. Works, lands and buildings vested in, or in the possession of Government for the purposes of the Federation (not being military, naval or air force works), but, as regards property situate in a Province, subject always to Provincial legislation, save in so far as Federal law otherwise provides.

[2]* * * * * * *

39. Establishment of standards of weights and measures.

[2]* * * * * * *

41. Elections to the office of President, to the National Assembly, the Senate and the Provincial Assemblies; Chief Election Commissioner and Election Commission.

42. The salaries, allowances and privileges of the President, Speaker and Deputy Speaker of the National Assembly, Chairman and Deputy Chairman of the Senate, Prime Minister, Federal Ministers, Ministers of State, the salaries, allowances and privileges of the members of the Senate and the National Assembly; and the punishment of persons who refuse to give evidence or produce documents before committees thereof.

---

[1]Subs. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 101 for "entry 32".

[2]Entries 33, 38 and 40 omitted *ibid.,*

43. Duties of customs, including export duties.

44. Duties of excise, including duties on salt, but not including duties on alcoholic liquors, opium and other narcotics.

[1]* * * * * * *

[1]* * * * * * *

47. Taxes on income other than agricultural income.

48. Taxes on corporations.

[2][49. Taxes on the sales and purchases of goods imported, exported, produced, manufactured or consumed [3][, except sales tax on services.]]

50. Taxes on the capital value of the assets, not including taxes [4]* * * on immovable property.

51. Taxes on mineral oil, natural gas and minerals for use in generation of nuclear energy.

52. Taxes and duties on the production capacity of any plant, machinery, undertaking, establishment or installation in lieu of the taxes and duties specified in entries 44, 47, 48 and 49 or in lieu of any one or more of them.

53. Terminal taxes on goods, or passengers carried by railway, sea or air; taxes on their fares and freights.

54. Fees in respect of any of the matters in this Part, but not including fees taken in any court.

55. Jurisdiction and powers of all courts, except the [5][Federal Constitutional Court and the Supreme Court], with respect to any of the matters in this List and, to such extent as is expressly authorized by or under the Constitution, the enlargement of the jurisdiction of the [5][Federal Constitutional Court and the Supreme Court], and the conferring thereon of supplemental powers.

---

[1]Entries 45 and 46 omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 101.

[2]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 19, for the ''original entry 49'' (*w.e.f.* the 13th September, 1976).

[3]Added by the Act No. 10 of 2010, s. 101.

[4]The words "on capital gains" omitted *ibid.,*

[5]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s.55, for "Supreme Court".

56. Offences against laws with respect to any of the matters in this Part.

57. Inquiries and statistics for the purposes of any of the matters in this Part.

58. Matters which under the Constitution are within the legislative competence of [1][Majlis-e-Shoora (Parliament)] or relate to the Federation.

59. Matters incidental or ancillary to any matter enumerated in this Part.

———

[1]*See* footnote 9 on page 5, *supra.*

PART II

1. Railways.

2. Mineral oil and natural gas; liquids and substances declared by Federal law to be dangerously inflammable.

3. Development of industries, where development under Federal control is declared by Federal law to be expedient in the public interest; institutions, establishments, bodies and corporations administered or managed by the Federal Government immediately before the Commencing day, including the [1][Pakistan Water and Power Development Authority and the Pakistan Industrial Development Corporation]; all undertakings, projects and schemes of such institutions, establishments, bodies and corporations, industries, projects and undertakings owned wholly or partially by the Federation or by a corporation set up by the Federation.

[2][4. Electricity.

5. Major ports, that is to say, the declaration and delimitation of such ports, and the constitution and powers of port authorities therein.

6. All regulatory authorities established under a Federal law.

7. National planning and national economic coordination including planning and coordination of scientific and technological research.

8. Supervision and management of public debt.

9. Census.

---

[1]Subs. by the Constitution (Fifth Amdt.) Act, 1976 (62 of 1976), s. 19, for ''West Pakistan Water and Power Development Authority and the West Pakistan Industrial Development Corporation'' *(w.e.f.* the 13th September, 1976).

[2]New entries 4, 5, 6, 7, 8, 9, 10, 11, 12 and 13 ins. by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 101.

10. Extension of the powers and jurisdiction of members of a police force belonging to any Province to any area in another Province, but not so as to enable the police of one Province to exercise powers and jurisdiction in another province without the consent of the Government of that Province; extension of the powers and jurisdiction of members of a police force belonging to any Province to railway areas outside that Province.

11. Legal, medical and other professions.

12. Standards in institutions for higher education and research, scientific and technical institutions.

13. Inter-provincial matters and co-ordination.]

[1][14.] Council of Common Interests.

[1][15.] Fees in respect of any of the matters in this Part but not including fees taken in any court.

[1][16.] Offences against laws with respect to any of the matters in this Part.

[1][17.] Inquiries and statistics for the purposes of any of the matters in this Part.

[1][18.] Matters incidental or ancillary to any matter enumerated in this Part.

[2]* * * * * * *

---

[1]Re-numbered entries 4, 5, 6, 7 and 8 by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 101.

[2]Concurrent Legislative List and the entries 1 to 47 omitted *ibid.*

*FIFTH SCHEDULE

[*Article 205*]

Remuneration and Terms and Conditions of Service of Judges.

[1][THE FEDERAL CONSTITUTIONAL COURT
AND
THE SUPREME COURT]

1. There shall be paid to the Chief Justice of [2][the Federal Constitutional Court and the Chief Justice of the Supreme Court] a salary of Rs. [3][9,900] per mensem, and to every other Judge of the Supreme Court a salary of Rs. [3][9,500] per mensem [4][or such higher salary as the President may, from time to time, determine.]

2. Every Judge of the [5][Federal Constitutional Court and the Supreme Court] shall be entitled to such privileges and allowances, and to such rights in respect of leave of absence and pension, as may be determined by the President, and until so determined, to the privileges, allowances and rights to which, immediately before the commencing day, the Judges of the [5][Federal Constitutional Court and the Supreme Court] [6]* * were entitled.

[7][3. The pension payable to a retired Judge of the [5][Federal Constitutional Court and the Supreme Court] per mensem shall not be less or more than the amount specified in the table below, depending on the length of his service as Judge in that Court or a High Court :

**w.e.f.* 1-12-2001, the salary of the Chief Justice of Pakistan and other Judges of the Supreme Court has been determined by the President to be Rs. 55,000 and Rs. 52,000 respectively *vide* P.O. No. 2 of 2002, paragraph 2 (1), which was previously amended by P.O. No. 9 of 1991, P.O. No. 3 of 1995 and P.O. No. 4 of 1995.

(*w.e.f.* 27-7-1991, *vide* P. O. No. 2 of 1997) the Chief Justice and a Judge of the Supreme Court on his retirement or resignation shall be entitled to the minimum amount of pension equal to 70% to the Chief Justice of his salary or as the case may be, a Judge plus 5% of salary for each completed year of service either as the Chief Justice or as the Judge not exceeding the maximum amount of pension equal to 85% of the said salary.

[1]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 56, for sub-heading.

[2]Subs. *ibid.,* for "Pakistan".

[3]Subs. by the Constitution (Twelfth Amdt.) Act, 1991 (14 of 1991), s. 3, for ''7,900'' and ''7,400'', which was previously amended by P.O. No. 6 of 1985, Art. 2 (*w.e.f.* 1-7-1983).

[4]Added *ibid.*

[5]Subs. by the Act No. 32 of 2025, s. 56, for "Supreme Court".

[6]The words "of Pakistan" omitted *ibid.*

[7]Subs. by the Act No. 14 of 1991, s.3, for ''paragraph 3rd''.

Provided that the President may, from time to time, raise the minimum or maximum amount of pension so specified :–

Judge	Minimum amount.	Maximum amount.
Chief Justice	Rs. 7,000	Rs. 8,000
Other Judge	Rs. 6,250	Rs. 7,125.]

[1][4. The widow of a Judge of the [2][Federal Constitutional Court and the Supreme Court] shall be entitled to a pension at the following rates, namely :–

(a) if the Judge dies after retirement–50 per cent of the net pension payable to him; or

(b) if the Judge dies after having rendered not less than three years' service as Judge and while still serving as such–50 per cent of the pension admissible to him at the minimum rate.

5. The pension shall be payable to the widow for life or, if she remarries, until her marriage.

6. If the widow dies, the pension shall be payable–

(a) to the sons of the judge who are less than twenty-one years of age, until they attain that age; and

(b) to the unmarried daughters of the Judge who are less than twenty-one years of age, until they attain that age or are married, whichever first occurs.]

---

[1]Added by P. O. No. 6 of 1985, Art. 2, (*w.e.f.* the 1st July, 1981).

[2]Subs. by the Constitution (Twenty-Seventh Amdt.) Act, 2025 (32 of 2025), s. 56, for "Supreme Court".

THE HIGH COURT

1. *There shall be paid to the Chief Justice of a High Court a salary of Rs. [1][9,400] per mensem, and to every other Judge of a High Court a salary of Rs. [1][8,400] per mensem [2][,or such higher salary as the President may, from time to time, determine.]

2. Every Judge of a High Court shall be entitled to such privileges and allowances, and to such rights in respect of leave of absence and pension, as may be determined by the President, and until so determined, to the privileges, allowances and rights to which, immediately before the commencing day, the Judges of the High Court were entitled.

[3][3. The pension payable per mensem to a Judge of a High Court who retires after having put in not less than five years service as such Judge shall not be less or more than the amount specified in the table below, depending on the length of his service as Judge and total service, if any, in the service of Pakistan:

Provided that the President may, from time to time, raise the minimum or maximum amount of pension so specified :–

Judge	Minimum amount.	Maximum amount.
Chief Justice	Rs. 5,640	Rs. 7,050
Other Judge	Rs. 5,040	Rs. 6,300.]

[4][4. The widow of a Judge of the High Court shall be entitled to a pension at the following rates, namely :–

(a) if the Judge dies after retirement–50 per cent of the net pension payable to him; or

*_w.e.f._ 1-12-2001, the salary of the Chief Justice of High Court and other Judges of a High Court has been determined by the President to be Rs. 51,000 and Rs. 49,000 respectively _vide_ P. O. No. 2 of 2002, paragraph 2 (2), which was previously amended by P.O. No. 9 of 1991, P. O. No. 3 of 1995 and P. O. No. 4 of 1995.

(_w.e.f._ 27-7-1991, _vide_ P. O. No. 3 of 1997) the Chief Justice and a Judge of the High Court on his retirement or resignation or removal shall be entitled to the minimum pension equal to 70% of the salary on the completion of 5 years service for pension as Judge and an extra pension @ 2% of such salary for each subsequent completed year of service as Chief Justice or the Judge including his service if any the maximum pension not exceeding 80% of the salary.

[1]Subs. by the Constitution (Twelfth Amdt.) Act, 1991 (14 of 1991), s. 3, for ''7,200'' and ''6,500'', which was previously amended by P.O. No. 6 of 1985, Art. 2, (_w.e.f._ 1-7-1983).

[2]Added _ibid._

[3]Subs. _ibid.,_ for ''paragraph 3rd''.

[4]Added by P. O. No. 6 of 1985, Art. 2, (_w.e.f._ the 1st July, 1981).

(b) if the Judge dies after having rendered not less than five years' service as Judge and while still serving as such–50 per cent of the pension admissible to him at the minimum rate.

5. The pension shall be payable to the widow for life or, if she remarries, until her marriage.

6. If the widow dies, the pension shall be payable–

(a) to the sons of the Judge who are less than twenty-one years of age, until they attain that age; and

(b) to the unmarried daughters of the Judge who are less than twenty-one years of age, until they attain that age or are married, whichever first occurs.]

[1][Sixth Schedule] *omitted.*

[1][Seventh Schedule] *omitted.*

———

[1]Sixth Schedule and Seventh Schedule omitted by the Constitution (Eighteenth Amdt.) Act, 2010 (10 of 2010), s. 102.

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Minorities under Constitution(s) of Pakistan

Abstract

Human Rights are the most debatable issue of the recent age. People living around the globe demand their rights being human beings i.e. the rights or facilities without which human beings cannot live a decent and peaceful life. The concept of human rights was given by Islam during 7th century A.D. while in the West it is related to Magna Carta which was signed in England in 1215. Western scholars claim that concept of human rights was given by the west but the fact is that the last sermon of the Holy Prophet is the first charter of Human Rights. In the west complete charter of human rights i.e. "Universal Declaration of Human Rights" was passed by the United Nations' General Assembly in December 1966. In the recent times constitutions of almost all the democratic states guarantee human rights but unfortunately minority rights have not been mentioned clearly. Pakistan is a democratic state where all the citizens have been guaranteed all the fundamental rights irrespective of their caste, color, creed or religion. This research paper elaborates and analyzes western concept of human rights, Islamic concept of human rights, minority rights in Islam as well as rights of minorities under constitution of Pakistan.

Key Words: Human Rights, Minorities, Universal Declaration of Human Rights, Last Sermon of the Holy Prophet, Constitution of Pakistan.

Introduction

The concept of human rights evolved gradually parallel to the development of human beings. It was the result of continuous struggle of countless people from all over the world. It has become most significant issue of the modern human life. These rights are very essential to lead a reasonable and decent life. Some thinkers are of the view that these are natural rights without any type of discrimination, these rights are bestowed by the nature and nature do has a rationale for them. No formal governmental set up has devised them neither some monarch has originated them; they are simply inherent in the nature.[1]

According to Islamic perspective, these rights have been guaranteed to man due to his honor and dignity because Islam regards man as "crown of all creations". Many a verses of the Holy Book and a number of the sayings of the Prophet (pbuh) shed light on the significance of human rights.

In 18th century West has witnessed the development of the human rights. Today West is considered to be the champion of human rights. Fundamental

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Rights are guaranteed by constitutions of all the modern democratic states of the world. But unfortunately, minorities have been neglected i.e. rights of minorities have not been mentioned separately. That is why all minorities living wherever complain against the discriminations, especially in developed part of the world, which known for its efforts in this regard.

In Pakistan several minorities are also residing in different parts. These minorities are guaranteed all their fundamental rights according to Islam. The constitution of Pakistan guarantees freedom of religion to all the citizens of Pakistan. The minorities are free to practice their religion as well as build their worship places.

Western View of Human Rights

According to Encyclopedia of Britannica

"Rights that belong to an individual as a consequence of being human. They refer to a wide continuum of values that are universal in character and in some sense equally claimed for all human beings".[2]

The online legal dictionary define human rights as

"Human rights are freedoms established by custom or international agreement that impose standards of conduct on all nations. Human rights are distinct from civil liberties, which are freedoms established by the law of particular state and applied by that state in its own jurisdiction"(Legal Dictionary, 2006).

Online Oxford English Dictionary defines human right as:

"A right which is believed to belong to every person: a flagrant disregard for basic human rights"[3]

As per explanation of "Protection of Human Rights Act, 1993" following is elaboration of human rights:

"Human rights mean the rights relating to life, liberty, equality and dignity of individual guaranteed by the constitution or embodied in the International Covenants" (Khwaja, 2015, p. 2).

West is well aware of Human Rights since long. It is a new concept which was developed in its clear form during 18th century A.D. Though some thinkers consider Magna Carta (1215) as beginning of the concept of human rights in the west but most of the scholars do not agree with this view. According to them it was only a charter of landlords and funerals. In the 18th century A.D. French Declaration of Rights of Man and of the Citizens August 27, 1789 and Declaration of Independence of American states are considered as the beginning of fundamental human rights in the west. The Declaration of Independence proclaimed by the 13 American colonies on July 04, 1776 reads as:

"we hold these truths to be self evident, that all men are created equal, that they are endowed by their Creator with certain unalienable rights, that among these are life, liberty and the pursuit of Happiness"[4]

Historically human rights are divided into three generations belongs to civil and political rights and is primarily derived from the reformist theories of 17th and

18th century. Rights mentioned in the Articles 2-21 of Universal declaration of Human Rights belong to these rights e.g. freedom from racial and equivalent forms of discrimination; the right to life; liberty, and the security of the person; freedom from slavery or involuntary servitudes; freedom from torture and from cruel, inhuman, or degrading treatment or punishment etc.

These civil and political rights have got so much importance that most of the states of the world have guaranteed these rights to their citizens in their constitutions. Moreover, majority of international conventions and declarations since World War II have adopted these rights.

The second generation of human rights belongs to economic, social, and cultural rights and these rights got importance during early years of 19th century. The rights mentioned in Articles 22-27 of the Universal Declaration of Human Rights belong to this generation e.g. right to social security, right to work and to protection against unemployment, right to education etc.

The third generation rights got recognition during 20th century. This generation of Human Rights includes six claimed rights. Of these first three rights are demands from the third world countries i.e. right to political, economic, social, and cultural self-determination; the right to economic and social development, and the right to participate in and benefit from "the common heritage of mankind". The other three rights are – the right to peace, the right to a healthy and balanced environment and the right to humanitarian disaster relief[5]

Khawaja (2015) explains, at present human rights having been granted and protect through United Nations Universal Declaration of Human Rights which was adopted by United Nations General Assembly in 1948 and approved in December 1966. Simplified version of the 30 articles of this declaration explains the variety of human rights which cover almost all spheres of the life of a human. This is such an elaborated document which ensures the safety and security of all individuals regardless of their, caste, creed, color, dogmas and regions. if these rights are adopted in true latter and spirit, there would have been no issue of human rights would have been there.

Human Rights in Islam

According to the Muslims, it was Islam who gave the concept of human rights at first i.e. during 7th century A.D. long before the West. The religion of Islam provides a complete pattern of human life in practical manner. Man has been special status and dignity in this universe. Life of a human being is so sacred in Islam that no one is allowed to kill anyone else.

Quran says:

"Who so ever kills a human being (without any reason like) manslaughter or corruption on earth, it is though he had killed all mankind"[6]

Moreover, dignity of man is explained in these words:

"We have conferred dignity on the children of Adam, and borne them over land and sea, and provided for them far above most of our Creations" [7]

All human beings have their rights and it is moral obligation as well as religious duty of all the Muslims to protect the human rights of all the human beings.

As the Holy Prophet (PBUH) said,

"A Muslim is one from whose tongue and hand the Muslims are at peace"

At another occasion he said,

"Slanderers do not enter paradise"[8]

A renowned Islamic thinker and scholar Dr. Tahir-ul- Qadri has defined human rights as

"The human rights are those rights which are given by the Creator (Allah) of the humanity through His Messenger. These rights are immutable but have reciprocal relationship to the duties"[9]

In an Islamic state the rights or privileges of manare given by Allah who has sovereignty all over the Universe. These cannot be changed by anyone else. In Islamic state citizens enjoy private as well as public rights no one is allowed to snatch these rights. Human Rights are integral part of religion in Islam. The last sermon of the Holy Prophet which he delivered on 9th Dhul Hijjah 10 A.H. (632 A.D.) is the first human right charter in the history of man.Chaudhry (1993) elaborates the points related to human rights as under:

"Human blood, property and honour are sacred and inviolable for all"

"He who has any trust with him he should restore it to the person who deposited it with him"

"Beware; no one committing a crime is responsible for it but he himself"

"A Muslim is the brother of the Muslim and they form one brotherhood. Nothing of his brother is lawful for a Muslim except what he himself allows willingly. So you should not oppress one another"

"O people fear Allah concerning women. Verily you have taken them on the security of Allah and have made their persons lawful unto you by words of Allah! Verily you have got certain rights over your women and your women have certain rights over you"

"Allah has ordained to every man the share of his inheritance. The child belongs to the marriage-bed and violator of wedlock shall be stoned"

"Your lives, your property and your honour must be as sacred to one another as this sacred day, in this sacred month, in this sacred town"

"And your slaves! See that you feed them with such food as you eat yourselves; and clothe them with the clothes that you yourselves wear. And if they commit a fault which you are not inclined to forgive, then part with them for they are the servants of Allah and are not to be chastised"

Next day he also added:

"O people! Verily your Lord is one and your father is one. All of you belong to one ancestry of Adam and Adam was created out of clay. There is no superiority for an Arab over a non-Arab and for a non-Arab over an Arab; neither for white over the black nor for the black over the white except in piety"[10]

Minorities under Islam

Ali (1980) is of the view that despite the widespread education, enlightenment and constitutional guarantees in most of the states of the world, minorities are neglected and they have to face discrimination in every walk of life.

Though it is considered that secular states gurarantee protection to minorities but practically the situation is not like that. Even in America and other developed countries minorities are treated as second class citizens.[11]

Hamidullah (1987)[12] says Islam has very soft corner towards minorities living in an Islamic state. Islamic law guarantees and protects right to life, property, honour and liberty of conscience, religion all its citizens i.e. Muslims and non-Muslims without any type of discrimination.

In the West much propaganda is being made against Islam about treatment of non-Muslims. It is claimed that non-Muslims are being discriminated on the basis of faith and religion. But if study deeply the teachings of Islam about rights of minorities, this propaganda of West proves to be false.

Islam has forbidden all types of distinctions and discriminations based on race, color, nationality, language or caste. It brings people together purely on human grounds and at the same time grants them full freedom to practice the religion of their choice.[13]

The Quran says;

"There is no compulsion in religion ……..".[14]

It commands the prophet of Islam to tell the non-believers:

"unto you your religion, and unto me my religion"[15]

Singh (2007)[16] writes that the first Islamic state established by the Prophet (PBUH) in Madina gave absolute religious freedom to all the minorities. He assured that minorities would get equal opportunities to live their lives happily. Non-Muslims were even allowed to merge into Madina according to their own will. They were given political rights and with respect to election of head of state they had equal right to vote. Even on his death bed, he directed his followers to provide full security to the non-Muslims.

In Islamic state non-Muslims are not only treated with great tolerance but also given highest administrative positions so that they might play their role for the development of the state. They are free to practice their religion and perform their religious obligations, build their worship places and educational institutions so that their children might be educated according to their faith or creed[17]

Minority Rights in Pakistan

Pakistan was established on the ideology of Islam. Most of the population in Pakistan was Muslim but non-Muslim minorities were also present in Pakistan. They were anxious about their future. Quaid-i-Azam was fully aware of the fact. So in his first address to the Constituent Assembly on 11 August 1947, special attention was given to the minorities in these words:

"You are free; you are to go to your temples. You are free to go to your mosques or to any other places of worship in this State of Pakistan. You may belong to any religion or caste or creed—that has nothing to do with the business of the State"[18]

He further said,

"Now, I think we should keep that in front of us as our ideal and you will find that in course of time Hindus would cease to be Hindus and Muslims would cease to be Muslims, not in the religious sense, because that is the personal faith of each individual, but in the political sense as citizens of the State"[19]

After independence, Govt. of India Act, 1935 became with certain adaptations, the working constitution of Pakistan and the Constituent Assembly was given the task of framing future constitution for country. The first step towards it was taken in March 1949, when "Objectives Resolution" was passed. It was considered as foundation stone for the future constitution of the country. It also included guarantee of fundamental rights for all the citizens of Pakistan i.e. Muslims as well as non-Muslims. The citizens were guaranteed their fundamental rights under following provisions:

Wherein the principles of democracy, freedom, equality, tolerance and social justice as enunciated by Islam shall be fully observed.

Wherein adequate provisions shall be made for the minorities to freely profess and practice their religions and develop their cultures.

Wherein adequate provisions shall be made to safeguard the legitimate interests of minorities and depressed and backward classes.

According to this resolution minorities were free to profess and practice any religion and it was duty of the government to protect their interests. They were allowed to enter into government services of Pakistan. On-Muslims and even some Muslim members of the Constituent Assembly wanted Pakistan to be a secular state but constitutional foundation of the country was laid on the principles of Islam and minorities were given all their fundamental rights as guaranteed by Islam.

With the "Objectives Resolution" the process of constitution making started off. After passage of this resolution in 1949, several committees were framed by the Constituent Assembly to frame a constitution on the basis of principles laid down by the resolution. Among these committees "The Basic Principles Committee" was the most important. It consisted of twenty four members and was headed by the prime minister. A committee on "Fundamental Rights of the Citizens of Pakistan" and on "Matters relating to Minorities" had been established

by the Assembly in its inaugural session on 12 August 1947. The committee was primarily divided into two sections. One was occupied with the formation of Basic Human Rights and the other section was looking into the rights and protection of the minorities in Pakistan. In 1950, the Constituent Assembly adopted the reports devised by this committee, which was finalized in 1954.

By virtue of this report presented by the Committee on Human Rights and after its acceptance by the Constituent Assembly in 1950, minorities were granted generous rights as citizens of Pakistan. The fundamental rights were guaranteed to all the citizens of the state i.e. both Muslims and non-Muslims, and included the following provisions:

1. Equality of all citizens before law.
2. Equal protection of all citizens before law.
3. No discrimination on the basis of religion, race, caste, sex, or place of birth.
4. The right to induction in the services of the state.
5. Freedom of speech, conscience, expression, association, profession, occupation, trade, or business.
6. Every community would be allowed to provide religious instructions to the pupils of its own community and personal law of every community was guaranteed.
7. No person would be compelled to pay any special taxes for the propagation of any religion other than his.
8. No discrimination against any community in the matter of exemption from or concession in taxes granted with respect to religious institutions.
9. No discrimination in admission to educational institutions.

The report was highly appreciated both inside as well as outside the Constituent Assembly. With regard to rights of minorities in Pakistan, in its final report, the Constituent Assembly added the following provisions in the fundamental rights.

1. 'Any minority residing in the territory of Pakistan or any part thereof having a distinct language, script, or culture of its own should not be prevented from conserving the same'.
2. 'The state shall not discriminate in granting aid to educational institutions, discriminate against any educational institution merely on the ground that it is mainly mentioned by a religious minority'.
3. 'There shall be a Minister for Minority Affairs both at the centre and in the provinces to look after the interests of the minorities and to see that the safeguards provided in the constitutions for the minorities are duly observed'[20]

The first constitution of Pakistan was promulgated in 1956; it included all the fundamental rights for all the citizens irrespective of their religion. All the

minorities living in Pakistan were guaranteed all their fundamental rights. Unfortunately this constitution was abrogated in 1958 and new constitution was framed in 1962 which did not include fundamental rights but these were included in the constitution through constitutional amendment afterwards. Unfortunately, this constitution also could not last long and once again a new constitution was framed in 1973, this time by the Assembly elected by the people of Pakistan. This constitution guaranteed all the fundamental rights to all the citizens of Pakistan. Fundamental rights included in all the three constitutions of Pakistan are as follows:

Nature of Rights	**1956 Constitution**	**1962 Constitution**	**1973 Constitution**
Rights to equality	a) Equality before law. b) Equal protection of the law. c) All duly qualified citizens were eligible for appointment to service of state, irrespective of religion, race, caste, sex, descent or place of birth.	a) Equality before law. b) Equality regarding accessibility to public places. c) Equality of opportunity.	a)Equality before law and entitlement to equal protection of law. b)Equality regarding accessibility to public places. c)Safeguard against discrimination in services.
Rights to life and personal liberty	a)Right to life and liberty. b)No punishment for the act which was not punishable when committed. c)The right to apply for a writ of habeas corpus.	a) Right to life and liberty. b) Right to personal freedom: i) Protection against retrospective punishment. ii) Principle of detention and arrest. iii) Principle of preventive detention.	a)Security of person. b)Safeguards as to arrest and detention. c)Right to fair trial. d)Protection against retrospective punishment. e)Protection against double punishment and self incrimination. f)Inviolability of dignity of man etc.
Rights to freedom	a) Freedom of speech, expression, association, occupation, and peaceful assembly. b) The right to move freely throughout Pakistan and to reside in any part of the country. c)Freedom of conscience and the right to profess, practice, and propagate any religion, subject to public order and morality. d) Freedom to attend any educational institution and exemption from any kind of tax which could be used for propagation of the religion other than	a) Freedom of speech, assembly, association, movement, religion, trade, profession, etc.	a)Freedom of movement, assembly, association, trade, business or profession, and speech. b)Freedom to profess religion and to manage religious institutions. Safeguard against taxation for purposes of any particular religion. c)Safeguard as to educational institutions in respect of religion, etc.

	one's own.		
Rights to property	a) Freedom of acquisition and disposal of property. b)No person could be deprived of his property without adequate compensation.	a) Freedom to acquire property. b) Right not to be expropriated. c) Right to compensation.	a) Right to acquire, hold and dispose of property in any part of Pakistan. b)No person shall be compulsory deprived of his property save in accordance with law.
Right to culture		Right to culture etc.	Right to preserve language, script and culture.
Social rights	a)Freedom from slavery, servitude, forced labour, torture, or cruel or inhuman treatment or punishment. The practice of untouchability was also declared unlawful. b)No discrimination on grounds of religion, race, caste, sex, or place of birth.	Freedom from slavery, forced labour, and untouchability.	a)Freedom from slavery, forced labour. b)Right to education. c)Right of individual to be dealt with in accordance with law.
Protection of fundamental rights		Right to Constitutional Remedies to protect fundamental rights.	Laws inconsistent with or in derogation of fundamental to be void.

Source [21]

Source[22]

The Rights of Equality

The constitution grants equality of rights. This right is based upon the supremacy of law. It means that minorities living in Pakistan are also provided equal protection of law and all are treated equally without any kind of discrimination. For example, on Friday February 17, 2012 Lahore High Court granted custody of 11 years old girl Amina Tarrar to her non-Muslim mother ruling that a minor girl should live with her mother. The order was passed by Justice Manzoor Ahmad Malik on a petition filed by French national Ingrid Branden Burger seeking the custody of her daughter, Amina, from her ex-husband Razzaq Tarrar, resident of Phalia Tehsil Mandi Bahauddin district.[23]

Whosoever qualifies as the citizen of Pakistan stands eligible for all type of public service without any discrimination of religion, race, sex or descent. In the services of state special quota is reserved for the non-Muslim citizens of Pakistan. That is why non-Muslims are serving in all most every walk of life i.e. education, defense, judiciary, bureaucracy, etc. Zafar (2007)[24] elaborates they are even given high ranking posts e.g. the first two Chiefs of Army Staff General Frank Walter Messervy and General Sir Douglas Gracy both were non-Muslims. The first three Vice Air Marshals of Pakistan Air Force were also non-Muslims. Another non-Muslim army officer Cecil Chaudhry played a very significant role in Indo-Pakistan war of 1965 and was awarded "Sitara Jurat" award as recognition of his

valuable services. So many non-Muslim are serving in judiciary also. Rana Bhagwandas, was raised to the post of chief justice of Pakistan in 2007. Thousands of non-Muslim are working in education and health care departments. In fact, the first close heart surgery in Pakistan was carried out by a Christian doctor Dr. Donald Bose in 1959. The non-Muslims also get equal opportunities in electronic media and some of them have won great honor for Pakistan. Some of famous non-Muslim personalities are Shabnam, Dr. Durdana Butt, Neelo, **Rachel Gill, Jia Ali, Sunita Marshall, Binita David etc.**

Rights to life and personal liberty

This is one of the most significant of the entire set of basic human rights. It provides foundations to the concept of 'rule of law'. It stands for the sanctity of human life, honour and liberty except in accordance with law i.e. no person can be arrested; detained put under restraint except law authorizes such arrest or restriction. The minorities freely enjoy their right to life and personal liberty.

Rights to freedom

The minorities have freedom of speech, expression, association, occupation, and peaceful assembly. They can fully participate in the political system of Pakistan and have the right to criticize the government. "Pakistan Christian Post" is a Christian daily newspaper in which Christian point of view about the policies of government is presented without any type of fear. So far as the right to freedom of association is concerned the minorities are free to assemble peacefully in any part of the country. They also have the right to move freely throughout Pakistan and to reside in any part of the country. There are so many non-Muslim colonies all over Pakistan and even in the big cities of Pakistan. Freedom of conscience and the right to profess, practice, and propagate any religion, subject to public order and morality. Minorities are free to profess any religion. They are not forced to accept any type of religion. They are also free to build their worship places and perform their religious rituals freely. Even the Muslims participate in their religious festivals. There are so many temples and churches in Pakistan. These worship places of non-Muslims are respected by the Muslims and even protected by the government. The minorities are free to attend any educational institution and have the exemption from any kind of tax which could be used for propagation of the religion other than one's own. There so many Christian educational institutions run by Christians. Students get education of Christianity in these institutions. In Lahore Forman Christian College and University is run by Christians and students from all over Pakistan come here for education. These Christian institutions are run freely without any interference from the government or any other segment of society. There is never any incident of collection of money from the minorities for the propagation of religion other than their own. The minorities are also free to move or reside in any part of the country. Nobody has ever been denied to reside in any part of the country on the basis of caste, color, creed or religion.

Rights to property

The minorities have the freedom of acquisition and disposal of property. They can sale or purchase any property according to their own will. No person can be

deprived of his property without adequate compensation. No discrimination is shown to sale or purchase property from the non-Muslims.

Right to culture

The people residing in any part of the country have the right to preserve their culture. No one is discriminated on the basis of his culture. The Christians living in Punjab and Hindu community of Sindh have never been forced to leave their culture instead the Muslims and the non-Muslims respect each other's cultures.

Social Rights

All the minorities living in Pakistan have protection of social rights. They are given equal social status everywhere in society.

Conclusion

When Pakistan came into being, so much propaganda had been made by its enemies about the future of non-Muslims living in Pakistan. But the Muslims had bitter memories of past in their minds when they had been maltreated in the sub-continent by Hindu majority. Now they did not want to treat non-Muslim in the way the Muslims were treated in the united India before partition. That was why the minorities in Pakistan were given all their fundamental rights in the constitution. Along with these constitutional guarantees of fundamental rights, practical steps were taken by the state and the society for the protection of these rights. As a result, the minorities are able to live their lives according to their religion and culture. Guarantee of fundamental rights proved very helpful for the progress of the country because minorities are playing very vital role in the national progress. Their contribution in every walk of life is visible. The non-Muslim politicians, philosophers, lawyers, judges, bureaucrats, doctors, engineers, teachers all are serving the sacred homeland only because they have freedom of religion, speech, association, thought, profession etc.

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